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OF

THE SUPREME COURT

OCTOBER 3, 2022, THROUGH MAY 5, 2023

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REBECCA A. WOMELDORF
REPORTER OF DECISIONS



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REPORTER'S NOTE

The next page is purposely numbered 901. The numbers between 305 and 901 were intentionally omitted, in order to make it possible to publish the orders with *permanent* page numbers, thus making the official citations available upon publication of the preliminary prints of the United States Reports.

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ORDERS FOR OCTOBER 3, 2022, THROUGH
MAY 5, 2023

OCTOBER 3, 2022

Certiorari Granted—Vacated and Remanded

No. 21–1102. OKLAHOMA *v.* SIMS. Ct. Crim. App. Okla. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Oklahoma* v. *Castro-Huerta*, 597 U. S. 629 (2022).

No. 21–1160. MORIN *v.* LYVER ET AL. C. A. 1st Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *New York State Rifle & Pistol Assn., Inc.* v. *Bruen*, 597 U. S. 1 (2022). Reported below: 13 F. 4th 101.

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No. 21–1274. INGRAM *v.* UNITED STATES. C. A. 11th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Concepcion* v. *United States*, 597 U. S. 481 (2022). Reported below: 831 Fed. Appx. 454.

No. 21–1307. SANTA ANA HEALTHCARE & WELLNESS CENTRE, LP, ET AL. *v.* MONDRAGON. Ct. App. Cal., 2d App. Dist., Div. 1; and

No. 21–1444. DOLGEN CALIFORNIA, LLC *v.* GALARSA. Ct. App. Cal., 5th App. Dist. Certiorari granted, judgments vacated, and cases remanded for further consideration in light of *Viking River Cruises, Inc.* v. *Moriana*, 596 U. S. 639 (2022).

No. 21–1399. AL-MAQABLH *v.* HEINZ ET AL. C. A. 6th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Thompson* v. *Clark*, 596 U. S. 36 (2022).

No. 21–5874. JACKSON *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Concepcion* v. *United*

States, 597 U. S. 481 (2022). JUSTICE KAGAN took no part in the consideration or decision of this motion and this petition. Reported below: 962 F. 3d 1290.

No. 21–6179. PEREZ *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Concepcion* v. *United States*, 597 U. S. 481 (2022). Reported below: 859 Fed. Appx. 356.

No. 21–6224. FORD *v.* UNITED STATES. C. A. 11th Cir. Reported below: 858 Fed. Appx. 325; and

No. 21–6753. NUNNALLY *v.* UNITED STATES. C. A. 11th Cir. Motions of petitioners for leave to proceed *in forma pauperis* granted. Certiorari granted, judgments vacated, and cases remanded for further consideration in light of *Concepcion* v. *United States*, 597 U. S. 481 (2022). JUSTICE KAGAN took no part in the consideration or decision of these motions and these petitions.

No. 21–7933. ARMSTRONG *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *United States* v. *Taylor*, 596 U. S. 845 (2022).

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No. 21–8148. BYNES *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Xiulu Ruan* v. *United States*, 597 U. S. 450 (2022).

Certiorari Dismissed

No. 21–7740. PETERS *v.* TEXAS CHILDREN'S HOSPITAL ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 21–7747. PETERS *v.* HOYT ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. THE CHIEF JUSTICE and JUSTICE BARRETT took no part in the consideration or decision of this motion and this petition.

No. 21–7795. PETERS *v.* DUCKWORTH ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 21–7797. PETERS *v.* TEXAS MEDICAL BOARD. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 21–7810. PETERS *v.* TEXAS DEPARTMENT OF CRIMINAL JUSTICE ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 21–7847. PETERS *v.* TEXAS ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 21–7850. AHMED *v.* SHOOP, WARDEN. C. A. 6th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 21–7854. PETERS *v.* HITTNER, JUDGE. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

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No. 21–7902. ENDSLEY *v.* CALIFORNIA. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 21–7966. PETERS *v.* HITTNER, JUDGE. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 21–8031. PETERS *v.* UNITED STATES ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 21–8032. PETERS *v.* INNOCENT PROJECTS OF TEXAS ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 21–8112. LUEVANO *v.* TRUMP ET AL. C. A. 2d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 21–8207. AZEEZ *v.* ROBERTSON ET AL. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 21–8265. GORBEY *v.* UNITED STATES. Ct. App. D. C. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*). THE CHIEF JUSTICE and JUSTICE KAGAN took no part in the consideration or decision of this motion and this petition.

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No. 21–8270. ADKINS *v.* DRIFTWOOD SPECIAL SERVICING, LLC. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 22–5008. PATEL *v.* BHATIA. Ct. App. Cal., 2d App. Dist., Div. 3. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 22–5040. ELLIS *v.* UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA. C. A. D. C. Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 22–5041. MILLER *v.* DUNN. Ct. App. Tex., 9th Dist. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5096. LUCZAK *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*). Reported below: 2021 IL App (1st) 173139–U.

Not Binding Precedent

Miscellaneous Orders

No. 22M1. CONARD *v.* PENNSYLVANIA STATE POLICE ET AL.;

No. 22M2. TORRES *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.;

No. 22M3. MOHAMMED *v.* PRAIRIE STATE LEGAL SERVICES, INC., ET AL.;

No. 22M4. JOHNSON *v.* MORRISS, WARDEN;

No. 22M7. WOOD-JIMENEZ *v.* NEVADA DEPARTMENT OF MOTOR VEHICLES;

No. 22M10. CURRAN *v.* CURRAN;

No. 22M11. JENKINS *v.* SOUTH CAROLINA DEPARTMENT OF EMPLOYMENT WORKFORCE ET AL.;

No. 22M12. COPELAND *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL.; and

No. 22M13. MYLES *v.* NEAL, WARDEN. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 22M5 (21–7408). DINGLE *v.* BAGGETT, JUDGE, ET AL. Motion for leave to proceed as a veteran denied.

No. 22M6. SEALED APPELLANT *v.* UNITED STATES. Motion for leave to file petition for writ of certiorari under seal with redacted copies for the public record granted.

No. 22M8. A. W. ET AL. *v.* PRINCETON PUBLIC SCHOOLS BOARD OF EDUCATION ET AL.; and

No. 22M14. JESSICA W. *v.* LITTLE FLOWER CHILDREN AND FAMILY SERVICES ET AL. Motions for leave to file petitions for writs of certiorari with supplemental appendixes under seal granted.

No. 22M9. VECHERY *v.* COTTET-MOINE. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted. JUSTICE KAVANAUGH took no part in the consideration or decision of this motion.

No. 65, Orig. TEXAS *v.* NEW MEXICO. Motion of the River Master for fees and expenses granted, and the River Master is awarded a total of $8,750.64, for the period July 1, 2021, through June 30, 2022, to be paid equally by the parties. [For earlier order herein, see, *e. g.*, 595 U. S. 906.]

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No. 21–376. HAALAND, SECRETARY OF THE INTERIOR, ET AL. *v.* BRACKEEN ET AL.;

No. 21–377. CHEROKEE NATION ET AL. *v.* BRACKEEN ET AL.;

No. 21–378. TEXAS *v.* HAALAND, SECRETARY OF THE INTERIOR, ET AL.; and

No. 21–380. BRACKEEN ET AL. *v.* HAALAND, SECRETARY OF THE INTERIOR, ET AL. C. A. 5th Cir. [Certiorari granted, 595 U. S. 1251.] Motion of the Solicitor General for divided argument and for enlargement of time for oral argument granted.

No. 21–476. 303 CREATIVE LLC ET AL. *v.* ELENIS ET AL. C. A. 10th Cir. [Certiorari granted, 595 U. S. 1218.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted.

No. 21–1164. WILKINS ET AL. *v.* UNITED STATES. C. A. 9th Cir. [Certiorari granted, 596 U. S. 990.] Motion of National Federation of Independent Business Small Business Legal Center et al. for leave to file brief as *amici curiae* granted.

No. 21–1168. MALLORY *v.* NORFOLK SOUTHERN RAILWAY CO. Sup. Ct. Pa. [Certiorari granted, 596 U. S. 942.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted.

No. 21–1239. SECURITIES AND EXCHANGE COMMISSION ET AL. *v.* COCHRAN. C. A. 5th Cir. [Certiorari granted, 596 U. S. 961.] Motion of respondent to file reply brief on the merits out of time granted.

No. 21–1271. MOORE, SPEAKER OF THE NORTH CAROLINA HOUSE OF REPRESENTATIVES, ET AL. *v.* HARPER ET AL. Sup. Ct. N. C. [Certiorari granted, 597 U. S. 918.] Motion of petitioners to dispense with printing joint appendix granted.

No. 21–1281. INTERACTIVE WEARABLES, LLC *v.* POLAR ELECTRO OY ET AL. C. A. Fed. Cir.; and

No. 21–1550. SUNCOR ENERGY (U. S. A.) INC. ET AL. *v.* BOARD OF COUNTY COMMISSIONERS OF BOULDER COUNTY ET AL. C. A. 10th Cir. The Solicitor General is invited to file briefs in these cases expressing the views of the United States.

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No. 21–7436. LOGGINS *v.* ZMUDA, SECRETARY, KANSAS DEPARTMENT OF CORRECTIONS, ET AL. C. A. 10th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [596 U. S. 970] denied. JUSTICE GORSUCH took no part in the consideration or decision of this motion.

No. 21–7629. HOLMES *v.* GRANUAILE, LLC, ET AL. C. A. 4th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [596 U. S. 1031] denied.

No. 21–7806. WEBB *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA. C. A. 4th Cir.;

No. 21–8142. WEBB *v.* NORTHAM ET AL. Sup. Ct. Va.;

No. 21–8147. TOMKINS *v.* UNITED STATES. C. A. 7th Cir.;

No. 21–8220. NELSON-ROGERS *v.* INTERNAL REVENUE SERVICE ET AL. C. A. 9th Cir.;

No. 22–5063. TULIPAT *v.* UNITED STATES. C. A. Fed. Cir.;

No. 22–5086. GASSESSE *v.* UNIVERSITY OF CONNECTICUT. App. Ct. Conn.;

No. 22–5089. WEBB *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA; and WEBB *v.* NORTHAM.

C. A. 4th Cir. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until October 24, 2022, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 21–8242. WEBB *v.* FAUCI ET AL. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until October 24, 2022, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court. JUSTICE ALITO took no part in the consideration or decision of this motion.

No. 22–18. CUKER INTERACTIVE, LLC *v.* PILLSBURY WINTHROP SHAW PITTMAN, LLP. C. A. 9th Cir.; and

No. 22–37. TEVA PHARMACEUTICALS USA, INC. *v.* GLAXOSMITHKLINE LLC ET AL. C. A. Fed. Cir. The Solicitor General is invited to file briefs in these cases expressing the views of the United States.

No. 22–5013. IN RE KYTE;

No. 22–5155. IN RE WILLIAMS;

No. 22–5224. IN RE LANE-BEY;

No. 22–5256. IN RE SHEEHAN;

No. 22–5343. IN RE RIGAL;

No. 22–5344. IN RE MCCRAY;

No. 22–5370. IN RE ALLEN BEY;

No. 22–5439. IN RE SPENCER EL-BEY;

No. 22–5483. IN RE MONTE; and

No. 22–5502. IN RE CARROLL. Petitions for writs of habeas corpus denied.

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No. 21–8244. IN RE FRANZA; and

No. 22–5152. IN RE ALFRED. Motions of petitioners for leave to proceed *in forma pauperis* denied, and petitions for writs of habeas corpus dismissed. See this Court's Rule 39.8. As petitioners have repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioners unless the docketing fees required by Rule 38(a) are paid and the petitions are submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 21–1442. IN RE BUDRI;

No. 21–1582. In re Finnegan;
No. 21–7761. In re Riley;
No. 21–7775. In re Maye;
No. 21–7807. In re Danam;
No. 21–7883. In re Schiff;
No. 21–8007. In re Hower;
No. 21–8055. In re Jeansonne;
No. 21–8110. In re Sudbury;
No. 21–8114. In re Hudson;
No. 21–8186. In re Jackson;
No. 22–5166. In re AlBritton;
No. 22–5202. In re Davis;
No. 22–5208. In re Bolin; and
No. 22–5227. In re Krieg. Petitions for writs of mandamus denied.

No. 21–7882. In re Ouyang; and
No. 21–8284. In re Staszak. Motions of petitioners for leave to proceed *in forma pauperis* denied, and petitions for writs of mandamus dismissed. See this Court's Rule 39.8.

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No. 21–8013. In re Stinson. Petition for writ of mandamus and/or prohibition denied.

No. 21–8259. In re Gregory. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of mandamus and/or prohibition dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 21–8094. In re Jenkins. Petition for writ of prohibition denied.

Certiorari Granted

No. 21–887. Luna Perez *v.* Sturgis Public Schools et al. C. A. 6th Cir. Certiorari granted. Reported below: 3 F. 4th 236.

No. 21–1333. Gonzalez et al. *v.* Google LLC. C. A. 9th Cir. Certiorari granted. Reported below: 2 F. 4th 871.

No. 21–1397. In re Grand Jury. C. A. 9th Cir. Certiorari granted. Reported below: 23 F. 4th 1088.

No. 21–1436. Santos-Zacaria, aka Santos-Sacarias *v.* Garland, Attorney General. C. A. 5th Cir. Certiorari granted. Reported below: 22 F. 4th 570.

No. 21–1449. Glacier Northwest, Inc., dba CalPortland *v.* International Brotherhood of Teamsters Local Union No. 174. Sup. Ct. Wash. Certiorari granted. Reported below: 198 Wash. 2d 768, 500 P. 3d 119.

No. 21–1450. Turkiye Halk Bankasi A. S., aka Halkbank *v.* United States. C. A. 2d Cir. Certiorari granted. Reported below: 16 F. 4th 336.

No. 21–1496. Twitter, Inc. *v.* Taamneh et al. C. A. 9th Cir. Certiorari granted. Reported below: 2 F. 4th 871.

No. 22–96. Financial Oversight and Management Board for Puerto Rico *v.* Centro de Periodismo Investigativo, Inc. C. A. 1st Cir. Certiorari granted. Reported below: 35 F. 4th 1.

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No. 21–1454. Ohio Adjutant General's Department et al. *v.* Federal Labor Relations Authority et al. C. A. 6th Cir. Certiorari granted limited to Question 1 presented by the petition. Reported below: 21 F. 4th 401.

Certiorari Denied

No. 21–159. Aposhian *v.* Garland, Attorney General, et al. C. A. 10th Cir. Certiorari denied. Reported below: 958 F. 3d 969.

No. 21–1190. Rios *v.* Texas. Ct. App. Tex., 14th Dist. Certiorari denied. Reported below: 625 S. W. 3d 488.

No. 21–1210. Scott County, Tennessee *v.* Brawner. C. A. 6th Cir. Certiorari denied. Reported below: 14 F. 4th 585.

No. 21–1215. Gun Owners of America, Inc., et al. *v.* Garland, Attorney General, et al. C. A. 6th Cir. Certiorari denied. Reported below: 19 F. 4th 890.

No. 21–1225. Estate of Taylor et al. *v.* Salt Lake City, Utah, et al. C. A. 10th Cir. Certiorari denied. Reported below: 16 F. 4th 744.

No. 21–1243. City of Oakland, California *v.* Oakland Raiders et al. C. A. 9th Cir. Certiorari denied. Reported below: 20 F. 4th 441.

No. 21–1256. Athey et al. *v.* United States. C. A. Fed. Cir. Certiorari denied.

No. 21–1283. Animal Science Products, Inc., et al. *v.* Hebei Welcome Pharmaceutical Co. Ltd. et al. C. A. 2d Cir. Certiorari denied. Reported below: 8 F. 4th 136.

No. 21–1292. Jones *v.* City of Detroit, Michigan. C. A. 6th Cir. Certiorari denied. Reported below: 20 F. 4th 1117.

No. 21–1310. Turner et al. *v.* Allstate Insurance Co. C. A. 11th Cir. Certiorari denied. Reported below: 21 F. 4th 759.

No. 21–1313. Gottesfeld *v.* United States. C. A. 1st Cir. Certiorari denied. Reported below: 18 F. 4th 1.

No. 21–1319. Nordlicht et al. *v.* United States. C. A. 2d Cir. Certiorari denied. Reported below: 17 F. 4th 298.

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No. 21–1323. Gonzalez Hernandez *v.* Garland, Attorney General. C. A. 5th Cir. Certiorari denied. Reported below: 9 F. 4th 278.

No. 21–1327. Apple Inc. *v.* Qualcomm Inc. C. A. Fed. Cir. Certiorari denied. Reported below: 17 F. 4th 1131.

No. 21–1344. Campbell-Martin et al. *v.* United States. C. A. 8th Cir. Certiorari denied. Reported below: 17 F. 4th 807.

No. 21–1346. Friends of Merrymeeting Bay et al. *v.* Central Maine Power Co. Sup. Jud. Ct. Me. Certiorari denied.

No. 21–1355. Diaz-Esparza *v.* Garland, Attorney General. C. A. 5th Cir. Certiorari denied. Reported below: 23 F. 4th 563.

No. 21–1357. Tyler *v.* Vannoy, Warden. Sup. Ct. La. Certiorari denied. Reported below: 2020–00984 (La. 11/17/21), 327 So. 3d 507.

No. 21–1360. Kowall et al. *v.* Benson, Michigan Secretary of State. C. A. 6th Cir. Certiorari denied. Reported below: 18 F. 4th 542.

No. 21–1364. KORF ET AL. *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 11 F. 4th 1235.

No. 21–1368. OLD DOMINION ELECTRIC COOPERATIVE *v.* PJM INTERCONNECTION, LLC. C. A. 4th Cir. Certiorari denied. Reported below: 24 F. 4th 271.

No. 21–1372. ADAMS ET AL. *v.* TEAMSTERS UNION LOCAL 429 ET AL. C. A. 3d Cir. Certiorari denied.

No. 21–1376. ALEXANDRE *v.* NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA. C. A. 1st Cir. Certiorari denied. Reported below: 22 F. 4th 261.

No. 21–1384. FLORIDA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 938 F. 3d 1221.

No. 21–1391. KELLY *v.* CITY OF MOUNT VERNON, NEW YORK, ET AL. C. A. 2d Cir. Certiorari denied.

No. 21–1398. CENTENO *v.* COMMONWEALTH OF PUERTO RICO. Sup. Ct. P. R. Certiorari denied.

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No. 21–1404. SUNOCO PARTNERS MARKETING & TERMINALS L. P. ET AL. *v.* CLINE, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED. C. A. 10th Cir. Certiorari denied.

No. 21–1405. SMITH *v.* WARD, COMMISSIONER, GEORGIA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied. Reported below: 13 F. 4th 1319.

No. 21–1407. MANDAWALA *v.* NORTHEAST BAPTIST HOSPITAL ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 16 F. 4th 1144.

No. 21–1408. EFO *v.* FONDJO. Cir. Ct. Frederick County, Md. Certiorari denied.

No. 21–1416. ORR *v.* CHRISTIAN BROTHERS HIGH SCHOOL, INC., ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–1423. HOTI *v.* CITY OF WARREN, MICHIGAN. Sup. Ct. Mich. Certiorari denied. Reported below: 508 Mich. 926, 963 N. W. 2d 355.

No. 21–1424. HOTI *v.* CITY OF WARREN, MICHIGAN. Sup. Ct. Mich. Certiorari denied. Reported below: 508 Mich. 926, 963 N. W. 2d 364.

No. 21–1428. BLANKENSHIP *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 19 F. 4th 685.

No. 21–1429. ZHANG JINGRONG ET AL. *v.* CHINESE ANTI-CULT WORLD ALLIANCE, INC.; and

No. 21–1556. CHINESE ANTI-CULT WORLD ALLIANCE, INC., ET AL. *v.* ZHANG JINGRONG ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 16 F. 4th 47.

No. 21–1430. COLLINS *v.* ZOLNIER, DBA CKC PROPERTIES, TOP STAR LEASES. C. A. 5th Cir. Certiorari denied.

No. 21–1432. K. S., FATHER *v.* IOWA DEPARTMENT OF HUMAN SERVICES ET AL. Ct. App. Iowa. Certiorari denied.

No. 21–1435. LEAF *v.* NIKE, INC., ET AL. C. A. 6th Cir. Certiorari denied.

No. 21–1437. KAM *v.* DALLAS COUNTY, TEXAS, ET AL. C. A. 5th Cir. Certiorari denied.

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No. 21–1441. MCCRAY *v.* DEPARTMENT OF LABOR, OCCUPATIONAL SAFETY AND HEALTH ADMINISTRATION. C. A. 6th Cir. Certiorari denied.

No. 21–1443. ARNOLD *v.* OGLESBY, COMMISSIONER, TENNESSEE DEPARTMENT OF GENERAL SERVICES. C. A. 6th Cir. Certiorari denied.

No. 21–1445. THATCHER *v.* DEPARTMENT OF VETERANS AFFAIRS. C. A. 11th Cir. Certiorari denied.

No. 21–1447. ESTATE OF MIRANDA ET AL. *v.* NAVISTAR, INC., ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 23 F. 4th 500.

No. 21–1456. POON-ATKINS *v.* SAPPINGTON ET AL. C. A. 5th Cir. Certiorari denied.

No. 21–1460. MARY ET AL. *v.* QEP ENERGY CO., FKA QUESTAR EXPLORATION & PRODUCTION CO. C. A. 5th Cir. Certiorari denied. Reported below: 24 F. 4th 411.

No. 21–1463. MISSOURI ET AL. *v.* BIDEN, PRESIDENT OF THE UNITED STATES, ET AL. C. A. 8th Cir. Certiorari denied.

No. 21–1465. MCGRAW *v.* KENTUCKY. Ct. App. Ky. Certiorari denied.

No. 21–1466. JOHNSON *v.* WINFREY ET AL. C. A. 5th Cir. Certiorari denied.

No. 21–1467. MCCOY *v.* HAWAII DEPARTMENT OF HUMAN SERVICES ET AL. Sup. Ct. Haw. Certiorari denied. Reported below: 150 Haw. 270, 500 P. 3d 455.

No. 21–1468. CAMPBELL *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 26 F. 4th 860.

No. 21–1469. ARMSTRONG *v.* NEWSOM, GOVERNOR OF CALIFORNIA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–1470. CHUN *v.* CITY AND COUNTY OF HONOLULU, HAWAII. C. A. 9th Cir. Certiorari denied.

No. 21–1472. ROHR *v.* HAWAII CRIME VICTIMS COMPENSATION COMMISSION. C. A. 9th Cir. Certiorari denied.

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No. 21–1473. J. M. O. *v.* UNITED STATES ET AL. C. A. 8th Cir. Certiorari denied.

No. 21–1474. OWENS ET AL. *v.* LEAD STORIES, LLC, ET AL. Sup. Ct. Del. Certiorari denied. Reported below: 273 A. 3d 275.

No. 21–1475. VAZQUEZ-JAVIER *v.* UNION DE TRONQUISTAS DE PUERTO RICO LOCAL 901. Sup. Ct. P. R. Certiorari denied.

No. 21–1476. WHITE *v.* COX ET AL. C. A. 11th Cir. Certiorari denied.

No. 21–1477. MANCHANDA ET VIR *v.* LEWIS ET AL.; and MANCHANDA *v.* SENDEROFF. C. A. 2d Cir. Certiorari denied.

No. 21–1478. HONCHARIW *v.* COUNTY OF STANISLAUS, CALIFORNIA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–1479. S. W. ET AL., ON BEHALF OF THEIR MINOR CHILD, B. W. *v.* CAPISTRANO UNIFIED SCHOOL DISTRICT. C. A. 9th Cir. Certiorari denied. Reported below: 21 F. 4th 1125.

No. 21–1480. ACRES *v.* MARSTON ET AL. Ct. App. Cal., 3d App. Dist. Certiorari denied. Reported below: 72 Cal. App. 5th 417, 287 Cal. Rptr. 3d 327.

No. 21–1481. ALEXANDER *v.* DEPARTMENT OF THE ARMY ET AL. C. A. 4th Cir. Certiorari denied.

No. 21–1483. BACON ET UX. *v.* UNITED STATES ET AL. C. A. 4th Cir. Certiorari denied.

No. 21–1486. POWERS *v.* ALABAMA. Sup. Ct. Ala. Certiorari denied.

No. 21–1489. IOANNIDIS *v.* WOLF, GOVERNOR OF PENNSYLVANIA, ET AL. Sup. Ct. Pa. Certiorari denied.

No. 21–1490. GUPTA *v.* WALSH, SECRETARY, DEPARTMENT OF LABOR, ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 859 Fed. Appx. 596.

No. 21–1491. CITY OF KENT, WASHINGTON *v.* JACOBO-HERNANDEZ. Ct. App. Wash. Certiorari denied. Reported below: 19 Wash. App. 2d 709, 497 P. 3d 871.

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No. 21–1493. KNOCHEL *v.* FACKRELL ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–1497. YOUNGBEAR *v.* MILLER, ATTORNEY GENERAL OF IOWA. C. A. 8th Cir. Certiorari denied.

No. 21–1498. HERTERICH *v.* CITY AND COUNTY OF SAN FRANCISCO, CALIFORNIA, ET AL.; and HERTERICH *v.* GOLDSMITH ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–1499. RAMCHANNDANI *v.* GAHDHI ET AL. C. A. 11th Cir. Certiorari denied.

No. 21–1500. RESIDENTS OF GORDON PLAZA, INC. *v.* CANTRELL, MAYOR OF THE CITY OF NEW ORLEANS, LOUISIANA, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 25 F. 4th 288.

No. 21–1501. STALLWORTH *v.* HURST ET AL. C. A. 11th Cir. Certiorari denied.

No. 21–1502. SWANSON *v.* GRIFFIN ET AL. C. A. 10th Cir. Certiorari denied.

No. 21–1504. CARLILE *v.* TEXAS. Ct. App. Tex., 2d Dist. Certiorari denied.

No. 21–1505. BONNER *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. Certiorari denied.

No. 21–1507. BYRD *v.* COOK ET AL. C. A. 6th Cir. Certiorari denied.

No. 21–1508. DOTSON *v.* ATLANTIC SPECIALTY INSURANCE CO. C. A. 5th Cir. Certiorari denied. Reported below: 24 F. 4th 999.

No. 21–1509. COSTELLO *v.* CARTER ET AL. Sup. Ct. Pa. Certiorari denied. Reported below: 270 A. 3d 444 and 273 A. 3d 499.

No. 21–1510. MARANA *v.* MERIT SYSTEMS PROTECTION BOARD. C. A. Fed. Cir. Certiorari denied.

No. 21–1514. STEVEN *v.* SCHROADER ET AL. Ct. App. Wash. Certiorari denied. Reported below: 19 Wash. App. 2d 1007.

No. 21–1515. LAMOUREUX *v.* KIJAKAZI, ACTING COMMISSIONER OF SOCIAL SECURITY. C. A. 3d Cir. Certiorari denied.

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No. 21–1516. SWAGELOK ASSOCIATES WELFARE BENEFITS PLAN *v.* PATTERSON ET VIR. Ct. App. Ohio, 9th App. Dist., Medina County. Certiorari denied. Reported below: 2021-Ohio-3449, 178 N. E. 3d 573.

No. 21–1517. JACOBS *v.* WALGREEN CO. C. A. 5th Cir. Certiorari denied.

No. 21–1518. BYD CO. LTD. *v.* VICE MEDIA LLC. C. A. 2d Cir. Certiorari denied.

No. 21–1519. CARLINI *v.* PARAMOUNT PICTURES CORP. ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–1520. WISMETTAC ASIAN FOODS, INC. *v.* NATIONAL LABOR RELATIONS BOARD. C. A. 9th Cir. Certiorari denied.

No. 21–1523. TABB *v.* DURHAM PUBLIC SCHOOLS BOARD OF EDUCATION. C. A. 4th Cir. Certiorari denied. Reported below: 29 F. 4th 148.

No. 21–1524. RIVERA *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 21–1526. HYATT *v.* UNITED STATES PATENT AND TRADEMARK OFFICE ET AL. C. A. Fed. Cir. Certiorari denied.

No. 21–1527. CUSTOMPLAY, LLC *v.* AMAZON.COM, INC., ET AL. C. A. Fed. Cir. Certiorari denied.

No. 21–1528. COMBS *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. 9th Cir. Certiorari denied. Reported below: 859 Fed. Appx. 807.

No. 21–1529. WANG *v.* INTERNATIONAL BUSINESS MACHINES CORP. C. A. 2d Cir. Certiorari denied.

No. 21–1530. BERNARD *v.* HODYL. Ct. App. Colo. Certiorari denied.

No. 21–1531. ARDELL *v.* KAUL, ATTORNEY GENERAL OF WISCONSIN. C. A. 7th Cir. Certiorari denied.

No. 21–1532. DAVISON *v.* ROSE ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 19 F. 4th 626.

No. 21–1534. TARVERDIYEVA *v.* COINBASE GLOBAL, INC., AKA COINBASE. C. A. 11th Cir. Certiorari denied.

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No. 21–1535. LOWERY *v.* JOFFE ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 21 F. 4th 1102.

No. 21–1536. GUPTA *v.* HEADSTRONG, INC., ET AL. C. A. 2d Cir. Certiorari denied.

No. 21–1537. KERN *v.* BOARD OF SUPERVISORS OF ALLEGHANY COUNTY. C. A. 4th Cir. Certiorari denied.

No. 21–1541. HARRIS *v.* BIDDLE ET AL. C. A. 6th Cir. Certiorari denied.

No. 21–1542. MILL BAY MEMBERS ASSN., INC., ET AL. *v.* UNITED STATES ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 21 F. 4th 1140.

No. 21–1544. LOPEZ *v.* QUAEMPTS ET AL. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 21–1545. WHITAKER *v.* DISTRICT OF COLUMBIA CONCEALED PISTOL LICENSING REVIEW BOARD. Ct. App. D. C. Certiorari denied.

No. 21–1546. ALASAGAS *v.* BLINKEN, SECRETARY OF STATE. C. A. 4th Cir. Certiorari denied. Reported below: 853 Fed. Appx. 851.

No. 21–1547. STREETER *v.* CASEY, CHIEF JUSTICE, MASSACHUSETTS PROBATE AND FAMILY COURT. Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 489 Mass. 1004, 181 N. E. 3d 1081.

No. 21–1548. RAINEY *v.* MISSISSIPPI. Sup. Ct. Miss. Certiorari denied. Reported below: 334 So. 3d 1124.

No. 21–1549. KOCH *v.* KOCH ET AL. Ct. App. Neb. Certiorari denied. Reported below: 30 Neb. App. ——.

No. 21–1551. PLUNKETT *v.* SPROUL. C. A. 7th Cir. Certiorari denied. Reported below: 16 F. 4th 248.

No. 21–1554. WORLDS INC. *v.* ACTIVISION BLIZZARD INC. ET AL. C. A. Fed. Cir. Certiorari denied.

No. 21–1555. ALLEN ET AL. *v.* VERTAFORE, INC. C. A. 5th Cir. Certiorari denied. Reported below: 28 F. 4th 613.

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No. 21–1558. DEWBERRY *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISIONS. C. A. 5th Cir. Certiorari denied.

No. 21–1559. POWELL, AS EXECUTRIX OF THE ESTATE OF POWELL, ET AL. *v.* SNOOK, AS EXECUTRIX FOR THE ESTATE OF SNOOK. C. A. 11th Cir. Certiorari denied. Reported below: 25 F. 4th 912.

No. 21–1560. CURRY-MALCOLM *v.* ROCHESTER CITY SCHOOL DISTRICT ET AL. C. A. 2d Cir. Certiorari denied.

No. 21–1561. BROOKS *v.* PHILADELPHIA INSURANCE COS. C. A. 10th Cir. Certiorari denied.

No. 21–1562. REED *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. Sup. Ct. Va. Certiorari denied.

No. 21–1563. DE LOS SANTOS ET AL. *v.* BOSWORTH, AS EMPLOYEE AND/OR ADMINISTRATOR AND/OR POLICYMAKER AND/OR OFFICIAL OF JOHNSON COUNTY, TEXAS, ET AL. C. A. 5th Cir. Certiorari denied.

No. 21–1564. Chancellor Senior Management, Ltd. *v.* McGraw, By and Through Her Daughter, Reuschel as Power of Attorney, et al. Sup. Ct. App. W. Va. Certiorari denied. Reported below: 246 W. Va. 280, 873 S. E. 2d 811.

No. 21–1565. State Health Plan for Teachers and State Employees et al. *v.* Lake et al. Sup. Ct. N. C. Certiorari denied. Reported below: 380 N. C. 502, 869 S. E. 2d 292.

No. 21–1567. Biogen International GmbH et al. *v.* Mylan Pharmaceuticals Inc. C. A. Fed. Cir. Certiorari denied. Reported below: 18 F. 4th 1333.

No. 21–1568. Carter *v.* Genesis Alkali LLC et al. C. A. 10th Cir. Certiorari denied.

No. 21–1569. SouthPointe Partners, LLC *v.* Louisville Metro Government et al. Ct. App. Ky. Certiorari denied.

No. 21–1573. Guzman-Chicas *v.* Garland, Attorney General. C. A. 9th Cir. Certiorari denied.

No. 21–1574. Saint-Gobain Performance Plastics Europe *v.* Bolivarian Republic of Venezuela. C. A. D. C. Cir. Certiorari denied. Reported below: 23 F. 4th 1036.

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No. 21–1575. Young *v.* Mattox, Judge, Circuit Court of Kentucky, 14th Judicial Circuit. Sup. Ct. Ky. Certiorari denied.

No. 21–1577. Manivannan *v.* Department of Energy. C. A. 4th Cir. Certiorari denied. Reported below: 843 Fed. Appx. 481.

No. 21–1578. Harris *v.* Ocwen Loan Servicing et al. C. A. 6th Cir. Certiorari denied.

No. 21–1579. Alexander *v.* Georgia. Sup. Ct. Ga. Certiorari denied. Reported below: 313 Ga. 521, 870 S. E. 2d 729.

No. 21–1581. Tong Park *v.* California. Ct. App. Cal., 1st App. Dist., Div. 3. Certiorari denied.

No. 21–1583. Bird *v.* Oregon Commission for the Blind et al. C. A. 9th Cir. Certiorari denied. Reported below: 22 F. 4th 809.

No. 21–1584. Ballard *v.* United States. C. A. 4th Cir. Certiorari denied.

No. 21–1586. ROMANO ET VIR *v.* JAZZ CASINO CO., L. L. C., ET AL. C. A. 5th Cir. Certiorari denied.

No. 21–1588. SPELL *v.* LOS ANGELES COUNTY DEPARTMENT OF CHILDREN AND FAMILY SERVICES. Ct. App. Cal., 2d App. Dist., Div. 2. Certiorari denied.

No. 21–1589. MCINNIS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 29 F. 4th 276.

No. 21–1590. AUSTIN *v.* NATIONSTAR MORTGAGE LLC ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–1591. BARDSTOWN CAPITAL CORP. ET AL. *v.* SEILLER WATERMAN, LLC, ET AL. Sup. Ct. Ky. Certiorari denied. Reported below: 643 S. W. 3d 68.

No. 21–1592. MOTAMEDI ET AL. *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–1593. SCHULZ ET AL. *v.* UNITED STATES CONGRESS. C. A. D. C. Cir. Certiorari denied.

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No. 21–1594. DRANE *v.* DRANE. Dist. Ct. App. Fla., 5th Dist. Certiorari denied. Reported below: 333 So. 3d 1128.

No. 21–1595. GUINN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–1597. SHARIFI TAKIEH *v.* BANNER HEALTH ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–1600. DONG *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 21–1602. ESPINO-MARTINEZ *v.* GARLAND, ATTORNEY GENERAL. C. A. 5th Cir. Certiorari denied.

No. 21–1603. CANADA HOCKEY, L. L. C., DBA EPIC SPORTS, ET AL. *v.* TEXAS A&M UNIVERSITY ATHLETIC DEPARTMENT ET AL. C. A. 5th Cir. Certiorari denied.

No. 21–1604. THORNTON ET AL. *v.* TYSON FOODS, INC., ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 28 F. 4th 1016.

No. 21–1605. KEVIN KERVENG TUNG, P. C. *v.* FORMAN, CHAPTER 7 TRUSTEE, ET AL. C. A. 3d Cir. Certiorari denied.

No. 21–1606. YARBROUGH *v.* SANTA FE INDEPENDENT SCHOOL DISTRICT ET AL. C. A. 5th Cir. Certiorari denied.

No. 21–1607. DERIPASKA *v.* YELLEN, SECRETARY OF THE TREASURY, ET AL. C. A. D. C. Cir. Certiorari denied.

No. 21–1610. STEVEN *v.* FEDERAL WAY SCHOOL DISTRICT. Ct. App. Wash. Certiorari denied. Reported below: 19 Wash. App. 2d 1046.

No. 21–1611. KOGER *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 21–6007. POTTS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 997 F. 3d 1142.

No. 21–7137. PORTER *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 18 F. 4th 281.

No. 21–7142. HOLMES *v.* BLUE CROSS BLUE SHIELD OF SOUTH CAROLINA, INC., ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 851 Fed. Appx. 384.

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No. 21–7398. RIZO-RIZO *v.* UNITED STATES (Reported below: 16 F. 4th 1292; and CERVANTES-RAMIREZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–7471. TELCY *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 20 F. 4th 735.

No. 21–7473. SPENCER *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 21–7521. PIECZYNSKI *v.* PENNSYLVANIA ET AL. C. A. 3d Cir. Certiorari denied.

No. 21–7579. SIDDEEQ *v.* DEKALB COUNTY, GEORGIA. C. A. 11th Cir. Certiorari denied.

No. 21–7595. O. C. *v.* V. C. Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2021-Ohio-1491.

No. 21–7624. LOPEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 4 F. 4th 706.

No. 21–7646. DELACERDA *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 21–7684. JONES *v.* BROOMFIELD, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 8 F. 4th 1027.

No. 21–7703. WORTHAM *v.* NEW YORK. Ct. App. N. Y. Certiorari denied. Reported below: 37 N. Y. 3d 407, 180 N. E. 3d 516.

No. 21–7709. MORRIS *v.* OHIO. Ct. App. Ohio, 9th App. Dist., Summit County. Certiorari denied.

No. 21–7736. MONTES DE OCA *v.* PARK WAY BAPTIST CHURCH. Dist. Ct. App. Fla., 4th Dist. Certiorari denied.

No. 21–7741. MEJIA *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 21–7744. JORDAN *v.* FEDERAL BUREAU OF PRISONS ET AL. C. A. 7th Cir. Certiorari denied.

No. 21–7745. LUMSDEN *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, ET AL. C. A. 5th Cir. Certiorari denied.

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No. 21–7749. SARR *v.* COOK, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 21–7751. LITTLEJOHN *v.* DALTON ET AL. C. A. 11th Cir. Certiorari denied.

No. 21–7755. ERICSON *v.* ILLINOIS. App. Ct. Ill., 2d Dist. Certiorari denied.

No. 21–7762. CASTILLO-MARTINEZ *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 16 F. 4th 906.

No. 21–7766. BROWN *v.* PFEIFFER, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 21–7770. JACKSON *v.* SHERATON NEW YORK TIMES SQUARE HOTEL. C. A. 2d Cir. Certiorari denied.

No. 21–7771. STRICKLAND *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 21–7774. BIBBS *v.* VILLANUEVA, SHERIFF, LOS ANGELES COUNTY, CALIFORNIA. C. A. 9th Cir. Certiorari denied.

No. 21–7777. DAVIS *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 21–7778. OCHOA *v.* DAVIS, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 16 F. 4th 1314.

No. 21–7779. JUAREZ *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied.

No. 21–7782. FOLEY *v.* TEXAS. Ct. App. Tex., 12th Dist. Certiorari denied.

No. 21–7789. OSORNIO *v.* ARIZONA. Sup. Ct. Ariz. Certiorari denied.

No. 21–7794. BOLIN *v.* BROOMFIELD, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 13 F. 4th 797.

No. 21–7796. EHRENREICH *v.* WEBER, CALIFORNIA SECRETARY OF STATE. C. A. 9th Cir. Certiorari denied.

No. 21–7798. MANUEL PADILLA *v.* CALIFORNIA. Ct. App. Cal., 5th App. Dist. Certiorari denied.

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No. 21–7799. JONES *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied. Reported below: 22 F. 4th 486.

No. 21–7801. SHREVES *v.* UNITED STATES DISTRICT COURT FOR THE DISTRICT OF MONTANA. C. A. 9th Cir. Certiorari denied.

No. 21–7803. STRINGFELLOW *v.* LOUISIANA. Ct. App. La., 2d Cir. Certiorari denied. Reported below: 53,966 (La. App. 2 Cir. 6/30/21), 324 So. 3d 739.

No. 21–7809. MILLER *v.* TENNESSEE. Sup. Ct. Tenn. Certiorari denied. Reported below: 638 S. W. 3d 136.

No. 21–7811. MILES-EL, AKA MILES *v.* MICHIGAN. Ct. App. Mich. Certiorari denied.

No. 21–7815. SAUNDERS *v.* KIJAKAZI, ACTING COMMISSIONER OF SOCIAL SECURITY. C. A. 4th Cir. Certiorari denied.

No. 21–7817. MITCHELL *v.* DENTIST ET AL. C. A. 4th Cir. Certiorari denied.

No. 21–7818. MOORE *v.* WASHINGTON. Ct. App. Wash. Certiorari denied. Reported below: 19 Wash. App. 2d 1005.

No. 21–7823. ALLUM *v.* MONTANA. Sup. Ct. Mont. Certiorari denied.

No. 21–7830. STARR *v.* UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF OKLAHOMA; and STARR *v.* CROW, DIRECTOR, OKLAHOMA DEPARTMENT OF CORRECTIONS. C. A. 10th Cir. Certiorari denied.

No. 21–7831. RANSON *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. Sup. Ct. Fla. Certiorari denied.

No. 21–7833. POLITE *v.* KIJAKAZI, ACTING COMMISSIONER OF SOCIAL SECURITY. C. A. 9th Cir. Certiorari denied. Reported below: 859 Fed. Appx. 795.

No. 21–7834. MULLIGAN *v.* KOHL. Sup. Ct. Alaska. Certiorari denied.

No. 21–7836. BINGHAM *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

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No. 21–7839. STANLEY *v.* UTTECHT, SUPERINTENDENT, COYOTE RIDGE CORRECTIONS CENTER, ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–7840. SAYED *v.* COLORADO. Ct. App. Colo. Certiorari denied.

No. 21–7843. BRADFORD *v.* LOS ANGELES COUNTY OFFICE OF EDUCATION ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–7849. STINSON *v.* YATES, WARDEN, ET AL. C. A. 8th Cir. Certiorari denied.

No. 21–7853. DEMETRULIUS *v.* BROOMFIELD, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 14 F. 4th 898.

No. 21–7855. HORSEY *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 21–7856. GARRIDO *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 21–7857. BLALOCK *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 21–7861. FOLK *v.* BUREAU OF PRISONS ET AL. C. A. 3d Cir. Certiorari denied.

No. 21–7862. HALLCY *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 21–7863. FEARENCE *v.* CASH, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 21–7868. PEDERSON *v.* FROST ET AL. C. A. 8th Cir. Certiorari denied.

No. 21–7871. HARVIN *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 21–7872. GUARDADO *v.* SIPE ET AL. Sup. Ct. Ariz. Certiorari denied.

No. 21–7876. ALEXANDER *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

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No. 21–7877. ADEYEMI *v.* MARYLAND ET AL. C. A. 4th Cir. Certiorari denied.

No. 21–7879. COOKSTON *v.* FLORIDA. Dist. Ct. App. Fla., 5th Dist. Certiorari denied. Reported below: 334 So. 3d 321.

No. 21–7885. LADD *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 21–7886. STACK ET VIR *v.* MENARD, INC. C. A. 7th Cir. Certiorari denied.

No. 21–7888. MASSEY *v.* BIOLA UNIVERSITY, INC. Ct. App. Cal., 2d App. Dist., Div. 2. Certiorari denied.

No. 21–7889. BAILEY-SWEETING, AKA SWEETING-BAILEY *v.* MASSACHUSETTS. Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 488 Mass. 741, 178 N. E. 3d 356.

No. 21–7894. ALBRECHT *v.* ALBRECHT. Sup. Ct. N. H. Certiorari denied.

No. 21–7896. ROBERTSON *v.* DISTRICT OF COLUMBIA. Ct. App. D. C. Certiorari denied. Reported below: 269 A. 3d 1022.

No. 21–7898. ARENAS *v.* NEVADA. Sup. Ct. Nev. Certiorari denied. Reported below: 137 Nev. 884, 494 P. 3d 902.

No. 21–7899. SICOLA *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 21–7901. COLEMAN *v.* NORTH CAROLINA ET AL. C. A. 4th Cir. Certiorari denied.

No. 21–7903. BALLESTEROS *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 21–7904. DUARTE *v.* NEW YORK. Ct. App. N. Y. Certiorari denied. Reported below: 37 N. Y. 3d 1218, 183 N. E. 3d 1205.

No. 21–7905. SANDERS *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 21–7906. SANCHEZ *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2021 IL App (1st) 190562–U.

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No. 21–7912. COURTNEY *v.* MOTORISTS MUTUAL INSURANCE CO. Ct. App. Ohio, 11th App. Dist., Ashtabula County. Certiorari denied. Reported below: 2021-Ohio-4056.

No. 21–7913. SWEET *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied.

No. 21–7914. SANTANA *v.* COURT OF APPEAL OF CALIFORNIA, SECOND APPELLATE DISTRICT. Sup. Ct. Cal. Certiorari denied.

No. 21–7916. FETZER *v.* POZNER. Ct. App. Wis. Certiorari denied. Reported below: 2021 WI App 27, 397 Wis. 2d 243, 959 N. W. 2d 89.

No. 21–7917. PRIDE *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied.

No. 21–7922. EHRET *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–7924. SMITH *v.* UNUM LIFE INSURANCE COMPANY OF AMERICA. C. A. 8th Cir. Certiorari denied.

No. 21–7926. Stephen *v.* Palestine Police Department et al. C. A. 5th Cir. Certiorari denied.

No. 21–7927. Reese *v.* Bowen, Warden. C. A. 6th Cir. Certiorari denied.

No. 21–7929. Avalos *v.* Texas. Ct. Crim. App. Tex. Certiorari denied. Reported below: 635 S. W. 3d 660.

No. 21–7930. Coleman *v.* Minneapolis Public Schools. C. A. 8th Cir. Certiorari denied.

No. 21–7932. Muhammad *v.* Florida. Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 334 So. 3d 620.

No. 21–7935. Feister *v.* Florida. Sup. Ct. Fla. Certiorari denied.

No. 21–7936. Akard *v.* McDonough, Secretary of Veterans Affairs. C. A. Fed. Cir. Certiorari denied.

No. 21–7940. Thomas *v.* Houser, Superintendent, State Correctional Institution at Benner Township, et al. C. A. 3d Cir. Certiorari denied.

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No. 21–7941. Petralia *v.* American Express National Bank. Sup. Ct. N. H. Certiorari denied.

No. 21–7943. Wernsman *v.* Colorado. Ct. App. Colo. Certiorari denied.

No. 21–7944. Petralia *v.* American Express National Bank. Sup. Ct. N. H. Certiorari denied.

No. 21–7945. Byerly *v.* Idaho et al. (two judgments). C. A. 9th Cir. Certiorari denied.

No. 21–7946. Skinner *v.* GPCH–GP, Inc., et al. C. A. 5th Cir. Certiorari denied.

No. 21–7947. Greene *v.* Harbor Police et al. Ct. App. Cal., 4th App. Dist., Div. 1. Certiorari denied.

No. 21–7949. Horton *v.* United States. C. A. Fed. Cir. Certiorari denied.

No. 21–7953. McCaster *v.* Neal, Warden. C. A. 7th Cir. Certiorari denied.

No. 21–7955. PALMA *v.* HARRIS COUNTY APPRAISAL DISTRICT ET AL. C. A. 5th Cir. Certiorari denied.

No. 21–7962. SPRATT *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 21–7963. STEVENSON *v.* CALIFORNIA. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 21–7964. SAUCEDO *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist., Div. 2. Certiorari denied.

No. 21–7969. LOPEZ-GOMEZ *v.* GARLAND, ATTORNEY GENERAL. C. A. 9th Cir. Certiorari denied.

No. 21–7972. ELLIS *v.* INDIANA. Ct. App. Ind. Certiorari denied. Reported below: 178 N. E. 3d 843.

No. 21–7977. HALDA *v.* WISCONSIN. Ct. App. Wis. Certiorari denied.

No. 21–7978. KUNKEL *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied.

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No. 21–7980. SINGO *v.* TENNESSEE. Ct. Crim. App. Tenn. Certiorari denied.

No. 21–7981. SUNDWALL *v.* FLORIDA. Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 328 So. 3d 1157.

No. 21–7983. HARRISON *v.* LOUISIANA. Ct. App. La., 1st Cir. Certiorari denied. Reported below: 2021–0525 (La. App. 1 Cir. 12/22/21).

No. 21–7985. GLOVER *v.* FLORIDA. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 330 So. 3d 9.

No. 21–7986. GOSCH *v.* FLORIDA. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 334 So. 3d 732.

No. 21–7989. VU *v.* SAN FRANCISCO POLICE DEPARTMENT ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–7990. CRAIG *v.* FLUKE, WARDEN, ET AL. C. A. 8th Cir. Certiorari denied.

No. 21–7991. MOORE *v.* MICHIGAN. Ct. App. Mich. Certiorari denied.

No. 21–7993. NEPTUNE *v.* CAREY ET AL. C. A. 3d Cir. Certiorari denied.

No. 21–7995. KURZ *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 21–7996. PURDY *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 21–7998. WILSON *v.* PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION. C. A. 8th Cir. Certiorari denied.

No. 21–7999. ARUTYUNYAN *v.* FIELDS ET AL. C. A. 2d Cir. Certiorari denied.

No. 21–8000. JOHNSON *v.* CALIFORNIA. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 21–8001. JAMES *v.* THOMSON SAILORS HOMES, L. L. C., ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 9 F. 4th 961.

No. 21–8002. TAYLOR *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Certiorari denied. Reported below: 851 Fed. Appx. 434.

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No. 21–8003. ALFORD *v.* MERIT SYSTEMS PROTECTION BOARD. C. A. Fed. Cir. Certiorari denied.

No. 21–8005. LOWE *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 4th Cir. Certiorari denied.

No. 21–8006. INKO-TARIAH *v.* FEDERAL MEDICAL CENTER BUTNER, NC, ET AL. C. A. 4th Cir. Certiorari denied.

No. 21–8009. MEECH *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8010. GONZALEZ *v.* BUCKLO, MAGISTRATE JUDGE, UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF ILLINOIS, ET AL. C. A. 7th Cir. Certiorari denied.

No. 21–8011. REESE *v.* FLORIDA. Dist. Ct. App. Fla., 1st Dist. Certiorari denied.

No. 21–8012. RIGOR *v.* CARLSEN ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–8014. WOODS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 21–8015. KINZLE *v.* JACKSON. C. A. 9th Cir. Certiorari denied.

No. 21–8016. BURR *v.* JACKSON, WARDEN. C. A. 4th Cir. Certiorari denied. Reported below: 19 F. 4th 395.

No. 21–8019. MUSGRAVES *v.* WISCONSIN. Ct. App. Wis. Certiorari denied.

No. 21–8020. MITCHELL *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 21–8021. COON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8022. DEW *v.* S. COLUMBIA TERRACE, LLC, ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 854 Fed. Appx. 460.

No. 21–8023. XINGFEI LUO *v.* CALIFORNIA. App. Div., Super. Ct. Cal., Orange County. Certiorari denied.

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No. 21–8024. TAYLOR *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 21–8025. THIEME *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 21–8027. DEGROOT *v.* WISCONSIN. Ct. App. Wis. Certiorari denied. Reported below: 2021 WI App 82, 967 N. W. 2d 308.

No. 21–8028. CUSTIS *v.* VIRGINIA. Sup. Ct. Va. Certiorari denied.

No. 21–8029. MELNICK *v.* COLORADO STATE BOARD OF PAROLE. C. A. 10th Cir. Certiorari denied.

No. 21–8030. BUCHANAN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 21–8034. LAWRENCE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 21–8035. WILLIAMS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 21–8036. SLAUGHTER *v.* DELAWARE. Sup. Ct. Del. Certiorari denied. Reported below: 271 A. 3d 733.

No. 21–8037. BLAKNEY *v.* SOUTH CAROLINA LAW ENFORCEMENT DIVISION ET AL. C. A. 4th Cir. Certiorari denied.

No. 21–8038. NAULT *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist., Div. 8. Certiorari denied. Reported below: 72 Cal. App. 5th 1144, 287 Cal. Rptr. 3d 862.

No. 21–8039. MUNOZ *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 21–8040. BROWN *v.* MCCOWAN ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–8041. BLANC *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

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No. 21–8042. JACKSON *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 335 So. 3d 88.

No. 21–8044. THOMPSON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8045. OVERTON *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 24 F. 4th 870.

No. 21–8046. DANKS *v.* CALIFORNIA. Ct. App. Cal., 5th App. Dist. Certiorari denied.

No. 21–8047. ESQUIVEL *v.* MINIARD, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 21–8048. KAPP *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8049. TUNSTALL *v.* DAIGLE, FKA THERIOT. C. A. 5th Cir. Certiorari denied.

No. 21–8050. DUNN *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 21–8052. SANCHEZ-QUINTERO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8053. KUNTZ *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 21–8054. JOHNSON *v.* REDDINGTON, WARDEN. Sup. Ct. Mo. Certiorari denied.

No. 21–8056. KING *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 21–8057. MORGAN *v.* ST. FRANCIS HOSPITAL. C. A. 6th Cir. Certiorari denied.

No. 21–8058. PASCUAL-MIGUEL *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8059. MORALES-AGUSTIN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8060. WILLIAMS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

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No. 21–8061. LOGAN *v.* MGM GRAND DETROIT CASINO. C. A. 6th Cir. Certiorari denied.

No. 21–8062. LOVE *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 7 F. 4th 674.

No. 21–8064. SHANNON *v.* HEPP, WARDEN. C. A. 7th Cir. Certiorari denied. Reported below: 27 F. 4th 1258.

No. 21–8065. JONES *v.* WONG ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–8066. WILSON *v.* SOUTH CAROLINA ET AL.; MCQUILLA *v.* SOUTH CAROLINA; and PARKER *v.* SOUTH CAROLINA. Sup. Ct. S. C. Certiorari denied.

No. 21–8067. GOMEZ *v.* FRAUENHEIM, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 21–8068. BURKE *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 21–8069. LEWIS *v.* TEXAS. Ct. App. Tex., 10th Dist. Certiorari denied.

No. 21–8071. Beverly *v.* Riverside County Public Administrator et al. Ct. App. Cal., 4th App. Dist., Div. 2. Certiorari denied.

No. 21–8072. Salgado-Castellano *v.* United States. C. A. 5th Cir. Certiorari denied.

No. 21–8073. Sullivan *v.* United States. C. A. 9th Cir. Certiorari denied.

No. 21–8074. Barrieta-Barrera *v.* United States. C. A. 5th Cir. Certiorari denied.

No. 21–8075. Bagola *v.* United States. C. A. 8th Cir. Certiorari denied.

No. 21–8076. Durbesula *v.* United States. C. A. 4th Cir. Certiorari denied.

No. 21–8077. Yates *v.* Iowa. Dist. Ct. Woodbury County, Iowa. Certiorari denied.

No. 21–8078. Taylor *v.* Fleming, Warden, et al. C. A. 4th Cir. Certiorari denied. Reported below: 851 Fed. Appx. 405.

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No. 21–8079. Kelly *v.* United States. C. A. 4th Cir. Certiorari denied.

No. 21–8080. Horne *v.* United States. C. A. 11th Cir. Certiorari denied.

No. 21–8081. Clark *v.* California. Ct. App. Cal., 2d App. Dist., Div. 3. Certiorari denied.

No. 21–8082. Houze *v.* United States. C. A. 3d Cir. Certiorari denied.

No. 21–8086. Wooden *v.* Massachusetts. App. Ct. Mass. Certiorari denied. Reported below: 100 Mass. App. 1120, 180 N. E. 3d 1020.

No. 21–8087. Keeter *v.* United States. C. A. 8th Cir. Certiorari denied.

No. 21–8088. Massey *v.* Biola University, Inc., et al. C. A. 9th Cir. Certiorari denied.

No. 21–8089. Gillespie *v.* United States. C. A. 4th Cir. Certiorari denied. Reported below: 27 F. 4th 934.

No. 21–8090. PEARSON *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 21–8091. JACKSON *v.* CLARK, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT ALBION, ET AL. C. A. 3d Cir. Certiorari denied.

No. 21–8092. BRAMWELL *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 28 F. 4th 180.

No. 21–8093. AIAD-TOSS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 21–8095. DAVIS *v.* COMMISSIONER, CADDO PARISH, ET AL. C. A. 5th Cir. Certiorari denied.

No. 21–8096. FRANTZ *v.* FRANTZ. C. A. 10th Cir. Certiorari denied.

No. 21–8097. AINSWORTH *v.* POWELL, WARDEN. C. A. 10th Cir. Certiorari denied.

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No. 21–8098. CHRISTIAN *v.* FLORIDA. Dist. Ct. App. Fla., 5th Dist. Certiorari denied.

No. 21–8099. MCCONNELL *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 21–8100. MOLINA-RIVAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8101. MARIN-MALDONADO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8102. JIMENEZ-RAMIREZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8104. WILLIAMS *v.* TOLL BROTHERS BUILDERS ET AL. Sup. Ct. Del. Certiorari denied. Reported below: 257 A. 3d 1022.

No. 21–8105. TAYLOR *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 21–8106. JURDI *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8107. Ford *v.* Peery, Warden. C. A. 9th Cir. Certiorari denied. Reported below: 999 F. 3d 1214.

No. 21–8108. Gallegos-Quirino *v.* United States. C. A. 5th Cir. Certiorari denied.

No. 21–8109. Smith *v.* United States. C. A. 5th Cir. Certiorari denied.

No. 21–8113. Gibson *v.* Wayfair, Inc. C. A. 5th Cir. Certiorari denied.

No. 21–8115. Carter *v.* Virginia. Sup. Ct. Va. Certiorari denied.

No. 21–8116. Tempo *v.* United States. C. A. 6th Cir. Certiorari denied.

No. 21–8117. Orange *v.* United States. C. A. D. C. Cir. Certiorari denied. Reported below: 21 F. 4th 162.

No. 21–8118. Orr *v.* United States. C. A. 8th Cir. Certiorari denied.

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No. 21–8119. Stepherson *v.* Lumpkin, Director, Texas Department of Criminal Justice, Correctional Institutions Division. C. A. 5th Cir. Certiorari denied.

No. 21–8120. Green *v.* Washington. C. A. 11th Cir. Certiorari denied.

No. 21–8121. Hector, aka Hector-Dykes *v.* United States. C. A. 4th Cir. Certiorari denied.

No. 21–8122. Henderson *v.* McClain. C. A. 4th Cir. Certiorari denied.

No. 21–8123. Malone *v.* Pennsylvania. Super. Ct. Pa. Certiorari denied. Reported below: 245 A. 3d 1065.

No. 21–8124. Datham *v.* United States. Ct. App. D. C. Certiorari denied.

No. 21–8125. Montano *v.* United States. C. A. 9th Cir. Certiorari denied.

No. 21–8126. Clarfeld, Individually and on Behalf of His Minor Child, P. M. *v.* Hawaii Department of Education. C. A. 9th Cir. Certiorari denied.

No. 21–8127. JACKSON *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 21–8128. WILLIAMS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8130. RUIZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8131. RODRIGUEZ *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 21–8132. SANICKI *v.* BUESGEN, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 21–8133. BOYLE *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 28 F. 4th 798.

No. 21–8134. DORAN *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 21–8135. CHANDLER *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

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No. 21–8136. THOMPSON *v.* MORRIS HEIGHTS HEALTH CENTER, INC., ET AL. C. A. 2d Cir. Certiorari denied.

No. 21–8137. GREEN *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 21–8138. GERRANS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8139. GRIER *v.* GEORGIA. Sup. Ct. Ga. Certiorari denied. Reported below: 313 Ga. 236, 869 S. E. 2d 423.

No. 21–8140. CHIPPERO *v.* PLATKIN, ACTING ATTORNEY GENERAL OF NEW JERSEY, ET AL. C. A. 3d Cir. Certiorari denied.

No. 21–8141. POESCHL *v.* FOUNDATION BUILDING MATERIALS, LLC, ET AL. Ct. App. Colo. Certiorari denied.

No. 21–8143. BRANCH *v.* OHIO. Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2022-Ohio-132.

No. 21–8144. WRIGHT *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 21–8145. ACKERMAN ET UX. *v.* BANK OF NEW YORK MELLON. Ct. App. Ohio, 2d App. Dist., Montgomery County. Certiorari denied. Reported below: 2020-Ohio-6954.

No. 21–8149. RODRIGUEZ-CASTRO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8150. SHELTON *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 21–8152. CHAVEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8153. TISIUS *v.* BLAIR, WARDEN. C. A. 8th Cir. Certiorari denied.

No. 21–8154. WILLIAMSON *v.* PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION. C. A. 8th Cir. Certiorari denied.

No. 21–8155. VICE *v.* CITY OF FORT MADISON, IOWA, ET AL. C. A. 8th Cir. Certiorari denied.

No. 21–8156. WILSON *v.* ALVAREZ ET AL. C. A. 9th Cir. Certiorari denied.

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No. 21–8157. WILSON *v.* SHINN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–8158. TORREZ-GUTIERREZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8159. LYNCH *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8160. COFFEY *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 21–8161. SERRANO *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8162. PEARSON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8163. PEREZ-JIMENEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8164. PINKNEY *v.* BLACK, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 21–8165. ROLLE *v.* FLORIDA. Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 337 So. 3d 330.

No. 21–8166. PENDLETON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 21–8167. XUE JIE HE ET AL. *v.* UNITED STATES ET AL. C. A. 3d Cir. Certiorari denied.

No. 21–8168. GAUR *v.* MILLIKAN ET AL. C. A. 4th Cir. Certiorari denied.

No. 21–8169. HAGE *v.* MHANNA. Ct. App. Cal., 6th App. Dist. Certiorari denied.

No. 21–8170. GAINES *v.* BENTON, WARDEN. C. A. 11th Cir. Certiorari denied.

No. 21–8171. GARVIN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

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No. 21–8172. CONTRERAS-ZAMORA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8173. RIOS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8174. SVOBODA *v.* OHIO. Ct. App. Ohio, 1st App. Dist., Hamilton County. Certiorari denied. Reported below: 2021-Ohio-4197, 180 N. E. 3d 1277.

No. 21–8175. CASTRO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 30 F. 4th 240.

No. 21–8176. NALLS *v.* LOUISIANA. Sup. Ct. La. Certiorari denied. Reported below: 2022–00161 (La. 3/15/22), 333 So. 3d 1236.

No. 21–8177. JOSEPH *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 336 So. 3d 218.

No. 21–8178. JING HUA WU *v.* ARNOLD, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–8179. WASHINGTON *v.* TICE, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT SOMERSET, ET AL. C. A. 3d Cir. Certiorari denied.

No. 21–8180. GROGAN *v.* UNITED STATES. Ct. App. D. C. Certiorari denied. Reported below: 271 A. 3d 196.

No. 21–8181. HAYES *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 21–8182. CONWAY *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8183. MARTINEZ-COVARRUBIAS *v.* GARLAND, ATTORNEY GENERAL. C. A. 9th Cir. Certiorari denied.

No. 21–8184. KELLY *v.* LARSON, WARDEN. C. A. 8th Cir. Certiorari denied.

No. 21–8185. JOHNSON *v.* PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION, ET AL. C. A. 8th Cir. Certiorari denied.

No. 21–8187. BELL *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 336 So. 3d 211.

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No. 21–8188. DAVIS *v.* FLORIDA. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 337 So. 3d 780.

No. 21–8189. FRANCOIS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 21–8192. THUMS *v.* FUCHS, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 21–8193. KEITH *v.* WISCONSIN DEPARTMENT OF WORKFORCE DEVELOPMENT ET AL. C. A. 7th Cir. Certiorari denied.

No. 21–8194. REYNOLDS ET AL. *v.* QUIROS, COMMISSIONER, CONNECTICUT DEPARTMENT OF CORRECTION. C. A. 2d Cir. Certiorari denied. Reported below: 25 F. 4th 72.

No. 21–8195. ROBINSON *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 29 F. 4th 370.

No. 21–8196. ANDERSON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8197. BOSMAN *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

No. 21–8198. CABRERA SAUCEDO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8200. JACKSON *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 21–8202. WATKINS *v.* SHIELDS ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 861 Fed. Appx. 812.

No. 21–8203. RYTSAR *v.* OLIVER, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT CAMBRIDGE SPRINGS. C. A. 3d Cir. Certiorari denied.

No. 21–8204. BROWN *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 21–8205. BYRD *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 21–8206. BENNETT *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

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No. 21–8208. JONES *v.* PETTIGREW, WARDEN. C. A. 10th Cir. Certiorari denied.

No. 21–8210. LEE *v.* MARYLAND. Ct. Sp. App. Md. Certiorari denied. Reported below: 252 Md. App. 743 and 750.

No. 21–8211. LETIZIA *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 21–8213. YORK *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8214. ANDRES-TOMAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8215. AUSBIE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8216. DYKES *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 21–8217. JOHNSON *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 21–8218. Banks *v.* Mason, Superintendent, State Correctional Institution at Mahanoy, et al. C. A. 3d Cir. Certiorari denied.

No. 21–8219. Carter *v.* California. Ct. App. Cal., 4th App. Dist., Div. 2. Certiorari denied.

No. 21–8221. Mendez *v.* United States. C. A. 4th Cir. Certiorari denied.

No. 21–8222. Muhammad *v.* Frakes, Director, Nebraska Department of Correctional Services, et al. C. A. 8th Cir. Certiorari denied.

No. 21–8223. Salerno *v.* United States District Court for the District of Colorado. C. A. 10th Cir. Certiorari denied.

No. 21–8224. Gurbey *v.* United States. C. A. 2d Cir. Certiorari denied.

No. 21–8225. Carchi-Fernandez *v.* United States. C. A. 5th Cir. Certiorari denied.

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No. 21–8227. Ochoa-Fabian *v.* United States. C. A. 5th Cir. Certiorari denied.

No. 21–8228. Caraballo *v.* Dixon, Secretary, Florida Department of Corrections, et al. C. A. 11th Cir. Certiorari denied.

No. 21–8231. Torres-Villanueva *v.* United States. C. A. 5th Cir. Certiorari denied.

No. 21–8232. Ellis *v.* United States. C. A. 4th Cir. Certiorari denied.

No. 21–8233. Gardner *v.* United States. C. A. 4th Cir. Certiorari denied.

No. 21–8234. Ceasar *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 30 F. 4th 497.

No. 21–8235. Dicks *v.* Davis. Ct. App. Ark. Certiorari denied.

No. 21–8236. Toliver *v.* United States. C. A. 5th Cir. Certiorari denied.

No. 21–8237. HILL *v.* BRNOVICH, ATTORNEY GENERAL OF ARIZONA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–8238. SEELEY *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 21–8239. CRAWFORD, AKA GABRIEL, AKA TISHBITE *v.* NELSON, WARDEN, ET AL. C. A. 4th Cir. Certiorari denied.

No. 21–8240. JONES *v.* SOUTH CAROLINA. C. A. 4th Cir. Certiorari denied.

No. 21–8241. LASSITER *v.* JENKINS ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 857 Fed. Appx. 124.

No. 21–8243. BARGO *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 331 So. 3d 653.

No. 21–8245. GASPARD *v.* BAC HOME LOANS SERVICING, LP, ET AL. Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 331 So. 3d 708.

No. 21–8246. BOSTWICK *v.* 44 CHESTNUT STREET, WAKEFIELD, MASSACHUSETTS, ET AL. Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 488 Mass. 1016, 176 N. E. 3d 622.

Not Yet Final Publication

No. 21–8249. PAGE *v.* KING, ACTING EXECUTIVE DIRECTOR, CALIFORNIA DEPARTMENT OF MENTAL HEALTH. C. A. 9th Cir. Certiorari denied.

No. 21–8250. MCINTOSH *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8251. MILLER *v.* ACOSTA ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–8252. RODRIGUEZ *v.* SHINN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY. C. A. 9th Cir. Certiorari denied.

No. 21–8254. CALLOWAY *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 21–8255. REILLY *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8256. SHARP *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 21 F. 4th 1282.

No. 21–8257. ANDRUS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8258. PATTERSON *v.* WOLFE, WARDEN. C. A. 4th Cir. Certiorari denied.

No. 21–8260. GARRETT *v.* WARDEN, FEDERAL CORRECTIONAL COMPLEX COLEMAN, UNITED STATES PENITENTIARY II. C. A. 11th Cir. Certiorari denied.

No. 21–8261. HAYNIE *v.* OHIO. Ct. App. Ohio, 5th App. Dist., Muskingum County. Certiorari denied.

No. 21–8262. JONES *v.* VANIHEL, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 21–8263. WATSON *v.* NEVADA. Sup. Ct. Nev. Certiorari denied. Reported below: 137 Nev. 967, 500 P. 3d 1251.

No. 21–8264. GEORGES *v.* JOHNSON, ADMINISTRATOR, NEW JERSEY STATE PRISON, ET AL. C. A. 3d Cir. Certiorari denied.

No. 21–8266. CALHOUN *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

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No. 21–8267. LAWRENCE *v.* UNITED STATES CITIZENSHIP AND IMMIGRATION SERVICES ET AL. C. A. 3d Cir. Certiorari denied.

No. 21–8268. ACOSTA *v.* UNITED STATES; BEALE *v.* UNITED STATES; BOYKINS *v.* UNITED STATES; CARTER *v.* UNITED STATES; FEEHAN-JONES *v.* UNITED STATES; GRAY *v.* UNITED STATES; KELBCH *v.* UNITED STATES; MITCHELL *v.* UNITED STATES; NEWMAN *v.* UNITED STATES; PHAM *v.* UNITED STATES; STROUBLE *v.* UNITED STATES; TORRES *v.* UNITED STATES; TURNER *v.* UNITED STATES; WEATHERSPOON *v.* UNITED STATES; WILDER *v.* UNITED STATES; and WILLIAMS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8269. WILLIAMS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8271. GARCIA-SALAZAR *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8272. GUERRA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8273. FIERRO-RENTERIA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8274. MARTINEZ *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 21–8275. LAWRENCE *v.* HEARST COMMUNICATIONS, INC. C. A. 2d Cir. Certiorari denied.

No. 21–8276. REYES-LOPEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8277. CIMINO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8278. HUNSBERGER *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 816 Fed. Appx. 189.

No. 21–8279. GAY *v.* ARKANSAS. Sup. Ct. Ark. Certiorari denied. Reported below: 2022 Ark. 23.

No. 21–8280. FORNEY *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

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No. 21–8281. CARREON-GONZALEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8282. LEAVITT *v.* UNITED SERVICES AUTOMOBILE ASSN. ET AL. C. A. 1st Cir. Certiorari denied.

No. 21–8283. GAUR *v.* MARYLAND. Ct. App. Md. Certiorari denied. Reported below: 478 Md. 518, 275 A. 3d 349.

No. 21–8285. REED *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 21–8286. MCBRIDE *v.* TEXAS. Ct. App. Tex., 3d Dist. Certiorari denied.

No. 21–8287. PHILLIPS *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied.

No. 21–8288. PARKERSON *v.* OREGON. Ct. App. Ore. Certiorari denied. Reported below: 310 Ore. App. 271, 484 P. 3d 356.

No. 22–1. BROWN, AS APPOINTED SUCCESSOR AND REPRESENTATIVE OF NOW DECEASED BERRY *v.* WORMUTH, SECRETARY OF THE ARMY, ET AL. C. A. D. C. Cir. Certiorari denied.

No. 22–2. Boltz-Rubinstein *v.* Bank of America, N. A. C. A. 3d Cir. Certiorari denied.

No. 22–3. Save Coral Bay, Inc. *v.* Bryan, Governor of the Virgin Islands, et al. Sup. Ct. V. I. Certiorari denied. Reported below: 76 V. I. 505.

No. 22–4. Karr *v.* Sevier, Warden. C. A. 7th Cir. Certiorari denied. Reported below: 29 F. 4th 873.

No. 22–5. Cooks *v.* Contra Costa County, California. C. A. 9th Cir. Certiorari denied.

No. 22–6. Mortgage Resolution Servicing, LLC, et al. *v.* JPMorgan Chase Bank, N. A., et al. C. A. 2d Cir. Certiorari denied.

No. 22–7. Carollo *v.* Fuller et al. C. A. 11th Cir. Certiorari denied.

No. 22–11. SawStop Holding LLC *v.* United States Patent and Trademark Office et al. C. A. Fed. Cir. Certiorari denied.

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No. 22–12. D. H. *v.* West Virginia Department of Health and Human Resources et al. Sup. Ct. App. W. Va. Certiorari denied.

No. 22–13. Imhoff *v.* United States. C. A. 9th Cir. Certiorari denied.

No. 22–14. Faver *v.* Clarke, Director, Virginia Department of Corrections. C. A. 4th Cir. Certiorari denied. Reported below: 24 F. 4th 954.

No. 22–15. Duckett *v.* Jefferson Parish Department of Public Works-Streets. Ct. App. La., 5th Cir. Certiorari denied. Reported below: 20–452 (La. App. 5 Cir. 11/3/21), 330 So. 3d 1209.

No. 22–16. Business Exposure Reduction Group (BERG) Associates, LLC *v.* Pershing Square Capital Management, L. P. C. A. 2d Cir. Certiorari denied.

No. 22–17. Vaxima, Inc., et al. *v.* United States. C. A. 4th Cir. Certiorari denied.

No. 22–20. KLAAS *v.* ALLSTATE INSURANCE CO. C. A. 11th Cir. Certiorari denied. Reported below: 21 F. 4th 759.

No. 22–21. DUBAR *v.* DEPARTMENT OF COMMUNITY AFFAIRS. C. A. 11th Cir. Certiorari denied.

No. 22–24. GABRIEL *v.* EL PASO COMBINED COURTS ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 842 Fed. Appx. 231.

No. 22–26. JUNKER *v.* MEDICAL COMPONENTS, INC., ET AL. C. A. Fed. Cir. Certiorari denied. Reported below: 25 F. 4th 1027.

No. 22–27. JONES *v.* RIOT HOSPITALITY GROUP, LLC, NKA NOATOZ LLC, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–28. SHAO *v.* CANTIL-SAKAUYE, CHIEF JUSTICE, SUPREME COURT OF CALIFORNIA, ET AL. Sup. Ct. Cal. Certiorari denied.

No. 22–29. WALLACE *v.* CITY OF HAMPTON, VIRGINIA, ET AL. Sup. Ct. Va. Certiorari denied.

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No. 22–32. HART *v.* COUNTY OF PHILADELPHIA, PENNSYLVANIA, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–34. WEI-PING ZENG *v.* MARSHALL UNIVERSITY ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–35. YUFAN ZHANG *v.* UNITEDHEALTH GROUP ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–36. KAMAL *v.* FARROW ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 859 Fed. Appx. 802.

No. 22–38. CPC PATENT TECHNOLOGIES PTY LTD. *v.* APPLE INC. C. A. Fed. Cir. Certiorari denied.

No. 22–39. XIU JIAN SUN *v.* LAWRENCE, ASSISTANT UNITED STATES ATTORNEY, ET AL. C. A. D. C. Cir. Certiorari denied.

No. 22–40. DOZIER *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 31 F. 4th 624.

No. 22–41. XIU JIAN SUN *v.* KELLY ET AL. Ct. App. N. Y. Certiorari denied. Reported below: 38 N. Y. 3d 971, 187 N. E. 3d 454.

No. 22–43. Program Administrator of the New Hampshire Controlled Drug Prescription Health and Safety Program *v.* Department of Justice. C. A. 1st Cir. Certiorari denied. Reported below: 24 F. 4th 718.

No. 22–44. Harris *v.* Alabama. Ct. Crim. App. Ala. Certiorari denied.

No. 22–45. Ku *v.* Great Falls Public Schools. Sup. Ct. Mont. Certiorari denied. Reported below: 407 Mont. 439, 495 P. 3d 1090.

No. 22–46. Ada County, Idaho *v.* Idaho Commission for Reapportionment et al. Sup. Ct. Idaho. Certiorari denied. Reported below: 169 Idaho 863, 505 P. 3d 324.

No. 22–48. AC Interests, L. P. *v.* Texas Commission on Environmental Quality. Ct. App. Tex., 1st Dist. Certiorari denied.

No. 22–50. Daker *v.* Ward, Commissioner, Georgia Department of Corrections. C. A. 11th Cir. Certiorari denied. Reported below: 856 Fed. Appx. 841.

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No. 22–53. Filler et al. *v.* United States. C. A. Fed. Cir. Certiorari denied.

No. 22–54. Goddard *v.* Commissioner of Internal Revenue. C. A. 9th Cir. Certiorari denied.

No. 22–55. Kramer et ux. *v.* JPMorgan Chase Bank, N. A., et al. C. A. 9th Cir. Certiorari denied.

No. 22–56. 101 Houseco, LLC *v.* United States. C. A. 9th Cir. Certiorari denied. Reported below: 22 F. 4th 843.

No. 22–57. Steeves, Acting Trustee of Brother's Keeper Ministries *v.* Internal Revenue Service. C. A. 9th Cir. Certiorari denied.

No. 22–59. Nunu *v.* Texas et al. C. A. 5th Cir. Certiorari denied.

No. 22–61. Cull *v.* Dyck-O'Neal, Inc., et al. Ct. App. Ky. Certiorari denied.

No. 22–64. Arrington *v.* City of Los Angeles, California, et al. C. A. 9th Cir. Certiorari denied.

No. 22–65. VAN CLEVE *v.* RAIMONDO, SECRETARY OF COMMERCE, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–66. KRESZOWSKI *v.* FCA US, LLC, ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–68. MCCULLOUGH *v.* LEVI ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–69. AMPERSAND CHOWCHILLA BIOMASS, LLC, ET AL. *v.* UNITED STATES. C. A. Fed. Cir. Certiorari denied. Reported below: 26 F. 4th 1306.

No. 22–71. HAMMANN *v.* WELLS FARGO BANK, N. A. Ct. App. Minn. Certiorari denied.

No. 22–72. HAMMANN *v.* WELLS FARGO BANK, N. A. Ct. App. Minn. Certiorari denied.

No. 22–73. JAIN ET AL. *v.* BARKER ET AL. Dist. Ct. App. Fla., 5th Dist. Certiorari denied. Reported below: 333 So. 3d 1127.

No. 22–74. PATTERSON *v.* CITY OF NEW YORK, NEW YORK, ET AL. App. Div., Sup. Ct. N. Y., 1st Jud. Dept. Certiorari denied. Reported below: 173 App. Div. 3d 540, 100 N. Y. S. 3d 523.

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No. 22–78. BAYER HEALTHCARE PHARMACEUTICALS, INC., ET AL. *v.* ULLESEIT ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–83. B&G FOODS NORTH AMERICA, INC. *v.* EMBRY ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 29 F. 4th 527.

No. 22–88. HAWKINS ET AL. *v.* DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–89. NEWBAUER *v.* CARNIVAL CORP., DBA CARNIVAL CRUISE LINE. C. A. 11th Cir. Certiorari denied. Reported below: 26 F. 4th 931.

No. 22–91. SMITH ET AL. *v.* KENTUCKY. C. A. 6th Cir. Certiorari denied. Reported below: 36 F. 4th 671.

No. 22–101. COWEN ET AL. *v.* RAFFENSPERGER, GEORGIA SECRETARY OF STATE. C. A. 11th Cir. Certiorari denied. Reported below: 22 F. 4th 1227.

No. 22–106. ASRAT *v.* GARLAND, ATTORNEY GENERAL. C. A. 4th Cir. Certiorari denied.

No. 22–107. BURKE *v.* CRITERION GENERAL, INC., ET AL. Sup. Ct. Alaska. Certiorari denied. Reported below: 499 P. 3d 319.

No. 22–109. STEVEN *v.* FEDERAL WAY SCHOOL DISTRICT. Ct. App. Wash. Certiorari denied. Reported below: 19 Wash. App. 2d 1046.

No. 22–110. SCHMIDT *v.* UNITED STATES. C. A. Armed Forces. Certiorari denied. Reported below: 82 M. J. 68.

No. 22–113. SHUMWAY *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–116. CONNECTICUT STATE POLICE UNION *v.* ROVELLA, COMMISSIONER, CONNECTICUT DEPARTMENT OF EMERGENCY SERVICES AND PUBLIC PROTECTION. C. A. 2d Cir. Certiorari denied. Reported below: 36 F. 4th 54.

No. 22–117. EL OMARI *v.* INTERNATIONAL CRIMINAL POLICE ORGANIZATION, AKA INTERPOL. C. A. 2d Cir. Certiorari denied. Reported below: 35 F. 4th 83.

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No. 22–128. HERCZEG *v.* CITY OF DALLAS, TEXAS. Ct. App. Tex., 5th Dist. Certiorari denied.

No. 22–130. TOFSRUD *v.* CITY OF SPOKANE, WASHINGTON, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–133. ARUNACHALAM *v.* KRONOS INC. C. A. Fed. Cir. Certiorari denied.

No. 22–141. MCDONALD-WITHERSPOON, INDIVIDUALLY AND AS ADMINISTRATRIX OF THE ESTATE OF JONES *v.* BROWNE ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–143. JADA KU *v.* GREAT FALLS PUBLIC LIBRARY. Sup. Ct. Mont. Certiorari denied.

No. 22–144. KHATRI *v.* OHIO STATE UNIVERSITY ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–146. SMITH *v.* GEORGIA. Sup. Ct. Ga. Certiorari denied. Reported below: 313 Ga. 752, 873 S. E. 2d 142.

No. 22–155. PATEL *v.* CONNECTICUT. Sup. Ct. Conn. Certiorari denied. Reported below: 342 Conn. 445, 270 A. 3d 627.

No. 22–156. FENNELL *v.* BONTA, ATTORNEY GENERAL OF CALIFORNIA. C. A. 9th Cir. Certiorari denied. Reported below: 859 Fed. Appx. 50.

No. 22–168. DEROO *v.* ILLINOIS. Sup. Ct. Ill. Certiorari denied. Reported below: 2022 IL 126120, 215 N. E. 3d 46.

No. 22–170. BECKWITT *v.* MARYLAND. Ct. App. Md. Certiorari denied. Reported below: 477 Md. 398, 270 A. 3d 307.

No. 22–5001. GAMEZ *v.* ARIZONA. Ct. App. Ariz. Certiorari denied.

No. 22–5002. WINN *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5003. VILLALOBOS-MARQUEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5004. PENA-GARCIA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

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No. 22–5005. OLVERA-VITELA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5006. CADENA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5007. CLANTON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5010. DAVIS *v.* BEARD, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–5011. MAYS *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied.

No. 22–5012. FRANKLIN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 18 F. 4th 1105.

No. 22–5014. JOHNSON *v.* STIRLING, DIRECTOR, SOUTH CAROLINA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–5015. JACKSON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 30 F. 4th 269.

No. 22–5016. BRYANT *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5017. BISHOP *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5018. LONG *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5020. RODRIGUEZ *v.* JONES, ACTING WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–5022. THRASHER *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5023. JONES *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5025. MCKINNEY *v.* PAINTER, SHERIFF, MIDLAND COUNTY, TEXAS, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5026. ABADI *v.* DEPARTMENT OF TRANSPORTATION. C. A. D. C. Cir. Certiorari denied.

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No. 22–5027. BENNETT *v.* TEXAS. Ct. App. Tex., 11th Dist. Certiorari denied.

No. 22–5028. GONZALES *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5029. FAIRLEY *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5030. DENHAM *v.* SUPERIOR COURT OF CALIFORNIA, LOS ANGELES COUNTY, ET AL. Sup. Ct. Cal. Certiorari denied.

No. 22–5031. SAWYER *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5032. BARNES *v.* SOUTH CAROLINA. Sup. Ct. S. C. Certiorari denied. Reported below: 436 S. C. 202, 871 S. E. 2d 421.

No. 22–5033. CHEWNING *v.* FLORIDA. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 336 So. 3d 717.

No. 22–5034. CADWELL *v.* FLESCHER ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–5035. LISBOA-CUPELY *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5036. FIGUERAS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5037. BOOKER *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 336 So. 3d 1177.

No. 22–5038. KENNEDY *v.* WATTS ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5039. DIEHL *v.* BRNOVICH, ATTORNEY GENERAL OF ARIZONA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5042. SHIEL *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5043. VALENTIN SANCHEZ *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 30 F. 4th 1063.

No. 22–5044. SILER *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 852 Fed. Appx. 490.

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No. 22–5045. SCOTT *v.* CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5046. BUTLER *v.* FLORIDA. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 335 So. 3d 112.

No. 22–5047. BLACKWELL *v.* NINES, WARDEN, ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–5048. PILOLA *v.* KOENIG, ACTING WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–5049. LOVE *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5050. RUFFIN *v.* MITCHELL. C. A. 7th Cir. Certiorari denied.

No. 22–5051. ROBLES ET AL. *v.* UNITED STATE ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–5052. SALERNO *v.* ARIZONA. Ct. App. Ariz. Certiorari denied.

No. 22–5053. PEREZ-SOLIS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5054. UPCHURCH *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5055. WADLEY, AKA WHITE *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5056. SERRANO *v.* UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF TEXAS. C. A. 5th Cir. Certiorari denied.

No. 22–5057. DUCHAINE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5059. OLIVA-SANTOS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5060. WORTMAN *v.* TENNESSEE BOARD OF PAROLE ET AL. C. A. 6th Cir. Certiorari denied.

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No. 22–5062. CHAMBERS *v.* THOMPSON, WARDEN. C. A. 3d Cir. Certiorari denied.

No. 22–5064. TROY-MCKOY *v.* MOUNT SINAI BETH ISRAEL. App. Div., Sup. Ct. N. Y., 1st Jud. Dept. Certiorari denied. Reported below: 198 App. Div. 3d 585, 152 N. Y. S. 3d 910.

No. 22–5065. O. L. *v.* JARA ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5066. CODY, AKA THOMPSON *v.* MCCONAHAY, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–5067. WITHROW *v.* WISCONSIN. Ct. App. Wis. Certiorari denied.

No. 22–5068. STEWART *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5069. WARTERFIELD *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5070. WALDRON *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5071. TONEY *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5072. BEY *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5074. WORLEY *v.* ILLINOIS. App. Ct. Ill., 2d Dist. Certiorari denied.

No. 22–5078. RAMM *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5080. MAYFIELD *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 22–5081. KARUPAIYAN ET AL. *v.* TOWNSHIP OF WOODBRIDGE, NEW JERSEY, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5082. GONZALES *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist., Div. 4. Certiorari denied.

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No. 22–5083. HOOPER *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5084. FELIPE-PASCUAL *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5085. KARUPAIYAN ET AL. *v.* NAGANDA ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5087. GABRIEL *v.* MELTON TRUCK LINES; and
No. 22–5146. GABRIEL *v.* MELTON TRUCK LINES. C. A. 10th Cir. Certiorari denied.

No. 22–5088. MCKENZIE *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 333 So. 3d 1098.

No. 22–5090. CANTATORE *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5091. BRADBURY *v.* INDIANA. Sup. Ct. Ind. Certiorari denied. Reported below: 180 N. E. 3d 249.

No. 22–5093. HALIBURTON *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 331 So. 3d 640.

No. 22–5094. CAMPBELL *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5095. WREH *v.* WELLS FARGO BANK, N. A., ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5097. DIAZ, AKA MANUEL AMADOR, AKA ALVAREZ-CARRASCO *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

No. 22–5098. TORLUCCI *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist., Div. 2. Certiorari denied.

No. 22–5099. WHITTER *v.* GARLAND, ATTORNEY GENERAL. C. A. 11th Cir. Certiorari denied.

No. 22–5100. TOWNLEY *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

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No. 22–5103. CARRAWAY *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5104. ADAMS *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 36 F. 4th 137.

No. 22–5105. KING *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5106. WASHINGTON *v.* MICHIGAN. Cir. Ct. Oakland County, Mich. Certiorari denied.

No. 22–5107. PEMBERTON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5108. KEESEE *v.* ARKANSAS. Sup. Ct. Ark. Certiorari denied. Reported below: 2022 Ark. 68, 641 S. W. 3d 628.

No. 22–5110. BROWN *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Certiorari denied.

No. 22–5112. HERNANDEZ-ALDAMA *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5114. JASMAINE H. *v.* ARIZONA DEPARTMENT OF CHILD SAFETY ET AL. Ct. App. Ariz. Certiorari denied.

No. 22–5115. KENNEDY *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5116. VICKERS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5117. ROBERTSON *v.* COMMITTEE ON GRIEVANCES FOR THE UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA. C. A. D. C. Cir. Certiorari denied.

No. 22–5118. ETEMAD *v.* NORTH DAKOTA. Sup. Ct. N. D. Certiorari denied. Reported below: 2022 ND 81, 972 N. W. 2d 928.

No. 22–5120. GARDNER *v.* LEXINGTON-FAYETTE URBAN COUNTY GOVERNMENT ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–5121. FRANTZ *v.* KANSAS ET AL. C. A. 10th Cir. Certiorari denied.

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No. 22–5122. HOBSON *v.* MERIT SYSTEMS PROTECTION BOARD. C. A. Fed. Cir. Certiorari denied.

No. 22–5123. BRAZELTON *v.* TENNESSEE. Ct. Crim. App. Tenn. Certiorari denied.

No. 22–5124. IBENYENWA *v.* WELLS ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5125. HILL *v.* OHIO. Ct. App. Ohio, 10th App. Dist., Franklin County. Certiorari denied.

No. 22–5126. BROOKS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 33 F. 4th 734.

No. 22–5127. BROWN *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 26 F. 4th 48.

No. 22–5128. NGUYEN *v.* PALLARES, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–5129. V. V. *v.* E. V. App. Ct. Conn. Certiorari denied.

No. 22–5130. MAZIQUE *v.* LOUISIANA. Ct. App. La., 5th Cir. Certiorari denied. Reported below: 21–243 (La. App. 5 Cir. 1/26/22), 336 So. 3d 558.

No. 22–5131. GILLARD *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist., Div. 3. Certiorari denied.

No. 22–5132. GRANADO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5133. WATERS *v.* FACEBOOK, INC., ET AL. C. A. 1st Cir. Certiorari denied.

No. 22–5134. TARULLI *v.* AMERIPRISE FINANCIAL SERVICES. C. A. 2d Cir. Certiorari denied.

No. 22–5135. SCHROEDER *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5136. WASHINGTON *v.* RODRIGUEZ ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5138. CARDENAS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

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No. 22–5139. MORRIS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5140. LEMUS *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–5141. BYRNE *v.* MARYLAND ET AL. C. A. 1st Cir. Certiorari denied.

No. 22–5142. ADEYI *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. Certiorari denied.

No. 22–5143. ARCIERO *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5144. SHABANI *v.* EVERS, GOVERNOR OF WISCONSIN, ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–5145. KIM *v.* TWELFTH JUDICIAL CIRCUIT COURT OF FLORIDA ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5147. WILSON *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–5148. JAMERSON *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–5149. RAMCHARAN *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 31 F. 4th 1274.

No. 22–5151. DRANE *v.* MICHIGAN. Ct. App. Mich. Certiorari denied.

No. 22–5153. BOYCE *v.* OHIO. Ct. App. Ohio, 10th App. Dist., Franklin County. Certiorari denied.

No. 22–5154. BAKER *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5156. MCKREITH *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5157. BURCH *v.* BANK OF AMERICA, N. A. C. A. 5th Cir. Certiorari denied.

No. 22–5158. BATTLE *v.* UNITED STATES. Ct. App. D. C. Certiorari denied.

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No. 22–5161. TAYLOR *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 28 F. 4th 929.

No. 22–5163. RAMCHARAN *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 31 F. 4th 1274.

No. 22–5164. LENTON *v.* WARDEN, FEDERAL CORRECTIONAL INSTITUTION, EDGEFIELD. C. A. 4th Cir. Certiorari denied.

No. 22–5165. BOOS *v.* WHITE, WARDEN. C. A. 11th Cir. Certiorari denied.

No. 22–5167. ERVIN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5168. MESQUIAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 29 F. 4th 276.

No. 22–5169. BARNES *v.* T. V. NATIONWIDE NETWORK ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5170. SERRANO-DELGADO *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 29 F. 4th 16.

No. 22–5171. WERTH *v.* STUART POLICE DEPARTMENT ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5172. TORRES *v.* ILLINOIS. App. Ct. Ill., 4th Dist. Certiorari denied. Reported below: 2022 IL App (4th) 190585–U.

No. 22–5173. CHEEKS *v.* JOYNER. C. A. 4th Cir. Certiorari denied.

No. 22–5174. WATERS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5175. A. W. *v.* WEST VIRGINIA DEPARTMENT OF HEALTH AND HUMAN RESOURCES. Sup. Ct. App. W. Va. Certiorari denied.

No. 22–5176. VINE *v.* FRINK, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–5177. MOON *v.* TENNESSEE. Sup. Ct. Tenn. Certiorari denied. Reported below: 644 S. W. 3d 72.

No. 22–5178. CLEARY *v.* ILLINOIS. App. Ct. Ill., 3d Dist. Certiorari denied. Reported below: 2021 IL App (3d) 190344–U.

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No. 22–5179. STOUNE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5180. MORNINGSTAR *v.* KROGER CO. C. A. 5th Cir. Certiorari denied.

No. 22–5181. AVILA *v.* CALIFORNIA ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5182. JUMAEV *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 20 F. 4th 518.

No. 22–5183. CAREY *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 32 F. 4th 504.

No. 22–5185. SHRADER *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5186. RICHARDSON *v.* BELOTE ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 838 Fed. Appx. 904.

No. 22–5187. MAYA-ZAPATA *v.* CALIFORNIA. Ct. App. Cal., 1st App. Dist., Div. 5. Certiorari denied.

No. 22–5188. MUHTOROV *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 20 F. 4th 558.

No. 22–5189. ABDULRAZZAK *v.* FLUKE, WARDEN, ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–5190. CORTEZ-OROPEZA *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 40 F. 4th 50.

No. 22–5191. BLEMUR *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5192. HERNANDEZ-MIRANDA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5193. BLAKE *v.* MARYLAND. Ct. Sp. App. Md. Certiorari denied. Reported below: 253 Md. App. 729 and 749.

No. 22–5194. JEAN *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–5195. JONES *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

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No. 22–5196. HOLLOWAY *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–5197. NOBLE *v.* ARKANSAS. Sup. Ct. Ark. Certiorari denied. Reported below: 2022 Ark. 37, 638 S. W. 3d 844.

No. 22–5198. ROGERS *v.* VIRGINIA. Sup. Ct. Va. Certiorari denied.

No. 22–5199. RIOS *v.* TEXAS. Ct. App. Tex., 5th Dist. Certiorari denied.

No. 22–5200. OULTON *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–5201. ROBERSON *v.* BRNOVICH, ATTORNEY GENERAL OF ARIZONA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5203. AMARAL *v.* SHINN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5204. BELDUCEA-MANCINAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5205. CORIZ *v.* NEW MEXICO. Dist. Ct. N. M., Rio Arriba County. Certiorari denied.

No. 22–5207. COOPER *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5209. BLOMDAHL *v.* JAFFE ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5210. SHAW *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5211. CORMIER *v.* WILLIAMS ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5212. BROWN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5213. STOKES *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

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No. 22–5214. RIOS-GALICIA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5215. SCHIFF *v.* MARYLAND. Ct. Sp. App. Md. Certiorari denied. Reported below: 254 Md. App. 509, 274 A. 3d 507.

No. 22–5216. SALAZAR *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5217. MARKUS *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–5219. MILLBROOK *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–5222. COMBS *v.* WASHINGTON. Ct. App. Wash. Certiorari denied.

No. 22–5223. KAVANDI *v.* KIJAKAZI, ACTING COMMISSIONER OF SOCIAL SECURITY. C. A. 9th Cir. Certiorari denied.

No. 22–5226. OWAGBORIAYE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5228. BURCH *v.* AMERICA'S SERVICING CO. C. A. 5th Cir. Certiorari denied.

No. 22–5231. ZULAWSKI *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5232. CRUZ-HERNANDEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5234. DUARTE-MUNOZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5237. NEWHOUSE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5239. BISHOP *v.* HEMINGWAY, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–5241. VASQUEZ-JACINTO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

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No. 22–5242. WARREN *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5243. CANNON *v.* LOUISIANA. Ct. App. La., 2d Cir. Certiorari denied. Reported below: 54,013 (La. App. 2 Cir. 1/12/22), 332 So. 3d 813.

No. 22–5245. MCCOY *v.* FLORIDA. Dist. Ct. App. Fla., 5th Dist. Certiorari denied. Reported below: 339 So. 3d 357.

No. 22–5247. PETIT *v.* FLORIDA. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 335 So. 3d 1207.

No. 22–5250. HORN *v.* EXPERIS US INC. C. A. 9th Cir. Certiorari denied.

No. 22–5251. GREER *v.* TASKILA, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–5252. FLEITAS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5253. HELMER *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5255. MARTIN *v.* JOHNSON, ADMINISTRATOR, NEW JERSEY STATE PRISON, ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 23 F. 4th 261.

No. 22–5259. MUSA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5260. PEREZ *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 21 F. 4th 490.

No. 22–5262. MAJOR *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 33 F. 4th 370.

No. 22–5263. BROWN *v.* ARMEL, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT FAYETTE, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5264. GOBER *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5265. HESTER *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

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No. 22–5266. DOWNING, AS ADMINISTRATOR OF THE ESTATE OF BERRY *v.* GROSSMAN ET AL. Sup. Ct. Iowa. Certiorari denied. Reported below: 973 N. W. 2d 512.

No. 22–5268. PETERS *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–5269. CUELLAR *v.* ILLINOIS. App. Ct. Ill., 2d Dist. Certiorari denied. Reported below: 2022 IL App (2d) 200074–U.

No. 22–5270. MENDEZ-HERNANDEZ *v.* HOWARD. C. A. 9th Cir. Certiorari denied.

No. 22–5274. BROWN *v.* PORTER ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–5279. MUHAMMAD *v.* PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION. C. A. 8th Cir. Certiorari denied.

No. 22–5280. PATEL *v.* UNITED STATES. C. A. Fed. Cir. Certiorari denied.

No. 22–5282. MINGO *v.* FLORIDA. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 323 So. 3d 729.

No. 22–5285. GARCIA *v.* KANSAS. Sup. Ct. Kan. Certiorari denied. Reported below: 315 Kan. 366, 508 P. 3d 394.

No. 22–5286. PALATO *v.* HAMILTON ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5288. WELBORN *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5292. TRUJILLO *v.* BALDERAS, ATTORNEY GENERAL OF NEW MEXICO, ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–5293. CELAYA VALENZUELA *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied.

No. 22–5296. CARLETON *v.* MAINE. Sup. Jud. Ct. Me. Certiorari denied.

No. 22–5298. JOHNSON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5303. MCGAVITT *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 28 F. 4th 571.

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No. 22–5304. MOREL-VARGAS *v.* CONNECTICUT. Sup. Ct. Conn. Certiorari denied. Reported below: 343 Conn. 247, 273 A. 3d 661.

No. 22–5305. NJOROGE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 25 F. 4th 555.

No. 22–5308. LEWIS *v.* NEW YORK. App. Div., Sup. Ct. N. Y., 4th Jud. Dept. Certiorari denied. Reported below: 199 App. Div. 3d 1441, 154 N. Y. S. 3d 603.

No. 22–5309. SAMAAN *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5313. BAILEY *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 27 F. 4th 1210.

No. 22–5314. RAY *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5316. CRISWELL *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5318. WHITE HORSE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 35 F. 4th 1119.

No. 22–5321. DIVINE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5326. RODRIGUEZ-HUITRON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5327. DIXON *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5330. WADE *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Certiorari denied.

No. 22–5335. BAKER *v.* DOBBS, WARDEN. C. A. 4th Cir. Certiorari denied.

No. 22–5337. VAZQUEZ-TELLEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5338. LEGINS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 34 F. 4th 304.

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No. 22–5340. WELLS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 29 F. 4th 580.

No. 22–5342. JONES *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 15 F. 4th 1288.

No. 22–5348. LEE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5351. JOHNSON *v.* MINNESOTA. C. A. 8th Cir. Certiorari denied.

No. 22–5359. MURRAY *v.* NOETH, SUPERINTENDENT, ATTICA CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied. Reported below: 32 F. 4th 154.

No. 22–5377. HOLLIS *v.* MAGNUSSON, WARDEN. C. A. 1st Cir. Certiorari denied. Reported below: 32 F. 4th 1.

No. 22–5380. GARDNER *v.* PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION. Sup. Ct. Ark. Certiorari denied. Reported below: 2022 Ark. 38, 639 S. W. 3d 336.

No. 22–5386. BOND *v.* MCKEAN COUNTY, PENNSYLVANIA. C. A. 3d Cir. Certiorari denied.

No. 22–5402. JONES *v.* BROOKHART, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 22–5403. STOVER *v.* OREGON BOARD OF PAROLE AND POST-PRISON SUPERVISION. C. A. 9th Cir. Certiorari denied.

No. 22–5406. GONZALEZ *v.* CALIFORNIA. Ct. App. Cal., 4th App. Dist., Div. 2. Certiorari denied. Reported below: 75 Cal. App. 5th 907, 291 Cal. Rptr. 3d 127.

No. 22–5411. THIBODAUX *v.* REEVES, DISTRICT ADMINISTRATOR, JEFFERSON PARISH DISTRICT, LOUISIANA DEPARTMENT OF PUBLIC SAFETY AND CORRECTIONS, DEPARTMENT OF PROBATION AND PAROLE, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5413. TAYLOR *v.* MISSISSIPPI. Sup. Ct. Miss. Certiorari denied.

No. 22–5414. WELLS *v.* PETERS ET AL. C. A. 9th Cir. Certiorari denied.

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No. 22–5428. PRYOR *v.* ERDOS, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–5436. BROWN *v.* NEW JERSEY. Super. Ct. N. J., App. Div. Certiorari denied.

No. 22–5453. MARQUEZ *v.* KELLY, SUPERINTENDENT, OREGON STATE PENITENTIARY. C. A. 9th Cir. Certiorari denied.

No. 22–5465. MCFADDEN *v.* ILLINOIS. App. Ct. Ill., 5th Dist. Certiorari denied. Reported below: 2021 IL App (5th) 170139–U.

No. 21–975. IDAHO *v.* HOWARD. Sup. Ct. Idaho. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 169 Idaho 379, 496 P. 3d 865.

No. 21–1340. BECKER *v.* UTE INDIAN TRIBE OF THE UINTAH AND OURAY RESERVATION ET AL. (two judgments). C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 11 F. 4th 1140 (first judgment); 22 F. 4th 892 (second judgment).

No. 21–1411. DAILEY *v.* FLORIDA. Sup. Ct. Fla. Motion of Exonerees for leave to file brief as *amici curiae* granted. Certiorari denied. Reported below: 329 So. 3d 1280.

No. 21–1422. FERRIS *v.* SCISM, INDIVIDUALLY AND AS ADMINISTRATRIX OF THE ESTATE OF SCISM. C. A. 2d Cir. Motion of National Police Association for leave to file brief as *amicus curiae* granted. Certiorari denied.

No. 21–1455. NORTHPORT HEALTH SERVICES OF ARKANSAS, LLC, DBA SPRINGDALE HEALTH AND REHABILITATION CENTER, ET AL. *v.* DEPARTMENT OF HEALTH AND HUMAN SERVICES ET AL. C. A. 8th Cir. Motion of Alabama Nursing Home Association et al. for leave to file brief as *amici curiae* granted. Certiorari denied. Reported below: 14 F. 4th 856.

No. 21–1503. LLOYDS BANKING GROUP PLC ET AL. *v.* BERKSHIRE BANK ET AL. C. A. 2d Cir. Certiorari denied. THE CHIEF JUSTICE, JUSTICE KAGAN, and JUSTICE GORSUCH took no part in the consideration or decision of this petition.

No. 21–1511. GARNER, INDIVIDUALLY AND ON BEHALF OF THE CONTROL GROUP, ET AL. *v.* BIDEN, PRESIDENT OF THE UNITED STATES. C. A. 9th Cir. Motions of Institute for Health Research and Foundation for Moral Law for leave to file briefs as *amici curiae* granted. Certiorari denied.

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No. 21–1512. SAN BERNARDINO COUNTY DISTRICT ATTORNEY ET AL. *v.* COOPER ET AL. C. A. 9th Cir. Motion of respondent Brown et al. for leave to proceed *in forma pauperis* granted. Certiorari denied. JUSTICE THOMAS would grant the petition for writ of certiorari. Reported below: 13 F. 4th 857.

No. 21–1580. MYPILLOW, INC. *v.* US DOMINION, INC., ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition.

No. 21–1585. ARNOLD ET AL. *v.* DEL TORO, SECRETARY OF THE NAVY, ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition.

No. 21–6107. JOHNSON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consider-

ation or decision of this petition. Reported below: 859 Fed. Appx. 500.

No. 21–6941. VAUGHN *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition. Reported below: 857 Fed. Appx. 887.

No. 21–7937. MACDONALD *v.* UNITED STATES. C. A. Fed. Cir. Certiorari denied. THE CHIEF JUSTICE took no part in the consideration or decision of this petition.

No. 21–7965. KAETZ *v.* UNITED STATES ET AL. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 858 Fed. Appx. 472.

No. 21–8026. KAETZ *v.* EDUCATIONAL CREDIT MANAGEMENT CORP. ET AL. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 21–8146. THOMAS *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. JUSTICE SOTOMAYOR took no part in the consideration or decision of this petition.

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No. 21–8151. RAMBERT *v.* DISTRICT ATTORNEY OF PHILADELPHIA, PENNSYLVANIA, ET AL. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 21–8209. LESCHYSHYN *v.* ABBVIE INC. ET AL. C. A. 7th Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 21–8226. SUTHERLAND *v.* UNITED STATES. C. A. 6th Cir. Certiorari before judgment denied.

No. 22–19. UKRAINE *v.* PAO TATNEFT. C. A. D. C. Cir. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition. Reported below: 21 F. 4th 829.

No. 22–60. CHURCH OF SCIENTOLOGY INTERNATIONAL ET AL. *v.* BIXLER ET AL. Ct. App. Cal., 2d App. Dist., Div. 5. Motion of Believe Information Solutions et al. for leave to file brief as *amici curiae* granted. Certiorari denied.

No. 22–5009. WELENC *v.* DEPARTMENT OF JUSTICE ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition.

No. 22–5021. KARUPAIYAN *v.* NAGANDA ET AL. C. A. 3d Cir. Certiorari before judgment denied.

No. 22–5079. MARTINEZ *v.* GOMEZ, WARDEN. C. A. 6th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

No. 22–5101. OWENS *v.* RELIANCE PARTNERS, LLC. C. A. D. C. Cir. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition.

No. 22–5137. SALAS *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition.

No. 22–5160. WONSCH *v.* CROW, DIRECTOR, OKLAHOMA DEPARTMENT OF CORRECTIONS. C. A. 10th Cir. Certiorari before judgment denied.

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No. 22–5221. LUNDI *v.* UNITED STATES. C. A. 11th Cir. Certiorari before judgment denied.

No. 22–5244. TORRENCE *v.* PETERSON, WARDEN. C. A. 10th Cir. Certiorari before judgment denied.

No. 22–5261. BUSH *v.* EBBERT. C. A. D. C. Cir. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition.

No. 22–5271. ERBO, AKA GARCIA *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. JUSTICE SOTOMAYOR took no part in the consideration or decision of this petition.

No. 22–5475. WILLIAMS *v.* CAIN, WARDEN. C. A. 5th Cir. Certiorari before judgment denied.

Rehearing Denied

No. 21–1419. HONG TANG *v.* SCHMOKE ET AL., 597 U. S. 907;
No. 21–7618. WILLIAMS *v.* TEXAS, 596 U. S. 1008;
No. 21–7650. TERRY *v.* RANSOM, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT DALLAS, ET AL., 596 U. S. 1034;

No. 21–7718. WINGER *v.* ILLINOIS, 596 U. S. 974;

No. 21–7727. KIMBROUGH *v.* OKLAHOMA, 597 U. S. 909;

No. 21–7760. SISKOS *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL., 597 U. S. 909;

No. 21–7776. WRENN *v.* TONEY, WARDEN, ET AL., 596 U. S. 996; and

No. 21–7920. WHEELER *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL., 596 U. S. 1009. Petitions for rehearing denied.

OCTOBER 11, 2022

Certiorari Granted—Vacated and Remanded

No. 21–1123. HARRINGTON, UNITED STATES TRUSTEE, REGION 2 *v.* CLINTON NURSERIES, INC., ET AL. C. A. 2d Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Siegel* v. *Fitzgerald*, 596 U. S. 464 (2022). Reported below: 998 F. 3d 56.

No. 22–30. RITTER *v.* MIGLIORI ET AL. C. A. 3d Cir. Motions of Speaker of the Pennsylvania House of Representatives Bryan Cutler et al. and Doctor Oz for Senate et al. for leave to file briefs of *amici curiae* granted. Certiorari granted, judgment vacated, and case remanded with instructions to dismiss the case as moot. See *United States* v. *Munsingwear, Inc.*, 340 U. S. 36 (1950). JUSTICE SOTOMAYOR and JUSTICE JACKSON would deny the petition for writ of certiorari. Reported below: 36 F. 4th 153.

No. 22–84. SAKKAL *v.* UNITED STATES. C. A. 6th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Xiulu Ruan* v. *United States*, 597 U. S. 450 (2022).

Certiorari Dismissed

No. 22–5249. GALLUZZO *v.* VILLAGE OF ST. PARIS, OHIO. Ct. App. Ohio, 2d App. Dist., Champaign County. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. Reported below: 2021-Ohio-2861.

No. 22–5281. MORALES *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. Sup. Ct. Fla. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeat-

edly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*). JUSTICE KAGAN took no part in the consideration or decision of this motion and this petition.

No. 22–5299. PETERS *v.* HANEN. C. A. 5th Cir.;

No. 22–5300. PETERS *v.* HANEN. C. A. 5th Cir.;

No. 22–5301. PETERS *v.* MICHALK. C. A. 5th Cir.; and

No. 22–5302. PETERS *v.* ACTUAL INNOCENT CLINIC. C. A. 5th Cir. Motions of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

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No. 22–5317. ADKINS *v.* MERRIFIELD HOTEL ASSOCIATES, LP. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 22–5379. POWERS *v.* WILCOXEN ET AL. C. A. 7th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5419. JACOBS *v.* GEISINGER WYOMING MEDICAL CENTER. C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5420. MATTISON *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

Miscellaneous Orders

No. 22A178. MARCIANO *v.* ADAMS, MAYOR OF THE CITY OF NEW YORK, ET AL. C. A. 2d Cir. Application for injunction, addressed to JUSTICE THOMAS and referred to the Court, denied.

No. 22A181. KNOCHEL *v.* FACKRELL ET AL. D. C. Ariz. Application for stay, addressed to JUSTICE GORSUCH and referred to the Court, denied.

No. 22A200. FETZER *v.* POZNER. Ct. App. Wis. Application for stay, addressed to JUSTICE GORSUCH and referred to the Court, denied.

No. D–3087. IN RE DISCIPLINE OF TALCOTT. Kelly Douglas Talcott, of Sea Cliff, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3088. IN RE DISCIPLINE OF LEATHERMAN. Jennifer Lynn Leatherman, of Middletown, Md., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring her to show cause why she should not be disbarred from the practice of law in this Court.

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No. D–3089. IN RE DISCIPLINE OF TSIMPEDES. Athanasios T. Tsimpedes, of Washington, D. C., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3090. IN RE DISCIPLINE OF LINDON. James Lee Lindon, of Avon, Ohio, is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3091. IN RE DISCIPLINE OF DIBBLE. Gerald W. Dibble, of Rochester, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3092. IN RE DISCIPLINE OF MOAWAD. Edward Emad Moawad, of Chevy Chase, Md., is suspended from the practice of

law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. 22M15. MOORE *v.* NEAL, SUPERINTENDENT, INDIANA STATE PRISON;

No. 22M16. RILEY'S AMERICAN HERITAGE FARMS ET AL. *v.* ELSASSER ET AL.;

No. 22M19. LEDET *v.* HOMES; and

No. 22M20. PRESCOTT *v.* DOE ET AL. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 22M17. PARSONS *v.* COPELAND PARSONS ET AL.; and

No. 22M21. WESTINE *v.* UNITED STATES. Motions for leave to proceed as veterans denied.

No. 22M18. ANDREWS *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF NORTH CAROLINA. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 21–806. HEALTH AND HOSPITAL CORPORATION OF MARION COUNTY ET AL. *v.* TALEVSKI, PERSONAL REPRESENTATIVE OF THE ESTATE OF TALEVSKI, DECEASED. C. A. 7th Cir. [Certiorari granted, 596 U. S. 951.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted. Motion of Indiana et al. for leave to participate in oral argument as *amici curiae* and for divided argument granted.

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No. 21–857. JONES *v.* HENDRIX, WARDEN. C. A. 8th Cir. [Certiorari granted, 596 U. S. 960.] Motion of the Solicitor General for divided argument granted.

No. 21–908. BARTENWERFER *v.* BUCKLEY. C. A. 9th Cir. [Certiorari granted, 596 U. S. 951.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted.

No. 21–1448. WELLS *v.* MCCALLISTER. C. A. 9th Cir. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

No. 22–5322. SWAHILI EL *v.* SAN DIEGO UNIFIED SCHOOL DISTRICT. C. A. 9th Cir.; and

No. 22–5541. PAWLOWSKI *v.* UNITED STATES. C. A. 3d Cir. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until November 1, 2022, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 22–5548. IN RE MOORE;
No. 22–5554. IN RE BELL;
No. 22–5616. IN RE JENKINS; and
No. 22–5630. IN RE WRIGHT. Petitions for writs of habeas corpus denied.

No. 22–5290. IN RE BROWN. Petition for writ of mandamus denied.

Certiorari Denied

No. 21–599. KINNEY *v.* HSBC BANK USA, N. A. C. A. 10th Cir. Certiorari denied. Reported below: 5 F. 4th 1136.

No. 21–1304. HOLLINGSWORTH ET AL. *v.* PERRY ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 18 F. 4th 622.

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No. 21–1403. MORSE ET AL. *v.* FRENCH. C. A. 1st Cir. Certiorari denied. Reported below: 15 F. 4th 116.

No. 21–1492. ELHADY *v.* BRADLEY. C. A. 6th Cir. Certiorari denied. Reported below: 18 F. 4th 880.

No. 21–1540. GORDON, PERSONAL REPRESENTATIVE OF THE ESTATE OF GORDON *v.* BIERENGA. C. A. 6th Cir. Certiorari denied. Reported below: 20 F. 4th 1077.

No. 21–1608. MCKINSEY & CO., INC., ET AL. *v.* ALIX. C. A. 2d Cir. Certiorari denied. Reported below: 23 F. 4th 196.

No. 21–7234. ROOF *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 10 F. 4th 314.

No. 21–8033. FRANCISCO FERNANDEZ *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 24 F. 4th 1321.

No. 21–8063. WRIGHT *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 12 Cal. 5th 419, 500 P. 3d 267.

No. 21–8253. SNEED *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–8. MOMPHARD, INDIVIDUALLY AND IN HIS OFFICIAL CAPACITY AS A DEPUTY SHERIFF OF THE MACON COUNTY SHERIFF'S DEPARTMENT, ET AL. *v.* KNIBBS, AS PERSONAL REPRESENTATIVE OF THE ESTATE OF KNIBBS. C. A. 4th Cir. Certiorari denied. Reported below: 30 F. 4th 200.

No. 22–67. KING *v.* SPECIALTY HOSPITAL OF WASHINGTON ET AL. Ct. App. D. C. Certiorari denied. Reported below: 259 A. 3d 1273.

No. 22–103. CLARKSON *v.* BOARD OF REGENTS OF NEW MEXICO STATE UNIVERSITY ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–104. RUGAMBA *v.* CRST INC. ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–112. SUTTON *v.* MOUNTAIN HIGH INVESTMENTS, LLC, ET AL. C. A. 6th Cir. Certiorari denied.

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No. 22–114. BLOMMER *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. 9th Cir. Certiorari denied.

No. 22–119. CHRISTIAN ACTION LEAGUE OF MINNESOTA ET AL. *v.* FREEMAN, HENNEPIN COUNTY ATTORNEY (Reported below: 31 F. 4th 1068); and MINNESOTA RFL REPUBLICAN FARMER LABOR CAUCUS ET AL. *v.* FREEMAN, HENNEPIN COUNTY ATTORNEY (33 F. 4th 985). C. A. 8th Cir. Certiorari denied.

No. 22–120. SUNTREE PHARMACY ET AL. *v.* DRUG ENFORCEMENT ADMINISTRATION. C. A. 11th Cir. Certiorari denied.

No. 22–127. FISCH *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–129. ORIAKHI *v.* GARLAND, ATTORNEY GENERAL. C. A. 2d Cir. Certiorari denied.

No. 22–137. BYD CO. LTD. *v.* ALLIANCE FOR AMERICAN MANUFACTURING ET AL. C. A. D. C. Cir. Certiorari denied.

No. 22–139. ALQSOUS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 27 F. 4th 1155.

No. 22–140. BEAULIEU *v.* GARLAND, ATTORNEY GENERAL, ET AL. C. A. D. C. Cir. Certiorari denied.

No. 22–147. ARMSTRONG *v.* GARLAND, ATTORNEY GENERAL. C. A. 11th Cir. Certiorari denied.

No. 22–150. MANIVANNAN *v.* DEPARTMENT OF ENERGY. C. A. Fed. Cir. Certiorari denied.

No. 22–152. DUNN *v.* POST, MAGISTRATE, ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–154. SIYU YANG ET AL. *v.* EASTMAN SCHOOL OF MUSIC ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–157. KEY FINANCE, INC., ET AL. *v.* KOON. Ct. Civ. App. Okla. Certiorari denied.

No. 22–158. EDWARDS *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 34 F. 4th 570.

No. 22–167. VAN LINN *v.* WISCONSIN. Sup. Ct. Wis. Certiorari denied. Reported below: 2022 WI 16, 401 Wis. 2d 1, 971 N. W. 2d 478.

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No. 22–176. BURKHART *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 27 F. 4th 1289.

No. 22–178. CUSHING, INDIVIDUALLY AND IN HIS CAPACITY AS THE MINORITY LEADER OF THE NEW HAMPSHIRE HOUSE OF REPRESENTATIVES, ET AL. *v.* PACKARD, SPEAKER OF THE HOUSE OF THE NEW HAMPSHIRE HOUSE OF REPRESENTATIVES. C. A. 1st Cir. Certiorari denied. Reported below: 30 F. 4th 27.

No. 22–195. DART ET AL. *v.* ZICCARELLI. C. A. 7th Cir. Certiorari denied. Reported below: 35 F. 4th 1079.

No. 22–201. DOE, AS PARENT AND NEXT FRIEND OF BABY DOE, ET AL. *v.* MCKEE, GOVERNOR OF RHODE ISLAND, ET AL. Sup. Ct. R. I. Certiorari denied. Reported below: 273 A. 3d 121.

No. 22–205. STAVRAKIS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–207. KVASHUK *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 29 F. 4th 1077.

No. 22–233. CHRETIEN *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–239. MAHARAJ *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–240. JUSTICE, GOVERNOR OF WEST VIRGINIA, ET AL. *v.* JONATHAN R., MINOR, BY NEXT FRIEND DIXON, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 41 F. 4th 316.

No. 22–255. WILFORD ET AL. *v.* NATIONAL EDUCATION ASSN. ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5119. HASSON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 26 F. 4th 610.

No. 22–5220. KARUPAIYAN *v.* SINGH ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5229. WILSON *v.* HILLSBOROUGH TOWNSHIP CONSTRUCTION/BUILDING DEPARTMENT ET AL. C. A. 3d Cir. Certiorari denied.

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No. 22–5230. SESSION *v.* WARE ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5233. CONERLY *v.* YEE YANG ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5238. MINIX *v.* STONE ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–5240. DEL CID *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5246. SINGMAN *v.* IMDB.COM, INC. Ct. App. Cal., 2d App. Dist., Div. 8. Certiorari denied. Reported below: 72 Cal. App. 5th 1150, 287 Cal. Rptr. 3d 717.

No. 22–5248. HOGLAN *v.* VIRGINIA. Sup. Ct. Va. Certiorari denied.

No. 22–5254. BURCH *v.* MULLEN. C. A. 5th Cir. Certiorari denied.

No. 22–5257. STEPHEN *v.* NEW YORK. App. Div., Sup. Ct. N. Y., 1st Jud. Dept. Certiorari denied. Reported below: 203 App. Div. 3d 586, 162 N. Y. S. 3d 707.

No. 22–5258. LAFITTE *v.* UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT. C. A. 9th Cir. Certiorari denied.

No. 22–5267. MURRAY *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied.

No. 22–5272. J. R. *v.* NORTH DAKOTA. Sup. Ct. N. D. Certiorari denied. Reported below: 2022 ND 68, 972 N. W. 2d 94.

No. 22–5273. BEAUCHAMP *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5275. BOLES *v.* LONG, WARDEN, ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–5276. NAFTALOVICH *v.* COURT OF APPEAL OF CALIFORNIA, SECOND APPELLATE DISTRICT, DIVISION FOUR, ET AL. Sup. Ct. Cal. Certiorari denied.

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No. 22–5277. ASR *v.* EADY-WILLIAMS ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–5278. JENKINS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5283. FUNK *v.* LITTLE, ACTING SECRETARY, PENNSYLVANIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5284. FAGANS *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5287. DUNN *v.* COUNTY OF SANTA CRUZ, CALIFORNIA. C. A. 9th Cir. Certiorari denied.

No. 22–5289. BROWN *v.* CURTIN, WARDEN, ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–5291. GAINES *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5294. WARNER *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5297. DARBOUZE *v.* CALIFORNIA. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 22–5307. WILLIAMS *v.* HUTCHINGS ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5310. SHALLOW *v.* UNITED STATES ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–5311. KEY *v.* MEDICAL UNIVERSITY OF SOUTH CAROLINA ET AL. Ct. App. S. C. Certiorari denied.

No. 22–5312. NELSON *v.* OHIO PAROLE BOARD ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–5315. BONNER *v.* TEXAS. Ct. App. Tex., 14th Dist. Certiorari denied.

No. 22–5320. THOMAS *v.* CADDO PARISH SEX OFFENDER REGISTRATION. C. A. 5th Cir. Certiorari denied.

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No. 22–5323. STEPHENSON *v.* ZAKEN, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT GREENE, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5324. BRUMIT *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 22–5325. BENSON *v.* REWERTS, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–5328. TYSON *v.* NORTH CAROLINA. Sup. Ct. N. C. Certiorari denied. Reported below: 381 N. C. 279, 871 S. E. 2d 520.

No. 22–5331. WILLIAMS *v.* MICHIGAN. Ct. App. Mich. Certiorari denied.

No. 22–5332. MELLION *v.* LOUISIANA. Ct. App. La., 1st Cir. Certiorari denied. Reported below: 2021–1116 (La. App. 1 Cir. 4/8/22), 342 So. 3d 41.

No. 22–5333. PARKS *v.* SMITH ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5334. CROSBY *v.* IDAHO. Sup. Ct. Idaho. Certiorari denied.

No. 22–5339. NAVARRO MARTIN *v.* UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF FLORIDA. C. A. 11th Cir. Certiorari denied.

No. 22–5341. AMPARAN *v.* SPEARMAN, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–5349. PACHECO-APODACA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5350. NORWOOD *v.* FLORIDA. Dist. Ct. App. Fla., 5th Dist. Certiorari denied. Reported below: 338 So. 3d 904.

No. 22–5352. THOMAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5353. SALAZAR-MUNOZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5355. SLIM *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 34 F. 4th 642.

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No. 22–5360. CHIN *v.* NOETH, SUPERINTENDENT, ATTICA CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 22–5363. FLUCAS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 22 F. 4th 1149.

No. 22–5365. ELIAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5366. FIELDS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5367. HINTON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5368. GORAYA *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–5371. HARRIS *v.* HUDGINS, WARDEN. C. A. 4th Cir. Certiorari denied.

No. 22–5372. FOSTER *v.* KANSAS. Ct. App. Kan. Certiorari denied. Reported below: 60 Kan. App. 2d 243, 493 P. 3d 283.

No. 22–5373. DEL ANGEL *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5376. MATIAS CRUZ *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–5378. COLLAZO ET AL. *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5381. HARRIS *v.* OHIO. Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied.

No. 22–5387. ISLAS-MACIAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5389. MOLINA-RODRIGUEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5393. MITCHELL *v.* DEPARTMENT OF VETERANS AFFAIRS ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–5394. FALKOWSKI *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

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No. 22–5397. MILLER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5399. AFRIYIE *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 27 F. 4th 161.

No. 22–5400. BELL *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5401. BEGAY *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 43 Fed. Appx. 63.

No. 22–5410. KOERBER *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 10 F. 4th 1083.

No. 22–5415. MEDINA *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

No. 22–5417. WILLIAMS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5418. RODRIGUEZ-VILLANUEVA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5421. EILDERS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5427. NICHOLS *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

No. 22–5429. CASH *v.* LITTLE, ACTING SECRETARY, PENNSYLVANIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5431. TURNER *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5437. HARRIS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5440. GRIEGO *v.* UNITED STATES; and ROMERO *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5441. MATA-BENAVIDEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5445. LUJAN-MADRID *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5446. MALDONADO-ROSA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

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No. 22–5449. RODRIGUEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5450. CRUMP *v.* ERRINGTON, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–5452. CROCKETT *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Certiorari denied. Reported below: 35 F. 4th 231.

No. 22–5454. CARREON-GRIMALDO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5455. WOOLASTON *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–5456. MIN JEONG KIM *v.* UNITED STATES CITIZENSHIP AND IMMIGRATION SERVICES. C. A. 4th Cir. Certiorari denied.

No. 22–5459. GONZALEZ-RUIZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5461. RUSSEY *v.* UNITED STATES; and RITCHIE *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

No. 22–5466. ANDREW *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5469. BEARD *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5471. BRAXTON ET AL. *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5472. SHAMO *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 36 F. 4th 1067.

No. 22–5473. BEGAREN *v.* ALLISON, SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION. C. A. 9th Cir. Certiorari denied.

No. 22–5474. ELLIS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5477. BROWN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

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No. 22–5480. RALIOS-CHAJAL *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5482. BURCH *v.* HOMEWARD RESIDENTIAL INC. C. A. 5th Cir. Certiorari denied.

No. 22–5484. PEREZ-GARCIA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5489. UNDER SEAL *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5490. WUKOSON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5491. WARD *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5492. WALLACE *v.* FLORIDA COMMISSION ON OFFENDER REVIEW. C. A. 11th Cir. Certiorari denied.

No. 22–5494. TALLEY *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5504. VILLANUEVA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5506. LEWIS *v.* QUIROS, COMMISSIONER, CONNECTICUT DEPARTMENT OF CORRECTION. App. Ct. Conn. Certiorari denied. Reported below: 211 Conn. App. 77, 271 A. 3d 1058.

No. 22–5508. CHIU *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 36 F. 4th 294.

No. 22–5511. PORTILLO-RODRIGUEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5514. SCOTT *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–5515. SALAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5516. LEWIS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5519. STANSBURY *v.* COURLEY, ACTING SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT CAMP HILL, ET AL. C. A. 3d Cir. Certiorari denied.

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No. 22–5521. GONZALEZ *v.* TEXAS. Ct. App. Tex., 2d Dist. Certiorari denied.

No. 22–5522. CAZARES *v.* UNITED STATES; and MARTINEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5523. GAINES *v.* HOUSER, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT BENNER TOWNSHIP, ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 33 F. 4th 705.

No. 22–5526. BURCH *v.* HOMEWARD RESIDENTIAL INC. C. A. 5th Cir. Certiorari denied.

No. 22–5529. LETT *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5530. JORDAN *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–5532. WILLIAMS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5533. PINSON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5534. CHIN *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 41 F. 4th 16.

No. 22–5539. PICKETT *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5547. NEAL *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5550. BAILEY *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5551. BARAJAS-SALVADOR *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5553. VILLAGOMEZ-TROCHE *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5558. LASANE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

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No. 22–5562. ALEXANDER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5566. BEGAY *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 33 F. 4th 1081.

No. 22–5567. HARRIS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 36 F. 4th 827.

No. 22–5568. GORDON *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 37 F. 4th 767.

No. 22–5569. SCOTT *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5575. MICKEL *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5580. INGRAM *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 40 F. 4th 791.

No. 22–5586. ROBLES *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5587. BASEY *v.* UNITED STATES DISTRICT COURT FOR THE DISTRICT OF ALASKA. C. A. 9th Cir. Certiorari denied.

No. 22–5590. HENSLEY *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5596. BELL *v.* WARDEN, FEDERAL CORRECTIONAL INSTITUTION DUBLIN. C. A. 9th Cir. Certiorari denied.

No. 22–5597. VENZOR-ORTEGA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5598. MONTOYA-DE LA CRUZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–444. THOMAS *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied. Reported below: 995 F. 3d 432.

JUSTICE SOTOMAYOR, with whom JUSTICE KAGAN and JUSTICE JACKSON join, dissenting.

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Petitioner Andre Thomas was sentenced to death for the murder of his estranged wife, their son, and her daughter from a previous relationship. Thomas is Black, his wife was white, and their son was biracial. Thomas was convicted and sentenced to death by an all-white jury, three of whom expressed firm opposition to interracial marriage and procreation in their written juror questionnaires. Among other reasons, these jurors opined that such relationships were against God's will and that people "should stay with [their] Blood Line." App. to Pet. for Cert. 395a. Despite their declarations of bias, Thomas' counsel not only failed to exercise peremptory strikes on these individuals or move to strike them for cause, but failed even to question two of the three jurors about their stated bias and whether it could affect their deliberations. Without objection from Thomas' counsel or the State's attorney, the three jurors were seated. Together with nine other white jurors, they convicted and sentenced Thomas to death.

Thomas' conviction and death sentence clearly violate the constitutional right to the effective assistance of counsel. The contrary judgment of the Fifth Circuit should be summarily reversed.

I

A

Thomas was charged with capital murder in 2005 for the killing of his estranged wife, their child, and his wife's child from a previous relationship. The facts of Thomas' offense were gruesome: Thomas attempted to remove the victims' hearts because he believed that would "set them free from evil." See 995 F. 3d 432, 438 (CA5 2021) (internal quotation marks omitted). Thomas also stabbed himself during the course of his offense; later that day, he turned himself in and confessed. *Id.*, at 438–439. While Thomas was incarcerated awaiting trial, he removed one of his own eyeballs; years later, he removed the other one. *Id.*, at 439. Thomas pleaded not guilty by reason of insanity, and while the State agreed that Thomas was psychotic at the time of his offense, it prevailed in arguing that "his psychosis was voluntarily induced just before the killings through ingestion of . . . cough medicine." *Ibid.*

Because of the interracial nature of Thomas' offense, his counsel[1] and the State questioned prospective jurors about their attitudes toward interracial marriage and procreation. Prospective jurors were required to answer a written questionnaire that asked:

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> "105. The Defendant in this case, Andre Thomas, and his ex-wife, Laura Boren Thomas, are of different racial backgrounds. Which of the following best reflects your feelings or opinions about people of different racial backgrounds marrying and/or having children:
>
> (__) I vigorously oppose people of different racial backgrounds marrying and/or having children and am not afraid to say so.
>
> (__) I oppose people of different racial backgrounds marrying and/or having children, but I try to keep my feelings to myself.
>
> (__) I do not oppose people of different racial backgrounds marrying or being together, but I do oppose them having children.

[1] At trial, Thomas was represented by two attorneys: a lead counsel and a second chair. References to counsel are in the singular, except where noted, because only one attorney conducted *voir dire* at a time.

> (__) I think people should be able to marry or be with anyone they wish.
>
> PLEASE TELL US WHY YOU FEEL THIS WAY: [blank provided]." App. to Pet. for Cert. 391a–392a (boldface deleted).

At issue in this case are the responses of three white jurors.

First, juror number four indicated that he "vigorously oppose[d]" interracial marriage and that he was "not afraid to say so." *Id.*, at 392a. In the additional space provided, he wrote: "I don't believe God intended for this." *Ibid.*

During individual *voir dire*, defense counsel engaged in the following colloquy with this juror:

> "[Q.] Well, how would—how do you feel about, if you are sitting on a case where the defendant or a defendant accused of capital murder was a black male, and the victim, his wife, was a white female.
>
> [A.] Well, I think—I think it's wrong to have those relationships, my view, but we are all human beings and God made every one of us. And, you know, as far as—I don't care if it is white/white, black/black, that don't matter to me. If you've done it, you are a human being, you have got to own up to your responsibility.
>
> [Q.] So, the color of anyone's skin would not have any impact or bearing upon your deliberations?
>
> [A.] No, not according to that, no.
>
> [Q.] Okay.
>
> [A.] Not whether they were guilty or innocent.
>
> [Q.] Would the race of either the defendant or the victim be something that you would take into consideration in determining, or considering, answering these special issues, or considering either the death penalty or life imprisonment?
>
> [A.] No, I wouldn't judge a man for murder or something like that according to something like that, no, I would not." *Thomas* v. *Director*, No. 4:09–CV–644 (ED Tex., Sept. 19, 2016), App. to Pet. for Cert. 115a–116a, 2016 WL 4988257, *23.

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Juror number four also expressed the view that appeals in death penalty cases should be eliminated or restricted, and that the death penalty was not applied in enough cases, Record 1099, though he did state during *voir dire* that the death penalty should not be imposed when a defendant is insane, 16 Reporter's Record

53 (Tex. Crim. App.).[2] Although Thomas' counsel had peremptory strikes available, counsel neither exercised one on this juror nor otherwise objected to him being seated.

Second, juror number five responded by indicating that she opposed interracial marriage and tried to keep those feelings to herself. She explained in the additional space: "I think it is harmful for the children involved because they do not have a specific race to belong to." App. to Pet. for Cert. 394a. During the individual *voir dire* of juror number five, neither defense counsel nor the State asked any questions about race or interracial marriage. Nor did either party inquire as to whether the juror's views on those topics could affect her deliberations or her decision whether to impose the death penalty. Again, although defense counsel had peremptory strikes available, counsel did not exercise one or seek to strike juror number five for cause.

Third, juror number six responded to the written questionnaire by reporting that he agreed that interracial marriage "[s]hould not [b]e," explaining: "I think we should stay with our Blood Line." *Id.*, at 395a. Juror number six also agreed that he opposed interracial marriage but that he tried to keep those feelings to himself. During juror number six's individual *voir dire*, the juror explained that state and federal criminal laws "are too lenient" and that "the judges' and everybody's hands are tied" with "the laws we have on the books." Record 1130. Neither defense counsel nor the State asked juror number six about his views on interracial marriage or biracial children, his views on race generally, or whether those views could have an impact on his deliberations at the guilt and penalty phases. Defense counsel once again had peremptory challenges available but did not use them or request that the court strike the juror for cause.

All three jurors were seated on the all-white jury. A fourth juror was seated as an alternate juror. She affirmed that she "oppose[d] people of different racial backgrounds marrying and/

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[2] This remark on the insanity defense is one of only very few remarks offered by the three jurors at issue that might have seemed favorable to the defense. Somewhat similarly, juror number five recounted a news report that Thomas had committed his crime "because he was insane," Record 1051, and juror six expressed admiration in her questionnaire for one of Thomas' attorneys. *Id.*, at 1070. These passing comments cannot excuse defense counsel's failure to take the steps necessary to address the serious impartiality concerns raised by these jurors' remarks on interracial marriage.

or having children," and added: "As I stated before I try not to judge what other people do. I oppose gay marriage but a man and woman have the right to choose." App. to Pet. for Cert. 397a–398a. During the alternate juror's *voir dire*, neither Thomas' counsel nor the State followed up about these answers, nor did counsel exercise any available peremptory strikes or move to strike the juror for cause. The juror was seated as the first alternate. Defense counsel concluded *voir dire* with unused peremptory challenges.

After the trial concluded, the court excused the alternate jurors. The remaining jurors ultimately convicted Thomas. During the penalty phase, the State asked the jury to consider the risk that Thomas could pose to the community if he was not executed: "Are you going to take the risk about [Thomas] asking your daughter out, or your granddaughter out?" 995 F. 3d, at 443. The State then referenced five guilt-phase witnesses who had testified about their romantic relationships with Thomas, including one woman who became pregnant by Thomas. The State reminded the jury about "the string of girls that came up here and apparently . . . he could talk into being with him, are you going to take that chance?" *Ibid.* The jury sentenced Thomas to death.

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B

Thomas filed a direct appeal of his conviction and sentence. While that appeal was pending, he filed an application for a writ of habeas corpus in Texas state court raising two arguments related to juror bias. First, he argued that his trial counsel was ineffective by failing to question or strike the biased jurors. Second, he claimed that seating jurors opposed to interracial marriage violated his Sixth and Fourteenth Amendment rights to trial by an impartial jury.

In support of his ineffective-assistance-of-counsel argument, Thomas' lead trial counsel filed an affidavit declaring that his failure to question jurors opposed to interracial marriage "was not intentional; [he] simply didn't do it." Record 327. Second-chair counsel explained that Thomas' case was her first capital trial, that she was "new at capital voir dire," and that "[v]oir dire in this case was a nightmare." *Id.*, at 422–423. In response, the State attached two new affidavits from the same two attorneys. Lead counsel explained that he "would never ask pointed questions regarding racial bias from a juror without a real basis to do

so" because that might alienate a juror. *Id.*, at 1748. Second-chair counsel gave substantively the same explanation. *Id.*, at 1764. Using identical language, both declared that "[f]or those jurors who expressed some problem with interracial relationships, either [co-counsel] or I questioned them to the extent necessary for us to request a strike for cause or make a decision to use a strike against them." *Id.*, at 1748, 1764–1765.

The state habeas court declined to hold an evidentiary hearing. It denied Thomas' impartial-jury argument on the merits because the state court saw "no evidence that the jury's decision was racially motivated." App. to Pet. for Cert. 329a. The court dismissed Thomas' ineffective-assistance claim because Thomas "failed to overcome the presumption that trial counsel was effective during voir dire questioning." *Id.*, at 373a. The Court of Criminal Appeals of Texas adopted the lower court's findings of fact and conclusions of law. *Id.*, at 292a.

Thomas then filed a federal habeas petition raising the same juror-bias and ineffective-assistance claims. The District Court denied the petition, deeming the juror-bias claim "speculative," and finding that defense counsel's "decision to forgo questioning three of the four jurors about racial bias was simply a matter of trial strategy." *Id.*, at 121a, 125a. In a divided opinion, the Fifth Circuit affirmed. The panel agreed that the state habeas court's finding that there was "'no evidence that the jury's decision was racially motivated'" was "not directly on point as to whether any juror with a relevant bias that made him or her unable to be impartial was seated on the jury." 995 F. 3d, at 444. Nevertheless, the majority concluded that the state court made a "necessary implicit finding . . . that no juror would base his decision on race rather than on the evidence presented." *Ibid.*

With respect to Thomas' ineffective-assistance claim, the panel determined that the state habeas court was not objectively unreasonable in finding trial counsel not ineffective, explaining that counsel's failure to probe juror number five's and juror number six's oppositions to interracial marriage or procreation likely was a tactical decision. *Id.*, at 450.

Judge Higginson dissented. He saw no evidence that juror number four retreated from his vigorous opposition to interracial marriage. He pointed out that juror number four had admitted to "racial animus" involving the "exact interracial circumstance[s] of the offense" for which Thomas was sentenced to death. *Id.*,

at 461 (emphasis deleted). In Judge Higginson's view, "clearly established Supreme Court law . . . forbid[s] persons from being privileged to participate in the judicial process to make life or death judgment about brutal murders involving interracial marriage and offspring those jurors openly confirm they have racial bias against." *Ibid.* Because Judge Higginson would have reversed on the basis of Thomas' juror bias claim, he did not reach the question whether Thomas' counsel rendered deficient performance.

Thomas now petitions this Court for a writ of certiorari.

II

Thomas' trial counsel failed to object or to exercise available peremptory strikes for three jurors who expressed personal hostility to interracial marriage and procreation. Additionally, counsel entirely failed to inquire into the race-based views two of the jurors had expressed in their written questionnaire and the potential impact those views could have on their verdict and during the penalty phase. As a result, Thomas was convicted and sentenced to death by a jury that included three jurors who expressed bias against him.

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The Sixth Amendment right to counsel includes "'the right to the effective assistance of counsel.'" *Strickland* v. *Washington*, 466 U. S. 668, 686 (1984) (quoting *McMann* v. *Richardson*, 397 U. S. 759, 771, n. 14 (1970)). *Strickland* requires a defendant who claims ineffective assistance of counsel to prove (1) "that counsel's representation fell below an objective standard of reasonableness," and (2) that any deficiency was "prejudicial to the defense." 466 U. S., at 688, 692. Thomas has met both requirements.[3]

Thomas' counsel fell far below an objective standard of reasonableness. In a written questionnaire, four prospective jurors admitted that they either "oppose[d]" or "vigorously oppose[d]" interracial marriage and procreation. Yet counsel questioned only one of them (the third juror) about their views on race, and as Judge Higginson recognized in dissent below, that juror "never

[3] Thomas also raised a fair-trial claim under the Sixth Amendment. The State argues that Thomas has procedurally defaulted this claim because trial counsel did not strike the jurors or object to their seating. Thomas disagrees. I do not address the fair-trial claim, however, because Thomas is entitled to relief on his ineffective-assistance-of-counsel claim, which all agree is properly before this Court.

retreated from his 'beliefs about interracial marriage.'" 995 F. 3d, at 461.

Counsel asked no questions at all about race of the other three prospective jurors, each of whom had also expressed opposition to interracial marriage. This Court has recognized that specific questioning may be required where there is a "constitutionally significant likelihood that, absent questioning about racial prejudice," the State would not impanel an impartial jury. *Ristaino* v. *Ross*, 424 U. S. 589, 596 (1976). In *Turner* v. *Murray*, 476 U. S. 28 (1986), the Court specifically held that "a capital defendant accused of an interracial crime is entitled to have prospective jurors informed of the race of the victim and questioned on the issue of racial bias." *Id.*, at 36–37. The Court based that decision in part on the broad discretion, and resulting potential for prejudice, given to a jury during the prejudice phase of a capital trial. *Id.*, at 35 (plurality opinion). The Court held, nevertheless, that the trial judge's "failure to question the venire on racial prejudice" is not by itself erroneous unless the "defendant has specifically requested such an inquiry," effectively putting the burden on defendants' attorneys to protect this right. *Id.*, at 37.

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There is no doubt that the facts of this case make out the "constitutionally significant likelihood" under which specific questioning is required. This is a capital case involving interracial violence where three seated jurors and an alternate expressed prejudicial views. Had defense counsel requested individual *voir dire* of the three prospective jurors, it would have been reversible error for the trial judge to deny that request. See *id.*, at 36 (plurality opinion); *id.*, at 36–37 (majority opinion). Counsel's failure to do so was constitutionally ineffective.

The state habeas court's unexplained contrary conclusion was objectively unreasonable. Although the challenged jurors gave general affirmations when the trial judge asked if they would "make up [their] mind based on the evidence," see, *e. g.*, App. to Pet. for Cert. 116a, those answers to general questioning do not absolve defense counsel of failing to question the jurors about racial bias and its potential impact on the verdict and penalty phase deliberations. As this Court has long explained, when a juror "admit[s] prejudice," general statements of impartiality "can be given little weight." *Irvin* v. *Dowd*, 366 U. S. 717, 728 (1961); see also *Ham* v. *South Carolina*, 409 U. S. 524, 526 (1973) ("three general questions as to bias, prejudice, or partiality" were insuf-

ficient where trial judge refused to examine jurors about racial prejudice).

Moreover, while trial counsel has wide latitude to make strategic decisions during *voir dire*, there was no excuse in this case for their failure to ask the three other jurors questions similar to those that counsel asked juror number four. Trial counsel initially admitted as much, swearing in affidavits that counsel's failure to probe the jurors' views "was not intentional" before subsequently attesting that counsel "questioned [the jurors who expressed opposition to interracial marriage] to the extent necessary." Trial counsel's unusual, subsequently filed affidavits on behalf of the State are contradicted by the record: Trial counsel claims to have questioned the potential jurors who declared opposition to interracial marriage, but the record shows that counsel did not ask any questions at all related to interracial marriage of three of the four who expressed opposition. That alone demonstrates ineffectiveness. There are numerous ways to broach sensitive but necessary subjects during *voir dire* without invoking the ire of jurors.[4]

It is no doubt true that there may sometimes be strategic reasons not to examine jurors for racial bias, but counsel cited none here. To the contrary, the hostility the jurors expressed in their questionnaires strongly suggested that their presence would infect the proceedings with racial bias. Counsel's subsequent affidavits therefore "resembl[e] more a *post hoc* rationalization of counsel's conduct than an accurate description of their" strategic decisions during *voir dire*. *Wiggins* v. *Smith*, 539 U. S. 510, 526–527 (2003).

Because the Court of Appeals erred at the first *Strickland* prong, it did not reach the second. It is plain, however, that the state habeas court's perfunctory conclusion that "[petitioner] has not demonstrated that any alleged error prejudiced [the] defense,"

[4] For instance, defense counsel could have posed something like the following question: "Thank you for your honest response to the question about your feelings toward interracial marriage. Many people have strong feelings on the matter. For some people it can be hard to put those feelings aside in judging evidence for a verdict, or especially in determining an appropriate punishment. Is there any possibility that your personal feelings about interracial marriage could influence you in this case in any way? If there is, although you may be the perfect juror for many other cases, you may not be a great fit for this case."

App. to Pet. for Cert. 373a, violated clearly established law. As we have often recognized, seating even one biased juror infringes on a criminal defendant's Sixth Amendment right. See *Parker* v. *Gladden*, 385 U. S. 363, 366 (1966) (*per curiam*) (a defendant is "entitled to be tried by 12, not 9 or even 10, impartial and unprejudiced jurors"); *United States* v. *Martinez-Salazar*, 528 U. S. 304, 316 (2000) ("[T]he seating of any juror who should have been dismissed for cause . . . would require reversal"). These concerns are even greater in capital cases involving interracial violence. See *Turner*, 476 U. S., at 37.[5] As the Fifth Circuit has held, these (and other) precedents clearly establish that a defendant suffers prejudice when trial counsel fails to challenge biased jurors. See *Virgil* v. *Dretke*, 446 F. 3d 598, 613–614 (2006).

Thomas' offense involved not only interracial violence, but also interracial intimacy. Historians have long recognized that interracial marriage, sex, and procreation evoke some of the most invidious forms of prejudice and violence. "No other way of crossing the color line is so attended by the emotion commonly associated with violating a social taboo as intermarriage and extra-marital relations between a Negro man and a white woman." 2 G. Myrdal, An American Dilemma 606 (1996). Far from avoiding these incendiary topics, the State fanned the flames in urging the jury to sentence Thomas to death. The prosecutor asked the jury whether they were "going to take the risk about [Thomas] asking your daughter out, or your granddaughter out?" and reminded the jury during the penalty phase about the "string

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[5] The Court specifically observed in *Turner* that a racially biased juror might be more likely to find aggravating factors and less favorably inclined toward mitigation evidence, particularly in a case involving interracial violence. 476 U. S., at 35 (plurality opinion). Subsequent social science literature has underscored that concern. See generally M. Lynch & C. Haney, Mapping the Racial Bias of the White Male Capital Juror: Jury Composition and the "Empathic Divide," 45 Law & Soc. Rev. 69 (2011). The concern is as applicable here as it was in *Turner*: Much as Turner argued "mental disturbance as a mitigating circumstance" at the penalty phase, 476 U. S., at 35, Thomas' counsel argued that Thomas suffered acute psychosis from a lifelong mental illness, see 995 F. 3d 432, 439 (CA5 2021).

Social science evidence also confirms *Turner*'s teachings regarding the importance of questioning jurors about potential racial bias. See, *e. g.*, P. Joy, Race Matters in Jury Selection, 109 Nw. U. L. Rev. Online 180, 181–183 (2015) (summarizing studies).

of girls" who had testified during the guilt phase about their romantic relationship with Thomas. 995 F. 3d, at 443.[6]

By failing to challenge, or even question, jurors who were hostile to interracial marriage in a capital case involving that explosive topic, Thomas' counsel performed well below an objective standard of reasonableness. This deficient performance prejudiced Thomas by depriving him of a fair trial. The state court's contrary decision was an unreasonable application of clearly established Supreme Court law.

* * *

This case involves a heinous crime apparently committed by someone who suffered severe psychological trauma. Whether Thomas' psychological disturbances explain or in any way excuse his commission of murder, however, is beside the point. No jury deciding whether to recommend a death sentence should be tainted by potential racial biases that could infect its deliberations or decision, particularly where the case involved an interracial crime. Ignoring issues of racial bias in the jury system "damages 'both the fact and the perception' of the jury's role as 'a vital check against the wrongful exercise of power by the State.'" *Pena-Rodriguez* v. *Colorado*, 580 U. S. 206, 223 (2017).

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This is not to impugn the individual jurors who served in this case, who may themselves have responded to questions honestly and with good intentions. It is ultimately the duty of the courts "to confront racial animus in the justice system." *Id.*, at 222. That responsibility requires courts, including this one, vigilantly to safeguard the fairness of criminal trials by ensuring that jurors do not harbor, or at the very least could put aside, racially biased sentiments. To address these "most grave and serious statements of racial bias" is "to ensure that our legal system remains capable of coming ever closer to the promise of equal treatment under the law that is so central to a functioning democracy." *Id.*, at 224.

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[6] The Fifth Circuit declined to consider the prosecutor's comments in closing because a direct challenge to them fell beyond the scope of the certificate of appealability. 995 F. 3d, at 443. That confuses the issue. Separate from whether the closing argument itself was impermissible, the rhetoric and substance of the closing statement are part of the "totality of the evidence before the judge or jury" that a court must consider in assessing prejudice under *Strickland* v. *Washington*, 466 U. S. 668, 695 (1984).

The errors in this case render Thomas' death sentence not only unreliable, but unconstitutional. I would not permit the State to execute Andre Thomas in light of the ineffective assistance that he received, and would summarily reverse the Fifth Circuit.

No. 21–1193. OKLAHOMA *v.* WADKINS. Ct. Crim. App. Okla. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 2022 OK CR 2, 504 P. 3d 605.

No. 21–1214. OKLAHOMA *v.* SAM. Ct. Crim. App. Okla. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied.

No. 22–87. ARMSTRONG *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF NORTH CAROLINA. C. A. 4th Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 22–161. NIETO ET AL. *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. JUSTICE BARRETT took no part in the consideration or decision of this petition. Reported below: 29 F. 4th 859.

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No. 22–5295. TRABELSI, AKA ABU QA'QA *v.* UNITED STATES. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH and JUSTICE JACKSON took no part in the consideration or decision of this petition. Reported below: 28 F. 4th 1291.

No. 22–5430. BROWN *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

Rehearing Denied

No. 21–7022. GIL *v.* VIRGINIA, 596 U. S. 906; and
No. 21–7858. LEWIS *v.* MISSISSIPPI, 596 U. S. 1035. Petitions for rehearing denied.

OCTOBER 13, 2022

Miscellaneous Orders

No. 22A272. NOVARTIS PHARMACEUTICALS CORP. *v.* HEC PHARM CO., LTD., ET AL. C. A. Fed. Cir. Application for stay of the mandate presented to THE CHIEF JUSTICE, and by him

referred to the Court, denied. The order heretofore entered by THE CHIEF JUSTICE is vacated.

No. 22A283. TRUMP *v.* UNITED STATES. Application to vacate the stay entered by the United States Court of Appeals for the Eleventh Circuit on September 21, 2022, presented to JUSTICE THOMAS, and by him referred to the Court, denied.

OCTOBER 14, 2022

Dismissals Under Rule 46

No. 21–1246. POSTMATES, LLC, FKA POSTMATES, INC. *v.* WINNS ET AL. Ct. App. Cal., 1st App. Dist., Div. 3. Certiorari dismissed under this Court's Rule 46. Reported below: 66 Cal. App. 5th 803, 281 Cal. Rptr. 3d 460.

No. 22–5749. WARNER *v.* SOUTH CAROLINA. Sup. Ct. S. C. Certiorari dismissed under this Court's Rule 46.

OCTOBER 17, 2022

Dismissal Under Rule 46

Page Proof Pending Publication

No. 21–119. POSTMATES, LLC, FKA POSTMATES, INC. *v.* RIMLER ET AL. Ct. App. Cal., 1st App. Dist., Div. 5. Certiorari dismissed under this Court's Rule 46.

Certiorari Granted—Vacated and Remanded

No. 21–1418. SANTOS *v.* UNITED STATES. C. A. 11th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Xiulu Ruan* v. *United States*, 597 U. S. 450 (2022).

No. 21–1572. DOMINO'S PIZZA, LLC *v.* CARMONA. C. A. 9th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Southwest Airlines Co.* v. *Saxon*, 596 U. S. 450 (2022). Reported below: 21 F. 4th 627.

No. 22–5061. JOSEPH *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Concepcion* v. *United States*, 597 U. S. 481 (2022).

No. 22–5075. NEWMAN *v.* UNITED STATES; and

No. 22–5076. WOMACK *v.* UNITED STATES;
No. 22–5077. CLEMONS *v.* UNITED STATES; and
No. 22–5346. HOFSTETTER *v.* UNITED STATES. C. A. 6th Cir. Motions of petitioners for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and cases remanded for further consideration in light of *Xiulu Ruan* v. *United States*, 597 U. S. 450 (2022). Reported below: 31 F. 4th 396.

Certiorari Dismissed

No. 22–5358. MILLER *v.* KASHANI ET AL. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5609. WILMORE *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

Miscellaneous Orders

No. 22M22. LABRANCHE *v.* SCHUMACHER/FFVA MUTUAL INSURANCE CO.; and
No. 22M23. KOMATSU *v.* CUBESMART ET AL. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

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No. 22–22. TROPP *v.* TRAVEL SENTRY, INC., ET AL. C. A. Fed. Cir. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

No. 22–5424. ARREOLA-OCHOA *v.* GARLAND, ATTORNEY GENERAL. C. A. 7th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until November 7, 2022, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 22–5650. IN RE HATHAWAY-BEY; and
No. 22–5651. IN RE CARR-EL. Petitions for writs of habeas corpus denied.

No. 22–5347. IN RE JONES;
No. 22–5374. IN RE NEWSOME;
No. 22–5384. IN RE REDMOND;
No. 22–5398. IN RE JACKSON; and

No. 22–5407. IN RE AUSTIN. Petitions for writs of mandamus denied.

No. 22–5388. IN RE MCNEILL. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of mandamus and/or prohibition dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

Certiorari Denied

No. 21–462. JOHNSON ET AL. *v.* BETHANY HOSPICE AND PALLIATIVE CARE LLC. C. A. 11th Cir. Certiorari denied. Reported below: 853 Fed. Appx. 496.

No. 21–936. UNITED STATES ET AL. EX REL. OWSLEY *v.* FAZZI ASSOCIATES, INC., ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 16 F. 4th 192.

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No. 21–1145. MOLINA HEALTHCARE OF ILLINOIS, INC., ET AL. *v.* PROSE. C. A. 7th Cir. Certiorari denied. Reported below: 17 F. 4th 732.

No. 21–1394. FITISEMANU ET AL. *v.* UNITED STATES ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 1 F. 4th 862.

No. 21–1464. GULLEY *v.* KANSAS. Sup. Ct. Kan. Certiorari denied. Reported below: 315 Kan. 86, 505 P. 3d 354.

No. 21–7648. FERNANDO CEJA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 23 F. 4th 1218.

No. 21–8017. MEALS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 21 F. 4th 903.

No. 22–44. HARRIS *v.* ALABAMA. Ct. Crim. App. Ala. Certiorari denied.

No. 22–52. ARIYAN INC., DBA DISCOUNT CORNER, ET AL. *v.* SEWERAGE AND WATER BOARD OF NEW ORLEANS ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 29 F. 4th 226.

No. 22–122. SNYDER *v.* TENTH PRESBYTERIAN CHURCH. Super. Ct. Pa. Certiorari denied. Reported below: 266 A. 3d 640.

No. 22–145. AIDONG CHEN *v.* KPMG LLP ET AL. (two judgments). C. A. 3d Cir. Certiorari denied.

No. 22–151. HOUSTON *v.* ESTATE OF HOUSTON ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–153. BOWLING *v.* DAHLHEIMER ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–162. ALABBASSI *v.* WORMUTH, SECRETARY OF THE ARMY. C. A. 5th Cir. Certiorari denied.

No. 22–164. STUART *v.* GERLACH, JUDGE, SUPERIOR COURT OF ARIZONA, MARICOPA COUNTY, ET AL. Super. Ct. Ariz., Maricopa County. Certiorari denied.

No. 22–169. LIN ET AL. *v.* HUDSON CITY SAVINGS BANK ET AL. C. A. 3d Cir. Certiorari denied.

Post-Print Pending Publication

No. 22–171. CENTRO MÉDICO DEL TURABO, INC., DBA HOSPITAL HIMA SAN PABLO CAGUAS ET AL. *v.* UNIÓN GENERAL DE TRABAJADORES. Sup. Ct. P. R. Certiorari denied.

No. 22–173. SWARTZ *v.* BOARD OF TRUSTEES OF UNIVERSITY OF PENNSYLVANIA ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–183. COWAN ET AL. *v.* WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–189. LUKASHIN *v.* WASHINGTON STATE DEPARTMENT OF REVENUE. Sup. Ct. Wash. Certiorari denied.

No. 22–198. SEN *v.* AMAZON.COM, INC. C. A. 9th Cir. Certiorari denied.

No. 22–248. TAWNEY *v.* PORTAGE COUNTY, OHIO, ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–257. ADELL *v.* CELLCO PARTNERSHIP, DBA VERIZON WIRELESS. C. A. 6th Cir. Certiorari denied.

No. 22–262. WALKER *v.* BOKF, N. A., DBA BANK OF ALBUQUERQUE, N. A. C. A. 10th Cir. Certiorari denied. Reported below: 30 F. 4th 994.

No. 22–280. BUTTAR *v.* REDDY. C. A. 4th Cir. Certiorari denied. Reported below: 38 F. 4th 393.

No. 22–5109. SANCHEZ *v.* BROOMFIELD, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 994 F. 4th 1129.

No. 22–5306. RIFE *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 33 F. 4th 838.

No. 22–5356. BOURGEOIS *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5357. DEANNA D. *v.* TENNESSEE DEPARTMENT OF CHILDREN'S SERVICES. Ct. App. Tenn. Certiorari denied.

No. 22–5361. BUSTOS *v.* BEXAR APPRAISAL DISTRICT ET AL. Ct. App. Tex., 4th Dist. Certiorari denied.

No. 22–5362. GARCIA *v.* NEW JERSEY. Super. Ct. N. J., App. Div. Certiorari denied.

No. 22–5369. GARDNER *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

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No. 22–5375. WAUGH *v.* RALPH ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5383. GIOVANNI *v.* NEW JERSEY. Super. Ct. N. J., App. Div. Certiorari denied.

No. 22–5385. J. S. *v.* TEXAS. Ct. App. Tex., 7th Dist. Certiorari denied.

No. 22–5396. HILL *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 22–5405. SAWANO *v.* COLORADO. Ct. App. Colo. Certiorari denied.

No. 22–5409. BOWMAN *v.* MICHIGAN. Ct. App. Mich. Certiorari denied.

No. 22–5443. DAVIS *v.* MOODY, ATTORNEY GENERAL OF FLORIDA, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5447. SCHNEIDER *v.* BANK OF AMERICA, N. A., ET AL. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 22–5448. CASSIDY *v.* FLORIDA. Dist. Ct. App. Fla., 5th Dist. Certiorari denied. Reported below: 339 So. 3d 361.

No. 22–5462. IRICK *v.* NEW YORK. App. Div., Sup. Ct. N. Y., 1st Jud. Dept. Certiorari denied. Reported below: 203 App. Div. 3d 517, 163 N. Y. S. 3d 530.

No. 22–5537. RENDON *v.* IOWA. Ct. App. Iowa. Certiorari denied. Reported below: 974 N. W. 2d 814.

No. 22–5593. RODRIGUEZ *v.* CALIFORNIA. Ct. App. Cal., 1st App. Dist., Div. 2. Certiorari denied.

No. 22–5603. SANCHEZ-LUGO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5606. AMPARANO-TORRES *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5610. THOMPSON *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5614. GORDON *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

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No. 22–5623. DAY *v.* WINFREY ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–5635. BRIK *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5641. REED *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5663. RONEY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5354. NOBLE *v.* PENNSYLVANIA. Super. Ct. Pa. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 239 A. 3d 85.

OCTOBER 19, 2022

Certiorari Denied

No. 22–5848 (22A317). COLE *v.* FARRIS, WARDEN. Ct. Crim. App. Okla. Application for stay of execution of sentence of death, presented to JUSTICE KAVANAUGH, and by him referred to the

Court, denied. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this application and this petition.

OCTOBER 20, 2022

Dismissals Under Rule 46

No. 21–420. POSTMATES, LLC, FKA POSTMATES, INC. *v.* SANTANA. Ct. App. Cal., 2d App. Dist., Div. 2. Certiorari dismissed under this Court's Rule 46.

No. 22–225. MENDOZA-GOMEZ *v.* UNION PACIFIC RAILROAD CO., INDIVIDUALLY AND SUCCESSOR-IN-INTEREST TO SOUTHERN PACIFIC TRANSPORTATION CO. C. A. 5th Cir. Certiorari dismissed under this Court's Rule 46.

Miscellaneous Order

No. 22–5872 (22A332). IN RE COLE. Application for stay of execution of sentence of death, presented to JUSTICE KAVANAUGH, and by him referred to the Court, denied. Petition for writ of habeas corpus denied. JUSTICE GORSUCH took no part in the consideration or decision of this application and this petition.

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OCTOBER 31, 2022

Affirmed for Absence of Quorum

No. 22–5162. WEIDRICK *v.* BIDEN, PRESIDENT OF THE UNITED STATES, ET AL. C. A. D. C. Cir. Because the Court lacks a quorum, 28 U. S. C. § 1, and since the qualified Justices are of the opinion that the case cannot be heard and determined at the next Term of the Court, the judgment is affirmed under 28 U. S. C. § 2109, which provides that under these circumstances "the court shall enter its order affirming the judgment of the court from which the case was brought for review with the same effect as upon affirmance by an equally divided court." THE CHIEF JUSTICE, JUSTICE THOMAS, JUSTICE ALITO, JUSTICE SOTOMAYOR, JUSTICE KAVANAUGH, JUSTICE BARRETT, and JUSTICE JACKSON took no part in the consideration or decision of this petition.

Certiorari Dismissed

No. 22–5391. LIN OUYANG *v.* BORENSTEIN, JUDGE, SUPERIOR COURT OF CALIFORNIA, LOS ANGELES COUNTY, ET AL. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis*

denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 22–5479. JARVIS *v.* UNITED STATES. C. A. Fed. Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

Miscellaneous Orders

No. 21A785. THOMPSON *v.* CHARLES COUNTY DETENTION CENTER ET AL. Application for bail, addressed to JUSTICE THOMAS and referred to the Court, denied.

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No. 22A124. MOSES *v.* EDWARDS, GOVERNOR OF LOUISIANA, ET AL. C. A. 5th Cir. Application to recall and stay mandate, addressed to JUSTICE THOMAS and referred to the Court, denied.

No. 22A170. DEVILLE ET AL. *v.* SPECIALIZED LOAN SERVICING, LLC, ET AL. C. A. 9th Cir. Application for stay, addressed to JUSTICE JACKSON and referred to the Court, denied.

No. 22M24. SEALED APPELLANT *v.* MOORE ET AL. C. A. 4th Cir. Motion for leave to file petition for writ of certiorari under seal with redacted copies for the public record denied.

No. 22M25. HAVENS *v.* LEONG ET AL. Motion for leave to file petition for writ of certiorari with motion for leave to proceed *in forma pauperis* and declaration of indigency under seal denied.

No. 21–7851. CHHIM *v.* CITY OF HOUSTON, TEXAS, ET AL. C. A. 5th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [596 U. S. 1004] denied.

No. 22–5488. DORN *v.* CARPENTER, JUDGE, DISTRICT COURT OF JEFFERSON COUNTY, COLORADO, ET AL. C. A. 10th Cir.; and

No. 22–5683. SAVOY *v.* FRANCHOT, COMPTROLLER OF MARYLAND, ET AL. C. A. 4th Cir. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until November 21, 2022, , within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 22–5713. IN RE NICHOLS; and

No. 22–5724. IN RE SMALL. Petitions for writs of habeas corpus denied.

No. 22–5777. IN RE MAKDESSI. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of habeas corpus dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

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No. 22–228. IN RE BHAGAT; and

No. 22–5501. IN RE DRAKE. Petitions for writs of mandamus denied.

Certiorari Denied

No. 21–1453. LYNCH *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. Certiorari denied. Reported below: 21 F. 4th 776.

No. 21–1525. FUTRELL *v.* VIRGINIA. Sup. Ct. Va. Certiorari denied.

No. 21–1552. CENTRAL SPECIALTIES, INC. *v.* LARGE. C. A. 8th Cir. Certiorari denied. Reported below: 18 F. 4th 989.

No. 21–1570. SPADE *v.* DEPARTMENT OF JUSTICE. C. A. 3d Cir. Certiorari denied.

No. 21–8247. CARTER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–8248. NEWBORN ET AL. *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 12 Cal. 5th 719, 503 P. 3d 668.

No. 22–47. BENNINGHOFF, INDIVIDUALLY AND AS MAJORITY LEADER OF THE PENNSYLVANIA HOUSE OF REPRESENTATIVES *v.* 2021 LEGISLATIVE REAPPORTIONMENT COMMISSION ET AL. Sup. Ct. Pa. Certiorari denied. Reported below: 278 A. 3d 296.

No. 22–76. CARNES *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 22 F. 4th 743.

No. 22–159. PASCALE *v.* RPI Co. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 22–165. HOWARD *v.* OFFICE OF THE SPECIAL DEPUTY RECEIVER ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–180. STANEK ET AL. *v.* ST. CHARLES COMMUNITY UNIT SCHOOL DISTRICT NO. 303 BOARD OF EDUCATION ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–181. RESURRECTION SCHOOL ET AL. *v.* HERTEL, DIRECTOR, MICHIGAN DEPARTMENT OF HEALTH AND HUMAN SERVICES, ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 35 F. 4th 524.

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No. 22–182. FLOM DISPOSAL, INC. *v.* GOODHUE COUNTY, MINNESOTA, ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 35 F. 4th 1097.

No. 22–184. PARKER *v.* AUSTIN, SECRETARY OF DEFENSE. C. A. 11th Cir. Certiorari denied. Reported below: 856 Fed. Appx. 807.

No. 22–185. LI *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. D. C. Cir. Certiorari denied. Reported below: 22 F. 4th 1014.

No. 22–188. O'CONNELL *v.* BIANCO. Ct. App. Ky. Certiorari denied.

No. 22–197. MASSARO *v.* NEW YORK CITY DEPARTMENT OF EDUCATION ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–199. SMITH *v.* COMMUNITY CARE INC. ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–206. CURRY-MALCOLM *v.* NEW YORK STATE TEACHERS' RETIREMENT SYSTEM ET AL. Ct. App. N. Y. Certiorari denied. Reported below: 38 N. Y. 3d 1051, 190 N. E. 3d 1174.

No. 22–215. GALLAGHER *v.* FINANCIAL INDUSTRY REGULATORY AUTHORITY, INC. C. A. 11th Cir. Certiorari denied.

No. 22–232. PLACE ET AL., AS PERSONAL REPRESENTATIVES OF THE ESTATE OF PLACE *v.* ANDERSON ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–254. MENDOZA CASILLAS *v.* GARLAND, ATTORNEY GENERAL. C. A. 5th Cir. Certiorari denied.

No. 22–265. CAPUTO *v.* WELLS FARGO ADVISORS, LLC. C. A. 3d Cir. Certiorari denied.

No. 22–282. PAVLOCK ET AL. *v.* HOLCOMB, GOVERNOR OF INDIANA, ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 35 F. 4th 581.

No. 22–303. STOYANOV *v.* DEL TORO, SECRETARY OF THE NAVY, ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–304. OSWALD *v.* MAUER ET AL. C. A. 6th Cir. Certiorari denied.

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No. 22–307. MICHIGAN *v.* MCCLOUD ET AL. Ct. App. Mich. Certiorari denied.

No. 22–308. SEDDIQ *v.* VIRGINIA INDIGENT DEFENSE COMMISSION ET AL. Sup. Ct. Va. Certiorari denied.

No. 22–318. MOON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 33 F. 4th 1284.

No. 22–5225. ROSS *v.* BLOOMFIELD, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 29 F. 4th 1028.

No. 22–5382. HURT *v.* WILLIAMS. C. A. 9th Cir. Certiorari denied.

No. 22–5390. CONERLY *v.* YAP ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5392. DOE *v.* CITY OF BATON ROUGE, LOUISIANA, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5395. GORRIO *v.* FRANCIS ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5408. DUTCHESS *v.* DUTCH. Sup. Ct. Alaska. Certiorari denied.

No. 22–5412. TRIBBLE *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5416. CHAPPELL *v.* NEVADA. Sup. Ct. Nev. Certiorari denied. Reported below: 137 Nev. 780, 501 P. 3d 935.

No. 22–5422. COOPER *v.* FLORIDA. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 334 So. 3d 609.

No. 22–5423. LAMARTINA *v.* JOHNSON ET AL. Sup. Ct. Miss. Certiorari denied.

No. 22–5425. BURCH *v.* BANK OF AMERICA, N. A. C. A. 5th Cir. Certiorari denied.

No. 22–5426. ANTONETTI *v.* FILSON, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5432. VALENTINE *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 339 So. 3d 311.

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No. 22–5434. CROWDER *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–5438. SIMPSON *v.* NORTH CAROLINA DEPARTMENT OF PUBLIC SAFETY. C. A. 4th Cir. Certiorari denied.

No. 22–5442. JONES *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5444. MCCLELAND *v.* RAEMISCH ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–5457. WREH *v.* GIANOTOS ET AL. Sup. Ct. Tex. Certiorari denied.

No. 22–5458. DAVIS *v.* FLORIDA. Dist. Ct. App. Fla., 1st Dist. Certiorari denied.

No. 22–5463. HOLT *v.* PENNSYLVANIA. Sup. Ct. Pa. Certiorari denied. Reported below: 273 A. 3d 514.

No. 22–5464. DUNLAP *v.* MITCHELL, SUPERINTENDENT, LANESBORO CORRECTIONAL INSTITUTION. C. A. 4th Cir. Certiorari denied.

No. 22–5467. MOORE *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5468. PETTY *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 22–5476. WOOD *v.* STIRLING, COMMISSIONER, SOUTH CAROLINA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 27 F. 4th 269.

No. 22–5478. MCDAUGHTERY *v.* FOSS, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–5481. FERGUSON *v.* GETTEL MANAGEMENT GROUP. C. A. 11th Cir. Certiorari denied.

No. 22–5485. CANO *v.* LUMPKIN, DIRECTOR, TEXAS, DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

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No. 22–5486. BEST *v.* NEW YORK CITY POLICE DEPARTMENT SEX OFFENDER UNIT. C. A. 2d Cir. Certiorari denied.

No. 22–5496. WHITE *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5500. LAPOINT *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–5505. CUSICK *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 22–5510. LEBED *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied.

No. 22–5512. DIGGINS *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 36 F. 4th 302.

No. 22–5518. LUCAS *v.* KIJAKAZI, ACTING COMMISSIONER OF SOCIAL SECURITY. C. A. 9th Cir. Certiorari denied.

No. 22–5543. ANDERSON *v.* GENERAL MOTORS LLC ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–5559. ESTRADA *v.* NEHLS, SHERIFF, FORT BEND COUNTY, TEXAS, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5561. BROOKS *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2022 IL App (1st) 181670, 198 N. E. 3d 1150.

No. 22–5577. DAVIS *v.* GENOVESE, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–5579. BAHAM *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–5583. DOE *v.* HARRIS COUNTY, TEXAS, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5599. RUSSELL *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 26 F. 4th 371.

No. 22–5600. CARGILL *v.* ALABAMA ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5612. GOMEZ *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

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No. 22–5615. VILLA *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–5620. KALATEHE *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5621. LEVEKE, AKA MEYER, AKA MEYERS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 38 F. 4th 662.

No. 22–5625. TUCKER *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5634. DION *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 37 F. 4th 31.

No. 22–5638. MARTINEZ-ROBOS *v.* UNITED STATES; and
No. 22–5693. ACUNA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5639. THOMAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5660. TERRY *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5665. DILL *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–5668. GUERRIERO *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5672. NGUYEN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5676. ELLERBE *v.* MAY, WARDEN, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5677. MCCARRON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 30 F. 4th 1157.

No. 22–5680. VIERA *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–5691. NYAH *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 35 F. 4th 1100.

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No. 22–5692. ROCHA *v.* WEST VIRGINIA. Sup. Ct. App. W. Va. Certiorari denied.

No. 22–5697. CAPELLI *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 37 F. 4th 833.

No. 22–5701. COPE *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5703. LEDFORD *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5704. BUZZARD *v.* WASHINGTON. Ct. App. Wash. Certiorari denied.

No. 22–5711. KRAMER, AKA FRANKLIN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5720. EDMONDS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5721. SEALED APPELLANT *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied.

No. 22–5726. GONZALEZ-CARMONA *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 35 F. 4th 636.

No. 22–5729. MADRID-BECERRA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 14 F. 4th 1096.

No. 22–5730. CAMPBELL *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 37 F. 4th 1345.

No. 22–5733. BROWN *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5738. MILLS *v.* VIRGINIA. Sup. Ct. Va. Certiorari denied.

No. 22–5740. GRANADOS-ORTEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5741. HYLTON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 30 F. 4th 842.

No. 22–5750. DIAZ *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

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No. 22–5751. SHIPLEY *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5754. LAURENT *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 33 F. 4th 63.

No. 22–5756. WARNER *v.* ZOOK, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–5760. SPEAR *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5766. KINKADE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5768. BATTLE *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5769. BOOKMAN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5775. BRAMSCHER *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist., Div. 3. Certiorari denied.

No. 21–1013. REPUBLIC OF TURKEY *v.* USOYAN ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition. Reported below: 6 F. 4th 31.

No. 22–33. CORBETT *v.* TRANSPORTATION SECURITY ADMINISTRATION ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition. Reported below: 19 F. 4th 478.

No. 22–5626. JONES *v.* NEW JERSEY. Super. Ct. N. J., App. Div. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 22–5637. STONE *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. JUSTICE SOTOMAYOR and JUSTICE KAGAN took no part in the consideration or decision of this petition. Reported below: 37 F. 4th 825.

No. 22–5655. MILLER *v.* UNITED STATES. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVANAUGH and JUSTICE JACKSON took no part in the consideration or decision of this petition.

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Rehearing Denied

No. 21–7761. IN RE RILEY, 598 U. S. 909. Petition for rehearing denied.

No. 21–6017. LOUIS *v.* BERRY, WARDEN, 595 U. S. 1098; and No. 21–7588. MARIGNY *v.* CENTENE MANAGEMENT CO. LLC, 596 U. S. 967. Motions of petitioners for leave to file petitions for rehearing denied.

NOVEMBER 1, 2022

Miscellaneous Order

No. 22A337. GRAHAM, UNITED STATES SENATOR *v.* FULTON COUNTY SPECIAL PURPOSE GRAND JURY. D. C. N. D. Ga. Application for stay and injunction pending appeal, presented to JUSTICE THOMAS, and by him referred to the Court, denied. The order heretofore entered by JUSTICE THOMAS is vacated. The lower courts assumed that the informal investigative factfinding that Senator Graham assertedly engaged in constitutes legislative activity protected by the Speech or Debate Clause, U. S. Const., Art I, § 6, cl. 1, and they held that Senator Graham may not be

questioned about such activities. The lower courts also made clear that Senator Graham may return to the District Court should disputes arise regarding the application of the Speech or Debate Clause immunity to specific questions. Accordingly, a stay or injunction is not necessary to safeguard the Senator's Speech or Debate Clause immunity.

NOVEMBER 4, 2022

Certiorari Granted

No. 21–1043. ABITRON AUSTRIA GMBH ET AL. *v.* HETRONIC INTERNATIONAL, INC. C. A. 10th Cir. Certiorari granted. Reported below: 10 F. 4th 1016.

No. 21–757. AMGEN INC. ET AL. *v.* SANOFI ET AL. C. A. Fed. Cir. Certiorari granted limited to Question 2 presented by the petition. Reported below: 987 F. 3d 1080.

No. 21–1484. ARIZONA ET AL. *v.* NAVAJO NATION ET AL.; and No. 22–51. DEPARTMENT OF THE INTERIOR ET AL. *v.* NAVAJO NATION ET AL. C. A. 9th Cir. Certiorari granted, cases consolidated, and a total of one hour is allotted for oral argument. Reported below: 26 F. 4th 794.

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NOVEMBER 7, 2022

Appeal Dismissed

No. 22–92. BANERIAN ET AL. *v.* BENSON, MICHIGAN SECRETARY OF STATE, ET AL. Appeal from D. C. W. D. Mich. dismissed as moot.

Certiorari Granted—Vacated and Remanded

No. 22–5235. MCINTOSH *v.* UNITED STATES. C. A. 2d Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *United States* v. *Taylor*, 596 U. S. 845 (2022). Reported below: 24 F. 4th 857.

Certiorari Dismissed

No. 22–5509. LUEVANO *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed.

See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

Miscellaneous Orders

No. 22A261. RAVENELL *v.* UNITED STATES. Application for bail, addressed to JUSTICE SOTOMAYOR and referred to the Court, denied.

No. 22A267. BISHAY *v.* HARRIS ET AL. Application for injunction, addressed to JUSTICE THOMAS and referred to the Court, denied.

No. 22M26. HINES *v.* TOYOTA MOTOR SALES, U. S. A., INC.; and
No. 22M29. LINDBLOOM *v.* PARRISH CEMETERY ASSN., INC., ET AL. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

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No. 22M27. WHISTLEBLOWER 7107–16W *v.* COMMISSIONER OF INTERNAL REVENUE. Motion for leave to file petition for writ of certiorari under seal with redacted copies for the public record granted.

No. 22M28. STREB *v.* UNITED STATES; and
No. 22M31. WINGATE *v.* UNITED STATES. Motions for leave to file petitions for writs of certiorari with supplemental appendixes under seal granted.

No. 22M30. FLORES-VAZQUEZ *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS. Motion for leave to proceed as a veteran denied.

No. 21–1052. UNITED STATES EX REL. POLANSKY *v.* EXECUTIVE HEALTH RESOURCES, INC., ET AL. C. A. 3d Cir. [Certiorari granted, 596 U. S. 1031.] Motion of the Solicitor General for divided argument granted.

No. 21–1158. PERCOCO *v.* UNITED STATES ET AL. C. A. 2d Cir. [Certiorari granted 597 U. S. 918.] Motion of respondent Steven Aiello in support of petitioner for divided argument denied.

No. 21–1270. MOAC Mall Holdings LLC *v.* Transform Holdco LLC et al. C. A. 2d Cir. [Certiorari granted, 597 U. S. 905.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted.

No. 21–1271. Moore, Speaker of the North Carolina House of Representatives, et al. *v.* Harper et al. Sup. Ct. N. C. [Certiorari granted, 597 U. S. 918.] Motion of respondents for divided argument and for enlargement of time for oral argument granted. Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted.

No. 21–8259. In re Gregory. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* denied.

No. 22–5497. Shaw *v.* Hay et al. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until November 28, 2022, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

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No. 22–326. In re Bruzzese; and

No. 22–5804. In re Lewis. Petitions for writs of mandamus denied.

Certiorari Denied

No. 21–1494. Damian-Gallardo *v.* Garland, Attorney General. C. A. 9th Cir. Certiorari denied.

No. 21–1566. Juno Therapeutics, Inc., et al. *v.* Kite Pharma, Inc. C. A. Fed. Cir. Certiorari denied. Reported below: 10 F. 4th 1330.

No. 21–7629. Holmes *v.* Granuaile, LLC, et al. C. A. 4th Cir. Certiorari denied.

No. 21–7934. Scheuerman *v.* Kansas. Sup. Ct. Kan. Certiorari denied. Reported below: 314 Kan. 583, 502 P. 3d 502.

No. 21–8051. Rivera Delgado *v.* United States. C. A. 9th Cir. Certiorari denied.

No. 21–8212. OTT *v.* NEW YORK. App. Div., Sup. Ct. N. Y., 4th Jud. Dept. Certiorari denied. Reported below: 200 App. Div. 3d 1642, 159 N. Y. S. 3d 295.

No. 21–8220. NELSON-ROGERS *v.* INTERNAL REVENUE SERVICE ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–194. MIR *v.* STATE FARM MUTUAL AUTOMOBILE INSURANCE CO. ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–202. NUNCIO *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–208. BROOKENS *v.* GAMBLE ET AL. C. A. D. C. Cir. Certiorari denied.

No. 22–213. POLK ET AL. *v.* YEE, STATE CONTROLLER OF CALIFORNIA, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 36 F. 4th 939.

No. 22–216. COOLEY *v.* CALIFORNIA STATEWIDE LAW ENFORCEMENT ASSN. ET AL. C. A. 9th Cir. Certiorari denied.

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No. 22–230. GOLDEN 1 CREDIT UNION *v.* BURGARDT. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 22–236. MCGOVERN *v.* NEBRASKA. Sup. Ct. Neb. Certiorari denied. Reported below: 311 Neb. 705, 974 N. W. 2d 595.

No. 22–244. TANNER *v.* IDAHO DEPARTMENT OF FISH AND GAME ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–249. CHAMBERS SELF-STORAGE OAKDALE, LLC *v.* WASHINGTON COUNTY, MINNESOTA. Sup. Ct. Minn. Certiorari denied. Reported below: 971 N. W. 2d 64.

No. 22–266. CHRISTENSEN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–283. MOSBY *v.* CITY OF BYRON, GEORGIA. C. A. 11th Cir. Certiorari denied.

No. 22–284. FRISBY *v.* SONY MUSIC ENTERTAINMENT, DBA RCA RECORDS, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–286. ROGERS, FKA ROEN, ET AL. *v.* WILMINGTON TRUST CO. ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–291. McLane *v.* Commissioner of Internal Revenue. C. A. 4th Cir. Certiorari denied. Reported below: 24 F. 4th 316.

No. 22–348. Tayler *v.* Washington. Ct. App. Wash. Certiorari denied. Reported below: 20 Wash. App. 2d 1040.

No. 22–5019. Guyger *v.* Texas. Ct. App. Tex., 5th Dist. Certiorari denied.

No. 22–5024. Rodriguez *v.* Dixon, Secretary, Florida Department of Corrections. C. A. 11th Cir. Certiorari denied.

No. 22–5433. Wilson *v.* State Farm General Insurance Co. C. A. 11th Cir. Certiorari denied.

No. 22–5493. Wiley *v.* Masterson et al. C. A. 9th Cir. Certiorari denied.

No. 22–5498. Striz *v.* Collier, Executive Director, Texas Department of Criminal Justice, et al. C. A. 5th Cir. Certiorari denied.

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No. 22–5499. Repella *v.* Luzerne County Children and Youth Services et al. C. A. 3d Cir. Certiorari denied.

No. 22–5507. Swanson *v.* Texas. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5513. Jenkins *v.* South Carolina. Sup. Ct. S. C. Certiorari denied. Reported below: 436 S. C. 362, 872 S. E. 2d 620.

No. 22–5517. Cungtion *v.* Iowa. Sup. Ct. Iowa. Certiorari denied. Reported below: 969 N. W. 2d 501.

No. 22–5520. Sims *v.* New Jersey. Sup. Ct. N. J. Certiorari denied. Reported below: 250 N. J. 189, 271 A. 3d 288.

No. 22–5544. Sanders *v.* Macauley, Warden, et al. C. A. 6th Cir. Certiorari denied.

No. 22–5570. Encarnacion *v.* Annucci, Acting Commissioner, New York Department of Corrections and Community Supervision, et al. C. A. 2d Cir. Certiorari denied.

No. 22–5585. MARVIN *v.* PELDUNAS ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–5624. MARION *v.* NORTH CAROLINA. Ct. App. N. C. Certiorari denied. Reported below: 281 N. C. App. 304, 866 S. E. 2d 919.

No. 22–5629. WILLIAMS *v.* SOUTH CAROLINA. Sup. Ct. S. C. Certiorari denied.

No. 22–5705. ALAGBADA *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5714. ZORNES *v.* BOLIN, WARDEN. C. A. 8th Cir. Certiorari denied. Reported below: 37 F. 4th 1411.

No. 22–5716. TARVIN *v.* MISSISSIPPI. Sup. Ct. Miss. Certiorari denied.

No. 22–5732. ARRINGTON *v.* WISCONSIN. Sup. Ct. Wis. Certiorari denied. Reported below: 2022 WI 53, 402 Wis. 2d 675, 976 N. W. 2d 453.

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No. 22–5753. SCOTT *v.* DISTRICT COURT OF IOWA, SCOTT COUNTY. Sup. Ct. Iowa. Certiorari denied.

No. 22–5762. MATTOX *v.* ARIZONA. Ct. App. Ariz. Certiorari denied.

No. 22–5772. LOTT *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5779. JOHNSON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5781. WOODSON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 30 F. 4th 1295.

No. 22–5782. TASSIN *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5790. DELVA *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–5792. GATLING *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5806. GOULD *v.* JOHNSON. Ct. App. Mo., Western Dist. Certiorari denied. Reported below: 645 S. W. 3d 633.

No. 22–5809. MORALEZ *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5810. PEREZ-BARRIOS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5811. POULIN *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–5816. LAM *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5821. NORIEGA *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 35 F. 4th 643.

No. 22–5829. BARRONETTE ET AL. *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 46 F. 4th 177.

No. 22–5830. RICHTER *v.* OBAISI, AS EXECUTOR OF THE ESTATE OF OBAISI. C. A. 7th Cir. Certiorari denied.

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No. 22–5833. ZUNIGA-GARCIA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5835. KERR *v.* GOMEZ, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 21–972. BUFFINGTON *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. Certiorari denied. Reported below: 7 F. 4th 1361.

JUSTICE GORSUCH, dissenting.

Thomas Buffington served this Nation well but the Department of Veterans Affairs (VA) failed him. Relying on its own internal regulations, the agency denied Mr. Buffington disability benefits that Congress promised him by statute. Nor is Mr. Buffington's case an isolated one. The VA's misguided rules harm a wide swath of disabled veterans. Making matters worse, the lower courts in this case turned aside Mr. Buffington's petition asking them to set aside the agency's regulations and apply Congress's statutory instructions as written. Instead, the courts invoked "*Chevron* deference," bypassed any independent review of the

relevant statutes, and allowed the agency to continue to employ its rules to the detriment of veterans. Respectfully, those who have served in the Nation's Armed Forces deserve better from our agencies and courts alike.

*

During his eight years in the Air Force in the 1990s, Mr. Buffington suffered a facial scar, a back injury, and tinnitus. After his discharge in 2000, he joined the Air National Guard. At about the same time and in recognition of injuries he suffered while on active duty, the VA assessed Mr. Buffington 10 percent disabled and awarded him benefits. The VA did this pursuant to a congressional promise that "the United States will pay" compensation "[f]or disability resulting from personal injury suffered or disease contracted in line of duty." 38 U. S. C. § 1131.

Mr. Buffington's time away from active duty proved short lived. In 2003, the federal government called his Guard unit into service. As a result, Mr. Buffington served again on active duty, including from July 2003 to June 2004, and from November 2004 to July 2005. During Mr. Buffington's time on active duty, the VA suspended his disability benefits. In doing so, everyone agrees that the agency acted properly under a statute that empowers it to withhold benefits "for any period for which [a service member] receives active service pay." § 5304(c).

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The trouble began after Mr. Buffington left active duty in 2005 and the VA failed to resume his disability benefits. When Mr. Buffington realized what had happened and inquired about the problem in January 2009, the agency acknowledged its legal duty to pay and agreed to resume future benefits. But the agency also informed Mr. Buffington that it refused to pay benefits retroactively beyond February 2008. All of which meant that Mr. Buffington missed out on about three years of disability payments, from 2005 to 2008.

Why did the VA refuse to pay these benefits? According to current agency rules, a veteran must *ask* for his disability payments to resume after a second (or subsequent) stint on active duty. If a veteran fails to ask for his benefits again, the agency will not provide them. Nor will the agency pay benefits retroactively beyond "1 year prior to the date" of a veteran's reinstatement request. 38 CFR § 3.654(b)(2) (2021).

In the Court of Appeals for Veterans Claims, Mr. Buffington challenged the agency's rules as inconsistent with Congress's statutory commands. After all, the law says that the VA may suspend disability payments *only* for periods when a veteran "receives active service pay." 38 U. S. C. § 5304(c). The court, however, found it unnecessary to decide for itself whether Mr. Buffington's reading of the law was the best one. Instead, the court concluded that "Congress did not speak to the precise question at issue: Whether the Secretary may predicate the effective date for the recommencement of benefits on the date of the veteran's claim." *Buffington* v. *Wilkie*, 31 Vet. App. 293, 301 (Ct. App. Vet. Cl. 2019). Given that asserted ambiguity, the court invoked *Chevron U. S. A. Inc.* v. *Natural Resources Defense Council, Inc.*, 467 U. S. 837 (1984), and deferred to the agency's rules. More of the same awaited Mr. Buffington in his appeal to the Federal Circuit. See 7 F. 4th 1361 (2021).

Still, not everyone saw the case the same way. In the Federal Circuit, Judge O'Malley dissented, arguing that Mr. Buffington should have prevailed based on bedrock principles of statutory interpretation. The law Congress adopted promised Mr. Buffington benefits from the moment he left active duty in 2005; the VA had no business requiring him to petition for them a second time; and the agency had no business withholding three years' worth of overdue payments. See *id.*, at 1367–1368. In the Court of Appeals for Veterans Claims, Judge Greenberg contended that the majority's invocation of *Chevron* was "nothing more than a rubber stamping of the Government's attempt to misuse its authority granted" by Congress. 31 Vet. App., at 308. Courts, he said, must "stop this business of making up excuses for judges to abdicate their job of interpreting the law." *Id.*, at 307 (internal quotation marks omitted).

I very much doubt that the courts below did right by Mr. Buffington. As Judges O'Malley and Greenberg highlighted, Congress has instructed the VA to make disability payments to injured veterans like Mr. Buffington. In § 5304(c), Congress suspended that obligation only for periods when a veteran "receives active service pay." Nothing in the statute requires a veteran to ask the agency to resume benefits it is already legally obligated to pay. Nor does anything in the statute allow the VA to withhold overdue benefits. It seems that even the VA once

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acknowledged all this. Before adopting its current rules, the agency's *previous* rule imposed no time bar and indicated that payments "may be resumed *the day following release* from active duty if otherwise in order." 26 Fed. Reg. 1599 (1961) (emphasis added) (establishing 38 CFR § 3.654(b)).

Even more troubling than the answer the lower courts reached in this case, however, is *how* they got there. Neither the Court of Appeals for Veterans Claims nor the Federal Circuit offered a definitive and independent interpretation of the law Congress wrote. Instead, both courts simply deferred to the agency's (current) regulations as "reasonable" ones and said this Court's decision in *Chevron* required them to do so. That kind of judicial abdication disserves both our veterans and the law.

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From the beginning of the Republic, the American people have rightly expected our courts to resolve disputes about their rights and duties under law without fear or favor to any party—the Executive Branch included. See A. Bamzai, The Origins of Judicial Deference to Executive Interpretation, 126 Yale L. J. 908, 987 (2017). In this country, it was "well established" early on that courts are not "bound by . . . administrative construction[s]" of the law and those constructions may "be taken into account only to the extent that [they are] supported by valid reasons." *Burnet* v. *Chicago Portrait Co.*, 285 U. S. 1, 16 (1932).

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To be sure, as the administrative state spread its wings in the 1940s this Court toyed with the possibility of "depart[ing] from [this] longstanding tradition of independent, non-deferential judicial determination of questions of law," at least when it came to "so-called mixed questions of law and fact." E. Bernick, Envisioning Administrative Procedure Act Originalism, 70 Admin. L. Rev. 807, 814 (2018); see, *e. g.*, *Gray* v. *Powell*, 314 U. S. 402, 411–412 (1941); *NLRB* v. *Hearst Publications*, *Inc.*, 322 U. S. 111, 131 (1944). But it didn't take long for a chorus of prominent voices to denounce that prospect. For example, Roscoe Pound, a former Dean of Harvard Law School, led a committee of the American Bar Association (ABA) that protested against the "recen[t]" trend of "giving the interpretation of [statutes] to the executive, or to administrative officials"—a trend that Pound worried would lead to "administrative absolutism." The Place of the Judiciary in a Democratic Polity, 27 A. B. A. J. 133, 136–137 (1941)

(Pound); see also *Gray*, 314 U. S., at 418–421 (Roberts, J., dissenting) (warning this Court against "abdicat[ing] its function as a court of review" and "complete[ly] revers[ing] . . . the normal and usual method of construing a statute").

In 1946, Congress put any question in this area to rest when it adopted the Administrative Procedure Act (APA). Despite sharp divisions along partisan lines, Congress passed the APA unanimously thanks to a "hard-fought compromise" based in part on proposals from Pound and the ABA. G. Shepherd, Fierce Compromise: The Administrative Procedure Act Emerges From New Deal Politics, 90 Nw. U. L. Rev. 1557, 1560, 1646–1647, 1649–1652 (1996). On the one hand, the APA allowed agencies to issue binding regulations and required courts to defer to agency factfindings. See 5 U. S. C. §§ 553, 556–557, 706(2)(E). On the other hand, the APA provided that courts "*shall decide all* relevant questions of law, interpret constitutional and statutory provisions, and determine the meaning or applicability of the terms of an agency action." § 706 (emphasis added); see also §§ 706(2)(A)–(C) (instructing courts to "hold unlawful and set aside" agency actions "not in accordance with law").

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In short, the APA appeared "unequivocally to instruct courts to apply independent judgment on all questions of law." T. Merrill, The *Chevron* Doctrine: Its Rise and Fall, and the Future of the Administrative State 47 (2022) (Merrill 2022). As a leading contemporary scholar of administrative law put it, the statute imposed a "clear mandate" for courts to decide questions of law "for [themselves] in the exercise of [their] own independent judgment." J. Dickinson, Administrative Procedure Act: Scope and Grounds of Broadened Judicial Review, 33 A. B. A. J. 434, 516 (1947). "More explicit words to impose this mandate could hardly be found." *Ibid.*

After the APA's passage, courts more or less followed this mandate faithfully for decades. As Justice Robert H. Jackson—himself an ardent New Dealer before joining the bench—explained, courts would respectfully *consider* Executive Branch interpretations of the law, but the weight courts afforded them "depend[ed] upon the[ir] thoroughness . . . , [their] consistency with earlier and later pronouncements, and all those factors which give [them] power to persuade." *Skidmore* v. *Swift & Co.*, 323 U. S. 134, 140 (1944); accord, *United States* v. *American Trucking Assns., Inc.*, 310 U. S. 534, 544 (1940) ("The interpretation of the

meaning of statutes, as applied to justiciable controversies, is exclusively a judicial function"). In fact, many prominent judicial opinions in the decades following the adoption of the APA never even *mentioned* Executive Branch interpretation of disputed statutory terms. See J. Beermann, End the Failed *Chevron* Experiment Now: How *Chevron* Has Failed and Why It Can and Should Be Overruled, 42 Conn. L. Rev. 779, 792 (2010).

As some tell it, *Chevron* effected a revolution in 1984. As the story goes, the decision overthrew all that came before and enshrined a new rule requiring courts to defer to Executive Branch interpretations of the law. No longer did executive officials have to be right about the law's meaning to prevail in court—all they had to do was point to some relevant statutory ambiguity or silence and avoid being egregiously wrong. The lower courts in this case adopted just this line of reasoning when they turned aside Mr. Buffington's appeal.

That view of *Chevron*, however, reads too much into too little. Doubtless, *Chevron* contained language that later courts would read as representing a "significant departur[e] from prior law." T. Merrill, The Story of *Chevron*: The Making of an Accidental Landmark, 66 Admin. L. Rev. 253, 255 (2014) (Merrill 2014). Most notably, *Chevron* included a passage musing that, "if [a] statute is silent or ambiguous with respect to [a] specific issue, the question for the court is whether the agency's answer is based on a permissible construction of the statute." 467 U. S., at 843. But *Chevron* also proceeded to *restate* the traditional rule: "If a court, employing traditional tools of statutory construction, ascertains that Congress had an intention on the precise question at issue, that intention is the law and must be given effect." *Ibid.*, and n. 9.

Tellingly, too, *Chevron* did not express disagreement with (let alone purport to overrule) precedents reciting the traditional rule that judges must exercise independent judgment about the law's meaning. Nor did the decision argue that the APA either tolerates or commands deference to Executive Branch views of the law. To the contrary, *Chevron* professed merely to apply "well-settled principles." *Id.*, at 845. Many of the cases *Chevron* cited to support its judgment stood only for the traditional proposition that courts afford respectful consideration, not deference, to executive interpretations of the law. See, *e. g.*, *Burnet*, 285

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U. S., at 16 ("The Court is not bound by an administrative construction, and if that construction is not uniform and consistent, it will be taken into account only to the extent that it is supported by valid reasons"); *United States* v. *Moore*, 95 U. S. 760, 762–763 (1878) (an executive interpretation that had "always heretofore obtained" was "entitled to the most respectful consideration"). And the decision's sole citation to legal scholarship, 467 U. S., at 843, was to Roscoe Pound, who long championed *de novo* judicial review. Pound 136–137.

If *Chevron* amounted to a revolution, it seems almost everyone missed it. The decision, issued by a bare quorum of the Court, sparked not a single word in concurrence or dissent. *Chevron*'s author, Justice Stevens, later characterized the decision as a "simpl[e] . . . restatement of existing law, nothing more or less." Merrill 2014, at 275, and n. 77. And in the "19 argued cases" in the following Term "that presented some kind of question about whether the Court should defer to an agency interpretation of statutory law," this Court cited *Chevron* just once. Merrill 2014, at 276. By many estimations, *Chevron* seemed "destined to obscurity." Merrill 2014, at 276.

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In truth, it took years for *Chevron* to morph into something truly revolutionary. Three years after *Chevron*, Justice Scalia wrote a concurrence that seized on its passing musings about deference and argued for a new rule requiring courts to defer to "reasonable" Executive Branch interpretations of the law whenever a "'statute is silent or ambiguous.'" *NLRB* v. *Food & Commercial Workers*, 484 U. S. 112, 133–134 (1987). Two years later, Justice Scalia continued his campaign in an academic article. See Judicial Deference to Administrative Interpretations of Law, 1989 Duke L. J. 511 (1989). Eventually, these efforts began to bear fruit as a majority of the Court came to embrace Justice Scalia's view. See Merrill 2022, at 93–94.

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Over time, however, experience has exposed grave problems with this expansive reconstruction of *Chevron*. So much so that even the initial champion of the project came to express a change of heart. Not only does reading *Chevron* so broadly badly stretch the terms of the original decision. Not only does it call on courts to depart from the terms of the APA and our longstanding and

never-overruled precedent. It also turns out to pose a serious threat to some of our most fundamental commitments as judges and courts.

In this country, we like to boast that persons who come to court are entitled to have independent judges, not politically motivated actors, resolve their rights and duties under law. Here, we promise, individuals may appeal to neutral magistrates to resolve their disputes about "what the law is." *Marbury* v. *Madison*, 1 Cranch 137, 177 (1803). Everyone, we say, is entitled to a judicial decision "without respect to persons," 28 U. S. C. § 453, and a "fair trial in a fair tribunal," *In re Murchison*, 349 U. S. 133, 136 (1955).

Under a broad reading of *Chevron*, however, courts often fail to deliver on all these promises. Rather than provide individuals with the best understanding of their rights and duties under law a neutral magistrate can muster, we outsource our interpretive responsibilities. Rather than say what the law is, we tell those who come before us to go ask a bureaucrat. In the process, we introduce into judicial proceedings a "systematic bias toward one of the parties." P. Hamburger, *Chevron* Bias, 84 Geo. Wash. L. Rev. 1187, 1212 (2016). Nor do we exhibit bias in favor of just any party. We place a finger on the scales of justice in favor of the most powerful of litigants, the federal government, and against everyone else. In these ways, a maximalist account of *Chevron* risks turning *Marbury* on its head.

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Overreading *Chevron* introduces still other incongruities into our law. Often we insist that it is a basic requirement of due process that "'no man can be a judge in his own case.'" *Williams* v. *Pennsylvania*, 579 U. S. 1, 8–9 (2016). As far back as *Calder* v. *Bull*, 3 Dall. 386 (1798), this Court recognized that it would be "against all reason" to "entrust a Legislature" with the power to "mak[e] a man a Judge in his own cause," and therefore "it cannot be presumed that [the people] have done it," *id.*, at 388 (opinion of Chase, J.) (emphasis deleted). Yet a broad reading of *Chevron* requires us to presume exactly that. So long as Executive Branch officials can identify a statutory ambiguity or silence, we must assume that the law permits them to judge the scope of their own powers and duties—at least so long as their decisions can be said to be "reasonable." See K. Saunders, Agency Interpretations and Judicial Review: A Search for Limitations on the Controlling Effect Given Agency Statutory Constructions, 30 Ariz. L. Rev. 769, 788–789 (1988).

Then there are the ancient doctrines of lenity and *contra proferentem*. From the founding, courts in this country have construed ambiguities in penal laws *against* the government and with lenity toward affected persons—here, we promise, our courts favor individual liberty, not prosecutors, prison time, and penal fines. See *Wooden* v. *United States*, 595 U. S. 360, 388–389 (2022) (GORSUCH, J., concurring in judgment). Traditionally, too, our courts have long and often understood that, "as between the government and the individual[,] the benefit of the doubt" about the meaning of an ambiguous law must be "given to the individual, not to authority; for the state makes the laws." *Lane* v. *State*, 120 Neb. 302, 232 N. W. 96, 98 (1930); see, *e. g.*, *Caldwell* v. *State*, 115 Ohio St. 458, 460–461, 154 N. E. 792, 793 (1926). A rule requiring judicial deference to executive interpretations of statutory laws—especially laws that carry both civil and criminal penalties for their violation (as so many do)—cannot be easily reconciled with either of these historic commitments.

A broad reconstruction of *Chevron* defies still other norms. When reading statutes, we insist that courts pay careful attention to text, context, and traditional tools of interpretation. We demand interpretations that comport with how a reasonable reader would have understood the law at the time of its adoption. See, *e. g.*, *New Prime Inc.* v. *Oliveira*, 586 U. S. 105, 113 (2019). A rule requiring us to suppose that statutory silences and ambiguities are both always intentional and always created by Congress to favor the government over its citizens fits with none of this. A rule like that is neither a traditional nor a reasonable way to read laws. It is a fiction through and through—and "one that requires a pretty hefty suspension of disbelief at that." *Gutierrez-Brizuela* v. *Lynch*, 834 F. 3d 1142, 1153 (CA10 2016) (Gorsuch, J., concurring).

Nor has the maximalist reading of *Chevron* even proven workable in practice. To this day, the federal government, *Chevron*'s biggest beneficiary, has yet to offer a coherent explanation for when a statute is sufficiently ambiguous to trigger deference. See, *e. g.*, Tr. of Oral Arg. in *American Hospital Assn.* v. *Becerra*, O. T. 2021, No. 20–1114, pp. 71–72 (Assistant to the Solicitor General: "I don't think I can give you an answer to th[e] question" of "[h]ow much ambiguity is enough"). Thanks to all this ambiguity about ambiguity, courts have pursued "wildly different" approaches. B. Kavanaugh, Fixing Statutory Interpretation, 129

Harv. L. Rev. 2118, 2152 (2016) (Kavanaugh). Along the way, too, *Chevron* has become pitted with exceptions and caveats—including for cases of "vast economic and political significance," *Utility Air Regulatory Group* v. *EPA*, 573 U. S. 302, 324 (2014) (internal quotation marks omitted), and those in which Congress has not delegated authority to an agency "to make rules with force of law," *United States* v. *Mead Corp.*, 533 U. S. 218, 237 (2001). Far from proving a clear and stable rule, the maximalist account of *Chevron* has left behind only a wake of uncertainty.

Overreading *Chevron* has profound consequences for how our government operates as well. It encourages executive officials to write ever more ambitious rules on the strength of ever thinner statutory terms, all in the hope that some later court will find their work to be at least marginally reasonable. When one administration departs and the next arrives, a broad reading of *Chevron* frees new officials to undo the ambitious work of their predecessors and proceed in the opposite direction with equal zeal. In the process, we encourage executive agents not to aspire to fidelity to the statutes Congress has adopted, but to do what they might while they can. See R. Pierce, The Combination of *Chevron* and Political Polarity Has Awful Effects, 70 Duke L. J. Online 91, 92 (2021).

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Consider the regulations before us. Some time ago, the VA promulgated a rule consistent with Congress's instructions, one providing that a veteran's disability benefits "may be resumed the day following [his] release from active duty." 26 Fed. Reg. 1599 (establishing 38 CFR § 3.654(b)). In the years that followed, Congress did not amend its laws in any relevant way. Yet agency officials proceeded to revise their rules anyway to place new burdens on veterans and make their own jobs easier. Expansive views of *Chevron* encourage and reward just these sorts of self-serving gambits.

Overreading *Chevron* holds still other consequences for the rule of law. When the law's meaning is never liquidated by a final independent judicial decision, when executive agents can at any time replace one reasonable interpretation with another, individuals can never be sure of their legal rights and duties. Instead, they are left to guess what some executive official might "reasonably" decree the law to be today, tomorrow, next year, or after the next election. "[E]very relevant actor may agree" that the agency's latest pronouncement does not represent best interpreta-

tion of the law, yet all the same each new iteration "carries the force of law." Kavanaugh 2151. Fair notice gives way to vast uncertainty.

Nor does everyone suffer equally. Sophisticated entities may be able to find their way. They or their lawyers can follow the latest editions of the Code of Federal Regulations—the compilation of Executive Branch rules that now clocks in at over 180,000 pages and sees thousands of further pages added each year. The powerful and wealthy can plan for and predict future regulatory changes. More than that, they can lobby agencies for new rules that match their preferences. Sometimes they can even capture the very agencies charged with regulating them. But what about ordinary Americans?

Today, administrative law doesn't confine itself to the regulation of large and sophisticated entities. Our administrative state "touches almost every aspect of daily life." *Free Enterprise Fund* v. *Public Company Accounting Oversight Bd.*, 561 U. S. 477, 499 (2010). And often it is ordinary individuals who are unexpectedly caught in the whipsaw of all the rule changes a broad reading of *Chevron* invites. Mr. Buffington's case illustrates the impact on disabled veterans. Those who left active service before the VA changed its rule received all their promised benefits; those who served later do not. Not because of any change in law, only a change in an agency's view. So many other individuals who interact with the federal government have found themselves facing similar fates—including retirees who depend on federal social security benefits, immigrants hoping to win lawful admission to this country, and those who seek federal health care benefits promised by law. See, *e. g.*, *Lambert* v. *Saul*, 980 F. 3d 1266, 1275–1276 (CA9 2020); *Valent* v. *Commissioner of Social Security*, 918 F. 3d 516, 525 (CA6 2019) (Kethledge, J., dissenting); *Gonzalez* v. *United States Atty. Gen.*, 820 F. 3d 399, 404–406 (CA11 2016) (*per curiam*); *Padilla-Caldera* v. *Holder*, 637 F. 3d 1140 (CA10 2011).

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With the passage of time, the problems with reading too much into *Chevron* have become widely appreciated. Even Justice Scalia reconsidered his earlier support for broad judicial deference to executive interpretations of the law. See *Decker* v. *Northwest Environmental Defense Center*, 568 U. S. 597, 617–618, 621 (2013) (opinion concurring in part and dissenting in part) (calling on the

Court to overrule the related *Auer* deference doctrine, which Justice Scalia had also pioneered); *Perez* v. *Mortgage Bankers* Assn., 575 U. S. 92, 109–110 (2015) (opinion concurring in judgment). Many other Members of this Court have expressly questioned *Chevron* maximalism. See, *e. g.*, *Pereira* v. *Sessions*, 585 U. S. 198, 219 (2018) (Kennedy, J., concurring); *Michigan* v. *EPA*, 576 U. S. 743, 760–764 (2015) (THOMAS, J., concurring); *Arlington* v. *FCC*, 569 U. S. 290, 312–328 (2013) (ROBERTS, C. J., dissenting); *Gutierrez-Brizuela*, 834 F. 3d, at 1153 (Gorsuch, J., concurring); Kavanaugh 2150–2156. The federal government itself now often waives or forfeits arguments for *Chevron* deference before this Court—and it does so even in cases that might have once seemed obvious candidates for the doctrine's application. See, *e. g.*, *HollyFrontier Cheyenne Refining, LLC* v. *Renewable Fuels Assn.*, 594 U. S. 382, 394 (2021) (because the government did not seek *Chevron* deference we "decline[d] to consider" it). As a result of these developments, this Court has not invoked the broad reading of *Chevron* in many years.

Lower federal courts have also largely disavowed the project. One recent survey revealed that a substantial majority of federal appellate judges disapprove of the broad reading of *Chevron* and avoid applying it when they can. See A. Gluck & R. Posner, Statutory Interpretation on the Bench: A Survey of Forty-Two Judges on the Federal Courts of Appeals, 131 Harv. L. Rev. 1298, 1312–1313 (2018). An extraordinary number of federal judges have written about the problems associated with reading *Chevron* broadly too. See, *e. g.*, *Egan* v. *Delaware River Port Auth.*, 851 F. 3d 263, 278 (CA3 2017) (Jordan, J., concurring in judgment); *Voigt* v. *Coyote Creek Mining Co.*, 980 F. 3d 1191, 1203–1204 (CA8 2020) (Stras, J., dissenting); *Valent*, 918 F. 3d, at 524 (Kethledge, J., dissenting); *United States* v. *Havis*, 907 F. 3d 439, 448–450 (CA6 2019) (Thapar, J., concurring), rev'd en banc, 927 F. 3d 382 (*per curiam*); *Carter* v. *Welles-Bowen Realty, Inc.*, 736 F. 3d 722, 729–736 (CA6 2013) (Sutton, J., concurring).

Other notable voices have also spoken. Several state courts have refused to import a broad understanding of *Chevron* in their own administrative law jurisprudence. See, *e. g.*, *Tetra Tech EC, Inc.* v. *Wisconsin Dept. of Revenue*, 2018 WI 75, ¶67, 382 Wis. 2d 496, 554–555, 914 N. W. 2d 21, 50; *Ellis-Hall Consultants* v. *Public Serv. Comm'n*, 2016 UT 34, ¶32, 379 P. 3d 1270, 1275; see generally L. Phillips, *Chevron* in the States? Not So Much, 89 Miss.

L. J. 313, 364 (2020) (observing that most States have declined to follow *Chevron*). Fifteen States have filed an *amici* brief in this case asking us to follow their lead. Brief for Indiana et al. as *Amici Curiae* on Pet. for Cert. 1. And courts in other countries that often consult American administrative law practices have declined to adopt the doctrine. See, *e. g.*, K. Barnett & L. Vinson, *Chevron* Abroad, 96 Notre Dame L. Rev. 621, 651 (2020) (under British law, an "error of law" is generally "subject to judicial review de novo"); M. Bernatt, Transatlantic Perspective on Judicial Deference in Administrative Law, 22 Colum. J. European L. 275, 312 (2016) ("[I]t is clear that there is no counterpart to the *Chevron* doctrine on the EU level"); E. Jordão & S. Rose-Ackerman, Judicial Review of Executive Policymaking in Advanced Democracies: Beyond Rights Review, 66 Admin. L. Rev. 1, 8 (2014).

Unsurprisingly given all this, the aggressive reading of *Chevron* has more or less fallen into desuetude—the government rarely invokes it, and courts even more rarely rely upon it. The Federal Circuit's decision at issue here is thus something of an outlier. And maybe that is a reason to deny review of this case. Maybe *Chevron* maximalism has died of its own weight and is already effectively buried. But even if all that's true, it offers little comfort for Mr. Buffington and the future veterans who will be forced to live with the VA's rule and the Federal Circuit's precedent. The same goes for other Americans who still find themselves caught in *Chevron*'s maw from time to time. No measure of silence (on this Court's part) and no number of separate writings (on my part and so many others) will protect them. At this late hour, the whole project deserves a tombstone no one can miss. We should acknowledge forthrightly that *Chevron* did not undo, and could not have undone, the judicial duty to provide an independent judgment of the law's meaning in the cases that come before the Nation's courts. Someday soon I hope we might.

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No. 21–993. ANTHONY *v.* LOUISIANA. Ct. App. La., 5th Cir. Certiorari denied. Reported below: 17–372 (La. App. 5 Cir. 12/30/20), 309 So. 3d 912.

JUSTICE SOTOMAYOR, with whom JUSTICE JACKSON joins, dissenting.

Petitioner Willard Anthony was charged with several counts related to sex trafficking. At trial, the State called two witnesses

who testified that they witnessed and experienced physical and sexual abuse by Anthony. Defense counsel sought to impeach these witnesses, who had been arrested but not charged with prostitution, by suggesting they may have negotiated a deal in exchange for their testimony. To rebut this suggestion, the State called as a witness the prosecutor who presented Anthony's case to the grand jury. The prosecutor's testimony, however, went far beyond that limited purpose. Spanning 70 transcript pages, and over defense counsel's repeated and vociferous objections and motions for mistrial, the grand jury prosecutor expressed his belief that Anthony was guilty beyond a reasonable doubt, referenced his own investigation and evidence outside of the record, testified that he believed the State's two witnesses were credible, and bolstered his own credibility by reiterating the sworn oath he took as a prosecutor. Anthony was subsequently convicted and sentenced to life without the possibility of parole.

The prosecutorial misconduct in this case is not only blatant and egregious, but a clear due process violation. The court below nonetheless held that admission of the prosecutor's testimony was harmless error. The court reached this holding after applying an incorrect harmless-error standard and disregarding compelling record evidence of prejudice. Because the court below clearly misapplied existing law in a manner that denies fundamental justice, I would summarily reverse.

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I

Willard Anthony was indicted by a grand jury in Jefferson Parish, Louisiana, on two counts of aggravated rape and one count each of human trafficking, aggravated battery, second-degree battery, and possessing a firearm as a felon. At trial, Anthony conceded his guilt to being a felon in possession of a gun and to second-degree battery. He denied, however, charges that he raped a woman known as C. W., that he forced either C. W. or another woman known as Lee to work as a prostitute, and that he ever attacked C. W. with a gun. To carry its burden of proving the remaining counts of aggravated rape, human trafficking, aggravated battery, and sexual battery, the State relied almost entirely on testimony from C. W. and Lee themselves.[1]

[1] The physical evidence in the record included C. W.'s vaginal swab, which did not exclude Anthony's profile; DNA evidence from Anthony's gun that did not exclude C. W.'s, Anthony's, or a codefendant's profile; and cell phone

Defense counsel sought to impeach and discredit those witnesses on cross-examination. Defense counsel pressed Lee on the fact that she had been arrested for prostitution and possession of cocaine, but that she had not been charged. Counsel asked "[y]ou certainly expect the District Attorney's Office to help you with [those potential charges], correct?" Tr. 53 (Dec. 10, 2016) (12/10 Tr.). Counsel also suggested that Lee had a motivation to curry favor with the prosecution, but Lee denied that she had made any deal with the district attorney's office in exchange for her testimony.[2]

After Lee testified, the State called as a witness Assistant District Attorney (ADA) Thomas Block, the prosecutor who presented Anthony's case to the grand jury, ostensibly to rebut defense counsel's inference that Lee had made an agreement with the district attorney's office in exchange for her testimony. Instead, ADA Block began his testimony by explaining grand jury procedures. He testified, over objection, that he had "an obligation not to present what [he] believe[d] to be perjure[d] testimony." *Id.*, at 95. ADA Block elaborated: "[T]he only evidence that I present to a grand jury would be evidence that would be legally admissible in a court of law. I have a responsibility based upon my oath that I have taken to be an Assistant District Attorney as well as an officer of the Court and I take my job very seriously." *Id.*, at 100.

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ADA Block then confirmed that his office did not file charges against Lee, but his testimony did not conclude there. The State asked ADA Block if he was aware of the information that the jury had already heard about Lee on her cross-examination, referring to the claim that Lee had worked as a prostitute and had been arrested for possessing cocaine. ADA Block testified, over objection, that he was aware of that information, as well as "police

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records that confirmed that Anthony had posted pictures of C. W. and Lee on the internet. This evidence was consistent with Anthony's testimony that he had consensual sex with C. W., that he posted advertisements of C. W., Lee, and Brittany Grisby with their consent, and that C. W. had handled his gun, which he left unattended.

[2] Later in the trial, after Assistant District Attorney (ADA) Thomas Block testified, the government called C. W. as a witness. Defense counsel similarly cross-examined C. W. on her prostitution history, her drug and alcohol use during the events about which she testified, her prior felony convictions, and her recent arrest on an outstanding Florida warrant.

reports and . . . interviews that the detectives had done" with Lee and with another woman, Brittany Grisby, who was arrested along with Lee and C. W., and who did not testify at the trial. *Id.*, at 104. Asked again why Lee or C. W. were not charged after they had been arrested, ADA Block testified, again over objection,[3] to the legal conclusion that "[Lee] has an affirmative defense to the charges of prostitution . . . insofar as she was a victim of human trafficking as a result of his actions, Willard Anthony's actions." *Id.*, at 105. Defense counsel moved for a mistrial, which the trial court denied.

The State then focused ADA Block on the drug charges and battery charges that were initially part of Lee's arrest. ADA Block acknowledged that Lee and Grisby both hit C. W., but opined, over repeated objections and a further motion for mistrial,[4] that he had met and interviewed C. W., and concluded that Lee and Grisby hit C. W. specifically "because they were told to do so by Willard Anthony and they recognized that if they did not comply with his demands to beat [C. W.] after he had already beaten her, that they themselves would have sustained beatings." *Id.*, at 110. Regarding cocaine found in a motel room occupied by Lee, Grisby, and C. W. when they were all arrested, ADA Block explained to the jury that he "knew based upon the investigation that the defendants . . . were using drugs as a means to get the three ladies or the three female victims to commit the crimes for them as it relates to the human trafficking. That was just one of the things that they used to gain control over the females." *Id.*, at 115.

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ADA Block confirmed that he had not made a deal with Lee, and reiterated that "as an officer of the Court and a representa-

[3] Here, defense counsel objected on the ground that ADA Block was "giving an opinion as to the credibility of Ms. Lee." 12/10 Tr. 106. Counsel explained: "[ADA Block] can't testify personally, his personal opinion based on this. You can't do that. I believe that's reversible error." *Id.*, at 107. The trial court overruled the objection.

[4] In one objection, defense counsel explained: "[ADA Block] can't sit here and comment on a witness' credibility before she's testified at this point. You can't, you can't support a witness like this. It's up to the jury to make that decision, not this man." *Id.*, at 112. The trial court overruled the objection. Defense counsel again moved for a mistrial, which the trial court also denied.

tive of the people of Jefferson Parish and the State of Louisiana," he had an obligation to decline charges that cannot be proved beyond a reasonable doubt. *Ibid.* When asked if ADA Block had tried to curry favor with Lee, he said no, and testified that Lee was "a victim." *Id.*, at 117. ADA Block reiterated that Lee did not receive a benefit from testifying, telling the jury that "[u]ltimately, she was going to have to come before you . . . and tell her story and then it would be up to you to determine whether or not you believed her." *Ibid.* Defense counsel raised an "ongoing objection." *Ibid.*

On cross-examination, defense counsel sought to question ADA Block about the limited and nonadversarial nature of grand jury proceedings, but the trial court sustained the State's objections to any questions involving the grand jury. At a bench conference, defense counsel argued that such questioning was necessary because ADA Block had vouched for the credibility of the State's witnesses, but the trial court disagreed, finding that ADA Block "testified as to what he has done regarding the [grand jury] screening process and the affirmative defenses available to these women." *Id.*, at 125. Defense counsel again moved for a mistrial, which the trial court again denied.

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On redirect, ADA Block reiterated that he did not bring charges against Lee or nontestifying witness Grisby because in his view "[t]hey were victims. They were witnesses to the abuse of [C. W.]." *Id.*, at 155. ADA Block testified that there was consistency between what Lee and Grisby had told him. Defense counsel objected once more, this time because Grisby had not testified at trial; the trial court once again overruled the objection. ADA Block continued: "I believe that [Lee and Grisby] have an affirmative defense. I believe that they were victims of Willard Anthony . . . on a human trafficking, sex trafficking enterprise. I believe that they were witnesses to the crimes that this defendant before you stands accused of." *Id.*, at 156. Seemingly addressing the jury directly, ADA Block testified: "I would never in good conscience bring charges against them for the reasons I have stated to you, ladies and gentlemen, today." *Ibid.* When asked by the State whether ADA Block would prosecute Lee or Grisby, ADA Block answered "I would not do that . . . for the reasons I've stated. They are victims of sex trafficking." *Id.*, at 158. ADA Block emphasized: "I have a responsibility and obli-

gation as an officer of the Court when I was sworn in in 1993 as a lawyer and then sworn in as a prosecutor to prosecute in good faith pursuant to the laws in the State of Louisiana and take only those cases that we can prove beyond a reasonable doubt." *Ibid.*

The State, in its closing argument, reminded the jury of ADA Block's testimony, asking (over defense counsel's objection, which the trial court overruled): "You understand why the charges were refused against Ms. Grisby and Ms. Lee? No back room deals. . . . There are no deals here." Tr. 256–258 (Dec. 11, 2016). The jury convicted Anthony on all counts, and the judge sentenced him to an aggregate life without the possibility of parole sentence.

II

The Court of Appeal of Louisiana, Fifth Circuit, vacated Anthony's convictions on direct appeal. The court recognized that "a prosecutor may assume the dual role of witness and advocate only under 'extraordinary circumstances.'" 2017–372, p. 15 (La. App. 5 Cir. 2/20/19), 266 So. 3d 415, 426. "The danger," the court observed, "is that the jury might give inordinate weight to the prosecutor's testimony." *Ibid.*

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Applying those principles here, the court concluded that "Mr. Block's testimony exceeded the scope permissible for a fair and impartial trial" in violation of Anthony's constitutional rights to due process and a fair trial. *Id.*, at 426–427. That was so, the court reasoned, because ADA Block "vouched for the credibility of the State witnesses," suggested that he "was aware of further evidence that was not presented to the jury," and "improperly commented on [Anthony's] guilt." *Id.*, at 427–428. ADA Block did so "while using the prestige and dignity of his office to bolster the State's case." *Id.*, at 427. The court accordingly found that ADA Block's testimony amounted to structural error because the testimony violated Anthony's right to a "presumption of innocence." *Id.*, at 430.

In a *per curiam* opinion, the Louisiana Supreme Court vacated and remanded the Court of Appeal's decision on the ground that the lower court should have applied harmless-error analysis, not the structural-error doctrine. On remand, Judge Liljeberg of the Court of Appeal, who had authored the prior opinion, recused himself on the ground that "the facts and merits of this particular

case were made a primary issue during [his] campaign for the Louisiana Supreme Court." App. to Pet. for Cert. 33a.[5]

In a split decision, the new Court of Appeal panel affirmed the conviction. All three judges agreed that Anthony's convictions for possession of a firearm and second-degree battery were valid. The majority upheld Anthony's other convictions, finding ADA Block's testimony to be harmless error. The majority reasoned that "the record shows that there was sufficient evidence to support defendant's convictions." 2017–372, p. 12 (La. App. 5 Cir. 12/30/20), 309 So. 3d 912, 923. In light of the "volume and strength of evidence introduced at trial in support of defendant's convictions," the majority concluded that ADA Block's testimony was harmless error. *Id.*, at 924.

Judge Wicker dissented. She began by cataloging the errors the trial court committed by permitting ADA Block's wide-ranging testimony, explaining that ADA Block "usurped the exclusive province of the jury to weigh the evidence, including the credibility of all witnesses"; "testified concerning evidence the State received from Brittany Grisby, a witness who did not testify at trial"; "bolstered the credibility of State's witnesses"; and "gave an opinion as to the ultimate issue of fact: the Defendant's guilt beyond a reasonable doubt." *Id.*, at 931. Judge Wicker concluded that ADA Block's testimony was "much more egregious" than cases in which a prosecutor made impermissible statements during closing argument, because ADA Block "was a sworn witness," presenting evidence "to be considered by the jury in its deliberations." *Id.*, at 944. Applying the proper harmless-error standard, Judge Wicker explained, there was a reasonable possibility the evidence complained of might have contributed to the conviction. *Id.*, at 945.

The Supreme Court of Louisiana declined a writ of certiorari, with Justice Hughes noting his dissent for the reasons stated by Judge Wicker. 2021–00176 (La. 10/12/21), 325 So. 3d 1067.

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[5] For instance, one TV advertisement against Judge Liljeberg charged that Judge Liljeberg had made a "'reckless decision'" favoring "'a monster'" (Anthony): "'It didn't matter the victim was beaten, strangled and forced into a prostitution ring . . . . Liljeberg still sided with the criminal. It was wrong.'" J. Simerman, Ad War Heats Up Louisiana Supreme Court Race With a Week to Go, NOLA.com (Nov. 9, 2019), https://www.nola.com/news/politics/elections/article_fb7e524e-0323-11ea-a4c9-1f07984fbd56.html.

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III

A

This Court has explained that prosecutorial misconduct may rise to a due process violation in different circumstances, including when a prosecutor "vouche[s] for the credibility of witnesses," *United States* v. *Robinson*, 485 U. S. 25, 33, n. 5 (1988), "express[es] his personal opinion concerning the guilt of the accused," *United States* v. *Young*, 470 U. S. 1, 18 (1985), or "suggest[s] by his questions that statements had been made to him personally out of court," *Berger* v. *United States*, 295 U. S. 78, 84 (1935). The ultimate question has been whether a prosecutor's conduct "so infected the trial with unfairness as to make the resulting conviction a denial of due process." *Donnelly* v. *DeChristoforo*, 416 U. S. 637, 643 (1974).

The Court in *Young* identified at least "two dangers" to help determine whether misconduct rises to the level of a due process violation. 470 U. S., at 18. First, a prosecutor may convey to the jury the impression that the prosecutor is aware of information, unknown to the jury, that suggests the defendant's guilt. *Ibid.* Second, the prosecutor's opinion may "carr[y] with it the imprimatur of the Government and may induce the jury to trust the Government's judgment rather than its own view of the evidence." *Id.*, at 18–19. When these dangers arise, they implicate due process because they "jeopardize the defendant's right to be tried solely on the basis of the evidence presented to the jury." *Id.*, at 18.

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This case involves all three examples of misconduct present in prior cases and presents both dangers discussed in *Young*. The Court of Appeal therefore correctly concluded, in its first decision, that ADA Block's testimony constituted a violation of Anthony's due process rights.[6] ADA Block vouched for C. W.'s and Lee's credibility, opining that they were victims of Anthony's crimes and imploring the jury that Lee "deserves respect." 12/10 Tr. 117. Most explicitly, ADA Block testified that C. W.'s and Lee's "statements were corroborated as to [Anthony's] actions," based upon his view of "the totality of the circumstances." *Id.*, at 140.

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[6] The Court need not, and does not, decide whether ADA Block's testimony constituted structural error.

ADA Block also repeatedly testified that he believed Anthony was guilty. He testified that he did not bring charges against Lee, C. W., or Grisby because he believed that they were victims of Anthony's sex trafficking. See *id.*, at 104–105 ("Based upon the actions of Willard Anthony," Lee had "an affirmative defense" because "she was a victim of human trafficking as a result of . . . Anthony's actions"). ADA Block further communicated his belief in Anthony's guilt by testifying that he had a responsibility to "take only those cases that we can prove beyond a reasonable doubt," unmistakably signaling his view that Anthony was guilty beyond a reasonable doubt. *Id.*, at 158. ADA Block directly testified: "I know that Willard Anthony assaulted [C. W.] with a handgun; threatened to kill her; beat her; strangled her; choked her to the point of unconsciousness." *Id.*, at 141.

ADA Block did not merely suggest that he knew of evidence that was not before the jury, he said so. ADA Block testified that in deciding to bring charges against Anthony, he had reviewed extra record police reports and interviews with Grisby, a witness who did not testify. He further testified that Grisby's out-of-trial interview corroborated the accounts of C. W. and Lee, the State's key witnesses. ADA Block's testimony thus informed the jury of outside evidence that bolstered the credibility of the State's witnesses. ADA Block also testified that he had personal knowledge, outside of the evidence admitted at trial, that Anthony "us[ed] drugs as a means" to lure women into prostitution. *Id.*, at 115.

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ADA Block made these comments while also invoking the *imprimatur* of his office. Several times he remarked on his "responsibility and obligation" as an officer of the court, *id.*, at 158, referencing the oath he took to become an assistant district attorney, *id.*, at 100. More disturbingly, he did so as a sworn witness. In the context of closing arguments, where the prosecutor is clearly speaking as an advocate, courts give prosecutors some leeway to comment on the evidence. Even in that context, however, "it is the height of summation misconduct for a prosecutor to argue to the jury his personal opinion as to a defendant's guilt." *Bellamy* v. *New York*, 914 F. 3d 727, 763 (CA2 2019); see also *Robinson*, 485 U. S., at 33, n. 5. This context is more serious. ADA Block appeared before the jury as a sworn witness, presenting evidence that could be considered in the jury's deliberations.

In that capacity, while underscoring his obligation as a prosecutor, ADA Block told the jury that he personally believed in the credibility of the State's witnesses, that Anthony was guilty, and that other evidence outside of the record confirmed Anthony's guilt.

B

Finding that ADA Block's testimony rose to the level of a due process violation does not end the matter, because constitutional errors may nevertheless be harmless. In assessing whether this error was harmless, however, the Court of Appeal of Louisiana applied a standard that is contrary to settled precedent. The majority below found the error harmless because "[t]he evidence at trial supports defendant's convictions, even excluding Mr. Block's testimony." 309 So. 3d, at 922. At no point did the majority consider the specific effect of ADA Block's testimony on the jury's verdict, except as to one passing reference asserting that the two convictions to which Anthony confessed (which are no longer at issue) "were surely unattributable to any alleged error in admitting Mr. Block's testimony." *Ibid.* In other words, the majority's reasoning with respect to the contested counts of conviction was based solely on the sufficiency of the evidence that remained after excising ADA Block's testimony.

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This Court has repeatedly repudiated such an approach. As a species of harmless-error review generally, review of constitutional error in a criminal trial does not ask an appellate court to assess "whether, in a trial that occurred without the error, a guilty verdict would surely have been rendered." *Sullivan* v. *Louisiana*, 508 U. S. 275, 279 (1993); see also *Kotteakos* v. *United States*, 328 U. S. 750, 765 (1946) (holding, as a general matter, that the harmless-error inquiry "cannot be merely whether there was enough to support the result, apart from the phase affected by the error"). Instead, *Chapman* v. *California*, 386 U. S. 18 (1967), requires that the government bear the burden of proving "beyond a reasonable doubt that the error complained of did not contribute to the verdict obtained," *id.*, at 24, with the appellate court focusing on "the guilty verdict actually rendered in *this* trial," *Sullivan*, 508 U. S., at 279. "That must be so, because to hypothesize a guilty verdict that was never in fact rendered—no matter how inescapable the findings to support that verdict might be—would violate the jury-trial guarantee." *Ibid.*

Although the court below correctly recognized that the *Chapman* standard governed, see 309 So. 3d, at 922, it failed to apply the proper standard, as Judge Wicker explained. First, and most obviously, the court did not assess "what effect [the error] had upon the guilty verdict in the case at hand." *Sullivan*, 508 U. S., at 279. The court failed to ask, let alone attempt to answer, the core question: What effect did ADA Block's extensive testimony, including his wide-ranging commentary on and vouching for the State's evidence and testimony and his references to extra record evidence, have on the jury's deliberations? That inquiry, the Court has explained time and again, is the core of assessing harmless error. See, *e. g.*, *Yates* v. *Evatt*, 500 U. S. 391, 408 (1991) (harmless-error analysis requires determining whether the error "contributed to the jury's verdict"); *Arizona* v. *Fulminante*, 499 U. S. 279, 296 (1991) (analyzing harmless error by asking whether the error "contribute[d] to [the defendant's] conviction"); *Harrington* v. *California*, 395 U. S. 250, 254 (1969) (harmless-error analysis "must be based on our own reading of the record and on what seems to us to have been the probable impact of the [error] on the minds of an average jury"); *Chapman*, 386 U. S., at 23–24 ("An error in admitting plainly relevant evidence which possibly influenced the jury adversely to a litigant cannot . . . be conceived of as harmless"); *Fahy* v. *Connecticut*, 375 U. S. 85, 86–87 (1963) ("We are not concerned here with whether there was sufficient evidence on which the petitioner could have been convicted without the evidence complained of. The question is whether there is a reasonable possibility that the evidence complained of might have contributed to the conviction").

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Instead of heeding this precedent, the court below imagined a hypothetical trial where the grand jury prosecutor did not testify, and concluded that sufficient evidence supported conviction. That is exactly the inquiry that this Court's harmless-error cases forbid.

C

Under the correct standard, ADA Block's testimony was clearly not harmless error. By using the weight of his office to vouch for and validate the State's evidence, and by opining on the conclusions to be drawn from that evidence, ADA Block's testimony created a legitimating lens through which the jury was invited to view the entirety of the State's case. It is thus impossible to say

beyond a reasonable doubt that his pervasive testimony did not contribute to the jury's verdict. Three instances in particular illustrate how fully his testimony colored the jury's deliberations.

Consider first Anthony's human trafficking conviction. The court below found harmless error as to this conviction because "the undisputed testimony established that C. W. attempted to escape from defendant [once in Louisiana]." 309 So. 3d, at 922. Even assuming that is true, however, the court overlooked that the Louisiana crime of human trafficking for commercial sexual activity, as it then existed, had additional elements. Specifically, an individual had to defraud, force, or coerce the victim into providing sexual services for value gained. See La. Rev. Stat. Ann. § 14:46.2 (West 2014) (effective Aug. 1, 2014, to July 31, 2016). The trial testimony related to this element was far from decisive. Lee testified that she and Grisby were not forced into prostitution, Tr. 335–336 (Dec. 9, 2016), and C. W. acknowledged a history of voluntary prostitution, Tr. 63 (Dec. 11, 2016).

ADA Block's testimony, however, left no ambiguity on the matter. He repeatedly stated that the women were "victims of Willard Anthony . . . on a human trafficking, sex trafficking enterprise." 12/10 Tr. 156. Indeed, he cited this fact to explain why Lee and Grisby were not charged for participating in C. W.'s beating. *Ibid.* It is impossible to conclude that these remarks and others by ADA Block did not sway the jury to convict Anthony of human trafficking.

Consider next Anthony's conviction for aggravated battery with a handgun. While Anthony admitted beating C. W., he denied using his handgun to do so. Tr. 207 (Dec. 11, 2016). Lee, who was there for the beating, could not recall whether Anthony had his gun out. Tr. 317 (Dec. 9, 2016). ADA Block, however, boldly testified "I know that Willard Anthony assaulted [C. W.] with a handgun." 12/10 Tr. 141. Surely, this testimony was not harmless.

Finally, consider Anthony's convictions for aggravated rape. The jury instructions included a number of lesser included offenses as alternative verdicts. Record 319–322. A showing of prejudice here thus requires only reasonable doubt as to whether ADA Block's testimony contributed to the jury's decision to convict Anthony of aggravated rape, as opposed to a lesser included offense. The court below overlooked this critical point in its analysis. The omission is especially concerning given ADA Block's

repeated testimony that a prosecutor would not charge an offense unless there was enough evidence to convict. In one characteristic remark, he explained: "[Y]ou have to meet the elements of the offense in order to charge the person and each and every element of the offense must be met beyond a reasonable doubt . . . . If the evidence shows that the elements are not there . . . then I have a responsibility and an obligation not to charge someone with a crime." 12/10 Tr. 103–104. There is a reasonable possibility that this and other similar statements influenced the jury's decision to convict Anthony of the most aggravated offenses with which he was charged.

D

Our criminal justice system holds prosecutors to a high standard. The prosecutor is "the representative not of an ordinary party to a controversy, but of a sovereignty." *Berger*, 295 U. S., at 88. From that special role, "improper suggestions, insinuations and, especially, assertions of personal knowledge are apt to carry much weight against the accused when they should properly carry none." *Ibid.* It is an inescapable truth that the "power and force of the government tend to impart an implicit stamp of believability to what the prosecutor says." *Hall* v. *United States*, 419 F. 2d 582, 583–584 (CA5 1969).

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These principles demand careful scrutiny of the rare cases in which a prosecutor takes the stand as a sworn witness in a jury trial. Because this case presents one of the most egregious instances of prosecutorial testimony amounting to prosecutorial misconduct, I respectfully dissent from the Court's refusal to issue a summary reversal.

No. 21–1410. CLENDENING, AS PERSONAL REPRESENTATIVE OF THE ESTATE OF CLENDENING *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 19 F. 4th 421.

JUSTICE THOMAS, dissenting.

While stationed at Camp Lejeune, Gary Clendening allegedly was exposed to toxins and contaminated water. He later died of leukemia. Gary's widow, petitioner Carol Clendening, then filed this tort suit against the United States. For most plaintiffs like Carol, the Federal Tort Claims Act (FTCA) waives the United States' sovereign immunity and allows for recovery. Nevertheless, the District Court determined that Carol's suit was barred by *Feres* v. *United States*, 340 U. S. 135 (1950), which held that

military personnel cannot sue the United States for any injury "incident to military service," *id.*, at 144, even if the FTCA would otherwise allow the suit. Affirming, the Court of Appeals noted that "criticism of the *Feres* doctrine abounds," but it "'le[ft] to [this] Court the prerogative of overruling its own decisions.'" 19 F. 4th 421, 431 (CA4 2021).

We should accept the invitation. As I have explained several times, *Feres* should be overruled. The FTCA "'renders the United States liable to *all* persons, including servicemen, injured by the negligence of Government employees.'" *Lanus* v. *United States*, 570 U. S. 932 (2013) (opinion dissenting from denial of certiorari) (quoting *United States* v. *Johnson*, 481 U. S. 681, 693 (1987) (Scalia, J., dissenting)). The Act expressly excepts only a specific class of military-related claims: those "arising out of . . . combatant activities . . . during time of war." 28 U. S. C. § 2680(j). Nothing in the Act bars suits by servicemen based on their military status alone. *Doe* v. *United States*, 593 U. S. 979, 979–980 (2021) (THOMAS, J., dissenting from denial of certiorari). Yet, in *Feres*, this Court invented an atextual, policy-based carveout that prevents servicemen from taking advantage of the FTCA's sweeping waiver of sovereign immunity. *Feres* "'heartily deserves the widespread, almost universal criticism it has received.'" *Lanus*, 570 U. S., at 933 (opinion of THOMAS, J.) (quoting *Johnson*, 481 U. S., at 700 (Scalia, J., dissenting)); see also J. Turley, *Pax Militaris*: The *Feres* Doctrine and the Retention of Sovereign Immunity in the Military System of Governance, 71 Geo. Wash. L. Rev. 1, 68 (2003) ("At a minimum, *Feres* represented a total departure from principles of judicial restraint and deference to the political branches"). I write yet again to highlight the consequences of this Court's refusal to reconsider *Feres*.

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The lower courts' attempts to apply *Feres*' "incident to military service" standard are marked by incoherence. One might be surprised to learn, for example, that a serviceman's exposure to excessive carbon monoxide at Fort Benning is not incident to service, *Elliott* v. *United States*, 13 F. 3d 1555, 1556–1557 (CA11 1994),[1] but exposure to contaminated drinking water at Camp Lejeune is, *Gros* v. *United States*, 232 Fed. Appx. 417, 418–419

[1] In *Elliott*, rehearing en banc was granted and the panel opinion vacated, 28 F. 3d 1076; the en banc court then affirmed the result by an equally divided vote, 37 F. 3d 617 (*per curiam*).

(CA5 2007) (*per curiam*).[2] Or that the dissemination of personal materials stored on a military base by fellow servicemen is not incident to service, *Lutz* v. *Secretary of the Air Force*, 944 F. 2d 1477, 1478–1479 (CA9 1991), but a West Point cadet's *rape* by a fellow cadet is, *Doe* v. *Hagenbeck*, 870 F. 3d 36, 44–49 (CA2 2017).

Far from limiting *Feres*, this Court "'has embarked on a course dedicated to broadening the *Feres* doctrine to encompass, at a minimum, *all* injuries suffered by military personnel that are even remotely related to the individual's *status* as a member of the military.'" 19 F. 4th, at 428. This expansion has led to further distortion and incoherence in our jurisprudence. Take, for example, *Air & Liquid Systems Corp.* v. *DeVries*, 586 U. S. 446 (2019). There, manufacturers provided the Navy with asbestos-free equipment—to which *the Navy* subsequently added asbestos, allegedly causing cancer in servicemen-decedents. See *Daniel* v. *United States*, 587 U. S. 1020, 1021 (2019) (THOMAS, J., dissenting from denial of certiorari). Yet the Navy's immunity under *Feres* led us to "twis[t] traditional tort principles" to allow for recovery against the manufacturers. *Daniel*, 587 U. S., at 1021. The force of *Feres* thereby distorts even longstanding principles of tort law. *E. g.*, *Sebright* v. *General Elec. Co.*, 525 F. Supp. 3d 217, 241 (Mass. 2021) (significantly limiting a sophisticated-purchaser defense because, under *Feres*, the serviceman-plaintiff "might not have recourse against anyone other than equipment manufacturers").

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Further, *Feres*' professed concern with military discipline is anomalous, if not downright hypocritical, against the backdrop of military law more generally. We preclude run-of-the-mill tort claims that are "remotely related" to military status because of their potential to undermine military discipline.[3] But we have "never held . . . that military personnel are barred from all redress in civilian courts for constitutional wrongs suffered in the course of military service." *Chappell* v. *Wallace*, 462 U. S. 296, 304 (1983). To the contrary, servicemen "routinely sue their gov-

[2] The Camp Lejeune Justice Act of 2022, Pub. L. 117–168, § 804, 136 Stat. 1802–1804, does not alter the availability of recovery under the FTCA. Rather, the Act provides an alternative remedy to the FTCA that presupposes multiple routes to recovery. See § 804(e)(1), *id.*, at 1803. It is also much narrower in scope than the FTCA.

[3] "[W]e have repeatedly cited the later-conceived-of 'military discipline' rationale as the 'best' explanation for" *Feres*. *United States* v. *Johnson*, 481 U. S. 681, 698 (1987) (Scalia, J., dissenting).

ernment and bring military decision-making and decision-makers into court" seeking injunctive relief. Turley, 71 Geo. Wash. L. Rev., at 21. For example, we recently left in place an injunction that dictated personnel decisions to the Navy. *Austin* v. *U. S. Navy Seals*, 595 U. S. 1300 (2022) (partially staying injunction that prevents Navy from taking any adverse personnel actions against Navy SEAL plaintiffs, but only "insofar as it precludes the Navy from . . . making deployment, assignment, and other operational decisions"). Apparently, the Court cares about the chain of command when considering money-damages suits against the Government, but our concerns evaporate when servicemen seek injunctions against their superior officers' personnel decisions.

That is completely backwards. "Injunctions and regulations tell people what they must do and what they must not do, and it is *these* types of intrusions that would entangle courts in military affairs." *Taber* v. *Maine*, 67 F. 3d 1029, 1048 (CA2 1995). By contrast, "[t]ort judgments do neither of these things." *Ibid.*; see also *Johnson*, 481 U. S., at 700 (Scalia, J., dissenting) ("[P]erhaps Congress assumed that, since liability under the FTCA is imposed upon the Government, and not upon individual employees, military decisionmaking was unlikely to be affected greatly"). If military discipline is not sufficiently harmed by judicial decisions countermanding military personnel choices, it is difficult to see how *Feres*' concern with preserving the chain of command has any validity.[4]

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It would be one thing if Congress itself were responsible for this incoherence. But Congress set out a comprehensive scheme waiving sovereign immunity that we have disregarded in the military context for nearly 75 years. Because we caused this chaos, it is our job to fix it.

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[4] The courts below held that one of Clendening's claims survived *Feres* but was barred under the FTCA's textual discretionary-function exception. See 19 F. 4th 421, 432–436 (CA4 2021); 28 U. S. C. § 2680(a). The FTCA's specific exceptions could mitigate the discipline concerns driving the maintenance of *Feres*' atextual "incident to military service" exception. See *Johnson*, 481 U. S., at 699–700 (Scalia, J., dissenting) ("[P]erhaps Congress assumed that the FTCA's explicit exclusions would bar those suits most threatening to military discipline, such as claims based upon combat command decisions, 28 U. S. C. § 2680(j); claims based upon performance of 'discretionary' functions, § 2680(a); claims arising in foreign countries, § 2680(k); intentional torts, § 2680(h); and claims based upon the execution of a statute or regulation, § 2680(a)").

No. 21–1553. KHORRAMI *v.* ARIZONA. Ct. App. Ariz. Certiorari denied. JUSTICE KAVANAUGH would grant the petition for writ of certiorari.

JUSTICE GORSUCH, dissenting.

The State of Arizona convicted Ramin Khorrami of serious crimes before an 8-member jury. On appeal, Mr. Khorrami sought a new trial, arguing that the Sixth and Fourteenth Amendments of the U. S. Constitution guarantee individuals like him a trial before 12 members of the community. The Arizona Supreme Court rejected the appeal, explaining that it considered itself bound by *Williams* v. *Florida*, 399 U. S. 78 (1970). There, for the first time and in defiance of centuries of precedent, this Court held that a 12-member panel "is not a necessary ingredient" of the Sixth Amendment right to trial by jury. *Id.*, at 86. In his petition for certiorari, Mr. Khorrami asks us to reconsider *Williams*. Regrettably, the Court today declines to take up that task. *Williams* was wrong the day it was decided, it remains wrong today, and it impairs both the integrity of the American criminal justice system and the liberties of those who come before our Nation's courts.

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Presently, the laws in 44 States entitle individuals charged with serious crimes to a trial before a 12-member jury. Only 6 States, Arizona included, tolerate smaller panels—and it is difficult to reconcile their outlying practices with the Constitution. The Sixth Amendment protects the "right to a speedy and public trial, by an impartial jury." And a mountain of evidence suggests that, both at the time of the Amendment's adoption and for most of our Nation's history, the right to a trial by jury for serious criminal offenses *meant* a trial before 12 members of the community—nothing less.

Start with this. We often say that "[t]he interpretation of the Constitution of the United States is necessarily influenced by the fact that its provisions are framed in the language of the English common law, and are to be read in the light of its history." *Smith* v. *Alabama*, 124 U. S. 465, 478 (1888). And while scholars may debate the precise moment when the common-law jury came to be fixed at 12 members, this much is certain: By the time of the Sixth Amendment's adoption, the 12-person criminal jury was "an institution with a nearly four-hundred-year-old tradition in Eng-

land." R. Miller, Comment, Six of One Is Not a Dozen of the Other: A Reexamination of *Williams v. Florida* and the Size of State Criminal Juries, 146 U. Pa. L. Rev. 621, 643 (1998) (Miller). In 1769, Blackstone stated the rule succinctly: No person could be found guilty of a serious crime unless "the truth of every accusation [was] confirmed by the unanimous suffrage of twelve of his equals and neighbours." 4 Commentaries on the Laws of England 343. In the 1790s, James Wilson, both a framer of the Constitution and a Justice of this Court, explained the common-law rule this way: "[T]he unanimous sentiment of the twelve jurors is of indispensable necessity" to "the conviction of a crime." Of Juries, in 2 Collected Works of James Wilson 985 (K. Hall & M. Hall eds. 2007).

From the moment it was adopted, the Sixth Amendment was widely understood to protect this ancient right. In the first few decades following the Amendment's ratification, a "flurry" of state courts interpreted the phrase "trial by an impartial jury" to require the use of a 12-person panel. Miller 643, and n. 133 (collecting cases). A host of state courts pursued the same understanding through the balance of the 19th century. Pet. for Cert. 11–12 (collecting cases). The third edition of Story's Commentaries on the Constitution likewise stated that "a trial by jury *is* . . . a trial by a jury of *twelve*. . . . Any law therefore, dispensing with [this] requisit[e] may be considered unconstitutional." 2 Commentaries on the Constitution of the United States § 1779, p. 588, and n. 3 (3d ed. 1858) (second emphasis in original).

Later American treatises echoed the same refrain. One said that a criminal jury means "a body of twelve. . . . Any less than this number of twelve would not be a common-law jury, and not such a jury as the [C]onstitution preserves to accused parties." T. Cooley, Constitutional Limitations 319 (1868). Another observed that "a jury of less than twelve . . . is not a jury; and a statute authorizing a jury of less, in a case in which the Constitution guarantees a jury trial, is void." 1 J. Bishop, Criminal Procedure § 897, p. 546 (2d ed. 1872). A third taught that, "where the record shows that the cause was tried by a jury of less than twelve men, the trial will be held to be a nullity." S. Thompson & E. Merriam, Organization, Custody and Conduct of Juries § 6, p. 6 (1882).

Nor was this view confined to lower courts and commentators. This Court first addressed the question of jury composition in

1898 when it overturned an 8-person verdict from Utah. *Thompson* v. *Utah*, 170 U. S. 343. Speaking for the Court, Justice Harlan could not have been plainer: "[T]he jury referred to in the original Constitution and in the Sixth Amendment is a jury constituted, as it was at common law, of twelve persons, neither more nor less." *Id.*, at 349. In support of his conclusion, Justice Harlan stressed that "the words 'trial by jury' were placed in the Constitution of the United States with reference to the meaning affixed to them in the law as it was in this country and in England at the time of the adoption of that instrument." *Id.*, at 350.

A year later the Court returned to the area adding that a trial by jury "in the primary and usual sense of the term at the common law and in the American constitutions, is . . . a trial by a jury of twelve." *Capital Traction Co.* v. *Hof*, 174 U. S. 1, 13 (1899). A year later still, the Court professed "no doubt" that "a jury composed, as at common law, of twelve jurors was intended by the Sixth Amendment." *Maxwell* v. *Dow*, 176 U. S. 581, 586 (1900). Five years after that, the Court repeated and reaffirmed *Thompson*'s holding that the Sixth Amendment guarantees "'the right to be tried by a jury of twelve.'" *Rassmussen* v. *United States*, 197 U. S. 516, 527 (1905).

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By 1930, the Court declared that it was "not open to question" that the right to trial by jury for serious criminal offenses "means a trial by jury as understood and applied at common law," including the element that it "should consist of twelve" members. *Patton* v. *United States*, 281 U. S. 276, 288. Nor was the Court open to even slight deviations from this rule: "To uphold the voluntary reduction of a jury from twelve to eleven upon the ground that the reduction—though it destroys the jury of the Constitution—is only a slight reduction, is not to interpret that instrument but to disregard it." *Id.*, at 292. In 1968, the Court seemingly acknowledged all this, quoting Blackstone once more for the principle that "'the truth of every accusation'" must be proved to "'twelve of [the accused's] equals and neighbours.'" *Duncan* v. *Louisiana*, 391 U. S. 145, 151–152.

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Decided against this backdrop, *Williams* was an anomaly the day it issued in 1970. The decision upheld a Florida law permitting the use of 6-member juries in cases involving serious criminal accusations. In doing so, the decision contravened the Sixth

Amendment's original meaning and hundreds of years of precedent in both common-law courts and this one. Nor are the three most essential moves *Williams* made to reach its result remotely persuasive.

First, *Williams* sought to sidestep any serious inquiry into the "'intent of the Framers'" of the Sixth Amendment on the ground that their motivations were an "elusive quarry." 399 U. S., at 92. To prove its point, *Williams* observed that James Madison's initial draft guaranteed a jury trial with its "'accustomed requisites,'" but the Senate later dropped this qualifying language. *Id.*, at 94–95. According to the *Williams* majority, Madison's draft surely would have carried with it a guarantee of a 12-member jury, for that was an "accustomed requisite" of criminal trials at common law. *Id.*, at 95–96. But the Senate's editorial change made it at least "plausible" to infer that some Senators may have "intended" to abandon the traditional 12-person rule. *Id.*, at 97.

This argument proves too much. Even *Williams* acknowledged that the bit of drafting history it cited might just as easily support the *opposite* inference it drew. After all, it is equally possible from all we know that Senators omitted the phrase "accustomed requisites" because they understood the right to trial by jury *as* a trial before 12 members of the community and saying anything more risked confusion or surplusage. *Ibid.*; see also *Ramos* v. *Louisiana*, 590 U. S. 83, 97 (2020). Recognizing this point, we have since explained that, "rather than dwelling on text [the Senate] left on the cutting room floor, we are much better served by interpreting the language Congress retained and the States ratified." *Ramos*, 590 U. S., at 98. And when it comes to *that* question, the answer is not nearly so elusive. Whatever the private intentions of the Senate editors, plenty of evidence exists about the original public meaning of the Sixth Amendment—and that evidence strongly indicates that the right to criminal trial by jury meant nothing less than a trial before 12 members of the community.

Second, *Williams* not only had to sidestep evidence of original meaning to reach its result, it also had to find some way around a battery of this Court's precedents stretching from 1898 to 1968. To accomplish that, *Williams* tersely dismissed the teachings of all these cases as "dict[a]." 399 U. S., at 91–92. But that move, too, undersells history. As we've seen, long before *Williams* this Court stated unequivocally that "the jury referred to in the origi-

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nal Constitution and in the Sixth Amendment is a jury constituted, as it was at common law, of twelve persons." *Thompson*, 170 U. S., at 349. This Court expressed "no doubt" that the Sixth Amendment right to a trial by jury means "a jury composed, as at common law, of twelve." *Maxwell*, 176 U. S., at 586. The Court did not consider the matter "open to question." *Patton*, 281 U. S., at 288. To the contrary, the Court said that even "slight reduction[s]" in the size of juries would not be consistent with a fair "interpret[ation]" of the Sixth Amendment but amount to a "disregard [of] it." *Id.*, at 292. As Justice John Marshall Harlan II highlighted in his separate writing in *Williams*, this extensive line of decisions long ago liquidated the meaning of the Sixth Amendment: "[B]efore today it would have been unthinkable to suggest that the Sixth Amendment's right to a trial by jury is satisfied" by anything less than trial before a panel of 12 members. 399 U. S., at 122 (Harlan, J., concurring).

Third, after giving short shrift to original meaning and precedent, *Williams* still had to construct an affirmative case for permitting 6-member juries. To do so, *Williams* first posited that the ancient 12-member jury rule "rest[s] on little more than mystical or superstitious insights." *Id.*, at 88. Next, *Williams* suggested that 6-member juries would "probably" function just as well when it comes to ensuring thoughtful "group deliberation . . . and . . . provid[ing] a fair possibility for obtaining a representative cross-section of the community." *Id.*, at 100. Even *Williams* had to concede, however, that "few experiments" and little evidence existed to support its claims. *Id.*, at 101. In the end, the best *Williams* could say was that, as of 1970, "neither currently available evidence nor theory" had yet proved that a 12-person jury "is necessarily more advantageous" than a 6-member panel. *Id.*, at 101–102.

None of this supplies a sound basis for judicial tinkering with an ancient tradition. As the Court in *Patton* wrote almost a century ago, "[i]t is not our province to measure the extent to which the Constitution has been contravened and ignore the violation, if in our opinion, it is not, relatively, as bad as it might have been." 281 U. S., at 292. Or as we put the point more recently: "When the American people chose to enshrine [the jury trial] right in the Constitution, they weren't suggesting fruitful topics for future cost-benefit analyses. They were seeking to ensure that their children's children would enjoy the same hard-won lib-

erty they enjoyed." *Ramos*, 590 U. S., at 100. "As judges, it is not our role to reassess whether" the same jury-trial right that Americans enjoyed at the founding "is 'important enough' to retain. With humility, we must accept that th[e] right may serve purposes evading our current notice. We are entrusted to preserve and protect that liberty, not balance it away aided by no more than social statistics." *Ibid.*

Even taken on their own terms, *Williams*'s functionalist claims have not aged well. Before the ink dried on the decision, scholars began criticizing *Williams* for overreading the handful of studies it cited to support its tepid assertion that 6-member panels would "probably" operate as well as 12-member juries. See, *e. g.*, H. Zeisel, . . . And Then There Were None: The Diminution of the Federal Jury, 38 U. Chi. L. Rev. 710, 712–715 (1971). And just 8 years later in *Ballew* v. *Georgia*, 435 U. S. 223 (1978), this Court found itself confronted with more "recent empirical data." *Id.*, at 232–233 (opinion of Blackmun, J.). As *Ballew* acknowledged, this new data *did* suggest that "smaller juries are less likely to foster effective group deliberation," and *did* "raise doubts about the accuracy of the results achieved by . . . smaller panels." *Id.*, at 232–234. As *Ballew* admitted, the new data also suggested that "as juries become smaller" the "variance [redounds] to the detriment of one side, the defense." *Id.*, at 236. Smaller juries, too, this new research found, are less likely to include members of "minority groups," and thus threaten to deprive defendants of a fair possibility of obtaining a jury composed of a representative cross-section of the community. *Id.*, at 236–237. While *Ballew* declined to overrule *Williams* outright, it refused to extend the decision to permit the use of 5-member juries—and in the process it effectively undermined the entire functionalist rationale on which *Williams* rested.

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An array of studies in the years since *Ballew* has done more of the same. These studies suggest that 12-member juries deliberate longer, recall information better, and pay greater attention to dissenting voices. See, *e. g.*, M. Saks & M. Marti, A Meta-Analysis of the Effects of Jury Size, 21 Law & Hum. Behav. 451, 455–466 (1997). This research continues to suggest that smaller juries are less likely to include minorities. See, *e. g.*, *id.*, at 455–457; S. Diamond et al., Achieving Diversity on the Jury: Jury Size and the Peremptory Challenge, 6 J. Empirical Legal Studies 425, 442 (2009) (summarizing the results of one study: "While 28.1

percent of the six-member juries lacked even one black juror, only 2.1 percent of the 12-member juries were entirely without black representation"). And this research suggests that the absence of minorities can have a striking effect on outcomes. According to one study, "there is a significant gap in conviction rates for black versus white defendants when there are no blacks in the jury pool," while "the gap in conviction rates for black versus white defendants is eliminated" when there is at least one black member of the jury pool. S. Anwar et al., The Impact of Jury Race in Criminal Trials, 127 Q. J. Econ. 1017, 1019–1020, 1034–1035 (2012); see also S. Sommers & P. Ellsworth, How Much Do We Really Know About Race and Juries? A Review of Social Science Theory and Research, 78 Chi.-Kent L. Rev. 997, 1028–1029 (2003) (discussing an experiment showing that "White jurors on racially mixed juries were less likely to vote to convict [a] Black defendant than White jurors on all-White juries").

Nor should we need a barrage of statistical studies to tell us this much. During the Jim Crow era, some States restricted the size of juries and abandoned the demand for a unanimous verdict as part of a deliberate and systematic effort to suppress minority voices in public affairs. See, *e. g.*, La. Const., Art. 116 (1898); *Ramos*, 590 U. S., at 87–89, (observing that the 1898 Louisiana Constitution allowed 5-member juries and nonunanimous verdicts alongside "a poll tax, a combined literacy and property ownership test, and a grandfather clause that in practice exempted white residents from the most onerous of these requirements"); S. C. Const., Art. III, § 1 (1865) and 1866 S. C. Acts p. 493, § 3 (providing for 8-member juries in district courts, which have jurisdiction over "all criminal cases wherein the accused is a person of color"). To be sure, some States have adopted smaller criminal juries for different reasons. Arizona, for example, may have been trying to cut costs when it adopted its law permitting 6-member juries in 1972 shortly after this Court decided *Williams*. See S. Diamond & A. Ryken, The Modern American Jury: A One Hundred Year Journey, 96 Judicature 315, 318 (2013). But the reality that smaller panels tend to skew jury composition and impair the right to a fair trial is no new insight. It is sad truth borne out by hard experience.

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For almost all of this Nation's history and centuries before that, the right to trial by jury for serious criminal offenses meant the

right to a trial before 12 members of the community. In 1970, this Court abandoned that ancient promise and enshrined in its place bad social science parading as law. That mistake continues to undermine the integrity of the Nation's judicial proceedings and deny the American people a liberty their predecessors long and justly considered inviolable. Today's case presented us with an opportunity to correct the error and admit what we know the law is and has always been. Respectfully, we should have done just that.

No. 22–5058. CHINN *v.* SHOOP, WARDEN. C. A. 6th Cir. Certiorari denied. Reported below: 24 F. 4th 1096.

JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR joins, dissenting.

This is a capital case involving a violation of *Brady* v. *Maryland*, 373 U. S. 83 (1963). There is no dispute that, during the capital trial of petitioner Davel Chinn, the State suppressed exculpatory evidence indicating that the State's key witness, Marvin Washington, had an intellectual disability that may have affected Washington's ability to remember, perceive fact from fiction, and testify accurately. When affirming on direct appeal, the Ohio Supreme Court said "[i]f the jury accepted Washington's testimony, the jury was certain to convict [Chinn], but if the jury did not believe Washington, it was certain to acquit [Chinn] of all charges." *State* v. *Chinn*, 85 Ohio St. 3d 548, 561, 709 N. E. 2d 1166, 1178 (1999). Similarly, the Ohio Court of Appeals said that Washington was the "key" and "main" witness against Chinn. *State* v. *Chinn*, 2001-Ohio-1550, 2001 WL 788402, *2, *8 (July 13, 2001). Yet, when confronted during state postconviction proceedings with the State's suppression of evidence that would have substantially impeached this key witness, the Ohio courts suddenly concluded that evidence was not "material" enough to have affected the trial.

I write to emphasize the relatively low burden that is "materiality" for purposes of *Brady* and *Strickland* v. *Washington*, 466 U. S. 668 (1984). To prove prejudice under both *Brady* and *Strickland*, a defendant must show "a reasonable probability" of a different outcome. *United States* v. *Dominguez Benitez*, 542 U. S. 74, 82 (2004); *United States* v. *Bagley*, 473 U. S. 667, 682 (1985) (opinion of Blackmun, J.). We have repeatedly said that the "reasonable probability" standard is not the same as the

"more likely than not" or "preponderance of the evidence" standard; it is a qualitatively lesser standard. *Kyles* v. *Whitley*, 514 U. S. 419, 434 (1995) (collecting cases); see also *Dominguez Benitez*, 542 U. S., at 83, n. 9; *Strickler* v. *Greene*, 527 U. S. 263, 298 (1999) (Souter, J., concurring in part and dissenting in part). In fact, it is "contrary to" our precedent to equate the "'reasonable probability'" materiality standard with the more-likely-than-not standard. *Williams* v. *Taylor*, 529 U. S. 362, 405–406 (2000).

The Sixth Circuit did not appropriately apply the materiality standard. Although the Sixth Circuit purported to recognize that the two standards were different, it simultaneously claimed that "'reasonable probability' for *Brady*'s purposes is *effectively the same* as a more-probable-than-not standard." *Chinn* v. *Warden*, 24 F. 4th 1096, 1103 (2022) (emphasis added). It further said that "[t]he *Brady* question now" before the court was "whether it is more probable than not that the withheld evidence would have created a different result." *Ibid.* That reasoning violated the spirit, if not the letter, of our many cases holding that the two standards are not the same and that "reasonable probability" is a lower standard. Indeed, it is unclear why *Strickland* would have spent the time it did considering but rejecting the "more likely than not" standard in favor of the "reasonable probability" standard for prejudice, 466 U. S., at 693–694, if courts could treat them as "effectively the same," 24 F. 4th, at 1103.

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Because Chinn's life is on the line, and given the substantial likelihood that the suppressed records would have changed the outcome at trial based on the Ohio courts' own representations, see *Harrington* v. *Richter*, 562 U. S. 86, 112 (2011), I would summarily reverse to ensure that the Sixth Circuit conducts its materiality analysis under the proper standard.

No. 22–5528. COWAN *v.* BIDEN, PRESIDENT OF THE UNITED STATES, ET AL. C. A. 5th Cir. Certiorari denied. JUSTICE THOMAS took no part in the consideration or decision of this petition.

Rehearing Denied

No. 21–8026. KAETZ *v.* EDUCATIONAL CREDIT MANAGEMENT CORP. ET AL., 598 U. S. 968. Petition for rehearing denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

NOVEMBER 9, 2022

Certiorari Denied

No. 22–6004 (22A399). BEATTY *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Certiorari denied. Reported below: 52 F. 4th 632.

NOVEMBER 10, 2022

Certiorari Granted

No. 22–10. DUBIN *v.* UNITED STATES. C. A. 5th Cir. Certiorari granted. Reported below: 27 F. 4th 1021.

NOVEMBER 14, 2022

Certiorari Dismissed

No. 22–5527. ADKINS *v.* TYSON'S LODGING, LLC. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

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No. 22–5611. WHITE *v.* DEPARTMENT OF JUSTICE ET AL. C. A. 7th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*). Reported below: 16 F. 4th 539.

Miscellaneous Orders

No. 22A350. WARD ET AL. *v.* THOMPSON, CHAIRMAN OF THE UNITED STATES HOUSE SELECT COMMITTEE TO INVESTIGATE THE JANUARY 6TH ATTACK ON THE UNITED STATES CAPITOL, ET AL. C. A. 9th Cir. Application for stay and injunction, presented to JUSTICE KAGAN, and by her referred to the Court, denied. The order heretofore entered by JUSTICE KAGAN is vacated. JUSTICE THOMAS and JUSTICE ALITO would grant the application for stay and injunction.

No. 22M32. HARWOOD *v.* AMERICAN AIRLINES, INC. Motion for leave to proceed as a veteran granted.

No. 22M33. SPAULDING *v.* UNITED STATES. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 22M34. PRINCE-MOORE *v.* TEXAS DOW EMPLOYEES CREDIT UNION. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 21–7806. WEBB *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA. C. A. 4th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 907] denied.

No. 21–8142. WEBB *v.* NORTHAM ET AL. Sup. Ct. Va. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 907] denied.

No. 21–8242. WEBB *v.* FAUCI ET AL. C. A. 4th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 908] denied. JUSTICE ALITO took no part in the consideration or decision of this motion.

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No. 22–5040. ELLIS *v.* UNITED STATES DISTRICT COURT FOR THE DISTRICT OF COLUMBIA. C. A. D. C. Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 905] denied.

No. 22–5089. WEBB *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA; and WEBB *v.* NORTHAM. C. A. 4th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 907] denied.

No. 22–229. IN RE SWANSON. Petition for writ of mandamus denied.

Certiorari Denied

No. 21–1438. BANKS ET AL. *v.* COTTER CORP. ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 22 F. 4th 788.

No. 21–7408. DINGLE *v.* BAGGETT, JUDGE, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 860 Fed. Appx. 41.

No. 22–25. McCutchen et al. *v.* United States (Reported below: 14 F. 4th. 1355); and Modern Sportsman, LLC, et al. *v.* United States. C. A. Fed. Cir. Certiorari denied.

No. 22–125. Fenstermaker *v.* Fenstermaker et al. App. Ct. Conn. Certiorari denied. Reported below: 211 Conn. App. 901, 269 A. 3d 973.

No. 22–131. StarKist Co. et al. *v.* Olean Wholesale Grocery Cooperative, Inc., on Behalf of Itself and All Others Similarly Situated, et al. C. A. 9th Cir. Certiorari denied. Reported below: 31 F. 4th 651.

No. 22–211. Vandenberg *v.* University of Saint Thomas, aka University of St. Thomas (Houston). C. A. 5th Cir. Certiorari denied.

No. 22–214. Baroni *v.* Seror, Chapter 7 Trustee, et al. C. A. 9th Cir. Certiorari denied. Reported below: 36 F. 4th 958.

No. 22–217. Kim *v.* Superior Court of California, County of Riverside. C. A. 9th Cir. Certiorari denied.

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No. 22–218. Knapp *v.* Metropolitan Government of Nashville and Davidson County, Tennessee, et al. C. A. 6th Cir. Certiorari denied.

No. 22–221. Mendoza *v.* Amalgamated Transit Union International et al. C. A. 9th Cir. Certiorari denied. Reported below: 30 F. 4th 879.

No. 22–222. Reyna et al. *v.* Wilson et al.; and Reyna *v.* Redding et al.; and

No. 22–224. Stroman et al. *v.* Wilson et al. C. A. 5th Cir. Certiorari denied. Reported below: No. 22–222 (first judgment) and No. 22–224, 33 F. 4th 202.

No. 22–223. County of Riverside, California, et al. *v.* Estate of Najera-Aguirre et al. C. A. 9th Cir. Certiorari denied. Reported below: 29 F. 4th 624.

No. 22–241. Farrell et al. *v.* Hochul, Governor of New York, et al. C. A. 2d Cir. Certiorari denied.

No. 22–258. Holstad et al. *v.* Department of Labor. C. A. 8th Cir. Certiorari denied.

No. 22–261. ESTATE OF BAKER, BY AND THROUGH HIS ANCILLARY ADMINISTRATOR DIXON *v.* WAKE FOREST UNIVERSITY. C. A. 4th Cir. Certiorari denied.

No. 22–267. ARCARO *v.* PARKS ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 25 F. 4th 1341.

No. 22–292. SULLIVAN *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. 4th Cir. Certiorari denied.

No. 22–316. LODESTAR ANSTALT *v.* BACARDI & CO. LTD. ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 31 F. 4th 1228.

No. 22–328. ALLINSON *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 27 F. 4th 913.

No. 22–330. WELLER *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 40 F. 4th 563.

No. 22–333. U. S. WELL SERVICES, INC. *v.* EASOM ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 37 F. 4th 238.

No. 22–337. HILL *v.* SUWANNEE RIVER WATER MANAGEMENT DISTRICT. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 338 So. 3d 227.

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No. 22–357. HOWLING *v.* MARYLAND. Ct. App. Md. Certiorari denied. Reported below: 478 Md. 472, 274 A. 3d 1124.

No. 22–366. COUNTY OF SONOMA, CALIFORNIA, ET AL. *v.* LEMOS. C. A. 9th Cir. Certiorari denied. Reported below: 40 F. 4th 1002.

No. 22–370. UTLEY *v.* CITY OF HOUSTON, TEXAS, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–373. SCHASZBERGER ET AL. *v.* AMERICAN FEDERATION OF STATE, COUNTY AND MUNICIPAL EMPLOYEES, COUNCIL 13. C. A. 3d Cir. Certiorari denied.

No. 22–5073. MCGILL *v.* SHINN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 16 F. 4th 666.

No. 22–5086. GASSESSE *v.* UNIVERSITY OF CONNECTICUT. App. Ct. Conn. Certiorari denied. Reported below: 210 Conn. App. 908, 268 A. 3d 1205.

No. 22–5524. JOHNSON *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA. C. A. 4th Cir. Certiorari denied.

No. 22–5525. DIZZLEY *v.* GARRETT. C. A. 4th Cir. Certiorari denied.

No. 22–5531. CHRISTIAN *v.* REPUBLICAN PARTY ET AL. C. A. D. C. Cir. Certiorari denied.

No. 22–5542. JOHNSON *v.* BLAIR, WARDEN. C. A. 8th Cir. Certiorari denied.

No. 22–5552. BUDWILOWITZ *v.* MARC NICHOLS ASSOCIATES ET AL. Ct. App. N. Y. Certiorari denied. Reported below: 37 N. Y. 3d 1132, 179 N. E. 3d 1144.

No. 22–5555. VALDEZ *v.* STEWART, WARDEN. C. A. 2d Cir. Certiorari denied.

No. 22–5556. WHICKER *v.* WASHINGTON. Ct. App. Wash. Certiorari denied. Reported below: 17 Wash. App. 2d 1067.

No. 22–5557. HODGES *v.* BOLIN, WARDEN. C. A. 8th Cir. Certiorari denied.

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No. 22–5560. MCCURDY *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5563. BROWN *v.* PENNSYLVANIA ET AL. Sup. Ct. Pa. Certiorari denied. Reported below: 278 A. 3d 310.

No. 22–5564. MUNYWE *v.* WASHINGTON. Ct. App. Wash. Certiorari denied. Reported below: 20 Wash. App. 2d 1050.

No. 22–5565. PIERRE-LOUIS *v.* PLATKIN, ACTING ATTORNEY GENERAL OF NEW JERSEY, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5571. ALLAH *v.* LATONA ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–5573. MULLIGAN *v.* ALASKA ET AL. Sup. Ct. Alaska. Certiorari denied.

No. 22–5574. BLACKMON *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied. Reported below: 34 F. 4th 1014.

No. 22–5578. WILLS *v.* FIRST REPUBLIC BANK. C. A. 9th Cir. Certiorari denied.

No. 22–5581. PONTON *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–5602. ELLIS *v.* MISSOURI. Ct. App. Mo., Western Dist. Certiorari denied. Reported below: 643 S. W. 3d 609.

No. 22–5636. SORRENTINO *v.* U. S. BANK, N. A., AS TRUSTEE FOR LSF9 MASTER PARTICIPATION TRUST, ET AL. App. Ct. Conn. Certiorari denied.

No. 22–5640. STARKS *v.* UNITED STATES SENTENCING COMMISSION ET AL. C. A. D. C. Cir. Certiorari denied.

No. 22–5648. CAMPBELL *v.* ANNUCCI, ACTING COMMISSIONER, NEW YORK DEPARTMENT OF CORRECTIONS AND COMMUNITY SUPERVISION, ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–5649. GRAY *v.* FRAKES, DIRECTOR, NEBRASKA DEPARTMENT OF CORRECTIONS, ET AL. Ct. App. Neb. Certiorari denied. Reported below: 31 Neb. App. ——.

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No. 22–5666. CANO *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–5670. ALJINDI *v.* UNITED STATES. C. A. Fed. Cir. Certiorari denied.

No. 22–5671. BYRD *v.* GEORGIA. Sup. Ct. Ga. Certiorari denied. Reported below: 314 Ga. 21, 875 S. E. 2d 643.

No. 22–5707. ENAGBARE *v.* PENNSYLVANIA. Super. Ct. Pa. Certiorari denied. Reported below: 264 A. 3d 397.

No. 22–5712. MORGAN *v.* GEITHER. C. A. 10th Cir. Certiorari denied.

No. 22–5745. MAHONE *v.* GEORGIA ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5767. KENDRICKS *v.* OKEECHOBEE CORRECTIONAL INSTITUTION ET AL. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 340 So. 3d 490.

No. 22–5802. FETHEROLF *v.* SHOOP, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–5812. OWENS *v.* COLORADO. Ct. App. Colo. Certiorari denied.

No. 22–5815. AGBATI *v.* VIRGINIA DEPARTMENT OF AGRICULTURE AND CONSUMER SERVICES, OFFICE OF CHARITABLE AND REGULATORY PROGRAMS. C. A. 4th Cir. Certiorari denied.

No. 22–5817. WOOD *v.* SELLERS, WARDEN, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5867. MCCARRICK *v.* ESPINOZA, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–5886. SEPEHRY-FARD *v.* U. S. BANK N. A., AS TRUSTEE FOR GREENPOINT MORTGAGE TRUST MORTGAGE PASS-THROUGH CERTIFICATES, SERIES 2007–AR2, ET AL. C. A. 9th Cir. Certiorari denied.

No. 21–1522. TORCIVIA *v.* SUFFOLK COUNTY, NEW YORK, ET AL. C. A. 2d Cir. Motions of Firearms Policy Coalition et al., Institute for Justice, New Civil Liberties Alliance, and Gun Owners of America, Inc., et al. for leave to file briefs as *amici curiae* granted. Certiorari denied. Reported below: 17 F. 4th 342.

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No. 21–1587. SHOOP, WARDEN *v.* CUNNINGHAM. C. A. 6th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 23 F. 4th 636.

JUSTICE THOMAS, with whom JUSTICE ALITO and JUSTICE GORSUCH join, dissenting.

In 2002, respondent Jeronique Cunningham concluded an armed robbery of his drug dealer with a spray of bullets that killed a teenager and a toddler. An Ohio jury convicted him of capital murder, and the trial court sentenced him to death. Twenty years later, the Sixth Circuit ordered an evidentiary hearing to determine whether the foreperson's presence on the jury deprived Cunningham of due process—either because the foreperson received prejudicial outside information about Cunningham or because she was biased by an undisclosed relationship with the victims' families. In analyzing the first claim, the Sixth Circuit once again flouted the deferential standard of review demanded by the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA). In analyzing the second claim, the Sixth Circuit applied an incorrect framework to justify a fishing expedition based on allegations with no admissible factual foundation.

To correct these manifest abuses of the Sixth Circuit's habeas jurisdiction, I would grant Ohio's petition and summarily reverse the judgment below. Therefore, I respectfully dissent from denial of certiorari.

I

On January 3, 2002, Cunningham and his half-brother, Cleveland Jackson, purchased crack cocaine from Shane Liles in Lima, Ohio. That evening, Cunningham and Jackson returned to Liles' apartment to rob him. Both were armed with handguns. Liles was not home when the would-be robbers arrived, so Liles' girlfriend, Tomeaka Grant, called him to let him know he had visitors. Cunningham and Jackson waited for Liles in the living room, where three teenagers—Leneshia Williams, Coron Liles, and Dwight Goodloe, Jr.—were watching The Fast and the Furious. In the meantime, Tomeaka Grant returned to the kitchen, where she was playing cards with James Grant (her brother) and Arnetta Robinson (a family friend). James Grant's 3-year-old daughter, Jala Grant, was also present.

When Liles got home, Jackson pretended to be interested in another drug buy until Cunningham drew his gun. Cunningham then herded the teens into the kitchen, where he held everyone at gunpoint. Meanwhile, Jackson walked Liles upstairs at gunpoint while demanding drugs and money, tied his hands behind his back, and finally forced him to join the group in the kitchen.

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The two robbers ordered the assembled victims, now eight in total, to place their valuables on the kitchen table. When Liles said he had none left, Jackson shot him in the back. Both robbers then fired into the huddled group until their guns were empty. All eight victims were shot. Two died: 17-year-old Leneshia and 3-year-old Jala, both killed by bullets to the head. Jala's father, James Grant, was shot five times as he vainly attempted to shield his young daughter. Robinson was comatose for 47 days, and Tomeaka Grant lost an eye.

In June 2002, a jury found Cunningham guilty of aggravated murder, attempted murder, and aggravated robbery. After a penalty hearing, the jury recommended and the trial court imposed the death sentence for the murders. The Ohio Supreme Court affirmed Cunningham's convictions and sentence. *State* v. *Cunningham*, 105 Ohio St. 3d 197, 2004-Ohio-7007, 824 N. E. 2d 504.

Cunningham filed a state postconviction motion, asserting (among other claims not relevant here) that the jury foreperson's presence on the jury had deprived him of a fair trial. Cunningham based this claim on a postverdict interview that the foreperson had given to a private investigator working for Jackson's defense team. The investigator's notes reflect that the foreperson discussed the evidence in the case and what she and the other jurors had thought about it in detail. Then, near the end of the interview, she stated that "'some social workers worked with Jeronique [Cunningham] in the past and were afraid of him.'" *State* v. *Cunningham*, 2004-Ohio-5892, ¶60 (App.). Latching onto that statement, Cunngingham alleged that the foreperson, who worked at Allen County Children Services, had received extraneous prejudicial information about him from her colleagues.

The trial court dismissed the claim without discovery or an evidentiary hearing, and the Ohio Court of Appeals affirmed. See *id.*, ¶¶67–71. The Ohio Court of Appeals explained that the investigator's notes did not suggest that the foreperson had obtained any information from her fellow social workers prior to Cunningham's trial. After all, the court noted, the record did not show when the investigator had interviewed the foreperson, and the foreperson had been thoroughly examined in *voir dire* with no indication that she could not be fair and impartial. *Id.*, ¶61. The court further reasoned that the foreperson's negative "impression of Cunningham's character . . . was likely shaped during the trial" and that the rest of the interview notes showed that the foreperson "followed the law and carefully considered the evidence in the case." *Id.*, ¶62.

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In 2006, Cunningham filed a federal habeas corpus petition in the District Court for the Northern District of Ohio, reasserting his outside-information claim. Although Cunningham's claim had been adjudicated on the merits in state court, the District Court decided in 2008 that he was entitled to discovery about "when [the foreperson] acquired [the outside] information, who she learned it from, whether she told any other jurors and whether this information influenced her or any other jurors to convict Cunningham and/or vote for the death penalty."[1] *Cunningham* v. *Hudson*,

[1] When a claim has been adjudicated on the merits in state court, review under 28 U. S. C. §2254(d)(1) must be limited to the evidence in the state-court record. *Cullen* v. *Pinholster*, 563 U. S. 170 (2011). Although this Court had not yet decided *Cullen* when the District Court authorized Cun-

2008 WL 2390777, *7 (June 9, 2008). The District Court thus authorized Cunningham to depose the foreperson, all seated and alternate jurors, Allen County Children Services employees, and the investigator who had interviewed the foreperson.

Cunningham obtained affidavits from two other jurors, neither of whom recalled hearing the foreperson discuss any outside information about Cunningham. The jurors did, however, attest to a statement by the foreperson regarding the victims' families during deliberations. According to one juror, the foreperson said, "I know the families of the people that were shot in the kitchen. The families know me and I am going to have to go back and see them. These families are my clients." App. to Pet. for Cert. 101a. According to the second juror, the foreperson "told the young woman [the first juror] and the jury that the young woman did not have to work in the local community." *Id.*, at 102a.

The foreperson was deposed in January 2009. She confirmed that she had not spoken to any of her colleagues about Cunningham prior to his trial. Rather, she only "looked through [his] files" after the trial and sentencing were "completely over." *Cunningham* v. *Hudson*, No. 3:06–cv–00167 (ND Ohio, Feb. 15, 2009), ECF Doc. 107, p. 4. Cunningham's counsel also asked the foreperson if she knew the victims, but the presiding Magistrate Judge sustained the State's objection that the question was beyond the scope of Cunningham's bias claim. Soon afterward, the District Court allowed Cunningham to amend his juror-bias claim to add an allegation that the foreperson was biased by a relationship with the victims' families.

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The two other jurors were deposed in October 2009. The first juror substantially repeated the statements in her affidavit, while acknowledging that she was merely paraphrasing the foreperson's words and that her memory was not very good. The second juror testified that the foreperson "stated she may in the future be working with the families," but "not that she had been." App. to Pet. for Cert. 103a. The District Court again permitted Cunningham to amend his claim to include these statements as related in the depositions.

The case was then assigned to a different District Judge, who dismissed all of Cunningham's claims as procedurally defaulted,

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ningham to take discovery, the Sixth Circuit had already applied the same rule in binding precedent. See *Eady* v. *Morgan*, 515 F. 3d 587, 601 (2008).

meritless, or both, and denied a certificate of appealability (COA) in 2010. But the Sixth Circuit granted a COA on seven claims, including the claim that the foreperson's presence on the jury had deprived Cunningham of a fair trial. In 2014, three years after granting the COA, the Sixth Circuit concluded that it was unclear whether Cunningham's family-relationship claim was exhausted, and it remanded for the District Court to grant a stay and abeyance while Cunningham presented the claim to the state courts. *Cunningham* v. *Hudson*, 756 F. 3d 477 (*per curiam*). The Ohio courts ultimately confirmed that Cunningham had no further state-law avenue for review. See *State* v. *Cunningham*, 2016-Ohio-3106, ¶¶10–26, 65 N. E. 3d 307, 311–316 (App.). In 2019, the District Court (essentially repeating its analysis from nine years earlier) again dismissed Cunningham's habeas claims as procedurally defaulted, meritless, or both.

Just over two years later, in the decision below, a divided Sixth Circuit panel reversed and remanded, ordering the District Court to "conduct an evidentiary hearing to investigate Cunningham's two juror-bias claims." 23 F. 4th 636, 678 (2022). First, the majority held that the Ohio postconviction courts unreasonably applied *Remmer* v. *United States*, 347 U. S. 227 (1954), by rejecting Cunningham's outside-information claim without conducting a hearing. 23 F. 4th, at 650. Drawing heavily on Circuit precedent, the majority reasoned that any "colorable claim" of outside influence entitles a defendant to a "*Remmer* hearing," and it held that Cunningham's claim met that standard. *Id.*, at 651 (citing *Ewing* v. *Horton*, 914 F. 3d 1027, 1030 (CA6 2019); *Garcia* v. *Andrews*, 488 F. 3d 370, 376 (CA6 2007); *United States* v. *Herndon*, 156 F. 3d 629, 635 (CA6 1998)).

The panel majority also held that Cunningham was entitled to a hearing on the family-relationship claim. Its analysis consisted of an elaborate comparison between Cunningham's claim and *Williams* v. *Taylor*, 529 U. S. 420 (2000) (*Michael Williams*), where we held that AEDPA did not bar an evidentiary hearing because the petitioner had been diligent in developing his claim's factual basis. See 23 F. 4th, at 655–662. The majority concluded that "[t]his case is *Michael Williams*, blow-for-blow," and—on that basis—ordered the District Court to conduct an evidentiary hearing. *Id.*, at 662. It was undeterred by the fact (which it did not

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dispute) that Federal Rule of Evidence 606(b)[2] barred the jurors' testimony about the foreperson's jury-room comments. The majority overcame that difficulty by simply *imagining* admissible evidence, such as "the testimony of a victim's family member," that Cunningham could *conceivably* develop on remand. *Id.*, at 661–662.[3]

Judge Kethledge dissented in part. Regarding Cunningham's outside-information claim, Judge Kethledge explained that AEPDA forbade the majority's reliance on Circuit precedent and that *Remmer* would not compel all fairminded jurists to agree that Cunningham was entitled to an evidentiary hearing. 23 F. 4th, at 679–682. Regarding the family-relationship claim, Judge Kethledge agreed that Cunningham was diligent under *Michael Williams* but concluded that this claim failed because its entire factual basis was barred by Rule 606(b) and the time-honored policy against receiving juror testimony to undermine a verdict. 23 F. 4th, at 682–685.

The State petitioned for a writ of certiorari, which the Court now denies. I would instead grant the petition and summarily reverse for the reasons that follow and those in Judge Kethledge's dissent below.

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II

Although the procedural history of this case is complicated, the Sixth Circuit's errors were not. The panel majority's reasons for

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[2] Rule 606(b) provides:

"(1) *Prohibited Testimony or Other Evidence.* During an inquiry into the validity of a verdict or indictment, a juror may not testify about any statement made or incident that occurred during the jury's deliberations; the effect of anything on that juror's or another juror's vote; or any juror's mental processes concerning the verdict or indictment. The court may not receive a juror's affidavit or evidence of a juror's statement on these matters.

"(2) *Exceptions.* A juror may testify about whether:

"(A) extraneous prejudicial information was improperly brought to the jury's attention;

"(B) an outside influence was improperly brought to bear on any juror; or

"(C) a mistake was made in entering the verdict on the verdict form."

[3] The majority denied relief on Cunningham's other claims, though it lamented that "the harsh standards of AEDPA as elaborated by the [Supreme] Court" required it to do so. 23 F. 4th, at 671.

ordering an evidentiary hearing on either of Cunningham's juror-bias claims are indefensible.[4]

A

Because the Ohio Court of Appeals rejected Cunningham's outside-information claim on the merits, the exacting standard of 28 U. S. C. § 2254(d), often called AEDPA deference, applied. That standard bars federal habeas relief for any claim "adjudicated on the merits in State court proceedings unless the adjudication of the claim—

> "(1) resulted in a decision that was contrary to, or involved an unreasonable application of, clearly established Federal law, as determined by the Supreme Court of the United States; or
>
> "(2) resulted in a decision that was based on an unreasonable determination of the facts in light of the evidence presented in the State court proceeding."

We have explained that "'clearly established Federal law,'" for purposes of § 2254(d)(1), "refers to the holdings, as opposed to the dicta, of this Court's decisions as of the time of the relevant state-court decision." *Williams* v. *Taylor*, 529 U. S. 362, 412 (2000). When assessing a state-court decision under § 2254(d), federal habeas courts may not rely either on lower court precedents, see, *e. g.*, *Parker* v. *Matthews*, 567 U. S. 37, 48–49 (2012) (*per curiam*), or on decisions of this Court that postdate the relevant state-court adjudication. See, *e. g.*, *Shoop* v. *Hill*, 586 U. S. 45, 50–52 (2019) (*per curiam*). Nor may a federal habeas court extend the rationales of this Court's precedents. *White* v. *Woodall*, 572 U. S. 415, 426 (2014). The bottom line: Where § 2254(d) governs, habeas relief can issue only if the relevant state-court decision—judged solely by the four corners of this Court's holdings—"was

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[4] For present purposes, and because no party argues otherwise, I accept the characterization of Cunningham's juror-bias allegations as presenting two distinct "claims," only one of which is governed by § 2254(d). I note, however, the apparent tension between that characterization and the District Court's rationale for allowing the amendment that added Cunningham's second "claim" to relate back to the filing of his habeas petition. See *Cunningham* v. *Hudson*, No. 3:06–cv–00167 (ND Ohio, July 21, 2009), ECF Doc. 120, p. 4 (construing the amendment as "concern[ing] evidence of juror misconduct pled in the original Petition" and as "tied to [the same] core of operative facts").

so lacking in justification that there was an error well understood and comprehended in existing law beyond any possibility for fairminded disagreement." *Harrington* v. *Richter*, 562 U. S. 86, 103 (2011). "If this standard is difficult to meet, that is because it was meant to be." *Id.*, at 102.

The Sixth Circuit flouted this standard when it held that the Ohio postconviction courts unreasonably applied *Remmer* in this case. In *Remmer*, during a trial for tax evasion, an unknown person offered a juror a bribe to acquit the defendant. 347 U. S., at 228. The juror reported the incident to the court, the court reported the incident to the prosecutors *ex parte*, and a Federal Bureau of Investigation agent interviewed the juror—all while the trial was ongoing and all without the defendant's knowledge. *Ibid.* The defendant first learned of these events after the verdict, and he moved for a new trial. *Ibid.* The District Court denied the motion without holding a hearing, and the Ninth Circuit affirmed. *Id.*, at 229. In a $2^1/_2$-page opinion, this Court vacated and remanded for the District Court "to hold a hearing to determine whether the incident complained of was harmful to the petitioner, and if after hearing it is found to have been harmful, to grant a new trial." *Id.*, at 230.

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As Judge Kethledge observed, "a fairminded jurist could easily conclude" that *Remmer* did not require a hearing on Cunningham's outside-information claim. 23 F. 4th, at 681. *Remmer* ordered a hearing to weigh the impact of *undisputed* outside contacts with a juror. Here, by contrast, Cunningham merely *alleged* that outside contact had occurred, based on a speculative reading of an ambiguous postverdict statement. And *Remmer* quite obviously did not clearly establish the Sixth Circuit's rule that any "colorable claim of extraneous influence" mandates "a *Remmer* hearing." 23 F. 4th, at 651 (majority opinion). "'[I]f a habeas court must extend a rationale before it can apply to the facts at hand,' then by definition the rationale was not 'clearly established at the time of the state-court decision.'" *Woodall*, 572 U. S., at 426 (quoting *Yarborough* v. *Alvarado*, 541 U. S. 652, 666 (2004)).

But the Sixth Circuit's error went even deeper. Not only did *Remmer* not clearly establish the Sixth Circuit's "any colorable claim" rule, it is not even clear that *Remmer* established *any* constitutional rule. Words like "constitutional" and "due process" are nowhere to be found in the Court's laconic opinion. One could

just as naturally—perhaps more naturally—read *Remmer* as a case about new-trial motion practice under the Federal Rules of Criminal Procedure than as one about the requirements of constitutional due process. A rigorous § 2254(d)(1) analysis, therefore, likely would take no account of *Remmer* at all.[5]

Here, the Sixth Circuit not only relied on *Remmer*, it stretched it far beyond its four corners and used Circuit precedent to patch the seams. Such "plain and repetitive error" deserves summary reversal. *Parker*, 567 U. S., at 49.[6]

B

The Sixth Circuit's grant of an evidentiary hearing on Cunningham's family-relationship claim also merits summary reversal. To start, the panel majority's reasoning simply does not support the relief it ordered. Section 2254(e)(2) bars a federal evidentiary hearing in most cases where the petitioner "has failed to develop the factual basis of a claim in State court proceedings." But even "where an applicant . . . is not barred from obtaining an eviden-

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[5] In its *Remmer* analysis, the Sixth Circuit cited three other decisions of this Court, none of which provides clearly established federal law supporting the decision below. Contrary to the panel majority's apparent understanding, *Smith* v. *Phillips*, 455 U. S. 209 (1982), did not hold that *Remmer* was binding on state courts as a matter of constitutional due process; rather, it held only that a state court did not *violate* due process by responding to an allegation of juror impartiality with a hearing that would have satisfied *Remmer* had it occurred in the federal system. 455 U. S., at 218. Dicta in *United States* v. *Olano*, 507 U. S. 725 (1993), arguably characterize *Remmer* as a constitutional decision, see 507 U. S., at 738–739, but even that is doubtful and, regardless, dicta are not "clearly established Federal law" under § 2254(d)(1). See *Williams* v. *Taylor*, 529 U. S. 362, 412 (2000). The actual holdings of *Olano* have nothing to do with the Constitution, and the third case, *Rushen* v. *Spain*, 464 U. S. 114 (1983) (*per curiam*), also explicitly decided no constitutional question. *Id.*, at 117, n. 2.

[6] Fortunately, the Court's failure to correct this error does not leave the Sixth Circuit bound to follow it. In an earlier § 2254(d)(1) case involving a *Remmer* claim, the Sixth Circuit acknowledged that "how [it] would apply [its] own Sixth Circuit precedents [did] not guide the analysis," and it denied relief because it found "no Supreme Court precedent that require[d] a *Remmer* hearing on the facts before [it]." *Garcia* v. *Andrews*, 488 F. 3d 370, 377 (2007). Thus, future Sixth Circuit panels are free to disregard the *Remmer* analysis below as nonbinding. See *Lakeside Surfaces, Inc.* v. *Cambria Co.*, 16 F. 4th 209, 218 (2021) ("In situations where two of our published decisions are in tension, we follow the earlier one").

tiary hearing by . . . § 2254(e)(2), the decision to grant such a hearing rests in the discretion of the district court." *Schriro* v. *Landrigan*, 550 U. S. 465, 468 (2007); see also Rule 6(a), Rules Governing Section 2254 Cases. Here, the Sixth Circuit held (and the State does not now contest) that Cunningham was diligent in developing his family-relationship claim under *Michael Williams*. That case, however, addressed whether "§ 2254(e)(2) *barred* the petitioner's request for a federal evidentiary hearing." *Cullen* v. *Pinholster*, 563 U. S. 170, 183 (2011) (emphasis added); see *Michael Williams*, 529 U. S., at 424. Thus, the most the Sixth Circuit's holding justified—as a matter of law—was a remand for the District Court to determine, in its discretion, whether to grant an evidentiary hearing. But the Sixth Circuit usurped that discretion, *mandating* a hearing simply because § 2254(e)(2) did not *forbid* one.

Worse and more importantly, any evidentiary hearing on Cunningham's family-relationship claim would be an abuse of discretion no matter what court ordered it. The entire factual basis for this claim consists of the foreperson's statements in the jury room as recalled in two other jurors' years-later testimony. See ECF Doc. 200–1, at 12–14. As Judge Kethledge explained, those comments are unquestionably barred from judicial consideration "by the longstanding 'rule against admission of jury testimony to impeach a verdict,'" a rule embodied in part by Federal Rule of Evidence 606(b). 23 F. 4th, at 682 (quoting *Tanner* v. *United States*, 483 U. S. 107, 121 (1987)). And, once those comments are disregarded, Cunningham's claim amounts to no more than a bare, unspecified, and unsubstantiated allegation that the foreperson had some sort of relationship with some victims or their families and that it prejudiced him in some way. Such "[t]hreadbare recitals" are not enough to "unlock the doors of discovery" in ordinary civil litigation. *Ashcroft* v. *Iqbal*, 556 U. S. 662, 678–679 (2009). They are certainly not enough under the more rigorous standards governing federal habeas cases. See *Mayle* v. *Felix*, 545 U. S. 644, 649 (2005); *Bracy* v. *Gramley*, 520 U. S. 899, 904 (1997).

The Sixth Circuit nonetheless awarded Cunningham a hearing on the mere *possibility* that it might turn up some kind of admissible evidence supporting some sort of cognizable claim. See 23 F. 4th, at 661–662. On that basis alone, the Sixth Circuit decreed that the jury foreperson and even the family members of the victims must submit to cross-examination about their memories

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of painful, decades-old events. See *ibid.* Their every word will be picked apart in the hunt for further excuses to drag out this 16-year-old federal habeas action. The Sixth Circuit's decision is more than an error—it is an injustice. It shows profound disrespect, not merely to the State, but to citizens who perform the difficult duty of serving on capital juries, to the surviving victims of Cunningham's atrocious crimes, to the memories of the two young girls whose lives he snuffed out, and to their families who still, two decades later, have no assurance that justice will ever be done.

III

By denying certiorari, the Court once again permits the nullification of its jurisprudence. Just a few months ago, I dissented from the Court's refusal to correct a flagrant misapplication of AEDPA by the Sixth Circuit. See *Shoop* v. *Cassano*, 596 U. S. 1037 (2022) (opinion dissenting from denial of certiorari). Today, the Court denies review of a case just as flagrant, if not more so. We should not shirk our responsibility to correct classic AEDPA abuses, especially when a lower court brazenly commits errors for which we have repeatedly reversed it. See *Cassano* v. *Shoop*, 10 F. 4th 695, 696–697 (CA6 2021) (Griffin, J., dissenting from denial of rehearing en banc) (collecting 22 cases in which this Court reversed the Sixth Circuit "for not applying the deference to state-court decisions mandated by AEDPA," including 12 summary reversals).

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That said, while I disagree with the Court's newfound tolerance for recidivism, primary responsibility for the Sixth Circuit's errors rests with the Sixth Circuit. That court's record of "plain and repetitive" AEDPA error, *Parker*, 567 U. S., at 49, is an insult to Congress and a disservice to the people of Michigan, Ohio, Kentucky, and Tennessee. Federal habeas review imposes "profound societal costs," "frustrat[ing] both the States' sovereign power to punish offenders and their good-faith attempts to honor constitutional rights." *Calderon* v. *Thompson*, 523 U. S. 538, 554, 555–556 (1998) (internal quotation marks omitted). It also "disturbs the State's significant interest in repose for concluded litigation, denies society the right to punish some admitted offenders, and intrudes on state sovereignty to a degree matched by few exercises of federal judicial authority." *Richter*, 562 U. S., at 103 (internal quotation marks omitted). These problems are serious enough even when courts carefully observe the limits that Con-

gress and this Court have laid down. When a lower court wields its habeas jurisdiction in overt defiance of those limits, the affront to federalism and the rule of law becomes intolerable.

The Sixth Circuit must do better, with or without this Court's help. Unfortunately, the Sixth Circuit's habeas jurisprudence suggests that certain circuit judges' "taste for disregarding AEDPA," *Rapelje* v. *Blackston*, 577 U. S. 1019, 1021 (2015) (Scalia, J., dissenting from denial of certiorari), has found its natural complement in other judges' distaste for correcting errors en banc, no matter how blatant, repetitive, or corrosive of circuit law. See, *e. g.*, *Issa* v. *Bradshaw*, 910 F. 3d 872 (CA6 2018) (denying rehearing en banc); *Mitts* v. *Bagley*, 626 F. 3d 366 (CA6 2010) (same). Of course, reluctance in deploying en banc review is understandable. But only to a point. The Sixth Circuit's habeas problems are well past that point—as evidenced by the depressing regularity with which petitions like this one reach us.

The Court should have delivered that message by summarily reversing the judgment below. Accordingly, I respectfully dissent from denial of certiorari.

No. 21–8147. TOMKINS *v.* UNITED STATES. C. A. 7th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* granted. The order entered October 3, 2022, [598 U. S. 907] vacated. Certiorari denied.

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Rehearing Denied

No. 21–8071. BEVERLY *v.* RIVERSIDE COUNTY PUBLIC ADMINISTRATOR ET AL., 598 U. S. 933. Petition for rehearing denied.

No. 22–5009. WELENC *v.* DEPARTMENT OF JUSTICE ET AL., 598 U. S. 969. Petition for rehearing denied. JUSTICE JACKSON took no part in the consideration or decision of this petition.

NOVEMBER 16, 2022

Miscellaneous Order

No. 22A431. HOOPER *v.* SHINN ET AL. Application for stay of execution of sentence of death, presented to JUSTICE KAGAN, and by her referred to the Court, denied.

Certiorari Denied

No. 22–6049 (22A423). SMITH *v.* ALABAMA. Sup. Ct. Ala. Application for stay of execution of sentence of death, presented

to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied.

No. 22–6054 (22A424). BARBEE *v.* COLLIER ET AL. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Certiorari denied.

No. 22–6055 (22A425). HOOPER *v.* ARIZONA. Sup. Ct. Ariz. Application for stay of execution of sentence of death, presented to JUSTICE KAGAN, and by her referred to the Court, denied. Certiorari denied.

NOVEMBER 17, 2022

Dismissal Under Rule 46

No. 22–5921. SPENCER *v.* UNITED STATES DISTRICT COURT FOR THE DISTRICT OF MINNESOTA. C. A. 8th Cir. Certiorari dismissed under this Court's Rule 46.

Miscellaneous Orders

No. 22A439. FAIRCHILD *v.* FARRIS, WARDEN. Application for stay of execution of sentence of death, presented to JUSTICE KAVANAUGH, and by him referred to the Court, denied. JUSTICE GORSUCH took no part in the consideration or decision of this application.

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No. 22A441. HAMM, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS, ET AL. *v.* SMITH. Application to vacate stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, granted. The November 17, 2022, order of the United States Court of Appeals for the Eleventh Circuit is vacated. JUSTICE SOTOMAYOR, JUSTICE KAGAN, and JUSTICE JACKSON would deny the application.

NOVEMBER 21, 2022

Appeal Dismissed

No. 22–136. BROOKS ET AL. *v.* ABBOTT, GOVERNOR OF TEXAS, ET AL. Appeal from D. C. W. D. Tex. dismissed for want of jurisdiction. Reported below: 601 F. Supp. 3d 147.

Certiorari Dismissed

No. 22–5604. LAMBROS *v.* FEDERATIVE REPUBLIC OF BRAZIL ET AL. C. A. D. C. Cir. Motion of petitioner for leave to proceed

in forma pauperis denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 22–5631. WELSH *v.* MCLANE, DIRECTOR, TEXAS CIVIL COMMITMENT OFFICE, ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5690. PETERS *v.* UNITED STATES ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5758. EVANS *v.* DELAWARE. Sup. Ct. Del. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*). Reported below: 280 A. 3d 627.

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Miscellaneous Orders

No. 22A341. TAYLER *v.* WASHINGTON. Ct. App. Wash. Application for stay, addressed to JUSTICE THOMAS and referred to the Court, denied.

No. 22M35. MCLAUGHLIN *v.* FLORIDA INTERNATIONAL UNIVERSITY BOARD OF TRUSTEES ET AL. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 22M36. KEVIN KERVENG TUNG, P. C., ET AL. *v.* FOU. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 22M37. IN RE RUTHERFORD. Motion for leave to proceed as a veteran denied.

No. 22–58. UNITED STATES ET AL. *v.* TEXAS ET AL. C. A. 5th Cir. [Certiorari granted, 597 U. S. 952.] Motion of Sheriff Brad Coe et al. for leave to intervene denied.

No. 22–5152. IN RE ALFRED. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* denied.

No. 22–5618. BROOKING *v.* PRINCE GEORGE'S COUNTY, MARYLAND. Ct. Sp. App. Md. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until December 12, 2022, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 22–5910. IN RE LEWIS; and
No. 22–5917. IN RE STAHLMAN. Petitions for writs of habeas corpus denied.

No. 22–5628. IN RE WALKER. Petition for writ of mandamus denied.

Certiorari Granted

No. 22–148. JACK DANIEL'S PROPERTIES, INC. *v.* VIP PRODUCTS LLC. C. A. 9th Cir. Certiorari granted.

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Certiorari Denied

No. 21–968. FAIRFAX COUNTY SCHOOL BOARD *v.* DOE. C. A. 4th Cir. Certiorari denied. Reported below: 1 F. 4th 257.

No. 21–1019. ERISA INDUSTRY COMMITTEE *v.* CITY OF SEATTLE, WASHINGTON. C. A. 9th Cir. Certiorari denied. Reported below: 840 Fed. Appx. 248.

No. 21–1446. NOURITAJER ET AL. *v.* JADDOU, DIRECTOR, UNITED STATES CITIZENSHIP AND IMMIGRATION SERVICES, ET AL. C. A. 2d Cir. Certiorari denied.

No. 21–8103. ANDUJO *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–9. WHIRLPOOL FINANCIAL CORP. ET AL. *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. 6th Cir. Certiorari denied. Reported below: 19 F. 4th 944.

No. 22–42. TIWARI ET AL. *v.* FRIEDLANDER, SECRETARY, KENTUCKY CABINET FOR HEALTH AND FAMILY SERVICES, ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 26 F. 4th 355.

No. 22–81. LAMBERT *v.* LOUISIANA. Ct. App. La., 4th Cir. Certiorari denied. Reported below: 2018–0777 (La. App. 4 Cir. 12/15/21), 366 So. 3d 188.

No. 22–123. UNIVERSITY OF TOLEDO *v.* WAMER. C. A. 6th Cir. Certiorari denied. Reported below: 27 F. 4th 461.

No. 22–142. FEDERACION DE MAESTROS DE PUERTO RICO, INC. *v.* FINANCIAL OVERSIGHT AND MANAGEMENT BOARD FOR PUERTO RICO ET AL. C. A. 1st Cir. Certiorari denied. Reported below: 32 F. 4th 67.

No. 22–192. GLENHAVEN HEALTHCARE LLC ET AL. *v.* SALDANA ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 27 F. 4th 679.

No. 22–245. HOSSEINZADEH *v.* BELLEVUE PARK HOMEOWNERS ASSN. ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–264. JAHANSHAHI *v.* SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES, ET AL. Ct. App. Cal., 2d App. Dist., Div. 1. Certiorari denied.

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No. 22–268. CITY OF CHICAGO, ILLINOIS *v.* MANCE. C. A. 7th Cir. Certiorari denied. Reported below: 31 F. 4th 1014.

No. 22–269. MOORE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–273. SALAZAR-MALDANADO *v.* GARLAND, ATTORNEY GENERAL. C. A. 5th Cir. Certiorari denied.

No. 22–279. CAVE *v.* SACHDEVA ET AL. Ct. App. Ga. Certiorari denied. Reported below: 361 Ga. App. XXVI.

No. 22–287. HICKS ET AL. *v.* AMERICAN FAMILY MUTUAL INSURANCE CO., S. I. Ct. App. Ind. Certiorari denied. Reported below: 184 N. E. 3d 622.

No. 22–294. COUNTY OF ONTARIO, NEW YORK *v.* GUNSALUS ET AL. (Reported below: 37 F. 4th 859); and COUNTY OF ONTARIO, NEW YORK *v.* HAMPTON ET UX. C. A. 2d Cir. Certiorari denied.

No. 22–296. WILLOW GRANDE, LLC *v.* CHEROKEE TRIANGLE ASSN. ET AL. Ct. App. Ky. Certiorari denied.

No. 22–297. McGhee *v.* United States. C. A. Fed. Cir. Certiorari denied.

No. 22–299. Doran *v.* McDonough, Secretary of Veterans Affairs. C. A. 6th Cir. Certiorari denied.

No. 22–301. Xiu Jian Sun *v.* Trump, Former President of the United States. C. A. D. C. Cir. Certiorari denied.

No. 22–313. Kinuthia et al. *v.* Garland, Attorney General. C. A. 1st Cir. Certiorari denied.

No. 22–317. Nygard et ux. *v.* City of Orono, Minnesota. C. A. 8th Cir. Certiorari denied. Reported below: 39 F. 4th 514.

No. 22–329. Lu Tuan Nguyen *v.* Ribal et al. Ct. App. Cal., 4th App. Dist., Div. 3. Certiorari denied.

No. 22–346. Anderson, as Chapter 7 Trustee for Infinity Business Group, Inc. *v.* Morgan Keegan & Co., Inc., et al. C. A. 4th Cir. Certiorari denied. Reported below: 31 F. 4th 294.

No. 22–354. Shelton *v.* United States. C. A. 6th Cir. Certiorari denied.

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No. 22–365. Reform America, dba Created Equal, et al. *v.* City of Detroit, Michigan, et al. C. A. 6th Cir. Certiorari denied. Reported below: 37 F. 4th 1138.

No. 22–368. Hong *v.* Securities and Exchange Commission et al. C. A. 2d Cir. Certiorari denied. Reported below: 41 F. 4th 83.

No. 22–382. Hamilton *v.* United States. C. A. 5th Cir. Certiorari denied. Reported below: 37 F. 4th 246.

No. 22–392. Bel Air Auto Auction, Inc. *v.* Great Northern Insurance Co. C. A. 4th Cir. Certiorari denied.

No. 22–5092. Moore *v.* Koenigsfeld et al. C. A. 8th Cir. Certiorari denied.

No. 22–5404. Walker *v.* United States. C. A. 4th Cir. Certiorari denied. Reported below: 32 F. 4th 377.

No. 22–5582. Fishman *v.* Politis. Sup. Jud. Ct. Mass. Certiorari denied.

No. 22–5584. KEBEDE *v.* PENNSYLVANIA. Super. Ct. Pa. Certiorari denied. Reported below: 227 A. 3d 441.

No. 22–5588. WAKEFIELD *v.* NEW YORK. Ct. App. N. Y. Certiorari denied. Reported below: 38 N. Y. 3d 367, 195 N. E. 3d 19.

No. 22–5589. FINE *v.* FLORIDA. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 329 So. 3d 131.

No. 22–5591. LOPEZ-PARKER *v.* TEXAS. Ct. App. Tex., 7th Dist. Certiorari denied.

No. 22–5592. JAMES *v.* BUFFALOE, SECRETARY, NORTH CAROLINA DEPARTMENT OF PUBLIC SAFETY. C. A. 4th Cir. Certiorari denied.

No. 22–5594. BACOT, AKA PRICE, AKA CONERLY *v.* DEUTSCHE BANK NATIONAL TRUST CO., AS TRUSTEE FOR AMERIQUEST MORTGAGE SECURITIES, INC., ASSET-BACKED PASS-THROUGH CERTIFICATES, SERIES 2005–R4. Ct. App. La., 4th Cir. Certiorari denied. Reported below: 2021–0430 (La. App. 4 Cir. 12/15/21), 333 So. 3d 1280.

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No. 22–5595. L. B. *v.* WASHINGTON STATE DEPARTMENT OF CHILDREN, YOUTH, AND FAMILIES. Ct. App. Wash. Certiorari denied. Reported below: 21 Wash. App. 2d 1001.

No. 22–5601. SERRANO *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5605. WIMBERLY *v.* MICHIGAN. Ct. App. Mich. Certiorari denied.

No. 22–5607. VILLALONA *v.* HANSEN ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5608. TURNER *v.* COVELLO, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–5613. FOSTER *v.* ILLINOIS. App. Ct. Ill., 2d Dist. Certiorari denied.

No. 22–5617. FARROW *v.* TULUPIA ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–5619. LEWIS *v.* OHIO. Ct. App. Ohio, 8th App. Dist., Cuyahoga County. Certiorari denied. Reported below: 2020-Ohio-5265.

No. 22–5622. PHILLIPS *v.* PHILLIPS, NKA KORPARK. Sup. Ct. Nev. Certiorari denied. Reported below: 508 P. 3d 885.

No. 22–5627. YOUNG *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5632. COPPEDGE *v.* NEW YORK ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–5633. BLESSING *v.* HOFFMAN ET AL. Super. Ct. N. J., App. Div. Certiorari denied.

No. 22–5642. WELSH *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5643. CASEY *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5644. GRIFFIN *v.* DINAPOLI ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–5645. GAY *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

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No. 22–5646. FREEMAN *v.* STIRLING, DIRECTOR, SOUTH CAROLINA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–5647. GUERRERO-YANEZ *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5652. G. T. *v.* C. S. Ct. App. Ohio, 10th App. Dist., Morgan County. Certiorari denied. Reported below: 2021-Ohio-2199.

No. 22–5653. NELSON *v.* MICHIGAN. Ct. App. Mich. Certiorari denied.

No. 22–5654. MICKMAN *v.* MICKMAN. Sup. Ct. Pa. Certiorari denied.

No. 22–5656. DEAN *v.* FLANNINGAN ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5657. WILSON *v.* HILL, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–5658. WHIPPLE *v.* UNITED STATES DISTRICT COURT FOR THE SOUTHERN DISTRICT OF FLORIDA. C. A. 11th Cir. Certiorari denied.

No. 22–5659. WILLIAMS *v.* NORTH CAROLINA ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–5661. TURNER *v.* UNKNOWN. C. A. 9th Cir. Certiorari denied.

No. 22–5662. TREVINO *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5664. NICOLAISON *v.* MINNESOTA. Ct. App. Minn. Certiorari denied.

No. 22–5669. CARRASCO GAMEZ *v.* ARIZONA. Ct. App. Ariz. Certiorari denied.

No. 22–5678. ROBERTS *v.* TERRITORY OF THE VIRGIN ISLANDS. Sup. Ct. V. I. Certiorari denied. Reported below: 76 V. I. 555.

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No. 22–5681. KOMATSU *v.* CITY OF NEW YORK, NEW YORK, ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–5682. RAMOS *v.* VALMONT INDUSTRIES, INC., ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–5686. HENDERSON *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied.

No. 22–5694. LOPEZ *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5696. NASUTI *v.* HOLM ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–5709. JACOBS *v.* OKLAHOMA TAX COMMISSION. C. A. 10th Cir. Certiorari denied.

No. 22–5722. JESSICA W. *v.* LITTLE FLOWER CHILDREN AND FAMILY SERVICES ET AL. App. Div., Sup. Ct. N. Y., 1st Jud. Dept. Certiorari denied. Reported below: 200 App. Div. 3d 630, 155 N. Y. S. 3d 776.

No. 22–5737. JENKINS *v.* FIELDS, AS ADMINISTRATOR OF THE ESTATE OF JENKINS. Sup. Ct. Ohio. Certiorari denied. Reported below: 166 Ohio St. 3d 1472, 2022-Ohio-1156, 185 N. E. 3d 1103.

No. 22–5746. CLUES-ALEXANDER *v.* LOUISIANA. Sup. Ct. La. Certiorari denied. Reported below: 2021–00831 (La. 5/13/22), 345 So. 3d 983.

No. 22–5748. ATKINSON *v.* MASSACHUSETTS. App. Ct. Mass. Certiorari denied. Reported below: 100 Mass. App. 1133, 185 N. E. 3d 941.

No. 22–5755. CARTER *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–5794. WARD *v.* RAMIREZ, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–5801. MURRAY *v.* HOWELL, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5826. PETERS *v.* UNITED STATES; and

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No. 22–5827. PERRY ET AL. *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 35 F. 4th 293.

No. 22–5836. SHAKESPEARE *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 32 F. 4th 1228.

No. 22–5837. MATTHEWS *v.* IOWA. Ct. App. Iowa. Certiorari denied. Reported below: 977 N. W. 2d 523.

No. 22–5838. ASHBURN *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 33 F. 4th 63.

No. 22–5841. JAMES *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5842. EUGENE *v.* FLORIDA. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 343 So. 3d 85.

No. 22–5846. PACELLI *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5847. ORR *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5849. WILLS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 40 F. 4th 330.

No. 22–5854. GORDON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5858. TROGDON *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5862. RAMOS *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–5863. SHY *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5865. SMITH *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5873. OLSEN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5875. PROTHO *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 41 F. 4th 812.

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No. 22–5876. CARTER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5880. SIXING LIU *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5883. DRUMMOND *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–5884. CIFUENTES-LOPEZ *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 40 F. 4th 1215.

No. 22–5887. DEGRAW *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–5890. BROOKS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5892. WOMACK *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5893. DEAN *v.* FLORIDA. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 337 So. 3d 349.

No. 22–5895. GARDNER *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 34 F. 4th 1283.

No. 22–5897. CHAPOTIN *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5898. PHILLIPS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 32 F. 4th 865.

No. 22–5902. RODRIGUEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5911. BETTS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5912. GONZALEZ-RAMIREZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5918. DICKENSON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5919. DOYLE *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

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No. 22–5920. BREWER *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5924. JONES *v.* PENNSYLVANIA. Super. Ct. Pa. Certiorari denied. Reported below: 271 A. 3d 452.

No. 22–5925. CEJA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5930. YOUNG *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–5931. D'AMICO *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5939. WILSON *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 850 Fed. Appx. 464.

No. 22–319. SALOOJAS, INC. *v.* AETNA HEALTH OF CALIFORNIA, INC. C. A. 9th Cir. Certiorari before judgment denied.

Rehearing Denied

No. 21–1423. HOTI *v.* CITY OF WARREN, MICHIGAN, 598 U. S. 912;

No. 21–1424. HOTI *v.* CITY OF WARREN, MICHIGAN, 598 U. S. 913;

No. 21–1498. HERTERICH *v.* CITY AND COUNTY OF SAN FRANCISCO, CALIFORNIA, ET AL.; and HERTERICH *v.* GOLDSMITH ET AL., 598 U. S. 915;

No. 21–1537. KERN *v.* BOARD OF SUPERVISORS OF ALLEGHANY COUNTY, 598 U. S. 917;

No. 21–1593. SCHULZ ET AL. *v.* UNITED STATES CONGRESS, 598 U. S. 920;

No. 21–7521. PIECZYNSKI *v.* PENNSYLVANIA ET AL., 598 U. S. 921;

No. 21–7770. JACKSON *v.* SHERATON NEW YORK TIMES SQUARE HOTEL, 598 U. S. 922;

No. 21–7843. BRADFORD *v.* LOS ANGELES COUNTY OFFICE OF EDUCATION ET AL., 598 U. S. 924;

No. 21–8022. DEW *v.* S. COLUMBIA TERRACE, LLC, ET AL., 598 U. S. 930;

No. 21–8088. MASSEY *v.* BIOLA UNIVERSITY, INC., ET AL., 598 U. S. 933;

No. 21–8113. GIBSON *v.* WAYFAIR, INC., 598 U. S. 935;

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No. 21–8145. ACKERMAN ET UX. *v.* BANK OF NEW YORK MELLON, 598 U. S. 937;

No. 21–8168. GAUR *v.* MILLIKAN ET AL., 598 U. S. 938;

No. 21–8257. ANDRUS *v.* UNITED STATES, 598 U. S. 943;

No. 21–8283. GAUR *v.* MARYLAND, 598 U. S. 944;

No. 22–28. SHAO *v.* CANTIL-SAKAUYE, CHIEF JUSTICE, SUPREME COURT OF CALIFORNIA, ET AL., 598 U. S. 946;

No. 22–170. BECKWITT *v.* MARYLAND, 598 U. S. 950;

No. 22–5436. BROWN *v.* NEW JERSEY, 598 U. S. 966; and

No. 22–5483. IN RE MONTE, 598 U. S. 908. Petitions for rehearing denied.

No. 21–7965. KAETZ *v.* UNITED STATES ET AL., 598 U. S. 968. Petition for rehearing denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

NOVEMBER 22, 2022

Miscellaneous Order

No. 22A362. TRUMP ET AL. *v.* COMMITTEE ON WAYS AND MEANS, UNITED STATES HOUSE OF REPRESENTATIVES, ET AL. C. A. D. C. Cir. Application for stay of mandate, presented to

THE CHIEF JUSTICE, and by him referred to the Court, denied. The order heretofore entered by THE CHIEF JUSTICE is vacated.

NOVEMBER 23, 2022

Certiorari Denied

No. 22–5947 (22A414). JOHNSON *v.* MISSOURI. Sup. Ct. Mo. Application for stay of execution of sentence of death, presented to JUSTICE KAVANAUGH, and by him referred to the Court, denied. Certiorari denied.

NOVEMBER 29, 2022

Miscellaneous Order

No. 22A463. JOHNSON *v.* MISSOURI. Application for stay of execution of sentence of death, presented to JUSTICE KAVANAUGH, and by him referred to the Court, denied. JUSTICE SOTOMAYOR and JUSTICE JACKSON would grant the application for stay of execution.*

JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR joins, dissenting.

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We denied Kevin Johnson's application for an emergency stay of his execution on November 29, 2022, and the State of Missouri has carried out that penalty. Now, one day later, I write to explain my vote to grant his stay request. For the reasons that follow, in my view, there was a likelihood that Johnson would have succeeded on the merits of his federal due process claim, and it was clear that he would (and obviously did) suffer irreparable harm absent a stay. I also believe that the equities weighed in Johnson's favor.

Missouri has created a system in which prosecutors may assess the validity of a state prisoner's final conviction, see Mo. Rev. Stat. § 547.031 (Cum. Supp. 2021), and having done so, it was required to comply with due process when applying that law in Johnson's case. See *District Attorney's Office for Third Judicial Dist.* v. *Osborne*, 557 U. S. 52, 69 (2009); *Hicks* v. *Oklahoma*, 447 U. S. 343, 346 (1980); *Wolff* v. *McDonnell*, 418 U. S. 539, 556–557 (1974). In rare cases, a litigant can credibly claim that a State's erroneous interpretation of, or refusal to comply with, its own

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*[REPORTER'S NOTE: The following opinion of JUSTICE JACKSON was filed on November 30, 2022.]

law can amount to a federal due process violation. See *Skinner* v. *Switzer*, 562 U. S. 521, 530 (2011); *Bouie* v. *City of Columbia*, 378 U. S. 347, 356 (1964).

This is one of those rare cases. Missouri's Revised Statute § 547.031 provides a three-step process for reviewing the integrity of a conviction. First, a prosecutor can file a motion to vacate if she "has information that [a] convicted person . . . may have been erroneously convicted." § 547.031.1. A prosecutor filed such a motion with respect to Johnson. Second, "[u]pon the filing of [such] a motion to vacate," the court "shall order a hearing and shall issue findings of fact and conclusions of law on all issues presented." § 547.031.2. No Missouri court here has disputed that this hearing is mandatory or that it was not provided to Johnson. Third, the court must grant the motion to vacate if "the court finds there is clear and convincing evidence of . . . constitutional error," after "tak[ing] into consideration" all of the evidence related to the case, including the "evidence presented at the hearing on the motion." § 547.031.3.

The Missouri Supreme Court turned this straightforward procedural statute on its head. While acknowledging that there was no motion hearing in Johnson's case, the court assumed away that violation of the statute's procedural requirements and denied the motion to stay on the grounds that there was insufficient evidence to support the motion to vacate. It reasoned that "[e]ven assuming that it was error for the circuit court to overrule the Special Prosecutor's motion to vacate Johnson's conviction without the hearing and express findings of fact and conclusions of law," Johnson was not entitled to a stay because the motion to vacate fell "short of the showing required by section 547.031.3, i.e., that there be 'clear and convincing evidence' demonstrating a 'constitutional error at the original trial . . . that undermines the confidence in the judgment.'" Order on Motions for Stay of Execution, No. SC89168 (Nov. 28, 2022), pp. 13–14 (Order).

The Missouri Supreme Court's reading—which skipped over the mandatory second step of the State's conviction-review process and went straight to the third—flouted the plain language of a statute that clearly contemplates that the three required steps will proceed *in order*. See § 547.031.3 (requiring that the court's findings and conclusions about a properly filed motion to vacate be based, in part, on "evidence presented at the hearing on the motion"). What is more, the court's determination that there was

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not "clear and convincing" evidence to support the motion to vacate *in the absence* of a hearing in which there would have been a chance to produce such evidence, as the statute requires, transgressed core procedural due process principles. See *Gagnon* v. *Scarpelli*, 411 U. S. 778, 786 (1973) (noting that the "'minimum requirements of due process'" include an "'opportunity to be heard in person and to present witnesses and documentary evidence'"). Indeed, it is unclear how the Missouri Supreme Court could have validly determined whether there was "clear and convincing evidence" of a constitutional error when the mandatory hearing at which evidence relevant to that determination would have been presented did not occur.

In short, a State cannot provide a process for postconviction review (like that outlined in § 547.031) and then arbitrarily refuse to follow the prescribed procedures. But that appears to be what happened in this case, insofar as § 547.031 was properly invoked through the filing of a motion to vacate but the Missouri Supreme Court determined that the reviewing court did not need to hold the mandatory hearing that allows for the presentation of evidence related to that motion, because, regardless, there was insufficient evidence to sustain the motion. In my view, this reading of § 547.031 was so fundamentally flawed, and so at odds with basic due process principles, that Johnson was likely to succeed in establishing that the procedures afforded in connection with the § 547.031 motion amounted to a Fourteenth Amendment violation.

As for irreparable harm, Johnson's execution irrevocably mooted our consideration of his due process claim, and Missouri would have suffered no discernible harm if a stay had issued, as a State has no legitimate interest in carrying out an execution contrary to § 547.031 or due process. Furthermore, Johnson had the better of the equities, since he diligently pursued his claims, and the last-minute nature of his motion for a stay was neither attributable to him nor due to factors within his control.

It is also noteworthy that Johnson's prior and unsuccessful assertion of claims concerning selective prosecution and *Batson* v. *Kentucky*, 476 U. S. 79 (1986), did not preclude the invocation of § 547.031 and Johnson's corresponding federal due process claim, notwithstanding the Missouri Supreme Court's contrary suggestion. See Order 11–12, 16, 19. If the required hearing had been held, someone might have pointed out that § 547.031 itself "per-

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mits a prosecuting attorney to present all evidence relevant to such claims, regardless of whether the defendant is procedurally defaulted from raising such claims." *Id.*, at 8 (Breckenridge, J., dissenting). In any event, it appears that much of the evidence that could have been presented at the nonexistent hearing was *new* evidence relating to the trial prosecutor's racially biased practices and racially insensitive remarks. And now that evidence will not be considered on the merits by *any* court, much less the one that was supposed to base its conclusions about the validity of Johnson's conviction on all such evidence, per the statutory mandate.

For all of these reasons, I would have granted the stay.

NOVEMBER 30, 2022

Miscellaneous Order. (For opinion of JUSTICE JACKSON dissenting from denial of application for stay of execution in No. 22A463, see 598 U. S. 1088.)

DECEMBER 1, 2022

Certiorari Granted

22–506 (22A444). BIDEN, PRESIDENT OF THE UNITED STATES, ET AL. *v.* NEBRASKA ET AL. C. A. 8th Cir. Consideration of the application to vacate injunction, presented to JUSTICE KAVANAUGH, and by him referred to the Court, deferred pending oral argument. The application to vacate injunction is also treated as a petition for writ of certiorari before judgment, and the petition is granted on the questions presented in the application. The Clerk is directed to establish a briefing schedule that will allow the case to be argued in the February 2023 argument session.

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DECEMBER 5, 2022

Certiorari Granted—Vacated and Remanded

No. 22–5435. JOHNSON *v.* UNITED STATES. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Concepcion* v. *United States*, 597 U. S. 481 (2022).

Certiorari Dismissed

No. 22–5687. PETERS *v.* BRAMMBATT. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5688. PETERS *v.* HITTNER, JUDGE, ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5689. PETERS *v.* ROSENTHAL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5700. JOHNSON *v.* ALLISON, SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 22–5708. LAMB *v.* WILSON ET AL. C. A. 6th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

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No. 22–5770. OKEAYAINNEH *v.* DEPARTMENT OF JUSTICE ET AL. C. A. D. C. Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5778. BURCH *v.* AMERICA'S SERVICING CO. ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5787. BURCH *v.* FREEDOM MORTGAGE CORP. ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–6017. GRIMES *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

*Miscellaneous Orders**

No. D–3093. IN RE DISCIPLINE OF BRUNER. Harvey Bruce Bruner, of Cleveland, Ohio, is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3094. IN RE DISCIPLINE OF ARIF. Michael Steven Arif, of Fairfax, Va., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3095. IN RE DISCIPLINE OF WALKER. Randolph Walker, of Corinth, Miss., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

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No. D–3096. IN RE DISCIPLINE OF YODER. George McDowell Yoder III, of Laurel, Miss., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3097. IN RE DISCIPLINE OF MACHEN. Robert B. Machen, of Arlington, Va., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. 22M38. KEEFE *v.* MONTANA;
No. 22M39. SHINEFLEW *v.* UNITED STATES;
No. 22M40. RODRIGUEZ *v.* UNITED STATES; and
No. 22M41. TRAVER *v.* PENNSYLVANIA. Motions for leave to file petitions for writs of certiorari with supplemental appendixes under seal granted.

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*For the Court's order approving revisions to the Rules of this Court, see 598 U. S. ——.

No. 22M42. R. M. C. *v.* J. D. L. Motion for leave to file petition for writ of certiorari under seal with redacted copies for the public record granted.

No. 22M43. ESLINGER *v.* MASSACHUSETTS COMMISSION AGAINST DISCRIMINATION ET AL. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 22–5541. PAWLOWSKI *v.* UNITED STATES. C. A. 3d Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* denied.

No. 22–5706. SMITH *v.* DOBIN ET AL. C. A. 3d Cir.; and

No. 22–5793. FORREST ET UX. *v.* UNITED STATES. C. A. Fed. Cir. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until December 27, 2022, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 22–6011. IN RE PATE. Petition for writ of habeas corpus denied.

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No. 22–295. IN RE WALTON;

No. 22–5699. IN RE CRAAYBEEK; and

No. 22–5807. IN RE GBEDEMAH. Petitions for writs of mandamus denied.

Certiorari Denied

No. 21–1495. BALDEA *v.* CITY OF NEW YORK LICENSE DIVISION OF THE NEW YORK POLICE DEPARTMENT. App. Div., Sup. Ct. N. Y., 1st Jud. Dept. Certiorari denied.

No. 21–7611. EICHINGER *v.* LITTLE, ACTING SECRETARY, PENNSYLVANIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–80. NAPOLITANO ET AL. *v.* WASHINGTON. C. A. 2d Cir. Certiorari denied. Reported below: 29 F. 4th 93.

No. 22–82. JOHNSON *v.* THEHUFFINGTONPOST.COM, INC. C. A. 5th Cir. Certiorari denied. Reported below: 21 F. 4th 314.

No. 22–85. OREGON *v.* HARRIS. Sup. Ct. Ore. Certiorari denied. Reported below: 369 Ore. 628, 509 P. 3d 83.

No. 22–86. CHAVEZ *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 29 F. 4th 1223.

No. 22–102. DOE ET AL. *v.* AIRBNB, INC. Sup. Ct. Fla. Certiorari denied. Reported below: 336 So. 3d 698.

No. 22–126. GOULD ELECTRONICS, INC. *v.* LIVINGSTON COUNTY ROAD COMMISSION; and
No. 22–272. LIVINGSTON COUNTY ROAD COMMISSION *v.* GOULD ELECTRONICS, INC. C. A. 6th Cir. Certiorari denied.

No. 22–135. DEL CASTILLO *v.* LADAPO, SECRETARY, FLORIDA DEPARTMENT OF HEALTH. C. A. 11th Cir. Certiorari denied. Reported below: 26 F. 4th 1214.

No. 22–172. SWISHER INTERNATIONAL, INC. *v.* TRENDSETTAH USA, INC., ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 31 F. 4th 1124.

No. 22–186. MANSFIELD *v.* WILLIAMSON COUNTY, TEXAS. C. A. 5th Cir. Certiorari denied. Reported below: 30 F. 4th 276.

No. 22–246. CENTRIPETAL NETWORKS, INC. *v.* CISCO SYSTEMS, INC. C. A. Fed. Cir. Certiorari denied. Reported below: 38 F. 4th 1025.

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No. 22–271. M. N. *v.* A. A. ET AL. Ct. App. Ky. Certiorari denied.

No. 22–275. BRAAM ET AL. *v.* CARR, SECRETARY, WISCONSIN DEPARTMENT OF CORRECTIONS. C. A. 7th Cir. Certiorari denied. Reported below: 37 F. 4th 1269.

No. 22–276. VASHISHT-ROTA *v.* HOWELL MANAGEMENT SERVICES ET AL. Ct. App. Utah. Certiorari denied. Reported below: 2021 UT App 133, 503 P. 3d 526.

No. 22–281. KRUITHOFF *v.* CATHOLIC CHARITIES OF WEST MICHIGAN ET AL. Sup. Ct. Mich. Certiorari denied. Reported below: 509 Mich. 1056, 975 N. W. 2d 486.

No. 22–290. MENDIBLE *v.* SPECIAL PROCEEDINGS DEPARTMENT OF THE WAKE COUNTY COURT ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–300. SIMS *v.* CITY OF PHILADELPHIA, PENNSYLVANIA, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–302. RISTOW *v.* CUNNINGHAM. Ct. App. Minn. Certiorari denied.

No. 22–305. O'ROURKE ET AL. *v.* DOMINION VOTING SYSTEMS, INC., ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–314. COX *v.* LAW OFFICES OF LES ZIEVE ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–315. PADILLOW *v.* CROW, DIRECTOR, OKLAHOMA DEPARTMENT OF CORRECTIONS. C. A. 10th Cir. Certiorari denied.

No. 22–325. BRUZZESE *v.* GARLAND, ATTORNEY GENERAL. C. A. 2d Cir. Certiorari denied.

No. 22–335. COLLINS *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 36 F. 4th 487.

No. 22–344. KINUTHIA *v.* CARR, CHIEF CLERK, BOARD OF IMMIGRATION APPEALS, ET AL. C. A. 1st Cir. Certiorari denied.

No. 22–355. CARTER *v.* DEPARTMENT OF DEFENSE. C. A. Fed. Cir. Certiorari denied.

No. 22–358. FEARS *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

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No. 22–363. HINTON, INDIVIDUALLY AND AS PERSONAL REPRESENTATIVE OF THE ESTATE OF HINTON AND AS PARENT AND NATURAL GUARDIAN OF HER MINOR CHILDREN R. H. ET AL. AND NEXT FRIEND OF I. H. ET AL., ET AL. *v.* HARRIS COUNTY, TEXAS. C. A. 5th Cir. Certiorari denied.

No. 22–394. BROWN ET AL. *v.* AMERICAN FEDERATION OF STATE, COUNTY, AND MUNICIPAL EMPLOYEES, COUNCIL 5, AFL–CIO, ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 41 F. 4th 963.

No. 22–395. WHEELER FINANCIAL, INC. *v.* JPMORGAN CHASE BANK, N. A., ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 37 F. 4th 427.

No. 22–411. RATHA ET AL. *v.* PHATTHANA SEAFOOD CO., LTD., ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 35 F. 4th 1159.

No. 22–413. ATWELL *v.* TENNESSEE. Ct. Crim. App. Tenn. Certiorari denied.

No. 22–441. GALICIA *v.* MARYLAND. Ct. App. Md. Certiorari denied. Reported below: 479 Md. 341, 278 A. 3d 131.

No. 22–5113. GRAY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5150. GOMEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 6 F. 4th 992.

No. 22–5236. MCFARLAND *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied. Reported below: 26 F. 4th 314.

No. 22–5424. ARREOLA-OCHOA *v.* GARLAND, ATTORNEY GENERAL. C. A. 7th Cir. Certiorari denied. Reported below: 34 F. 4th 603.

No. 22–5451. LUONG *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5470. CHAMBERS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

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No. 22–5673. AMAYA LOZANO *v.* ENTZEL, WARDEN. C. A. 8th Cir. Certiorari denied.

No. 22–5674. VICE *v.* LEE COUNTY SHERIFF DEPARTMENT ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–5679. ROBINSON *v.* ARIZONA. Sup. Ct. Ariz. Certiorari denied. Reported below: 253 Ariz. 121, 509 P. 3d 1023.

No. 22–5684. GAVILLAN MARTINEZ *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5685. HILL *v.* TURNER, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–5695. POORE *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 13 Cal. 5th 266, 512 P. 3d 39.

No. 22–5698. DAVIS *v.* HOLT ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5702. SMITH *v.* ALABAMA. Sup. Ct. Ala. Certiorari denied.

No. 22–5710. BIRON *v.* PETERS, DIRECTOR, FEDERAL BUREAU OF PRISONS, ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–5715. TARVIN *v.* UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT. C. A. 5th Cir. Certiorari denied.

No. 22–5717. WEBSTER *v.* TRAIL ET AL. (three judgments). C. A. 9th Cir. Certiorari denied. Reported below: 859 Fed. Appx. 196 (first judgment) and 197 (second judgment).

No. 22–5718. WESTMORELAND *v.* SMITH, WARDEN. Sup. Ct. Ga. Certiorari denied.

No. 22–5719. REECE *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5723. COLE *v.* UNKNOWN EL PASO COUNTY SHERIFF'S OFFICE RECORDS CLERK. Ct. App. Colo. Certiorari denied.

No. 22–5725. BANGHART *v.* SULLIVAN, WARDEN, ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–5727. GARRETT *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

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No. 22–5728. SPRADLEY *v.* FRANK ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5735. SCOTT *v.* OLIVER, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT ALBION, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5739. SIMMONS *v.* MICHIGAN. Sup. Ct. Mich. Certiorari denied. Reported below: 509 Mich. 918, 971 N. W. 2d 223.

No. 22–5742. CASWELL *v.* RACETTI. C. A. 2d Cir. Certiorari denied.

No. 22–5743. LOVE *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist., Div. 5. Certiorari denied.

No. 22–5744. YOUNG *v.* HAWAII ISLAND HUMANE SOCIETY ET AL. Int. Ct. App. Haw. Certiorari denied. Reported below: 150 Haw. 404, 503 P. 3d 970.

No. 22–5757. DALTON *v.* KOENIG, ACTING WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–5759. ROBERTSON *v.* MASSACHUSETTS. Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 489 Mass. 226, 181 N. E. 3d 1065.

No. 22–5761. PA EL-BEY, AKA PAYNE'S EL-BEY *v.* CUBESMART SELF STORAGE ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–5763. BROWNLEE *v.* NEW YORK. C. A. 2d Cir. Certiorari denied.

No. 22–5771. CANADA *v.* OLMSTED COUNTY COMMUNITY CORRECTIONS, ALL STAFF MEMBERS, ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–5773. MA *v.* GALLERY BELLTOWN CONDO ASSN. Sup. Ct. Wash. Certiorari denied.

No. 22–5774. BANKS *v.* OHIO. Ct. App. Ohio, 11th App. Dist., Lake County. Certiorari denied. Reported below: 2022-Ohio-1463.

No. 22–5776. MASON *v.* KENT. C. A. 5th Cir. Certiorari denied.

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No. 22–5783. KYEI *v.* OREGON. Ct. App. Ore. Certiorari denied. Reported below: 315 Ore. App. 69, 496 P. 3d 1135.

No. 22–5789. JACKSON *v.* MINNESOTA. Sup. Ct. Minn. Certiorari denied. Reported below: 977 N. W. 2d 169.

No. 22–5799. ANDREWS *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF NORTH CAROLINA. C. A. 4th Cir. Certiorari denied.

No. 22–5800. KAISER *v.* KRECKO ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–5803. TERAN *v.* KIJAKAZI, ACTING COMMISSIONER OF SOCIAL SECURITY. C. A. 9th Cir. Certiorari denied.

No. 22–5823. SIMMONS *v.* LEBLANC, SECRETARY, LOUISIANA DEPARTMENT OF PUBLIC SAFETY AND CORRECTIONS, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5825. MORNING *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–5869. CHAVIRA-MONTANEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5870. MARSHALL *v.* WILLIAMS, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5874. NGUYEN *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–5882. CALLIGAN *v.* VANIHEL, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 22–5899. MERRITT *v.* TENNESSEE. Sup. Ct. Tenn. Certiorari denied.

No. 22–5909. DOUCET *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–5914. JOHNSON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5927. OLIVER *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 41 F. 4th 1093.

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No. 22–5929. CORDOVA-BRISENO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5934. MORGAN *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–5940. VILLARREAL-SOLIS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5948. CORMIER *v.* FLORIDA. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 342 So. 3d 224.

No. 22–5949. RAMIREZ-ORTIZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5950. RAMIREZ-JUAN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5951. CLARK *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5954. FLORENCE *v.* FRAUENHEIM ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 814 Fed. Appx. 299.

No. 22–5960. VILLALONA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5962. BROWN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 42 F. 4th 1142.

No. 22–5964. FARRINGTON *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 42 F. 4th 895.

No. 22–5968. MANAKU *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 36 F. 4th 1186.

No. 22–5970. LUSTER *v.* WOLFE, WARDEN. C. A. 4th Cir. Certiorari denied.

No. 22–5972. PATTERSON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5977. BENITEZ-MARQUEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5978. CRAWFORD *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

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No. 22–5980. HOPKINS *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–5981. NIETO-URIBE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5983. DANIELS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5985. SAID *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5986. HOWARD *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5987. FIERRO ET AL. *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 42 F. 4th 743.

No. 22–5988. HERNANDEZ-GARCIA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 44 F. 4th 1157.

No. 22–5990. BROOKS *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5991. FERGUSON *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

No. 22–5998. WINGATE *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6000. CLEMENT *v.* DRUG ENFORCEMENT ADMINISTRATION. C. A. D. C. Cir. Certiorari denied.

No. 22–6002. MORGAN *v.* UNITED STATES. C. A. D. C. Cir. Certiorari denied. Reported below: 45 F. 4th 192.

No. 22–6005. ZHANG *v.* SHERMAN, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6006. TESTANI *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6013. GUTHARY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6014. GREEN *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 39 F. 4th 510.

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No. 21–8111. CONTRERA *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. JUSTICE SOTOMAYOR took no part in the consideration or decision of this petition.

No. 22–90. NGL SUPPLY WHOLESALE, L. L. C. *v.* FEDERAL ENERGY REGULATORY COMMISSION ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 22–306. QUARRIE *v.* WELLS ET AL. C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition.

No. 22–311. VECHERY *v.* COTTET-MOINE. Sup. Ct. Va. Certiorari denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this petition.

Rehearing Denied

No. 20–5846. GREEN *v.* LAKE, SHERIFF, CARLTON COUNTY, MINNESOTA, ET AL., 592 U. S. 1129;

No. 21–1407. MANDAWALA *v.* NORTHEAST BAPTIST HOSPITAL ET AL., 598 U. S. 912;

No. 21–1456. Poon-Atkins *v.* Sappington et al., 598 U. S. 913;

No. 21–1493. Knochel *v.* Fackrell et al., 598 U. S. 915;

No. 21–1511. Garner, Individually and on Behalf of the Control Group, et al. *v.* Biden, President of the United States, 598 U. S. 967;

No. 21–1514. Steven *v.* Schroader et al., 598 U. S. 916;

No. 21–1563. De Los Santos et al. *v.* Bosworth, as Employee and/or Administrator and/or Policymaker and/or Official of Johnson County, Texas, et al., 598 U. S. 918;

No. 21–1591. Bardstown Capital Corp. et al. *v.* Seiller Waterman, LLC, et al., 598 U. S. 920;

No. 21–1610. Steven *v.* Federal Way School District, 598 U. S. 921;

No. 21–7595. O. C. *v.* V. C., 598 U. S. 921;

No. 21–7833. Polite *v.* Kijakazi, Acting Commissioner of Social Security, 598 U. S. 924;

No. 21–7855. Horsey *v.* Oklahoma, 598 U. S. 924;

No. 21–7862. Hallcy *v.* Lumpkin, Director, Texas Department of Criminal Justice, Correctional Institutions Division, 598 U. S. 925;

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No. 21–7872. Guardado *v.* Sipe et al., 598 U. S. 925;

No. 21–7886. Stack et vir *v.* Menard, Inc., 598 U. S. 925;

No. 21–7888. Massey *v.* Biola University, Inc., 598 U. S. 925;

No. 21–7916. Fetzer *v.* Pozner, 598 U. S. 926;

No. 21–8081. Clark *v.* California, 598 U. S. 933;

No. 22–35. Yufan Zhang *v.* UnitedHealth Group et al., 598 U. S. 946;

No. 22–54. Goddard *v.* Commissioner of Internal Revenue, 598 U. S. 947;

No. 22–65. Van Cleve *v.* Raimondo, Secretary of Commerce, et al., 598 U. S. 948;

No. 22–109. Steven *v.* Federal Way School District, 598 U. S. 949;

No. 22–5081. Karupaiyan et al. *v.* Township of Woodbridge, New Jersey, et al., 598 U. S. 954;

No. 22–5085. Karupaiyan et al. *v.* Naganda et al., 598 U. S. 954;

No. 22–5139. Morris *v.* United States, 598 U. S. 957;

No. 22–5245. McCoy *v.* Florida, 598 U. S. 962;

No. 22–5254. BURCH *v.* MULLEN, 598 U. S. 977;

No. 22–5456. MIN JEONG KIM *v.* UNITED STATES CITIZENSHIP AND IMMIGRATION SERVICES, 598 U. S. 982; and

No. 22–5482. BURCH *v.* HOMEWARD RESIDENTIAL INC., 598 U. S. 983. Petitions for rehearing denied.

DECEMBER 9, 2022

Certiorari Granted

No. 21–1599. POLSELLI ET AL. *v.* INTERNAL REVENUE SERVICE. C. A. 6th Cir. Certiorari granted. Reported below: 23 F. 4th 616.

No. 22–49. LORA *v.* UNITED STATES. C. A. 2d Cir. Certiorari granted.

No. 22–105. COINBASE, INC. *v.* BIELSKI; and COINBASE, INC. *v.* SUSKI ET AL. C. A. 9th Cir. Certiorari granted.

No. 22–179. UNITED STATES *v.* HANSEN. C. A. 9th Cir. Certiorari granted. Reported below: 25 F. 4th 1103.

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DECEMBER 12, 2022

Certiorari Granted—Vacated and Remanded

No. 22–75. FORWARDLINE FINANCIAL, LLC, ET AL. *v.* AHLMANN. Ct. App. Cal., 2d App. Dist., Div. 3. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Viking River Cruises, Inc.* v. *Moriana*, 596 U. S. 639 (2022).

Certiorari Dismissed

No. 22–5976. PENDLETON *v.* AMES, SUPERINTENDENT, MOUNT OLIVE CORRECTIONAL COMPLEX. Sup. Ct. App. W. Va. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

Miscellaneous Orders

No. No. 22A474. R. J. REYNOLDS TOBACCO CO. ET AL. *v.* BONTA, ATTORNEY GENERAL OF CALIFORNIA, ET AL. C. A. 9th Cir. Application for writ of injunction pending appeal, presented to JUSTICE KAGAN, and by her referred to the Court, denied.

No. D–3098. In re Discipline of Bernstein. David Jay Bernstein, of Coconut Creek, Fla., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3099. In re Discipline of Wilson. Robert Terry Wilson, Jr., of Jasper, Ala., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3100. In re Discipline of McIntyre. Jeffrey Allen McIntyre, of Madison, Wis., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3101. In re Discipline of O'Brien. Jessica Arong O'Brien, of Chicago, Ill., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring her to show cause why she should not be disbarred from the practice of law in this Court.

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No. D–3102. In re Discipline of Gomez. Felipe Nery Gomez, of Chicago, Ill., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. 156, Orig. New York *v.* New Jersey. Motion of Waterfront Commission of New York Harbor for leave to file brief as *amicus curiae* granted. The cross-motions for judgment on the pleadings are set for oral argument in due course. [For earlier order herein, see, *e. g.*, 596 U. S. 1031.]

No. 21–1397. In re Grand Jury. Motion of petitioner for leave to file joint appendix under seal granted.

No. 22–115. Buckner, as Trustee of the United Mine Workers of America 1992 Benefit Plan, et al. *v.* United States Pipe & Foundry Co. et al. C. A. 11th Cir.; and

No. 22–121. ML Genius Holdings LLC *v.* Google LLC et al. C. A. 2d Cir. The Solicitor General is invited to file briefs in these cases expressing the views of the United States.

No. 22–5358. MILLER *v.* KASHANI ET AL. C. A. 9th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 999] denied.

No. 22–5609. WILMORE *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 999] denied.

No. 22–6127. IN RE GREEN ET UX. Petition for writ of habeas corpus denied.

No. 22–6082. IN RE BUFORD. Petition for writ of habeas corpus denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

Certiorari Granted

No. 22–535 (22A489). DEPARTMENT OF EDUCATION ET AL. *v.* BROWN ET AL. C. A. 5th Cir. Consideration of application for stay, presented to JUSTICE ALITO, and by him referred to the Court, deferred pending oral argument. The application for stay is also treated as a petition for writ of certiorari before judgment, and the petition is granted. The parties are directed to brief and argue the following questions: "(1) Whether respondents have Article III standing; and (2) Whether the Department's plan is statutorily authorized and was adopted in a procedurally proper manner." The Clerk is directed to establish a briefing schedule that will allow the case to be argued in the February 2023 argument session.

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Certiorari Denied

No. 21–1538. CLEVELAND COUNTY, NORTH CAROLINA, AKA CLEVELAND COUNTY EMERGENCY MEDICAL SERVICES *v.* CONNER, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED. C. A. 4th Cir. Certiorari denied. Reported below: 22 F. 4th 412.

No. 21–1598. CITY OF ANAHEIM, CALIFORNIA, ET AL. *v.* VALENZUELA ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 6 F. 4th 1098.

No. 21–8129. MICLAUS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 17 F. 4th 706.

No. 21–8199. CHACHANKO ET AL. *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8201. ESPINOZA-GONZALEZ *v.* UNITED STATES; FIGUEROA *v.* UNITED STATES; GOLDSTEIN *v.* UNITED STATES; JUAREZ *v.* UNITED STATES; and ROJO *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 21–8229. BARRIETA-BARRERA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–31. ARIZONA *v.* MECINAS ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–62. BIG HORN COUNTY ELECTRIC COOPERATIVE, INC. *v.* BIG MAN ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–93. MICHIGAN STATE UNIVERSITY ET AL. *v.* BALOW ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 24 F. 4th 1051.

No. 22–134. PRIVA *v.* GARLAND, ATTORNEY GENERAL. C. A. 11th Cir. Certiorari denied. Reported below: 34 F. 4th 946.

No. 22–175. RECHT ET AL. *v.* MORRISEY, ATTORNEY GENERAL OF WEST VIRGINIA. C. A. 4th Cir. Certiorari denied. Reported below: 32 F. 4th 398.

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No. 22–187. COUNTY OF ORANGE, CALIFORNIA, ET AL. *v.* CRAIG ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 856 Fed. Appx. 649.

No. 22–342. CORNER *v.* WALSH, SECRETARY OF LABOR. C. A. 7th Cir. Certiorari denied.

No. 22–364. SHAPIRO *v.* DEPARTMENT OF JUSTICE. C. A. D. C. Cir. Certiorari denied. Reported below: 40 F. 4th 609.

No. 22–371. PENNSYLVANIA *v.* JONES-WILLIAMS. Sup. Ct. Pa. Certiorari denied. Reported below: 279 A. 3d 508.

No. 22–372. SKATEMORE, INC., DBA ROLL HAVEN SKATING CENTER, ET AL. *v.* WHITMER, GOVERNOR OF MICHIGAN, ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 40 F. 4th 727.

No. 22–385. TOWERS *v.* HAMASAKI. C. A. 9th Cir. Certiorari denied.

No. 22–386. WEIMER *v.* WASHINGTON. Ct. App. Wash. Certiorari denied.

No. 22–422. STREB *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 36 F. 4th 782.

No. 22–424. CORDISH COS., INC. *v.* AFFILIATED FM INSURANCE CO. C. A. 4th Cir. Certiorari denied.

No. 22–427. VERRINDER *v.* CITY OF LEWISTON, MAINE. Sup. Jud. Ct. Me. Certiorari denied. Reported below: 2022 ME 29, 275 A. 3d 327.

No. 22–445. HARWOOD *v.* AMERICAN AIRLINES, INC. C. A. 4th Cir. Certiorari denied. Reported below: 37 F. 4th 954.

No. 22–5497. SHAW *v.* HAY ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5764. NORTON *v.* BARKER ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–5780. SNYDER *v.* WASHINGTON. Sup. Ct. Wash. Certiorari denied.

No. 22–5784. WATSON *v.* VIRGINIA. Sup. Ct. Va. Certiorari denied.

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No. 22–5786. FOLADPOUR *v.* CITY OF UPLAND, CALIFORNIA. Ct. App. Cal., 4th App. Dist., Div. 2. Certiorari denied.

No. 22–5791. CARTER *v.* ST. TAMMANY PARISH SCHOOL BOARD ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5795. WHITE *v.* MICHIGAN. Sup. Ct. Mich. Certiorari denied. Reported below: 509 Mich. 96, 983 N. W. 2d 348.

No. 22–5796. ROSE *v.* SOUTH CAROLINA ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–5797. RUSSO *v.* WELLS FARGO BANK, N. A., AS TRUSTEE ON BEHALF OF THE HOLDERS OF THE HARBORVIEW MORTGAGE LOAN TRUST MORTGAGE LOAN PASS-THROUGH CERTIFICATES, SERIES 2006–12. Ct. App. N. M. Certiorari denied.

No. 22–5834. TORRES *v.* MITCHELL, SUPERINTENDENT, OLD COLONY CORRECTIONAL CENTER, ET AL. C. A. 1st Cir. Certiorari denied.

No. 22–5881. OLIVER *v.* PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION. C. A. 8th Cir. Certiorari denied.

No. 22–5888. MARTINEZ *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5904. BECKER *v.* LITTLE, ACTING SECRETARY, PENNSYLVANIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 28 F. 4th 459.

No. 22–5905. BIGGS *v.* LIBERTY MUTUAL INSURANCE CO. Ct. App. Tenn. Certiorari denied.

No. 22–5928. HILDEBRAND *v.* WILMAR CORP. C. A. 10th Cir. Certiorari denied.

No. 22–5938. JOSEPH *v.* GARMAN, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT ROCKVIEW, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5942. WIGGINS *v.* BRNOVICH, ATTORNEY GENERAL OF ARIZONA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5944. BURGETT *v.* YELLEN, SECRETARY OF THE TREASURY. C. A. 8th Cir. Certiorari denied.

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No. 22–5965. SMART *v.* PRIME MORTGAGE & ESCROW, LLC, ET AL. Ct. App. Tex., 8th Dist. Certiorari denied.

No. 22–5989. BOWMAN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–5992. JENKINS *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 43 F. 4th 300.

No. 22–5996. RUNNER *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 43 F. 4th 417.

No. 22–5997. KIRKLAND *v.* NEW YORK. App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Certiorari denied. Reported below: 203 App. Div. 3d 951, 163 N. Y. S. 3d 620.

No. 22–6022. THOMPKINS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6024. PEA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6025. MITCHELL *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 43 F. 4th 608.

No. 22–6029. SCURLOCK *v.* CLARK. C. A. 7th Cir. Certiorari denied.

No. 22–6037. JEAN *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–6038. MANGUM *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6039. KIMBRELL *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6047. TERAN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6051. LEWIS *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–6058. MARTIN *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–252. HOWMEDICA OSTEONICS CORP. *v.* DEPUY SYNTHES SALES, INC., ET AL. C. A. 9th Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 28 F. 4th 956.

Not Final Pending Publication

No. 22–351. SIMON *v.* DEPARTMENT OF JUSTICE ET AL. C. A. 7th Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

Rehearing Denied

No. 21–1497. YOUNGBEAR *v.* MILLER, ATTORNEY GENERAL OF IOWA, 598 U. S. 915;

No. 21–1546. ALASAGAS *v.* BLINKEN, SECRETARY OF STATE, 598 U. S. 918;

No. 21–6802. WILSON *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL., 595 U. S. 1237;

No. 21–7617. WYRE *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, 596 U. S. 1008;

No. 21–7779. JUAREZ *v.* CALIFORNIA, 598 U. S. 923;

No. 21–8094. IN RE JENKINS, 598 U. S. 909;

No. 21–8136. THOMPSON *v.* MORRIS HEIGHTS HEALTH CENTER, INC., ET AL., 598 U. S. 936;

No. 22–5014. JOHNSON *v.* STIRLING, DIRECTOR, SOUTH CAROLINA DEPARTMENT OF CORRECTIONS, ET AL., 598 U. S. 950;

No. 22–5136. WASHINGTON *v.* RODRIGUEZ ET AL., 598 U. S. 957;

No. 22–5216. SALAZAR *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, 598 U. S. 961;

No. 22–5263. BROWN *v.* ARMEL, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT FAYETTE, ET AL., 598 U. S. 963;

No. 22–5328. TYSON *v.* NORTH CAROLINA, 598 U. S. 979;

No. 22–5641. REED *v.* UNITED STATES, 598 U. S. 1003; and

No. 22–5750. DIAZ *v.* UNITED STATES, 598 U. S. 1013. Petitions for rehearing denied.

DECEMBER 13, 2022

Certiorari Granted

No. 22–196. SAMIA, AKA SAMIC *v.* UNITED STATES. C. A. 2d Cir. Certiorari granted.

Page Proof Pending Publication

No. 21–1576. SMITH *v.* UNITED STATES. C. A. 11th Cir. Motion of The Rutherford Institute et al. for leave to file brief as *amici curiae* granted. Certiorari granted. Reported below: 22 F. 4th 1236.

No. 22–200. SLACK TECHNOLOGIES, LLC, FKA SLACK TECHNOLOGIES, INC., ET AL. *v.* PIRANI. C. A. 9th Cir. Motions of Cato Institute, Joseph A. Grundfest, Washington Legal Foundation, and Chamber of Commerce of the United States of America et al. for leave to file briefs as *amici curiae* granted. Certiorari granted. Reported below: 13 F. 4th 940.

DECEMBER 20, 2022

Miscellaneous Order

No. 145, Orig. DELAWARE *v.* PENNSYLVANIA ET AL.; and

No. 146, Orig. ARKANSAS ET AL. *v.* DELAWARE. Second Interim Report of the Special Master received and ordered filed. Exceptions to the Report, with supporting briefs, may be filed by January 10, 2023. Replies, if any, with supporting briefs, may be filed by January 20, 2023. [For earlier order herein, see, *e. g.*, 595 U. S. 1215–1216.]

DECEMBER 23, 2022

Miscellaneous Orders

No. 21–1449. GLACIER NORTHWEST, INC., DBA CALPORTLAND *v.* INTERNATIONAL BROTHERHOOD OF TEAMSTERS LOCAL UNION No. 174. Sup. Ct. Wash. [Certiorari granted, 598 U. S. 910.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted.

No. 21–1454. OHIO ADJUTANT GENERAL'S DEPARTMENT ET AL. *v.* FEDERAL LABOR RELATIONS AUTHORITY ET AL. C. A. 6th Cir. [Certiorari granted, 598 U. S. 910.] Motion of American Federation of Government Employees, Local 3970 for divided argument granted.

No. 22–96. FINANCIAL OVERSIGHT AND MANAGEMENT BOARD FOR PUERTO RICO *v.* CENTRO DE PERIODISMO INVESTIGATIVO, INC. C. A. 1st Cir. [Certiorari granted, 598 U. S. 910.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted.

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DECEMBER 27, 2022

Dismissal Under Rule 46

No. 22–458. TIG INSURANCE CO. *v.* EXXONMOBIL OIL CORP. C. A. 2d Cir. Certiorari dismissed under this Court's Rule 46. Reported below: 44 F. 4th 163.

Miscellaneous Order

No. 22A544 (22–592). ARIZONA ET AL. *v.* MAYORKAS, SECRETARY OF HOMELAND SECURITY, ET AL. C. A. D. C. Cir. Application for stay pending certiorari, presented to THE CHIEF JUSTICE, and by him referred to the Court, granted. The November 15, 2022, order of the United States District Court for the District of Columbia, case No. 1:21–cv–00100, is hereby stayed. Applicants suggested this Court treat the application as a petition for writ of certiorari; doing so, the petition is granted. The parties are directed to brief and argue the following question: "Whether the state applicants may intervene to challenge the District Court's summary judgment order."

This stay precludes giving effect to the District Court order setting aside and vacating the Title 42 policy; the stay itself does not prevent the Federal Government from taking any action with respect to that policy. The Court's review on certiorari is limited to the question of intervention. While the underlying merits of the District Court's summary judgment order are pertinent to that analysis, the Court does not grant review of those merits, which have not yet been addressed by the Court of Appeals.

The Clerk is directed to establish a briefing schedule that will allow the case to be argued in the February 2023 argument session. The stay shall terminate upon the sending down of the judgment of this Court. The order heretofore entered by THE CHIEF JUSTICE is vacated. JUSTICE SOTOMAYOR and JUSTICE KAGAN would deny the application.

JUSTICE GORSUCH, with whom JUSTICE JACKSON joins, dissenting.

From March 2020 to April 2022, the Centers for Disease Control and Prevention responded to the COVID–19 pandemic by issuing a series of emergency decrees. Those decrees—often called "Title 42 orders"—severely restricted immigration to this country on the ground that it posed a "serious danger" of "introduc[ing]" a "communicable disease." 58 Stat. 704, 42 U. S. C. §265. Fast forward to a few weeks ago. A district court held that the Title 42 orders were arbitrary and capricious, vacated them, and enjoined their operation. On appeal, Arizona and certain other States moved to intervene to challenge the district court's ruling, arguing that the federal government would not defend the Title 42 orders as vigorously as they might. The D. C. Circuit denied the States' motion. In response, the States have now come to this Court seeking two things. First, the States ask us to grant expedited review of the D. C. Circuit's intervention ruling. Second, the States ask us to stay the district court's judgment while we review the D. C. Circuit's intervention ruling. This stay would effectively require the federal government to continue enforcing the Title 42 orders indefinitely. Today, the Court obliges both requests. Respectfully, I believe these decisions unwise.

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Reasonable minds can disagree about the merits of the D. C. Circuit's intervention ruling. But that case-specific decision is not of special importance in its own right and would not normally

warrant expedited review. The D. C. Circuit's intervention ruling takes on whatever salience it has only because of its presence in a larger underlying dispute about the Title 42 orders. And on that score, it is unclear what we might accomplish. Even if at the end of it all we find that the States are permitted to intervene, and even if the States manage on remand to demonstrate that the Title 42 orders were lawfully adopted, the emergency on which those orders were premised has long since lapsed. In April 2022, the federal government terminated the Title 42 orders after determining that emergency immigration restrictions were no longer necessary or appropriate to address COVID–19. 87 Fed. Reg. 19944. The States may question whether the government followed the right administrative steps before issuing this decision (an issue on which I express no view). But they do not seriously dispute that the public-health justification undergirding the Title 42 orders has lapsed. And it is hardly obvious why we should rush in to review a ruling on a motion to intervene in a case concerning emergency decrees that have outlived their shelf life.

The only plausible reason for stepping in at this stage that I can discern has to do with the States' second request. The States contend that they face an immigration crisis at the border and policymakers have failed to agree on adequate measures to address it. The only means left to mitigate the crisis, the States suggest, is an order from this Court directing the federal government to continue its COVID-era Title 42 policies as long as possible—at the very least during the pendency of our review. Today, the Court supplies just such an order. For my part, I do not discount the States' concerns. Even the federal government acknowledges "that the end of the Title 42 orders will likely have disruptive consequences." Brief in Opposition for Federal Respondents 6. But the current border crisis is not a COVID crisis. And courts should not be in the business of perpetuating administrative edicts designed for one emergency only because elected officials have failed to address a different emergency. We are a court of law, not policymakers of last resort.

Post-Argument Pending Publication

January 1, 2023

Miscellaneous Order. (For revisions to the Rules of this Court effective this date, see 598 U. S. ——.

JANUARY 6, 2023

Miscellaneous Order

No. 21–887. LUNA PEREZ *v.* STURGIS PUBLIC SCHOOLS ET AL. C. A. 6th Cir. [Certiorari granted, 598 U. S. 909.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted.

JANUARY 9, 2023

Certiorari Granted—Vacated and Remanded

No. 21–1601. ESCOBAR *v.* TEXAS. Ct. Crim. App. Tex. Certiorari granted, judgment vacated, and case remanded for further consideration in light of the confession of error by Texas in its brief filed on September 28, 2022.

No. 22–5535. KAMAHELE *v.* UNITED STATES. C. A. 10th Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *United States* v. *Taylor*, 596 U. S. 845 (2022). JUSTICE GORSUCH took no part in the consideration or decision of this motion and this petition. Reported below: 23 F. 4th 1277.

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Certiorari Dismissed

No. 22–5901. BURCH *v.* AURZADA. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5956. WALLACE *v.* LOUISIANA. 22d Jud. Dist. Ct. La., St. Tammany Parish. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–5971. LADEAIROUS *v.* GARLAND, ATTORNEY GENERAL, ET AL. C. A. D. C. Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of*

Columbia Court of Appeals, 506 U. S. 1 (1992) (*per curiam*). JUSTICE KAVANAUGH took no part in the consideration or decision of this motion and this petition. Reported below: 45 F. 4th 188.

No. 22–6045. JACKSON *v.* TASKILA, WARDEN. C. A. 6th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–6143. SANDLAIN *v.* MARUKA, WARDEN. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 22–6202. GAKUBA *v.* ILLINOIS PRISONER REVIEW BOARD. Sup. Ct. Ill. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

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No. 22–6203. GAKUBA *v.* DODD. C. A. 7th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*). JUSTICE BARRETT took no part in the consideration or decision of this motion and this petition.

Miscellaneous Orders

No. 22A426. IN RE BEREKI. Super. Ct. Cal., Orange County. Application for stay, addressed to JUSTICE THOMAS and referred to the Court, denied.

No. 22A486. FRATTA *v.* TEXAS. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied.

No. 22A543. FRATTA *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied.

No. 22M44. WILBORN *v.* MAYORKAS, SECRETARY OF HOMELAND SECURITY. Motion for leave to proceed as a veteran granted.

No. 22M45. JOHNSON *v.* BEAUFORT COUNTY DEPARTMENT OF SOCIAL SERVICES ET AL.;

No. 22M46. SANOFI-AVENTIS U. S., LLC *v.* MYLAN INC. ET AL.;

No. 22M55. SAUNDERS *v.* THIES ET AL.;

No. 22M56. MORTON *v.* UNITED STATES;

No. 22M59. D. B. *v.* COLORADO, IN THE INTEREST OF L. B. ET AL.; and

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No. 22M60. S. S. *v.* UNITED STATES ET AL. Motions for leave to file petitions for writs of certiorari with supplemental appendixes under seal granted.

No. 22M47. B. J. *v.* JUNEAU COUNTY DEPARTMENT OF HUMAN SERVICES;

No. 22M48. MAXWELL *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS;

No. 22M49. SORO *v.* LOPEZ VILLARI;

No. 22M50. HARPER *v.* ELLIS ET AL.; and HARPER *v.* REDWOLF CONTRACTING SERVICE ET AL.;

No. 22M52. CHOYCE *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION;

No. 22M53. BEST SUPPLEMENT GUIDE, LLC, ET AL. *v.* SAN JOAQUIN COUNTY, CALIFORNIA, ET AL.;

No. 22M54. M. L.-S. F. *v.* BUDD ET AL.; and

No. 22M57. R. B. ET AL. *v.* WEST VIRGINIA DEPARTMENT OF HEALTH AND HUMAN RESOURCES ET AL. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 22M51. IN RE HOLMES. Motion for leave to file petition for writ of certiorari under seal with redacted copies for the public record granted.

No. 22M58. THISTLE *v.* BIDEN, PRESIDENT OF THE UNITED STATES, ET AL. Motion for leave to proceed as a veteran denied.

No. 22–193. MULDROW *v.* CITY OF ST. LOUIS, MISSOURI, ET AL. C. A. 8th Cir.;

No. 22–231. DAVIS *v.* LEGAL SERVICES ALABAMA, INC., ET AL. C. A. 11th Cir.; and

No. 22–238. CHARTER DAY SCHOOL, INC., ET AL. *v.* PELTIER, AS GUARDIAN OF A. P., A MINOR CHILD, ET AL. C. A. 4th Cir. The Solicitor General is invited to file briefs in these cases expressing the views of the United States.

No. 22–5419. JACOBS *v.* GEISINGER WYOMING MEDICAL CENTER. C. A. 3d Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 971] denied.

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No. 22–5509. LUEVANO *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 1015] denied.

No. 22–5758. EVANS *v.* DELAWARE. Sup. Ct. Del. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 1077] denied.

No. 22–6056. SLIVICKI *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS. C. A. 8th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until January 30, 2023, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 22–6144. IN RE DANIELS;
No. 22–6199. IN RE WHITE;
No. 22–6201. IN RE LOMAX;
No. 22–6211. IN RE SOLOMON;
No. 22–6229. IN RE TURNER;
No. 22–6332. IN RE VANDIVERE; and

No. 22–6369. IN RE BROWN-BEY. Petitions for writs of habeas corpus denied.

No. 22–420. IN RE OHIO EX REL. MARAS;
No. 22–5818. IN RE VICTOR; and
No. 22–6030. IN RE MAPLE. Petitions for writs of mandamus denied.

No. 22–6213. IN RE STINSON. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of mandamus dismissed. See this Court's Rule 39.8.

No. 22–6120. IN RE FAMOFO-IDOWU. Petition for writ of prohibition denied.

Certiorari Denied

No. 21–1338. NSO GROUP TECHNOLOGIES LTD. ET AL. *v.* WHATSAPP INC. ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 17 F. 4th 930.

No. 21–1539. SPECTRUM NORTHEAST, LLC, ET AL. *v.* FREY, ATTORNEY GENERAL OF MAINE. C. A. 1st Cir. Certiorari denied. Reported below: 22 F. 4th 287.

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No. 21–1571. RAGAN, PERSONAL REPRESENTATIVE OF THE ESTATE OF RAGAN, DECEASED *v.* RAGAN, AKA HUDSON. Ct. App. Colo. Certiorari denied. Reported below: 494 P. 3d 664.

No. 22–79. MEDDERS *v.* SOCIAL SECURITY ADMINISTRATION. C. A. 11th Cir. Certiorari denied.

No. 22–94. FRATTA *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–97. OWL CREEK ASIA I, L. P., ET AL. *v.* UNITED STATES ET AL.;
No. 22–98. CACCIAPALLE *v.* UNITED STATES ET AL.;
No. 22–99. BARRETT *v.* UNITED STATES ET AL.; and
No. 22–100. FAIRHOLME FUNDS, INC., ET AL. *v.* UNITED STATES ET AL. C. A. Fed. Cir. Certiorari denied. Reported below: 26 F. 4th 1274.

No. 22–124. KIMBERLIN *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–132. RUIZ *v.* MASSACHUSETTS. App. Ct. Mass. Certiorari denied. Reported below: 100 Mass. App. 1112, 178 N. E. 3d 901.

No. 22–209. TRANSAMERICA RETIREMENT SOLUTIONS, LLC *v.* ADDISON ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–220. UNION PACIFIC RAILROAD CO. *v.* BROTHERHOOD OF LOCOMOTIVE ENGINEERS AND TRAINMEN. C. A. 5th Cir. Certiorari denied. Reported below: 31 F. 4th 337.

No. 22–226. CINTAS CORP. ET AL. *v.* HAWKINS ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 32 F. 4th 625.

No. 22–234. TEXAS ET AL. *v.* COOK COUNTY, ILLINOIS, ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 37 F. 4th 1335.

No. 22–242. IRONS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–247. CHUI *v.* CHUI ET AL.;
No. 22–251. CHUI *v.* CHUI, AS TRUSTEE, ET AL.; and
No. 22–253. CHUI *v.* CHUI ET AL. Ct. App. Cal., 2d App. Dist., Div. 1. Certiorari denied. Reported below: 75 Cal. App. 5th 873, 291 Cal. Rptr. 3d 213.

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No. 22–259. JONES *v.* UNITED STATES. C. A. Fed. Cir. Certiorari denied. Reported below: 30 F. 4th 1094.

No. 22–260. BURTONSVILLE ASSOCIATES ET AL. *v.* MONTGOMERY COUNTY, MARYLAND, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 29 F. 4th 182.

No. 22–285. B–21 WINES, INC., ET AL. *v.* BAUER, CHAIR, NORTH CAROLINA ALCOHOLIC BEVERAGE CONTROL COMMISSION. C. A. 4th Cir. Certiorari denied. Reported below: 36 F. 4th 214.

No. 22–288. TD BANK, N. A. *v.* PULLIAM ET AL. Sup. Ct. Cal. Certiorari denied. Reported below: 13 Cal. 5th 127, 509 P. 3d 998.

No. 22–289. NATIONAL ASSOCIATION OF REALTORS ET AL. *v.* PLS.COM, LLC. C. A. 9th Cir. Certiorari denied. Reported below: 32 F. 4th 824.

No. 22–309. CITY OF SALINAS, CALIFORNIA *v.* NEW HARVEST CHRISTIAN FELLOWSHIP. C. A. 9th Cir. Certiorari denied. Reported below: 29 F. 4th 596.

No. 22–320. SPIRITO *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 36 F. 4th 191.

No. 22–322. SHAIKH *v.* EINBINDER ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–334. GUAN *v.* BELL ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–341. NEBRASKA EX REL. TIMOTHY L. ASHFORD, P. C. L. L. O., ET AL. *v.* KLEINE ET AL. Ct. App. Neb. Certiorari denied. Reported below: 31 Neb. App. ——.

No. 22–343. KING *v.* NEW YORK ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–345. SILADI *v.* DEUTSCHE BANK NATIONAL TRUST CO. App. Ct. Conn. Certiorari denied.

No. 22–356. DAYE *v.* GARLAND, ATTORNEY GENERAL. C. A. 11th Cir. Certiorari denied. Reported below: 38 F. 4th 1355.

No. 22–359. GIDEY *v.* SETTLEMENT CORP. ET AL. Ct. App. D. C. Certiorari denied.

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No. 22–377. HINDS *v.* TEXAS. Ct. App. Tex., 3d Dist. Certiorari denied.

No. 22–378. HINDS *v.* TEXAS. Ct. App. Tex., 13th Dist. Certiorari denied. Reported below: 627 S. W. 3d 803.

No. 22–380. BRUNSON *v.* ADAMS ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–387. WHITE *v.* MICHIGAN STATE UNIVERSITY UNEMPLOYMENT COMPENSATION DIVISION (two judgments). Cir. Ct. Ingham County, Mich. Certiorari denied.

No. 22–390. JAHANSHAHI *v.* SUPERIOR COURT OF CALIFORNIA, LOS ANGELES COUNTY, ET AL. Sup. Ct. Cal. Certiorari denied.

No. 22–391. JAHANSHAHI *v.* COURT OF APPEAL OF CALIFORNIA, SECOND APPELLATE DISTRICT, ET AL. Sup. Ct. Cal. Certiorari denied.

No. 22–397. FERRARINI *v.* IRGIT ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–399. BROWN *v.* FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–400. BARINHOLTZ *v.* HOMEADVISOR, INC., ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–403. ENDENCIA *v.* AMERICAN PSYCHIATRIC ASSN. ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–405. GRUBB *v.* TEXAS. Ct. App. Tex., 11th Dist. Certiorari denied.

No. 22–407. HERTA *v.* ROBERTS. C. A. 9th Cir. Certiorari denied.

No. 22–408. GUAN *v.* ELLINGSWORTH RESIDENTIAL COMMUNITY ASSN. INC. C. A. 11th Cir. Certiorari denied.

No. 22–409. MOSKOVITS *v.* BANK OF AMERICA, N. A., ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–414. BONNER ET AL. *v.* CHAPMAN, ACTING SECRETARY OF PENNSYLVANIA, ET AL. Sup. Ct. Pa. Certiorari denied. Reported below: 279 A. 3d 539.

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No. 22–415. STUART *v.* ARIZONA. Ct. App. Ariz. Certiorari denied.

No. 22–416. BISWAS *v.* ROUEN ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 808 Fed. Appx. 53.

No. 22–421. D. A. *v.* PORTAGE COUNTY, WISCONSIN. Ct. App. Wis. Certiorari denied. Reported below: 2022 WI App 19, 974 N. W. 2d 55.

No. 22–423. METROPOLITAN GOVERNMENT OF NASHVILLE AND DAVIDSON COUNTY, TENNESSEE, DBA METROPOLITAN NASHVILLE PUBLIC SCHOOLS *v.* DOE ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 35 F. 4th 459.

No. 22–426. TRANSPERFECT GLOBAL, INC., ET AL. *v.* PINCUS. Sup. Ct. Del. Certiorari denied. Reported below: 278 A. 3d 630.

No. 22–428. WALTON *v.* FIRST MERCHANTS BANK. C. A. 7th Cir. Certiorari denied.

No. 22–433. LAWYERS' COMMITTEE FOR 9/11 INQUIRY, INC., ET AL. *v.* GARLAND, ATTORNEY GENERAL OF THE UNITED

STATES, ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 43 F. 4th 276.

No. 22–438. GLOW IN ONE MINI GOLF, L. L. C., ET AL. *v.* WALZ, GOVERNOR OF MINNESOTA, ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 37 F. 4th 1365.

No. 22–439. FRATERNAL ORDER OF POLICE, UNITED STATES PARK POLICE LABOR COMMITTEE *v.* DEPARTMENT OF THE INTERIOR. C. A. Fed. Cir. Certiorari denied.

No. 22–440. DAZA *v.* INDIANA ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–446. PRINCE-MOORE *v.* TEXAS DOW EMPLOYEES CREDIT UNION. C. A. 5th Cir. Certiorari denied.

No. 22–449. LARSON ET UX. *v.* SNOHOMISH COUNTY, WASHINGTON, ET AL. Ct. App. Wash. Certiorari denied. Reported below: 20 Wash. App. 2d 243, 499 P. 3d 957.

No. 22–453. YOO *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 43 F. 4th 64.

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No. 22–454. WEBB *v.* U. S. BANK N. A., AS TRUSTEE FOR CRMSI REMIC SERIES 2006–03 REMIC PASS-THROUGH CERTIFICATES, SERIES 2006–03. Sup. Ct. Okla. Certiorari denied.

No. 22–457. WHYTE *v.* WINKLESKI, WARDEN. C. A. 7th Cir. Certiorari denied. Reported below: 34 F. 4th 617.

No. 22–463. AENERGY, S. A., ET AL. *v.* REPUBLIC OF ANGOLA ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 31 F. 4th 119.

No. 22–467. HANWJH *v.* NBA PROPERTIES, INC., ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 46 F. 4th 614.

No. 22–470. OCELTIP AVIATION 1 PTY LTD. *v.* GULFSTREAM AEROSPACE CORP. C. A. 11th Cir. Certiorari denied. Reported below: 31 F. 4th 1323.

No. 22–473. HANCOCK COUNTY LAND ACQUISITIONS, LLC *v.* UNITED STATES ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–475. EFREOM ET AL. *v.* MCKEE, GOVERNOR OF RHODE ISLAND, ET AL. C. A. 1st Cir. Certiorari denied. Reported below: 46 F. 4th 9.

No. 22–476. Fraternal Order of Police, Metropolitan Police Department Labor Committee, D. C. Police Union *v.* District of Columbia et al. C. A. D. C. Cir. Certiorari denied. Reported below: 45 F. 4th 954.

No. 22–480. City of Palestine, Texas, et al. *v.* Union Pacific Railroad Co. C. A. 5th Cir. Certiorari denied. Reported below: 41 F. 4th 696.

No. 22–485. McNeil *v.* United States. C. A. 9th Cir. Certiorari denied.

No. 22–487. Armstrong *v.* Lumpkin, Director, Texas Department of Criminal Justice, Correctional Institutions Division. C. A. 5th Cir. Certiorari denied.

No. 22–494. DePierro *v.* Las Vegas Police Protective Association Metro, Inc., et al. C. A. 9th Cir. Certiorari denied.

No. 22–496. Jackson *v.* Colorado. Ct. App. Colo. Certiorari denied.

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No. 22–505. Pledger *v.* Geither, Warden. C. A. 10th Cir. Certiorari denied.

No. 22–509. J. T. H. et al. *v.* Cook. C. A. 8th Cir. Certiorari denied. Reported below: 39 F. 4th 489.

No. 22–512. Hammoud *v.* Ma'at, Warden. C. A. 5th Cir. Certiorari denied. Reported below: 49 F. 4th 874.

No. 22–514. Rodriguez *v.* United States. C. A. 11th Cir. Certiorari denied. Reported below: 34 F. 4th 961.

No. 22–515. Traver *v.* Pennsylvania. Super. Ct. Pa. Certiorari denied. Reported below: 272 A. 3d 460.

No. 22–530. Bench *v.* United States. C. A. Armed Forces. Certiorari denied.

No. 22–543. Sanchez et al. *v.* District of Columbia Office of the State Superintendent of Education et al. C. A. D. C. Cir. Certiorari denied. Reported below: 45 F. 4th 388.

No. 22–5111. HARPER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5218. CARR *v.* KANSAS. Sup. Ct. Kan. Certiorari denied. Reported below: 314 Kan. 615, 502 P. 3d 546.

No. 22–5319. ROLLINS *v.* AMES, SUPERINTENDENT, MOUNT OLIVE CORRECTIONAL COMPLEX. Sup. Ct. App. W. Va. Certiorari denied.

No. 22–5336. BERRYMAN *v.* MISSISSIPPI. Ct. App. Miss. Certiorari denied. Reported below: 337 So. 3d 1116.

No. 22–5487. HALL *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5495. THOMAS *v.* MICHIGAN. Ct. App. Mich. Certiorari denied.

No. 22–5503. VARGAS-SOTO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 35 F. 4th 979.

No. 22–5536. MAHDI *v.* STIRLING, COMMISSIONER, SOUTH CAROLINA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 20 F. 4th 846.

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No. 22–5540. VILLEGAS PEREZNEGRON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5549. MAXIME *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–5576. RUTTANAMONGKONGUL *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 35 F. 4th 615.

No. 22–5618. BROOKING *v.* PRINCE GEORGE'S COUNTY, MARYLAND. Ct. Sp. App. Md. Certiorari denied. Reported below: 254 Md. App. 720 and 734.

No. 22–5667. STEVENS *v.* DAVIS, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 25 F. 4th 1141.

No. 22–5675. GAPEN *v.* OHIO. Ct. App. Ohio, 2d App. Dist., Montgomery County. Certiorari denied. Reported below: 2021-Ohio-3252.

No. 22–5731. CARR *v.* KANSAS. Sup. Ct. Kan. Certiorari denied. Reported below: 314 Kan. 744, 502 P. 3d 511.

No. 22–5736. SALGADO MARTINEZ *v.* SHINN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 33 F. 4th 1254.

No. 22–5785. FRATTA *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5788. BROOKS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5798. PARSONS *v.* COPELAND PARSONS ET AL. Ct. App. Tex., 6th Dist. Certiorari denied.

No. 22–5805. CRAWFORD ET AL. *v.* SOUTH CAROLINA. Sup. Ct. S. C. Certiorari denied.

No. 22–5808. SPADA *v.* PENNSYLVANIA DEPARTMENT OF CORRECTIONS ET AL. Sup. Ct. Pa. Certiorari denied. Reported below: 280 A. 3d 918.

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No. 22–5813. LANGHORST *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5814. ALLRED *v.* WASHINGTON. Ct. App. Wash. Certiorari denied.

No. 22–5819. VEGA *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5820. MENDEL *v.* RANDOLPH, INDIVIDUALLY AND IN HER OFFICIAL CAPACITY AS COMMISSIONER, CALIFORNIA PUBLIC UTILITIES COMMISSION, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5822. RAY *v.* CROW, DIRECTOR, OKLAHOMA DEPARTMENT OF CORRECTIONS. C. A. 5th Cir. Certiorari denied.

No. 22–5824. RIDLEY *v.* CALDWELL, WARDEN. C. A. 11th Cir. Certiorari denied.

No. 22–5831. SMITH *v.* KING. C. A. 5th Cir. Certiorari denied.

No. 22–5832. SCHMITT *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5839. MASON *v.* COLORADO. Ct. App. Colo. Certiorari denied.

No. 22–5840. SHOOK *v.* FLORIDA ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5843. BATTS *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF NORTH CAROLINA. C. A. 4th Cir. Certiorari denied.

No. 22–5844. NICOLAS *v.* FLORIDA. C. A. 11th Cir. Certiorari denied.

No. 22–5845. STORA *v.* NEW YORK STATE BOARD OF ELECTIONS. Ct. App. N. Y. Certiorari denied. Reported below: 38 N. Y. 3d 1180, 195 N. E. 3d 532.

No. 22–5850. FENNEY *v.* BELTZ, WARDEN. C. A. 8th Cir. Certiorari denied.

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No. 22–5851. VANISI *v.* REUBART, ACTING WARDEN. Sup. Ct. Nev. Certiorari denied. Reported below: 502 P. 3d 1088.

No. 22–5852. WEBSTER *v.* SELECT PORTFOLIO SERVICING, INC. (two judgments). C. A. 9th Cir. Certiorari denied. Reported below: 859 Fed. Appx. 39 (first judgment) and 190 (second judgment).

No. 22–5853. TRAPP *v.* HUSS, WARDEN, ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–5855. HAMILTON *v.* NORTHERN VIRGINIA DISTRICT OFFICE ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–5856. MCGILL *v.* OKLAHOMA DEPARTMENT OF CORRECTIONS. Ct. Crim. App. Okla. Certiorari denied.

No. 22–5860. WEBSTER *v.* UNITED STATES DISTRICT COURT FOR THE DISTRICT OF OREGON (Reported below: 859 Fed. Appx. 194); and WEBSTER *v.* UNITED STATES BANKRUPTCY COURT FOR THE DISTRICT OF OREGON (859 Fed. Appx. 34). C. A. 9th Cir. Certiorari denied.

No. 22–5861. WEBSTER *v.* OREGON DIVISION OF CHILD SUPPORT (three judgments). C. A. 9th Cir. Certiorari denied. Reported below: 859 Fed. Appx. 186 (first judgment), 192 (second judgment), and 197 (third judgment).

No. 22–5864. RODRIGUEZ *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5868. CAPPIELLO *v.* TEXAS. Ct. App. Tex., 2d Dist. Certiorari denied.

No. 22–5871. STEEL *v.* WINKLESKI, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 22–5885. SURLES *v.* WARDEN, LIMESTONE CORRECTIONAL FACILITY, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5896. JACKSON *v.* INCH ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–5903. POWERS *v.* UNITED STATES POSTAL SERVICE. C. A. 11th Cir. Certiorari denied.

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No. 22–5906. THOMPSON *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 341 So. 3d 303.

No. 22–5907. BROOKING *v.* MOLONEY. Ct. Sp. App. Md. Certiorari denied. Reported below: 254 Md. App. 720 and 731.

No. 22–5908. MCGHEE *v.* VANNOY, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–5916. LASSITER *v.* VIRGINIA. Sup. Ct. Va. Certiorari denied.

No. 22–5922. ANDERSEN *v.* SHAFFER, EXECUTIVE DIRECTOR, CALIFORNIA BOARD OF PAROLE HEARINGS. C. A. 9th Cir. Certiorari denied.

No. 22–5923. BERRY *v.* ILLINOIS. App. Ct. Ill., 3d Dist. Certiorari denied. Reported below: 2022 IL App (3d) 200082–U.

No. 22–5932. CASAVELLI ET UX. *v.* JOHANSON, INDIVIDUALLY AND AS PERSONAL REPRESENTATIVE OF THE ESTATE OF JOHANSON, DECEASED. Ct. App. Ariz. Certiorari denied.

No. 22–5933. HOLMES-SMITH *v.* MERIT SYSTEMS PROTECTION BOARD. C. A. Fed. Cir. Certiorari denied.

No. 22–5935. MILLER *v.* SUPERINTENDENT, SHAWANGUNK CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 22–5936. BRADLEY *v.* MICHIGAN. Ct. App. Mich. Certiorari denied.

No. 22–5937. JONES *v.* DISTRICT OF COLUMBIA ET AL. C. A. D. C. Cir. Certiorari denied.

No. 22–5941. WATSON *v.* SHERMAN, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5943. TYLER *v.* KENTUCKY DEPARTMENT OF CORRECTIONS. Ct. App. Ky. Certiorari denied.

No. 22–5945. ADAMS *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–5946. GABRIEL *v.* WINDY HILL FOLIAGE INC. C. A. 11th Cir. Certiorari denied.

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No. 22–5952. REDMOND *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–5953. SWINTON *v.* NEW YORK. App. Div., Sup. Ct. N. Y., 4th Jud. Dept. Certiorari denied.

No. 22–5955. WADE *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied.

No. 22–5957. WILSON *v.* TAMPA POLICE DEPARTMENT. C. A. 11th Cir. Certiorari denied.

No. 22–5959. WHITE *v.* UNITED STATES ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–5963. SPAIN *v.* JONES. App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Certiorari denied. Reported below: 188 App. Div. 3d 1209, 132 N. Y. S. 3d 881.

No. 22–5966. RODRIGUEZ *v.* MINNESOTA. Ct. App. Minn. Certiorari denied.

No. 22–5967. BROWN *v.* ALABAMA. Sup. Ct. Ala. Certiorari denied.

No. 22–5969. DEPTULA *v.* FLORIDA. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 343 So. 3d 1200.

No. 22–5973. SCOTT *v.* SHINN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5974. RAT *v.* BRNOVICH, ATTORNEY GENERAL OF ARIZONA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–5975. PHILLIPS *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5984. BROWN *v.* ADAMS, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–5994. LUCIEN *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–5995. MYERS *v.* CLAYTON COUNTY BOARD OF COMMISSIONERS ET AL. C. A. 11th Cir. Certiorari denied.

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No. 22–5999. FLORES-VAZQUEZ *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. Certiorari denied.

No. 22–6003. WHISTLEBLOWER 7107–16W *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. D. C. Cir. Certiorari denied.

No. 22–6007. WORD *v.* CHRISTIANSEN, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6008. TYSON *v.* FEDERAL BUREAU OF INVESTIGATION ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–6009. CARTER *v.* SOUTH CAROLINA. Ct. App. S. C. Certiorari denied. Reported below: 433 S. C. 352, 857 S. E. 2d 910.

No. 22–6010. PENN *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6015. HUTCHINSON *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 343 So. 3d 50.

No. 22–6016. GRAY *v.* CITY OF DETROIT, MICHIGAN. C. A. 6th Cir. Certiorari denied.

No. 22–6018. HERING *v.* WACHTENDORF, WARDEN. C. A. 8th Cir. Certiorari denied.

No. 22–6019. GREEN *v.* DINH HOANG PHUONG. C. A. 9th Cir. Certiorari denied.

No. 22–6020. ESPOSITO *v.* FLORIDA. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 343 So. 3d 557.

No. 22–6021. GUO *v.* TEXAS. Ct. App. Tex., 5th Dist. Certiorari denied.

No. 22–6026. STRYKER *v.* WISCONSIN. Ct. App. Wis. Certiorari denied. Reported below: 2022 WI App 55, 982 N. W. 2d 357.

No. 22–6028. SAKON *v.* SAKONCHICK ET AL. App. Ct. Conn. Certiorari denied. Reported below: 210 Conn. App. 903, 267 A. 3d 369.

No. 22–6032. LITTLE *v.* HAYNES, SUPERINTENDENT, STAFFORD CREEK CORRECTIONS CENTER. C. A. 9th Cir. Certiorari denied.

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No. 22–6033. SCHILLINGER *v.* KILEY ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–6034. STOCK *v.* BRASWELL ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6035. REED *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied.

No. 22–6040. WYTTENBACH *v.* COOPER, GOVERNOR OF NORTH CAROLINA. C. A. 4th Cir. Certiorari denied.

No. 22–6042. HAYES *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied.

No. 22–6043. CANTE-DONDIEGO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6044. REMBERT *v.* MOODY, ATTORNEY GENERAL OF FLORIDA, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–6046. OWNEY *v.* UNITED STATES; and

No. 22–6085. NEVILLE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 35 F. 4th 293.

No. 22–6050. DOE *v.* CITY OF BATON ROUGE, LOUISIANA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6053. SKAGGS *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 25 F. 4th 494.

No. 22–6059. OPARAJI *v.* MUNICIPAL CREDIT UNION. C. A. 2d Cir. Certiorari denied.

No. 22–6061. WATKINS *v.* MEDEIROS, SUPERINTENDENT, MASSACHUSETTS CORRECTIONAL INSTITUTION AT NORFOLK. C. A. 1st Cir. Certiorari denied. Reported below: 36 F. 4th 373.

No. 22–6062. GILLEN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6063. GUTIERREZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6064. FETTIG *v.* HILTON GARDEN INNS MANAGEMENT, LLC, ET AL. Ct. App. Cal., 2d App. Dist. Certiorari denied. Reported below: 78 Cal. App. 5th 264, 293 Cal. Rptr. 3d 404.

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No. 22–6065. SHAH *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 43 F. 4th 356.

No. 22–6067. AL-MADANI *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 27 F. 4th 1155.

No. 22–6072. BELCHER *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 40 F. 4th 430.

No. 22–6073. CHOW *v.* MA LEYBA ET AL. Ct. App. Cal., 2d App. Dist., Div. 7. Certiorari denied.

No. 22–6075. DAVIS *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–6078. SCOTT *v.* BANKS. C. A. 5th Cir. Certiorari denied.

No. 22–6080. WREN *v.* MINNESOTA. Ct. App. Minn. Certiorari denied.

No. 22–6081. AHMED Q. *v.* FARIDEH P. App. Div., Sup. Ct. N. Y., 3d Jud. Dept. Certiorari denied. Reported below: 202 App. Div. 3d 1391, 164 N. Y. S. 3d 281.

No. 22–6083. PIERCE *v.* UTAH. Sup. Ct. Utah. Certiorari denied. Reported below: 2022 UT 22, 511 P. 3d 1164.

No. 22–6084. BONTON *v.* HARRIS, SUPERINTENDENT, GREEN HAVEN CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 22–6086. MCCOY *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6087. PEELE *v.* KIJAKAZI, ACTING COMMISSIONER OF SOCIAL SECURITY. C. A. 4th Cir. Certiorari denied.

No. 22–6089. PURAN *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–6090. TRENT *v.* VIRGINIA COMMONWEALTH UNIVERSITY. C. A. 4th Cir. Certiorari denied.

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No. 22–6092. LEWIS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6093. LONDON *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. Certiorari denied.

No. 22–6094. MILTON *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 13 Cal. 5th 893, 515 P. 3d 34.

No. 22–6095. HINKSON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6097. WATKINS *v.* KIJAKAZI, ACTING COMMISSIONER OF SOCIAL SECURITY. C. A. 4th Cir. Certiorari denied.

No. 22–6102. TURNER *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6103. TATAR *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–6104. PARRA-REYES *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6105. MALMSTROM *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6106. PAQUETTE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6107. WILLIAMSON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6108. LUIS RAMIREZ, AKA JOHNSON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6110. HUERTA-CARRANZA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6114. GRIGALANZ *v.* GRIGALANZ. Ct. App. Ind. Certiorari denied. Reported below: 193 N. E. 3d 399.

No. 22–6116. FIELDS *v.* CHEEKS. C. A. 6th Cir. Certiorari denied.

No. 22–6117. MILES *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

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No. 22–6123. HILL *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6124. BAXTER *v.* GRAHAM, SUPERINTENDENT, AUBURN CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 22–6125. RODRIGUEZ-JUAREZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6126. SALT *v.* WATERKEEPER ALLIANCE, INC. C. A. 2d Cir. Certiorari denied.

No. 22–6128. ERWIN *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–6131. MORET *v.* RANGANATHAN ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6132. MENCHER *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6134. RILEY *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2022 IL App (1st) 192603–U.

No. 22–6135. HARDING *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6136. FIGUEROA *v.* MONTGOMERY, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6138. TEASLEY *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6140. WRIGHT *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6141. WADE *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6142. COLLIER *v.* FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–6151. REESE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6153. JOHNSON *v.* SHOOP, WARDEN. C. A. 6th Cir. Certiorari denied.

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No. 22–6155. MCGUIRE *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6156. MCNEAL *v.* BORDERS, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6160. DILTS *v.* BROWN, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6161. SHIELDS *v.* KANSAS. Sup. Ct. Kan. Certiorari denied. Reported below: 315 Kan. 814, 511 P. 3d 931.

No. 22–6166. MENDEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6167. GRAMAJO *v.* NOOTH, SUPERINTENDENT, SNAKE RIVER CORRECTIONAL INSTITUTION. C. A. 9th Cir. Certiorari denied.

No. 22–6168. PEREZ-GONZALEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6169. NAULT *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 41 F. 4th 1073.

No. 22–6172. BENSON *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6177. CARTER *v.* PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION. C. A. 8th Cir. Certiorari denied.

No. 22–6178. BAXTER *v.* BRADLEY. C. A. 2d Cir. Certiorari denied.

No. 22–6180. MENDOZA-VALENCIA *v.* OREGON. Ct. App. Ore. Certiorari denied. Reported below: 319 Ore. App. 847, 510 P. 3d 885.

No. 22–6181. SPEED *v.* FENDER, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6184. NEDD *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Certiorari denied.

No. 22–6185. BOGSETH *v.* SCHIEBNER, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6189. JACKSON *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

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No. 22–6192. NEFF *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

No. 22–6193. ASSA'AD-FALTAS *v.* SOUTH CAROLINA. Sup. Ct. S. C. Certiorari denied.

No. 22–6194. HUFF *v.* UNITED STATES; and MAJOR *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6207. GEORGE *v.* SMITH, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6209. MOLINA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6210. CRICK *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6214. GALLION *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6216. SHINEFLEW *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6217. KEEFE *v.* MONTANA. Sup. Ct. Mont. Certiorari denied. Reported below: 409 Mont. 86, 512 P. 3d 741.

No. 22–6218. BRITO-BRITO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6220. MONCADA-AGUIRRE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6221. MARTINEZ-HERNANDEZ *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied.

No. 22–6225. KIEFFER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6228. SANCHEZ-JUAREZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6231. POOLE *v.* FLORIDA. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 343 So. 3d 1200.

No. 22–6233. MAYS *v.* BLACK, WARDEN. C. A. 6th Cir. Certiorari denied.

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No. 22–6238. FIREWALKER-FIELDS *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Certiorari denied.

No. 22–6242. BURKE *v.* JEFFERSON, WARDEN. C. A. 11th Cir. Certiorari denied.

No. 22–6244. MORGAN *v.* REGENTS OF THE UNIVERSITY OF CALIFORNIA ET AL. Ct. App. Cal., 2d App. Dist., Div. 5. Certiorari denied.

No. 22–6246. OSORIO-MENDEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6247. MUNGUIA-PORTALES *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6249. RIOS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6250. DURY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6253. MOLLER, AKA ROBINSON *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied.

No. 22–6254. MURRAY *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6255. GATES *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 48 F. 4th 463.

No. 22–6257. BORDERS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6258. YOUNG *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6259. FOWLER *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 48 F. 4th 1022.

No. 22–6262. PATEL *v.* WATSON, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 22–6265. BHASKAR *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–6266. EARL MOORE *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

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No. 22–6267. DOAK *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 47 F. 4th 1340.

No. 22–6274. KILLINGBECK *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–6277. PAVULAK *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–6310. MCCRAY *v.* CAPRA, SUPERINTENDENT, SING SING CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied. Reported below: 45 F. 4th 634.

No. 22–163. MOSES *v.* UNITED STATES. C. A. 4th Cir. Motion of Cato Institute for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 23 F. 4th 347.

No. 22–235. MORRISSEY ET AL. *v.* MAYORKAS, SECRETARY OF HOMELAND SECURITY, ET AL. C. A. D. C. Cir. Motion of Professors of Civil Procedure for leave to file brief as *amici curiae* granted. Certiorari denied. Reported below: 17 F. 4th 1150.

No. 22–243. MUSEUM OF FINE ARTS ET AL. *v.* DE CSEPEL ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE KAVA-

NAUGH and JUSTICE JACKSON took no part in the consideration or decision of this petition. Reported below: 27 F. 4th 736.

No. 22–310. A. W. ET AL. *v.* PRINCETON PUBLIC SCHOOLS BOARD OF EDUCATION ET AL. C. A. 3d Cir. Motion of petitioners for leave to file reply brief with supplemental appendix under seal and to seal the appendix to brief in opposition granted. Certiorari denied.

No. 22–323. OAKBROOK LAND HOLDINGS, LLC, ET AL. *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. 6th Cir. Motion of National Taxpayers Union Foundation for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 28 F. 4th 700.

No. 22–327. CONFEDERACIÓN HÍPICA DE PUERTO RICO, INC., ET AL. *v.* CONFEDERACIÓN DE JINETES PUERTORRIQUEÑOS, INC., ET AL. C. A. 1st Cir. Motion of Chamber of Commerce of the United States of America for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 30 F. 4th 306.

No. 22–339. PFIZER INC. *v.* DEPARTMENT OF HEALTH AND HUMAN SERVICES ET AL. C. A. 2d Cir. Motion of National Minority Quality Forum for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 42 F. 4th 67.

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No. 22–376. LOUISVILLE-JEFFERSON COUNTY, KENTUCKY METROPOLITAN GOVERNMENT, ET AL. *v.* CARR. C. A. 6th Cir. Motion of International Municipal Lawyers Association for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 37 F. 4th 389.

No. 22–406. FRIEDRICHSEN *v.* RAMON RODRIGUEZ ET AL. Sup. Ct. Tex. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 22–437. HERNANDEZ-ORTEZ ET AL. *v.* GARLAND, ATTORNEY GENERAL. C. A. 11th Cir. Motion of American Gateways for leave to file brief as *amicus curiae* granted. Certiorari denied.

No. 22–5538. MAUMAU *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition. Reported below: 23 F. 4th 1277.

No. 22–5913. BERMAN *v.* DRAPER. C. A. D. C. Cir. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition.

No. 22–5915. RAE *v.* CHILDREN'S NATIONAL MEDICAL CENTER ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition.

No. 22–6041. WILLIAMS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

No. 22–6137. THORNTON *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

Rehearing Denied

No. 21–1566. JUNO THERAPEUTICS, INC., ET AL. *v.* KITE PHARMA, INC., 598 U. S. 1017;

No. 21–7777. DAVIS *v.* TEXAS, 598 U. S. 923;

No. 21–7830. STARR *v.* UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF OKLAHOMA; and STARR *v.* CROW, DIRECTOR, OKLAHOMA DEPARTMENT OF CORRECTIONS, 598 U. S. 924;

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No. 21–7953. MCCASTER *v.* NEAL, WARDEN, 598 U. S. 927;

No. 21–7998. WILSON *v.* PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION, 598 U. S. 929;

No. 21–8098. CHRISTIAN *v.* FLORIDA, 598 U. S. 934;

No. 21–8155. VICE *v.* CITY OF FORT MADISON, IOWA, ET AL., 598 U. S. 937;

No. 21–8192. THUMS *v.* FUCHS, WARDEN, 598 U. S. 939;

No. 21–8210. LEE *v.* MARYLAND, 598 U. S. 940;

No. 22–107. BURKE *v.* CRITERION GENERAL, INC., ET AL., 598 U. S. 949;

No. 22–162. ALABBASSI *v.* WORMUTH, SECRETARY OF THE ARMY, 598 U. S. 1001;

No. 22–173. SWARTZ *v.* BOARD OF TRUSTEES OF UNIVERSITY OF PENNSYLVANIA ET AL., 598 U. S. 1001;

No. 22–180. STANEK ET AL. *v.* ST. CHARLES COMMUNITY UNIT SCHOOL DISTRICT NO. 303 BOARD OF EDUCATION ET AL., 598 U. S. 1007;

No. 22–217. KIM *v.* SUPERIOR COURT OF CALIFORNIA, COUNTY OF RIVERSIDE, 598 U. S. 1060;

No. 22–218. KNAPP *v.* METROPOLITAN GOVERNMENT OF NASHVILLE AND DAVIDSON COUNTY, TENNESSEE, ET AL., 598 U. S. 1060;

No. 22–249. CHAMBERS SELF-STORAGE OAKDALE, LLC *v.* WASHINGTON COUNTY, MINNESOTA, 598 U. S. 1018;

No. 22–265. CAPUTO *v.* WELLS FARGO ADVISORS, LLC, 598 U. S. 1008;

No. 22–292. SULLIVAN *v.* COMMISSIONER OF INTERNAL REVENUE, 598 U. S. 1061;

No. 22–5031. SAWYER *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, 598 U. S. 951;

No. 22–5038. KENNEDY *v.* WATTS ET AL., 598 U. S. 952;

No. 22–5056. SERRANO *v.* UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF TEXAS, 598 U. S. 953;

No. 22–5086. GASSESSE *v.* UNIVERSITY OF CONNECTICUT, 598 U. S. 1061;

No. 22–5098. TORLUCCI *v.* CALIFORNIA, 598 U. S. 955;

No. 22–5275. BOLES *v.* LONG, WARDEN, ET AL., 598 U. S. 978;

No. 22–5286. PALATO *v.* HAMILTON ET AL., 598 U. S. 964;

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No. 22–5357. DEANNA D. *v.* TENNESSEE DEPARTMENT OF CHILDREN'S SERVICES, 598 U. S. 1002;

No. 22–5425. BURCH *v.* BANK OF AMERICA, N. A., 598 U. S. 1009;

No. 22–5433. WILSON *v.* STATE FARM GENERAL INSURANCE CO., 598 U. S. 1019;

No. 22–5438. SIMPSON *v.* NORTH CAROLINA DEPARTMENT OF PUBLIC SAFETY, 598 U. S. 1009;

No. 22–5447. SCHNEIDER *v.* BANK OF AMERICA, N. A., ET AL., 598 U. S. 1002;

No. 22–5457. WREH *v.* GIANOTOS ET AL., 598 U. S. 1009;

No. 22–5481. FERGUSON *v.* GETTEL MANAGEMENT GROUP, 598 U. S. 1010;

No. 22–5526. BURCH *v.* HOMEWARD RESIDENTIAL INC., 598 U. S. 984;

No. 22–5531. CHRISTIAN *v.* REPUBLICAN PARTY ET AL., 598 U. S. 1062;

No. 22–5543. ANDERSON *v.* GENERAL MOTORS LLC ET AL., 598 U. S. 1010;

No. 22–5563. BROWN *v.* PENNSYLVANIA ET AL., 598 U. S. 1062;

No. 22–5578. WILLS *v.* FIRST REPUBLIC BANK, 598 U. S. 1063;

No. 22–5756. WARNER *v.* ZOOK, WARDEN, 598 U. S. 1013;
No. 22–5766. KINKADE *v.* UNITED STATES, 598 U. S. 1013; and
No. 22–6000. CLEMENT *v.* DRUG ENFORCEMENT ADMINISTRATION, 598 U. S. 1102. Petitions for rehearing denied.

No. 22–5220. KARUPAIYAN *v.* SINGH ET AL., 598 U. S. 977. Motion for leave to file petition for rehearing denied.

No. 22–5430. BROWN *v.* UNITED STATES, 598 U. S. 997. Petition for rehearing denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

JANUARY 10, 2023

Certiorari Denied

No. 22–6476 (22A603). FRATTA *v.* TEXAS. Ct. Crim. App. Tex. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Certiorari denied.

JANUARY 11, 2023

Miscellaneous Order

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No. 22A557. ANTONYUK ET AL. *v.* NIGRELLI, ACTING SUPERINTENDENT OF NEW YORK STATE POLICE, ET AL. C. A. 2d Cir. Application to vacate stay, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, denied.

Statement of JUSTICE ALITO, with whom JUSTICE THOMAS joins, respecting the denial of the application to vacate stay.

The New York law at issue in this application presents novel and serious questions under both the First and the Second Amendments. The District Court found, in a thorough opinion, that the applicants were likely to succeed on a number of their claims, and it issued a preliminary injunction as to twelve provisions of the challenged law. With one exception, the Second Circuit issued a stay of the injunction in full, and in doing so did not provide any explanation for its ruling. App. to Emergency Application 2. In parallel cases presenting related issues, the Second Circuit has likewise issued unreasoned summary stay orders, but in those cases it has ordered expedited briefing. See, *e. g.*, Order in *Hardaway* v. *Nigrelli*, No. 22–2933 (CA2, Dec. 7, 2022), ECF Doc. 53; Order in *Christian* v. *Nigrelli*, No. 22–2987 (CA2, Dec. 12, 2022), ECF Doc. 40.

I understand the Court's denial today to reflect respect for the Second Circuit's procedures in managing its own docket, rather than expressing any view on the merits of the case. Applicants should not be deterred by today's order from again seeking relief if the Second Circuit does not, within a reasonable time, provide an explanation for its stay order or expedite consideration of the appeal.

JANUARY 13, 2023

Certiorari Granted

No. 22–138. COUNTERMAN *v.* COLORADO. Ct. App. Colo. Certiorari granted. Reported below: 497 P. 3d 1039.

No. 22–166. TYLER *v.* HENNEPIN COUNTY, MINNESOTA, ET AL. C. A. 8th Cir. Certiorari granted. Reported below: 26 F. 4th 789.

No. 22–174. GROFF *v.* DEJOY, POSTMASTER GENERAL. C. A. 3d Cir. Certiorari granted. Reported below: 35 F. 4th 162.

No. 22–210. DUPREE *v.* YOUNGER. C. A. 4th Cir. Certiorari granted.

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No. 22–227. LAC DU FLAMBEAU BAND OF LAKE SUPERIOR CHIPPEWA INDIANS ET AL. *v.* COUGHLIN. C. A. 1st Cir. Certiorari granted. Reported below: 33 F. 4th 600.

No. 21–1326. UNITED STATES ET AL. EX REL. SCHUTTE ET AL. *v.* SUPERVALU INC. ET AL.; and

No. 22–111. UNITED STATES ET AL. EX REL. PROCTOR *v.* SAFEWAY, INC. C. A. 7th Cir. Certiorari granted, cases consolidated, and a total of one hour is allotted for oral argument. Reported below: No. 21–1326, 9 F. 4th 455; No. 22–111, 30 F. 4th 649.

No. 22–23. PUGIN *v.* GARLAND, ATTORNEY GENERAL. C. A. 4th Cir.; and

No. 22–331. GARLAND, ATTORNEY GENERAL *v.* CORDERO-GARCIA, AKA CORDERO. C. A. 9th Cir. Certiorari granted limited to the following question: "To qualify as 'an offense relating to obstruction of justice,' 8 U. S. C. § 1101(a)(43)(S), must a predicate offense require a nexus with a pending or ongoing investigation or judicial proceeding?" Cases consolidated, and a total of one hour is allotted for oral argument. Reported below: No. 22–23, 19 F. 4th 437; No. 22–331, 44 F. 4th 1181.

No. 22–381. YEGIAZARYAN, AKA EGIAZARYAN *v.* SMAGIN ET AL.; and

No. 22–383. CMB MONACO, FKA COMPAGNIE MONEGASQUE DE BANQUE *v.* SMAGIN ET AL. C. A. 9th Cir. Certiorari granted, cases consolidated, and a total of one hour is allotted for oral argument. Reported below: 37 F. 4th 562.

JANUARY 17, 2023

Certiorari Dismissed

No. 22–6115. FABRICANT *v.* FEDERAL ELECTION COMMISSION ET AL. C. A. D. C. Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. JUSTICE JACKSON took no part in the consideration or decision of this motion and this petition.

Miscellaneous Orders

No. D–3103. IN RE DISCIPLINE OF BENEDICT. Timothy A. Benedict, of Rome, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

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No. D–3104. IN RE DISCIPLINE OF HECHT. Gerald Hecht, of Danbury, Conn., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3105. IN RE DISCIPLINE OF BERG. Freddie Jay Berg, of Brooklyn, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3106. IN RE DISCIPLINE OF HARRIS. Arthur L. Harris, Sr., of Lake Charles, La., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3107. IN RE DISCIPLINE OF SPRADLING. Jacqueline J. Spradling, of Iola, Kan., is suspended from the practice of law in

this Court, and a rule will issue, returnable within 40 days, requiring her to show cause why she should not be disbarred from the practice of law in this Court.

No. 22M61. ANGEL MOTA *v.* UNITED STATES. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 22M62. MOORE *v.* UNITED STATES. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal denied.

No. 21–757. AMGEN INC. ET AL. *v.* SANOFI ET AL. C. A. Fed. Cir. [Certiorari granted, 598 U. S. 1015.] Motion of petitioners to dispense with printing joint appendix granted.

No. 22–203. APPLE INC. ET AL. *v.* CALIFORNIA INSTITUTE OF TECHNOLOGY. C. A. Fed. Cir. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

No. 22–5778. BURCH *v.* AMERICA'S SERVICING CO. ET AL. C. A. 5th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 1092] denied.

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Certiorari Denied

No. 22–108. WATKINSON *v.* ALASKA DEPARTMENT OF CORRECTIONS ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–352. MISSOURI *v.* YELLEN, SECRETARY OF THE TREASURY, ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 39 F. 4th 1063.

No. 22–442. ROMERO ET VIR *v.* LI-CHUAN SHIH ET AL. Ct. App. Cal., 2d App. Dist., Div. 8. Certiorari denied. Reported below: 78 Cal. App. 5th 326, 293 Cal. Rptr. 3d 477.

No. 22–444. KHAN *v.* PRESENCE CHICAGO HOSPITALS NETWORK ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–452. CURRY-MALCOLM *v.* NEW YORK STATE DIVISION OF HUMAN RIGHTS ET AL. Ct. App. N. Y. Certiorari denied. Reported below: 38 N. Y. 3d 1050, 190 N. E. 3d 1171.

No. 22–461. TROOGSTAD ET AL. *v.* CITY OF CHICAGO, ILLINOIS, ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 47 F. 4th 587.

No. 22–462. WATTS *v.* STEWART ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–466. HEREDEROS DE ROBERTO GOMEZ CABRERA, LLC *v.* TECK RESOURCES LTD. C. A. 11th Cir. Certiorari denied. Reported below: 43 F. 4th 1303.

No. 22–478. GRECO *v.* PLATKIN, ATTORNEY GENERAL OF NEW JERSEY, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–479. ONYSKO *v.* WALSH, SECRETARY OF LABOR, ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–491. DELGADO *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–493. BOJICIC, DBA EVOLVE DANCE CO., LLC, ET AL. *v.* DEWINE, INDIVIDUALLY AND IN HIS OFFICIAL CAPACITY AS THE GOVERNOR OF OHIO, ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–552. CAMELLIA GRILL HOLDINGS, INC. *v.* GRILL HOLDINGS, L. L. C., ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 46 F. 4th 374.

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No. 22–559. VICTOR ELIAS PHOTOGRAPHY, LLC *v.* ICE PORTAL, INC. C. A. 11th Cir. Certiorari denied. Reported below: 43 F. 4th 1313.

No. 22–563. GREER, INDIVIDUALLY AND AS PERSONAL REPRESENTATIVE OF THE ESTATE OF GREER, DECEASED *v.* HAMAN ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–567. MATTOS ET AL. *v.* AMERICAN FEDERATION OF STATE, COUNTY AND MUNICIPAL EMPLOYEES, COUNCIL 3. C. A. 4th Cir. Certiorari denied.

No. 22–572. GLEN *v.* TRIP ADVISOR LLC ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–5184. STOUTAMIRE *v.* SHOOP, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–5545. FOLKES *v.* WILLIAMS, WARDEN. C. A. 4th Cir. Certiorari denied. Reported below: 34 F. 4th 258.

No. 22–5734. SAUNDERS *v.* RAYBON, WARDEN. C. A. 11th Cir. Certiorari denied.

No. 22–5747. BROWN *v.* BROWN ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–6036. ROBINSON *v.* SIMONE ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–6048. ROBINSON *v.* SCHWEITZER, WARDEN. Ct. App. Ohio, 12th App. Dist., Madison County. Certiorari denied. Reported below: 2022-Ohio-568.

No. 22–6052. SLADE *v.* SUPREME COURT OF OHIO. Sup. Ct. Ohio. Certiorari denied.

No. 22–6066. STEPHENS *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6068. BRAXTON *v.* SUPERIOR COURT OF THE DISTRICT OF COLUMBIA. Ct. App. D. C. Certiorari denied.

No. 22–6069. SPEARMAN *v.* PARSON ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–6070. ROCHESTER *v.* CITY OF NEW YORK, NEW YORK, ET AL. Sup. Ct. N. Y., Bronx County. Certiorari denied.

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No. 22–6071. BRACAMONTES *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 12 Cal. 5th 977, 507 P. 3d 939.

No. 22–6074. SEARS *v.* ROBERTS ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–6077. DONNELL *v.* CALEY, WARDEN, ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–6079. SAMERU *v.* MINNESOTA. Ct. App. Minn. Certiorari denied.

No. 22–6098. LEWIS *v.* TEXAS. Ct. App. Tex., 6th Dist. Certiorari denied.

No. 22–6099. LEWIS *v.* HOKE COUNTY, NORTH CAROLINA, ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–6100. JONATHAN *v.* FLORIDA. Dist. Ct. App. Fla., 2d Dist. Certiorari denied.

No. 22–6101. THOMPSON *v.* FLORIDA. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 343 So. 3d 549.

No. 22–6133. PRIESTER *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–6152. KENNEDY *v.* JONES. C. A. 11th Cir. Certiorari denied.

No. 22–6227. CORINES *v.* NEW YORK. App. Div., Sup. Ct. N. Y., 2d Jud. Dept. Certiorari denied. Reported below: 204 App. Div. 3d 827, 166 N. Y. S. 3d 260.

No. 22–6346. JOHNSON *v.* FENDER, WARDEN. C. A. 6th Cir. Certiorari denied.

Rehearing Denied

No. 22–279. CAVE *v.* SACHDEVA ET AL., 598 U. S. 1079. Petition for rehearing denied.

JANUARY 18, 2023

Miscellaneous Order

No. 22A591. GAZZOLA ET AL. *v.* HOCHUL, GOVERNOR OF NEW YORK, ET AL. C. A. 2d Cir. Application for writ of injunction, presented to JUSTICE SOTOMAYOR, and by her referred to the Court, denied.

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JANUARY 23, 2023

Miscellaneous Orders

No. D–3067. IN RE DISBARMENT OF SHARBROUGH. Disbarment entered. [For earlier order herein, see 592 U. S. 1349.]

No. D–3069. IN RE DISBARMENT OF BAGGS. Disbarment entered. [For earlier order herein, see 592 U. S. 1349.]

No. D–3070. IN RE DISBARMENT OF BRETTSCHNEIDER. Disbarment entered. [For earlier order herein, see 592 U. S. 1349.]

No. D–3072. IN RE DISBARMENT OF KARAMBELAS. Disbarment entered. [For earlier order herein, see 592 U. S. 1350.]

No. D–3073. IN RE DISBARMENT OF KECK. Disbarment entered. [For earlier order herein, see 592 U. S. 1350.]

No. D–3076. IN RE DISBARMENT OF SARDELLA. Disbarment entered. [For earlier order herein, see 593 U. S. 911.]

No. D–3080. In re Disbarment of Kaufman. Disbarment entered. [For earlier order herein, see 593 U. S. 911.]

No. D–3081. In re Disbarment of Reed. Disbarment entered. [For earlier order herein, see 597 U. S. 956.]

No. D–3082. In re Disbarment of Shirk. Disbarment entered. [For earlier order herein, see 597 U. S. 956.]

No. D–3084. In re Disbarment of Lovett. Disbarment entered. [For earlier order herein, see 597 U. S. 956.]

No. D–3085. In re Disbarment of Brennan. Disbarment entered. [For earlier order herein, see 597 U. S. 956.]

No. 22M63. Rankin *v.* Brian Lavan & Associates, P. C., et al. Motion for leave to proceed as a veteran denied.

No. 22M64. Wright *v.* Alaska; and

No. 22M66. Hines *v.* Boston Public Schools. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

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No. 22M65. Trapps *v.* United States. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 22–277. Moody, Attorney General of Florida, et al. *v.* NetChoice, LLC, dba NetChoice, et al.; and

No. 22–393. NetChoice, LLC, dba NetChoice, et al. *v.* Moody, Attorney General of Florida, et al. C. A. 11th Cir. The Solicitor General is invited to file a brief in these cases expressing the views of the United States.

No. 22–555. Net Choice, LLC, dba NetChoice, et al *v.* Paxton, Attorney General of Texas. C. A. 5th Cir. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

No. 22–6111. In re Nickelson; and

No. 22–6224. Shahrokhi *v.* Burrow. Sup. Ct. Nev. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until February 13, 2023, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 22–6146. IN RE NAVARRO-MARTIN. Petition for writ of mandamus denied.

No. 22–6200. IN RE LOPEZ. Petition for writ of prohibition denied.

Certiorari Denied

No. 22–95. FILE *v.* HICKEY ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 33 F. 4th 385.

No. 22–263. WANTOU *v.* WAL-MART STORES TEXAS, L. L. C. C. A. 5th Cir. Certiorari denied. Reported below: 23 F. 4th 422.

No. 22–336. REED *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 39 F. 4th 1285.

No. 22–375. WORD OF GOD FELLOWSHIP, INC., DBA DAYSTAR TELEVISION NETWORK *v.* VIMEO, INC., ET AL. App. Div., Sup. Ct. N. Y., 1st Jud. Dept. Certiorari denied. Reported below: 205 App. Div. 3d 23, 166 N. Y. S. 3d 3.

No. 22–402. VORLEY *v.* UNITED STATES; and

No. 22–419. CHANU *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 40 F. 4th 528.

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No. 22–460. PLUMB ET AL. *v.* U. S. BANK N. A. ET AL. Ct. App. Wash. Certiorari denied. Reported below: 19 Wash. App. 2d 1010.

No. 22–477. GUNN *v.* WILD. C. A. 6th Cir. Certiorari denied.

No. 22–482. KEVIN KERVENG TUNG, P. C., ET AL. *v.* FOU. Super. Ct. N. J., App. Div. Certiorari denied.

No. 22–489. BERTRAM *v.* U. S. BANK N. A., AS TRUSTEE. Dist. Ct. App. Fla., 2d Dist. Certiorari denied.

No. 22–503. STENSTROM ET AL. *v.* DELAWARE COUNTY BOARD OF ELECTIONS. Commw. Ct. Pa. Certiorari denied. Reported below: 271 A. 3d 537.

No. 22–508. GREEN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 47 F. 4th 279.

No. 22–521. PIDGEON ET AL. *v.* TURNER, MAYOR OF THE CITY OF HOUSTON, TEXAS, ET AL. Ct. App. Tex., 14th Dist. Certiorari denied. Reported below: 625 S. W. 3d 583.

No. 22–522. Applied Underwriters, Inc., et al. *v.* Lara, Commissioner, California Department of Insurance, et al. C. A. 9th Cir. Certiorari denied. Reported below: 37 F. 4th 579.

No. 22–537. Hakim *v.* United States. C. A. 9th Cir. Certiorari denied.

No. 22–550. Jackson *v.* Mississippi. Sup. Ct. Miss. Certiorari denied.

No. 22–561. Winget et al. *v.* Alter Domus, LLC. C. A. 6th Cir. Certiorari denied.

No. 22–577. Wright *v.* Service Employees International Union Local 503 et al. (Reported below: 48 F. 4th 1112); and Zielinski *v.* Service Employees International Union Local 503 et al. C. A. 9th Cir. Certiorari denied.

No. 22–5102. Daniels *v.* United States. C. A. 4th Cir. Certiorari denied.

No. 22–5206. Duka *v.* United States. C. A. 3d Cir. Certiorari denied. Reported below: 27 F. 4th 189.

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No. 22–5752. Suggs *v.* Warden, Federal Correctional Institution, Loretto. C. A. 3d Cir. Certiorari denied.

No. 22–5765. Parker, Individually and on Behalf of Her Minor Daughter, N. P. *v.* West Carroll Special School District. C. A. 6th Cir. Certiorari denied.

No. 22–5793. Forrest et ux. *v.* United States. C. A. Fed. Cir. Certiorari denied.

No. 22–5857. Enyinnaya *v.* United States. C. A. 4th Cir. Certiorari denied.

No. 22–5879. Thurman *v.* United States. C. A. 5th Cir. Certiorari denied.

No. 22–5926. Ng *v.* California. Sup. Ct. Cal. Certiorari denied. Reported below: 13 Cal. 5th 448, 513 P. 3d 858.

No. 22–6060. Owens *v.* Simonet. Ct. App. Cal., 2d App. Dist., Div. 6. Certiorari denied.

No. 22–6088. Mataele *v.* California. Sup. Ct. Cal. Certiorari denied. Reported below: 13 Cal. 5th 372, 513 P. 3d 190.

No. 22–6113. GARCIA *v.* HILL, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6118. GLOVER *v.* BOSTROM ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 31 F. 4th 601.

No. 22–6119. FEARENCE *v.* CASH, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6122. ALCOSER *v.* FORD ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–6139. THOMPSON *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6145. RODRIGUEZ *v.* SHINN, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6147. PORTERFIELD *v.* DEPARTMENT OF JUSTICE ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–6148. BRADLEY *v.* FLORIDA. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 227 So. 3d 576.

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No. 22–6149. ARELLANO *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist., Div. 7. Certiorari denied.

No. 22–6162. SCOTT *v.* ARIZONA. Ct. App. Ariz. Certiorari denied.

No. 22–6165. THOMAS *v.* GARLAND, ATTORNEY GENERAL OF THE UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–6176. WOLF ET AL. *v.* FEDERAL BUREAU OF INVESTIGATION. C. A. 2d Cir. Certiorari denied.

No. 22–6281. BASTIDE-HERNANDEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 39 F. 4th 1187.

No. 22–6286. YANG *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 39 F. 4th 893.

No. 22–6289. SINGLETON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6291. DAVIS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6300. CASTRO-SALAZAR *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6302. CANALES *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6305. BASEY *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6349. NEPOMUCENO *v.* REYES, SUPERINTENDENT, SNAKE RIVER CORRECTIONAL INSTITUTION. C. A. 9th Cir. Certiorari denied.

No. 22–6360. HART *v.* RANSOM, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT DALLAS, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6361. FETHEROLF *v.* OHIO. Ct. App. Ohio, 3d App. Dist., Union County. Certiorari denied.

No. 22–6397. DANIEL *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2022 IL App (1st) 182604, 209 N. E. 3d 305.

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No. 22–6402. JOHNSON *v.* CALIFORNIA. Ct. App. Cal., 1st App. Dist., Div. 3. Certiorari denied.

No. 22–6435. SHIPLEY *v.* HOLBROOK. C. A. 9th Cir. Certiorari denied.

No. 22–177. TOTH *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 33 F. 4th 1.

JUSTICE GORSUCH, dissenting.

In the 1930s, Monica Toth's father fled his home in Germany to escape the swell of violent antisemitism. Eventually, he found his way to South America, where he made a new life with his young family and went on to enjoy a successful business career in Buenos Aires. But perhaps owing to his early formative experiences, Ms. Toth's father always kept a reserve of funds in a Swiss bank account. Shortly before his death, he gave Ms. Toth several million dollars, also in a Swiss bank account. He encouraged his daughter to keep the money there—just in case.

Ms. Toth, now in her eighties and an American citizen, followed her father's advice. For several years, however, she failed to report her foreign bank account to the federal government as the

law requires. 31 U. S. C. § 5314. Ms. Toth insists this was an innocent mistake. She says she did not know of the reporting obligation. And when she learned of it, she says, she completed the necessary disclosures.

The Internal Revenue Service saw things differently. Pursuant to § 5321, the agency charged Ms. Toth with willfully violating § 5314's reporting requirement and assessed a civil penalty of $2.1 million—half of the balance of Ms. Toth's account—plus another $1 million in late fees and interest. Initially, Ms. Toth sought to represent herself in proceedings challenging the IRS's assessment, but that did not go well. Later, Ms. Toth engaged counsel who argued that the IRS's assessment violated the Excessive Fines Clause of the Eighth Amendment. But the First Circuit rejected this line of defense. It held that the Constitution's protection against excessive fines did not apply to Ms. Toth's case because the IRS's assessment against her was "not tied to any criminal sanction" and served a "remedial" purpose. 33 F. 4th 1, 16, 17–19 (2022).

This decision is difficult to reconcile with our precedents. We have recognized that the Excessive Fines Clause "traces its venerable lineage" to Magna Carta and the English Bill of Rights. *Timbs* v. *Indiana*, 586 U. S. 146, 151 (2019). We have held that "[p]rotection against excessive punitive economic sanctions" is "'fundamental'" and "'deeply rooted in this Nation's history and tradition.'" *Id.*, at 154. And all that would mean little if the government could evade constitutional scrutiny under the Clause's terms by the simple expedient of fixing a "civil" label on the fines it imposes and declining to pursue any related "criminal" case. Far from permitting that kind of maneuver, this Court has warned the Constitution guards against it. See *Austin* v. *United States*, 509 U. S. 602, 610 (1993) ("[T]he question is not, as the United States would have it, whether [a monetary penalty] is civil or criminal, but rather whether it is punishment."); see also *Giaccio* v. *Pennsylvania*, 382 U. S. 399, 402 (1966); *Sessions* v. *Dimaya*, 584 U. S. 148, 183–184 (2018) (GORSUCH, J., concurring in part and concurring in judgment).

Nor is a statutory penalty beneath constitutional notice because it serves a "remedial" purpose. Really, the notion of "nonpunitive penalties" is "a contradiction in terms." *United States* v. *Bajakajian*, 524 U. S. 321, 346 (1998) (Kennedy, J., dissenting). Just

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take this case. The government did not calculate Ms. Toth's penalty with reference to any losses or expenses it had incurred. The government imposed its penalty to punish her and, in that way, deter others. Even supposing, however, that Ms. Toth's penalty bore both punitive and compensatory purposes, it would still merit constitutional review. Under our cases a fine that serves even "*in part* to punish" is subject to analysis under the Excessive Fines Clause. *Austin*, 509 U. S., at 610 (emphasis added).

Ms. Toth and her *amici* identify still more reasons to worry about the First Circuit's decision. They say it clashes with the approach many other courts have taken in similar cases. Pet. for Cert. 18–25 (collecting cases). They observe that it incentivizes governments to impose exorbitant civil penalties as a means of raising revenue. *Id.*, at 25–30. And they contend that it is difficult to square with the original understanding of the Eighth Amendment. Brief for Professor Beth A. Colgan as *Amicus Curiae* on Pet. for Cert. 4–13. For all these reasons, taking up this case would have been well worth our time. As things stand, one can only hope that other lower courts will not repeat its mistakes.

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No. 22–6319. BOYD *v.* SALAMON, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT ROCKVIEW, ET AL. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

Rehearing Denied

No. 22–5681. KOMATSU *v.* CITY OF NEW YORK, NEW YORK, ET AL., 598 U. S. 1083;

No. 22–5718. WESTMORELAND *v.* SMITH, WARDEN, 598 U. S. 1098;

No. 22–5762. MATTOX *v.* ARIZONA, 598 U. S. 1020;

No. 22–5804. IN RE LEWIS, 598 U. S. 1017; and

No. 22–5910. IN RE LEWIS, 598 U. S. 1078. Petitions for rehearing denied.

No. 21–8061. LOGAN *v.* MGM GRAND DETROIT CASINO, 598 U. S. 932. Motion of petitioner for leave to file petition for rehearing denied.

No. 22–306. QUARRIE *v.* WELLS ET AL., 598 U. S. 1102. Petition for rehearing denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition.

JANUARY 26, 2023

Miscellaneous Orders

No. 156, Orig. NEW YORK *v.* NEW JERSEY. Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted. [For earlier order herein, see, *e. g.*, 598 U. S. 1105.]

No. 21–1333. GONZALEZ ET AL. *v.* GOOGLE LLC. C. A. 9th Cir. [Certiorari granted, 598 U. S. 909.] Motion of the Acting Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted.

No. 21–1496. TWITTER, INC. *v.* TAAMNEH ET AL. C. A. 9th Cir. [Certiorari granted, 598 U. S. 910.] Motion of the Acting Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted. Motion of Facebook, Inc., and Google LLC for divided argument and for enlargement of time for oral argument denied.

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JANUARY 30, 2023

Miscellaneous Order

No. 22–23. PUGIN *v.* GARLAND, ATTORNEY GENERAL. C. A. 4th Cir.; and

No. 22–331. GARLAND, ATTORNEY GENERAL *v.* CORDERO-GARCIA, AKA CORDERO. C. A. 9th Cir. [Certiorari granted, 598 U. S. 1143.] Briefing proposal set forth in the Solicitor General's letter of January 26, 2023, adopted. The Solicitor General shall file consolidated opening and reply briefs on the merits under the schedules set forth in this Court's Rules 25.1 and 25.3. The consolidated opening brief on the merits is limited to 17,000 words, and the consolidated reply brief is limited to 9,000 words. Any brief for an *amicus curiae* in support, or in support of neither party, shall bear a light green cover. Petitioner in No. 22–23 and respondent in No. 22–331 may each file a brief on the merits under the schedule set forth in Rule 25.2, and the briefs shall bear light red covers. Any brief for an *amicus curiae* in support shall bear a dark green cover.

February 1, 2023

Certiorari Denied

No. 22–6662 (22A683). Ruiz *v.* Texas. Ct. Crim. App. Tex. Application for stay of execution of sentence of death, presented to Justice Alito, and by him referred to the Court, denied. Certiorari denied.

February 7, 2023

Certiorari Denied

No. 22–6713 (22A709). Taylor *v.* Vandergriff, Superintendent, Potosi Correctional Center. Sup. Ct. Mo. Application for stay of execution of sentence of death, presented to Justice Kavanaugh, and by him referred to the Court, denied. Certiorari denied.

February 8, 2023

Certiorari Denied

No. 22–6728 (22A724). Balentine *v.* Texas. Ct. Crim. App. Tex. Application for stay of execution of sentence of death, presented to Justice Alito, and by him referred to the Court, denied. Certiorari denied.

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February 14, 2023

Dismissal Under Rule 46

No. 22–497. Chen *v.* Texas. Ct. Crim. App. Tex. Certiorari dismissed under this Court's Rule 46.

February 21, 2023

Dismissal Under Rule 46

No. 20–1541. Pivotal Software, Inc., et al. *v.* Superior Court of California, City and County of San Francisco, et al. Ct. App. Cal., 1st App. Dist., Div. 5. [Certiorari granted, 594 U. S. 953.] Writ of certiorari dismissed under this Court's Rule 46.

Appeal Dismissed

No. 22–492. Buck et al. *v.* Watson et al. Appeal from D. C. S. D. Miss. dismissed for want of jurisdiction.

Certiorari Dismissed

No. 22–6171. SULLIVAN *v.* UNITED STATES DISTRICT COURT FOR THE DISTRICT OF HAWAII. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–6219. WOOD *v.* MAY, WARDEN, ET AL. C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–6342. KARUPAIYAN *v.* NAGANDA ET AL. C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–6385. GAKUBA *v.* JEFFREYS. C. A. 7th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. JUSTICE BARRETT took no part in the consideration or decision of this motion and this petition.

No. 22–6417. BURGIE *v.* PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION. C. A. 8th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

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Miscellaneous Orders

No. 22A445. HUNT *v.* NATIONSTAR MORTGAGE LLC ET AL. C. A. 11th Cir. Application for stay, addressed to JUSTICE SOTOMAYOR and referred to the Court, denied.

No. D–3086. IN RE DISBARMENT OF MEGARO. Disbarment entered. [For earlier order herein, see 597 U. S. 956.]

No. D–3093. IN RE DISBARMENT OF BRUNER. Disbarment entered. [For earlier order herein, see 598 U. S. 1093.]

No. 22M67. SEALED APPELLANT *v.* SEALED APPELLEE. Motion for leave to file petition for writ of certiorari under seal with redacted copies for the public record denied.

No. 22M68. JADA KU *v.* MONTANA HUMAN RIGHTS BUREAU;
No. 22M69. BRITT *v.* DEJOY, POSTMASTER GENERAL; and
No. 22M71. RAMSINGH *v.* TRANSPORTATION SECURITY ADMINISTRATION. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 22M70. JONES *v.* UNITED STATES. Motion for leave to file petition for writ of certiorari under seal with redacted copies for the public record granted.

No. 22M72. FARIS *v.* DEPARTMENT OF THE AIR FORCE. Motion for leave to proceed as a veteran granted.

No. 21–757. AMGEN INC. ET AL. *v.* SANOFI ET AL. C. A. Fed. Cir. [Certiorari granted, 598 U. S. 1015.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument, granted. Motion of Chemistry and Law Division of the American Chemical Society for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument, denied.

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No. 21–1599. POLSELLI ET AL. *v.* INTERNAL REVENUE SERVICE. C. A. 6th Cir. [Certiorari granted, 598 U. S. 1104.] Motion of petitioners to dispense with printing joint appendix granted.

No. 22–49. LORA *v.* UNITED STATES. C. A. 2d Cir. [Certiorari granted, 598 U. S. 1104.] Motion of petitioner to dispense with printing joint appendix granted.

No. 22–592. ARIZONA ET AL. *v.* MAYORKAS, SECRETARY OF HOMELAND SECURITY, ET AL. [Certiorari granted, 598 U. S. 1112.] Motion of the Solicitor General for divided argument and enlargement of time for oral argument granted.

No. 22–6017. GRIMES *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 1093] denied.

No. 22–6243. BERRY ET UX. *v.* WELLS FARGO BANK, N. A., ET AL. C. A. 5th Cir.;
No. 22–6336. TATE *v.* UNITED STEEL, PAPER AND FORESTRY, RUBBER, MANUFACTURING, ENERGY, ALLIED INDUSTRIAL AND SERVICE WORKERS INTERNAL UNION LOCAL 8363. C. A. 5th Cir.; and

No. 22–6339. JONES *v.* STATE BAR OF CALIFORNIA. Sup. Ct. Cal. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until March 14, 2023, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 22–6507. IN RE CARTER; and
No. 22–6652. IN RE DRUMMOND. Petitions for writs of habeas corpus denied.

No. 22–6684. IN RE SALERNO. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of habeas corpus dismissed. See this Court's Rule 39.8.

No. 22–6235. IN RE GRAHAM; and
No. 22–6469. IN RE CRAWFORD. Petitions for writs of mandamus denied.

No. 22–6154. IN RE HARRISON. Petition for writ of mandamus denied. JUSTICE BARRETT took no part in the consideration or decision of this petition.

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No. 22–6285. IN RE FISHER. Petition for writ of mandamus and/or prohibition denied.

Certiorari Denied

No. 22–70. TYSON FOODS, INC., ET AL. *v.* BULJIC ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 22 F. 4th 730.

No. 22–149. WEISFELD ET AL. *v.* SCOTT, TEXAS SECRETARY OF STATE, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 28 F. 4th 649.

No. 22–190. WIKIMEDIA FOUNDATION *v.* NATIONAL SECURITY AGENCY/CENTRAL SECURITY SERVICE ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 14 F. 4th 276.

No. 22–293. NOVAK *v.* CITY OF PARMA, OHIO, ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 33 F. 4th 296.

No. 22–360. VETERAN WARRIORS, INC., ET AL. *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. Certiorari denied. Reported below: 29 F. 4th 1320.

No. 22–367. FINANCIAL OVERSIGHT AND MANAGEMENT BOARD FOR PUERTO RICO *v.* COOPERATIVE DE AHORRO Y CREDITO ABRAHAM ROSA ET AL. C. A. 1st Cir. Certiorari denied. Reported below: 41 F. 4th 29.

No. 22–379. ARKANSAS TIMES LP *v.* WALDRIP, AS TRUSTEE OF THE UNIVERSITY OF ARKANSAS BOARD OF TRUSTEES, ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 37 F. 4th 1386.

No. 22–430. BARTON *v.* TEXAS; and SANDERS *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–432. RIETH-RILEY CONSTRUCTION CO., INC. *v.* OPERATING ENGINEERS' LOCAL 324 FRINGE BENEFIT FUNDS ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 43 F. 4th 617.

No. 22–434. MOORE *v.* TEXAS. Ct. App. Tex., 8th Dist. Certiorari denied.

No. 22–435. PIERRE *v.* MIDLAND CREDIT MANAGEMENT, INC. C. A. 7th Cir. Certiorari denied. Reported below: 29 F. 4th 934.

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No. 22–455. TYSON FOODS, INC., ET AL. *v.* GLENN ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 40 F. 4th 230.

No. 22–464. UNITED STATES *v.* HAKIM. C. A. 11th Cir. Certiorari denied. Reported below: 30 F. 4th 1310.

No. 22–468. ALTSTATT *v.* CITY OF SACRAMENTO, CALIFORNIA. Ct. App. Cal., 3d App. Dist. Certiorari denied.

No. 22–469. COOPERATIVE EDUCATIONAL SERVICE AGENCY #5 *v.* SIMON. C. A. 7th Cir. Certiorari denied. Reported below: 46 F. 4th 602.

No. 22–471. CONSUMER DATA INDUSTRY ASSN. *v.* FREY, ATTORNEY GENERAL OF MAINE, ET AL. C. A. 1st Cir. Certiorari denied. Reported below: 26 F. 4th 1.

No. 22–486. TEXAS *v.* BALDWIN. Ct. Crim. App. Tex. Certiorari denied.

No. 22–499. ERICKSON ET UX. *v.* DEUTSCHE BANK NATIONAL TRUST CO., AS TRUSTEE FOR LONG BEACH MORTGAGE LOAN

TRUST 2004–6. Ct. App. Wash. Certiorari denied. Reported below: 20 Wash. App. 2d 1017.

No. 22–504. MITRANO *v.* MITRANO ET AL. Sup. Ct. Va. Certiorari denied.

No. 22–507. MARTIN *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–513. GEDDES *v.* WEBER COUNTY, UTAH, ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–516. R. M. C. *v.* J. D. L. Ct. App. Colo. Certiorari denied. Reported below: 514 P. 3d 963.

No. 22–525. SMITH *v.* BOUGHTON, WARDEN. C. A. 7th Cir. Certiorari denied. Reported below: 43 F. 4th 702.

No. 22–526. BARUA *v.* TEXAS COMMISSION ON ENVIRONMENTAL QUALITY. Ct. App. Tex., 8th Dist. Certiorari denied. Reported below: 632 S. W. 3d 726.

No. 22–528. RODRIGUEZ *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

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No. 22–532. MARTILLO *v.* TWITTER, INC., ET AL. C. A. 1st Cir. Certiorari denied.

No. 22–533. YASSIN *v.* WEYKER. C. A. 8th Cir. Certiorari denied. Reported below: 39 F. 4th 1086.

No. 22–538. NORED ET UX., AS CONSERVATORS, PARENTS, AND NEXT FRIENDS OF NORED *v.* TENNESSEE DEPARTMENT OF INTELLECTUAL AND DEVELOPMENTAL DISABILITIES ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–541. JOKICH *v.* RUSH UNIVERSITY MEDICAL CENTER. C. A. 7th Cir. Certiorari denied. Reported below: 42 F. 4th 626.

No. 22–544. INNOVATION SCIENCES, LLC *v.* AMAZON.COM, INC., ET AL. C. A. Fed. Cir. Certiorari denied.

No. 22–545. LEWIS ET AL. *v.* AKRON BOARD OF ZONING APPEALS. Ct. App. Ohio, 9th App. Dist., Summit County. Certiorari denied. Reported below: 2022-Ohio-1578, 189 N. E. 3d 370.

No. 22–546. URREGO *v.* SAMUEL I. WHITE, P. C. C. A. 4th Cir. Certiorari denied. Reported below: 855 Fed. Appx. 136.

No. 22–547. ROLLINS *v.* BIDEN, PRESIDENT OF THE UNITED STATES, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–548. ROLLINS *v.* TEXAS ET AL.; and ROLLINS *v.* CARTER ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–549. LIDDY *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–551. NEGRETE ET AL. *v.* CITY OF OAKLAND, CALIFORNIA, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 46 F. 4th 811.

No. 22–553. RODGERS *v.* UNITED SERVICES AUTOMOBILE ASSN., AKA USAA. C. A. 5th Cir. Certiorari denied.

No. 22–557. KLEIDMAN *v.* RFF FAMILY PARTNERSHIP, LP. Ct. App. Cal., 2d App. Dist., Div. 4. Certiorari denied.

No. 22–558. SOTO *v.* TEXAS. Ct. App. Tex., 10th Dist. Certiorari denied.

No. 22–560. MOWERY *v.* NATIONAL GEOSPATIAL-INTELLIGENCE AGENCY ET AL. C. A. 4th Cir. Certiorari denied. Reported below: 42 F. 4th 428.

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No. 22–568. COCHRAN *v.* PENN MUTUAL LIFE INSURANCE CO. ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 35 F. 4th 1310.

No. 22–570. KIM *v.* HAWAII OFFICE OF ELECTIONS ET AL. Sup. Ct. Haw. Certiorari denied.

No. 22–571. UNITED STATES ET AL. EX REL. SY ET AL. *v.* OAKLAND PHYSICIANS MEDICAL CENTER, LLC, DBA PONTIAC GENERAL HOSPITAL, ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 44 F. 4th 565.

No. 22–574. LAY ET VIR *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–575. TOPPI *v.* MASSACHUSETTS. App. Ct. Mass. Certiorari denied. Reported below: 100 Mass. App. 1130, 184 N. E. 3d 817.

No. 22–576. OCHOA *v.* PUBLIC CONSULTING GROUP, INC., ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 48 F. 4th 1102.

No. 22–579. BISCONTE *v.* SANDIA NATIONAL LABORATORIES ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–584. CHILDREN'S HEALTH DEFENSE ET AL. *v.* FOOD AND DRUG ADMINISTRATION ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–590. VERDU *v.* TRUSTEES OF PRINCETON UNIVERSITY ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–596. DONNELL *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–597. CLANTON *v.* SAM'S CLUB ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–599. MOATS *v.* KIJAKAZI, ACTING COMMISSIONER OF SOCIAL SECURITY. C. A. 6th Cir. Certiorari denied. Reported below: 42 F. 4th 558.

No. 22–600. BARTKO *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

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No. 22–603. KELLEY-LOMAX *v.* CITY OF CHICAGO, ILLINOIS. C. A. 7th Cir. Certiorari denied. Reported below: 49 F. 4th 1124.

No. 22–604. JANKE *v.* VIDAL, UNDER SECRETARY OF COMMERCE FOR INTELLECTUAL PROPERTY AND DIRECTOR, UNITED STATES PATENT AND TRADEMARK OFFICE. C. A. Fed. Cir. Certiorari denied.

No. 22–606. CIFUENTES-MARTINEZ *v.* GARLAND, ATTORNEY GENERAL. C. A. 9th Cir. Certiorari denied.

No. 22–608. CVG FERROMINERA ORINOCO, C. A. *v.* COMMODITIES & MINERALS ENTERPRISE LTD. C. A. 2d Cir. Certiorari denied. Reported below: 49 F. 4th 802.

No. 22–609. ROSENOW, AKA SENTA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 50 F. 4th 715.

No. 22–620. COX *v.* MARYLAND STATE BOARD OF ELECTIONS. Sup. Ct. Md. Certiorari denied. Reported below: 482 Md. 12, 283 A. 3d 1214.

No. 22–624. IQBAL *v.* BUREAU OF PROFESSIONAL AND OCCUPATIONAL AFFAIRS, STATE BOARD OF MEDICINE. Commw. Ct. Pa. Certiorari denied. Reported below: 278 A. 3d 409.

No. 22–627. WILBORN *v.* MAYORKAS, SECRETARY OF HOMELAND SECURITY. C. A. 9th Cir. Certiorari denied.

No. 22–630. BEHRENS ET AL. *v.* ARCONIC, INC., ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–640. WELLINGTON *v.* DAZA ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–643. LENOIR *v.* GUYER, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–644. LOMAX *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 51 F. 4th 222.

No. 22–646. PUSTELNIK ET AL. *v.* SECURITIES AND EXCHANGE COMMISSION. C. A. 2d Cir. Certiorari denied.

No. 22–653. RAY *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

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No. 22–656. BENTLEY *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 49 F. 4th 275.

No. 22–664. MAY *v.* THORNELL, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 37 F. 4th 552.

No. 22–673. HICKS *v.* CITY OF HOPKINSVILLE, SEWERAGE AND WATER WORKS COMMISSION, DBA HOPKINSVILLE WATER ENVIRONMENT AUTHORITY. Ct. App. Ky. Certiorari denied.

No. 22–678. LU *v.* NORTHERN UTAH HEALTHCARE CORP., DBA ST. MARK'S HOSPITAL. Ct. App. Utah. Certiorari denied.

No. 22–696. GUNDY *v.* CITY OF JACKSONVILLE, FLORIDA, ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 50 F. 4th 60.

No. 22–5063. TULIPAT *v.* UNITED STATES. C. A. Fed. Cir. Certiorari denied.

No. 22–5900. BETHEL *v.* OHIO. Sup. Ct. Ohio. Certiorari denied. Reported below: 167 Ohio St. 3d 362, 2022-Ohio-783, 192 N. E. 3d 470.

No. 22–5979. DEVINE ET AL. *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 40 F. 4th 139.

No. 22–6056. SLIVICKI *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS. C. A. 8th Cir. Certiorari denied.

No. 22–6091. DORSEY *v.* VANDERGRIFF, WARDEN. C. A. 8th Cir. Certiorari denied. Reported below: 30 F. 4th 752.

No. 22–6150. RAGLIN *v.* SHOOP, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6157. MCKISSIC *v.* EMMONS, WARDEN. C. A. 11th Cir. Certiorari denied.

No. 22–6158. POWERS *v.* UNCLAIMED PROPERTY ET AL. Sup. Ct. Fla. Certiorari denied.

No. 22–6159. MORRIS *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

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No. 22–6163. BROWN *v.* NEW YORK. App. Div., Sup. Ct. N. Y., 1st Jud. Dept. Certiorari denied. Reported below: 204 App. Div. 3d 418, 165 N. Y. S. 3d 537.

No. 22–6164. WALKER *v.* TEXAS. Ct. App. Tex., 9th Dist. Certiorari denied.

No. 22–6170. PETERSON *v.* HVM L. L. C. ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6173. D'AGOSTINO *v.* ATKINSON. C. A. 3d Cir. Certiorari denied.

No. 22–6174. DUARTE-HERRERA *v.* WILLIAMS, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6175. TALLENT *v.* KNIGHT ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–6179. OFFICE *v.* MYERS. C. A. 5th Cir. Certiorari denied.

No. 22–6182. CONNER *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6183. BAUHAUS *v.* HARPE, DIRECTOR, OKLAHOMA DEPARTMENT OF CORRECTIONS. C. A. 10th Cir. Certiorari denied.

No. 22–6186. JACE *v.* DAVIS, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6187. LIFRIERI *v.* STINSON. C. A. 2d Cir. Certiorari denied.

No. 22–6188. JOHNSON *v.* THORPE ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–6195. SHELTON *v.* BICKHAM, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–6196. RUCKER *v.* PURVIANCE, EXECUTIVE DIRECTOR, TENNESSEE BOARD OF PAROLE, ET AL. C. A. 6th Cir. Certiorari denied.

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No. 22–6197. BAUTISTA GUZMAN *v.* PFEIFFER, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6198. THORN *v.* RACETRAC PETROLEUM, INC. C. A. 5th Cir. Certiorari denied.

No. 22–6204. FAMOUS *v.* FUCHS, WARDEN. C. A. 7th Cir. Certiorari denied. Reported below: 38 F. 4th 625.

No. 22–6205. HARDAWAY *v.* MYERS ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–6208. GILLEY *v.* MADDEN, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6215. DAVIS *v.* MALLARDS LANDING ASSOCIATES LTD, DBA MISSION POINTE APARTMENTS. Sup. Ct. Fla. Certiorari denied.

No. 22–6222. PEREZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 43 F. 4th 437.

No. 22–6223. WOODS *v.* UNITED STATES. C. A. Fed. Cir. Certiorari denied.

No. 22–6226. ARMSTRONG *v.* BRITTAIN, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT FRACKVILLE, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6230. EDWARDS *v.* KING ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–6232. BISHOP *v.* CALIFORNIA. Ct. App. Cal., 5th App. Dist. Certiorari denied.

No. 22–6234. GAINEY *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–6236. GRAY *v.* GC SERVICE ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6237. HOBBS *v.* BRYANT. C. A. 6th Cir. Certiorari denied.

No. 22–6239. HINES *v.* KAEMINGK, SECRETARY, SOUTH DAKOTA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 8th Cir. Certiorari denied.

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No. 22–6240. HINES *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6241. HOOKER *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6245. PLAIR *v.* SUPREME COURT OF PENNSYLVANIA ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6248. TAY *v.* NICHOLS ET AL. Sup. Ct. Okla. Certiorari denied.

No. 22–6251. SERRANO *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied.

No. 22–6256. GOSPODARECK *v.* ALABAMA. Ct. Crim. App. Ala. Certiorari denied.

No. 22–6260. WILLIAMS *v.* CONDUENT HUMAN SERVICES LLC. C. A. 7th Cir. Certiorari denied.

No. 22–6261. RUFFIN *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6263. Moore *v.* Whitmer, Governor of Michigan, et al. C. A. 6th Cir. Certiorari denied.

No. 22–6269. Telepo *v.* Ferguson et al. C. A. 3d Cir. Certiorari denied.

No. 22–6270. Carter *v.* Gardaworld Security Services-US et al. Ct. Sp. App. Md. Certiorari denied. Reported below: 254 Md. App. 721 and 724.

No. 22–6271. Green *v.* Midwest Genealogy Center. C. A. 8th Cir. Certiorari denied.

No. 22–6272. Green *v.* Kansas City Public Library, Trails West Branch. C. A. 8th Cir. Certiorari denied.

No. 22–6273. Green *v.* Kansas City Public Library, Waldo Branch. C. A. 8th Cir. Certiorari denied.

No. 22–6275. Dixon *v.* North Carolina et al.; and Dixon *v.* United States Court of Appeals for the Fourth Circuit. C. A. 4th Cir. Certiorari denied.

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No. 22–6276. Barney *v.* Administrator, New Jersey State Prison, et al. C. A. 3d Cir. Certiorari denied. Reported below: 48 F. 4th 162.

No. 22–6278. Degoto *v.* Bohrer, Warden. C. A. 4th Cir. Certiorari denied.

No. 22–6279. Duncan *v.* Bartone et al. Ct. App. Ohio, 11th App. Dist., Geauga County. Certiorari denied. Reported below: 2022-Ohio-755.

No. 22–6280. Castillo *v.* Texas. Ct. Crim. App. Tex. Certiorari denied.

No. 22–6282. Cain *v.* Mercy College et al. C. A. 2d Cir. Certiorari denied.

No. 22–6284. Espinoza *v.* Federal Bureau of Investigation et al. C. A. 2d Cir. Certiorari denied.

No. 22–6287. Kim *v.* Public Schools of Brookline et al. C. A. 1st Cir. Certiorari denied.

No. 22–6288. Sadiki-Yisrael *v.* United States. C. A. 11th Cir. Certiorari denied.

No. 22–6290. MITCHELL *v.* COHEN, WARDEN. C. A. 4th Cir. Certiorari denied.

No. 22–6292. BESSERT *v.* WISCONSIN. Ct. App. Wis. Certiorari denied. Reported below: 2022 WI App 30, 978 N. W. 2d 90.

No. 22–6293. BRIDGES *v.* UNITED STATES; and
No. 22–6312. JONES *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–6294. STROM *v.* MITCHELL ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6295. CALLOWAY *v.* MARTEL, WARDEN, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6296. LEWIS *v.* MINIARD, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6297. MALONE *v.* NEBRASKA ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–6298. WASHINGTON *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

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No. 22–6299. YIGAL ET VIR, ON BEHALF OF THEIR MINOR CHILD, R. Y. *v.* BUTLER ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–6301. PHILLIPS *v.* MADDOX, SHERIFF, DEKALB COUNTY, GEORGIA, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–6303. JALLOUL *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6304. BUSH *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6306. HARE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6307. LEGROS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6308. MENDOZA-ESPINOZA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6309. MORA-MENDEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6311. ALLEN *v.* NEBRASKA. Ct. App. Neb. Certiorari denied. Reported below: 31 Neb. App. ——.

No. 22–6313. SCANLON *v.* LAWSON ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6314. LEAL *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6315. DAVIS *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–6316. WALKER *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6317. ESQUIVEL-ONTIVEROS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6318. OCEGUEDA-RUIZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

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No. 22–6320. CARTER *v.* CORIZON HEALTH, INC. Cir. Ct. Allegany County, Md. Certiorari denied.

No. 22–6321. ARMSTRONG *v.* COLORADO. Ct. App. Colo. Certiorari denied.

No. 22–6322. AMUN RE EL *v.* MELANSON ET AL. C. A. 1st Cir. Certiorari denied.

No. 22–6323. FIGUEROA-GONZALEZ *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied.

No. 22–6324. HERNANDEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6325. THOMPSON *v.* ALLISON, SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6326. WHITE *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–6327. WEST *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–6328. TAYLOR *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6329. KHAMNIVONG *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6330. JACKSON *v.* DANIEL ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–6331. GREEN *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–6333. N. P. *v.* VERMONT ET AL. Sup. Ct. Vt. Certiorari denied.

No. 22–6334. FAUGHT *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6335. UNZUETA *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–6337. WILLIAMS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

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No. 22–6340. SIMPSON *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 44 F. 4th 1093.

No. 22–6341. SCHMID *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

No. 22–6343. IOSSIFOV *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 45 F. 4th 899.

No. 22–6344. FURLOW *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6345. JOHNSON *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 47 F. 4th 535.

No. 22–6347. SANCHEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 853 Fed. Appx. 201.

No. 22–6348. SCHNEIDER *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 40 F. 4th 849.

No. 22–6350. ALVAREZ *v.* NEW YORK. App. Div., Sup. Ct. N. Y., 1st Jud. Dept. Certiorari denied. Reported below: 205 App. Div. 3d 577, 166 N. Y. S. 3d 852.

No. 22–6351. UPCHURCH *v.* WASTEQUIP, LLC, ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–6352. PAAPE *v.* ILLINOIS. App. Ct. Ill., 2d Dist. Certiorari denied.

No. 22–6353. MORAN *v.* LOUISIANA. Ct. App. La., 2d Cir. Certiorari denied. Reported below: 54,281 (La. App. 2 Cir. 5/25/22), 338 So. 3d 1229.

No. 22–6354. MCNULTY *v.* OLIVO ET AL. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 345 So. 3d 1282.

No. 22–6355. SMITH *v.* ELLIS ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6356. NEES *v.* OREGON. Ct. App. Ore. Certiorari denied. Reported below: 319 Ore. App. 725, 511 P. 3d 67.

No. 22–6357. RAYE *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

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No. 22–6358. EDMOND *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6359. GERSHMAN *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 31 F. 4th 80.

No. 22–6362. GARCIA *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6363. GABRIEL *v.* TRANS AM TRUCKING CO. C. A. 10th Cir. Certiorari denied.

No. 22–6365. COOK *v.* WATSON, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6366. BEVERLY *v.* ORANGE COUNTY SHERIFF ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6367. ALLEN *v.* COUNTY OF LOS ANGELES, CALIFORNIA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6368. COX *v.* ILLINOIS. App. Ct. Ill., 5th Dist. Certiorari denied.

No. 22–6370. LIMBRICK *v.* MADDEN, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6371. JARROW *v.* NUNNERY. C. A. 5th Cir. Certiorari denied.

No. 22–6372. CARDENAS-RAMIREZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6374. PERRY *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 49 F. 4th 33.

No. 22–6376. JOSEPH *v.* SOUTH CAROLINA. Sup. Ct. S. C. Certiorari denied.

No. 22–6377. MARTIN *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied.

No. 22–6378. GARGES *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 46 F. 4th 682.

No. 22–6379. GAINES *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

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No. 22–6380. BERGERON *v.* SCHNELL, COMMISSIONER, MINNESOTA DEPARTMENT OF CORRECTIONS, ET AL. Ct. App. Minn. Certiorari denied.

No. 22–6381. YOUNG *v.* SEYMOUR ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–6382. WARREN *v.* FLORIDA. Dist. Ct. App. Fla., 2d Dist. Certiorari denied.

No. 22–6383. WOO *v.* COLORADO. Ct. App. Colo. Certiorari denied.

No. 22–6384. GAKUBA *v.* HENDERSON ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–6387. GIBSON *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–6388. JONES *v.* ILLINOIS. App. Ct. Ill., 4th Dist. Certiorari denied.

No. 22–6390. VOYLES *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6392. TELLO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6393. EARQUHART *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6394. BROLLINI *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6395. WOLFE *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6399. SIMPSON *v.* WATSON, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6400. CANALES-CANCEL *v.* UNITED STATES ET AL. C. A. 1st Cir. Certiorari denied.

No. 22–6404. RIVERA *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 42 F. 4th 114.

No. 22–6405. SMITH, INDIVIDUALLY AND AS REPRESENTATIVE OF THE ESTATE OF HOOK *v.* UNITED STATES. C. A. Fed. Cir. Certiorari denied.

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No. 22–6408. WOOD *v.* BROWN, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6410. EL, AKA SWAHILI *v.* WELLS FARGO BANK, N. A., ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6412. CONLAN *v.* COSTCO WHOLESALE CORP. C. A. 9th Cir. Certiorari denied.

No. 22–6413. RUHBAYAN *v.* SMITH, JUDGE, UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA, ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–6414. BARNETT *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 48 F. 4th 216.

No. 22–6415. BETHELY *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–6416. BLAIR *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6418. COSIMANO *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6419. WRIGHT *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 49 F. 4th 1221.

No. 22–6420. JORDAN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6421. GARCIA-LARA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6422. NICHOLS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6423. HOMER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6424. THOMPSON *v.* ILLINOIS. App. Ct. Ill., 5th Dist. Certiorari denied. Reported below: 2022 IL App (5th) 109317–U.

No. 22–6425. MOHAMADI *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6426. MEDINA *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

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No. 22–6427. SANGSTER *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–6428. SCOTT *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6429. MCKENNA *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied.

No. 22–6432. SANCHEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6433. ESCOBEDO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6434. REYES *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6437. SINGLETON *v.* WATSON, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6439. GONZALEZ DOMINGUEZ *v.* GARLAND, ATTORNEY GENERAL. C. A. 9th Cir. Certiorari denied.

No. 22–6440. THOMAS *v.* DELAWARE. Sup. Ct. Del. Certiorari denied. Reported below: 285 A. 3d 125.

No. 22–6441. DAYVAULT *v.* KANSAS. Ct. App. Kan. Certiorari denied. Reported below: 62 Kan. App. 2d lx, 503 P. 3d 270.

No. 22–6442. BAKER *v.* WYOMING. Sup. Ct. Wyo. Certiorari denied. Reported below: 2022 WY 106, 516 P. 3d 479.

No. 22–6443. PRIDGEN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6444. BURGESS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6451. WILSON *v.* REWERTS, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6453. TORRES *v.* ALLISON, SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION. C. A. 9th Cir. Certiorari denied.

No. 22–6454. CHANG *v.* BEAUCHAMP, CAPTAIN AND COMMANDER FOR CALIFORNIA HIGHWAY PATROL, ET AL. C. A. 9th Cir. Certiorari denied.

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No. 22–6456. WELDON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6457. DARDEN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6459. MCLEAN *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–6460. DEJEAN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6462. TA'AFULISIA *v.* WASHINGTON. Ct. App. Wash. Certiorari denied. Reported below: 21 Wash. App. 2d 914, 508 P. 3d 1059.

No. 22–6463. JOHNSON *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6466. STEWART *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6467. ZAYAS *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 32 F. 4th 211.

No. 22–6471. PARKS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6472. MELENDREZ *v.* BENNETT, SUPERINTENDENT, STAFFORD CREEK CORRECTIONS CENTER. C. A. 9th Cir. Certiorari denied.

No. 22–6477. ENGLISH, AKA BARNES *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–6479. DOMINGUEZ-BIDO, AKA SEALED DEFENDANT, AKA DOMINGUEZ *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–6486. WESTON *v.* CAPRA, SUPERINTENDENT, SING SING CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 22–6487. ORELLANA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

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No. 22–6491. ROMERO-LOBATO *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6493. KINSEY *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6497. KENDRICK *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6498. SHINE-JOHNSON *v.* GRAY, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6499. THORNTON-BEY *v.* WARDEN, UNITED STATES PENITENTIARY, ALLENWOOD. C. A. 3d Cir. Certiorari denied.

No. 22–6501. HAGAR *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6502. HIGDON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6509. MONDESIR *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–6510. MARMOLEJO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6511. MASKEVICH *v.* ILLINOIS DEPARTMENT OF EMPLOYMENT SECURITY ET AL. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2022 IL App (1st) 210779, 227 N. E. 3d 574.

No. 22–6512. PERRY *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. Sup. Ct. Fla. Certiorari denied.

No. 22–6513. BARTRAM *v.* WEST VIRGINIA. Sup. Ct. App. W. Va. Certiorari denied.

No. 22–6515. RAICHE *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 50 F. 4th 279.

No. 22–6519. ARTHUR *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 51 F. 4th 560.

No. 22–6520. FRANKLIN *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

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No. 22–6521. BRANNAN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6522. BROOKS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6523. JOHNLOUIS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 44 F. 4th 331.

No. 22–6524. BROOKINS *v.* DWIVEDI. C. A. 9th Cir. Certiorari denied.

No. 22–6527. LANGLEY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6533. NAIDA *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6535. BEGAY *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6537. MURILLO-RAMOS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6541. STATLER *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 349 So. 3d 873.

No. 22–6542. VANN *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

No. 22–6543. ANGEL MOTA, AKA MOTA-ANGEL *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6545. JOHNSON *v.* WOLFE, WARDEN. C. A. 4th Cir. Certiorari denied.

No. 22–6547. JONES *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2022 IL App (1st) 210162–U.

No. 22–6552. GUERRERO *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 47 F. 4th 984.

No. 22–6556. FONSECA, FKA FONSECA-GARCIA *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 49 F. 4th 1.

No. 22–6561. HANKTON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 51 F. 4th 578.

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No. 22–6562. SCHRAND *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6563. YOUNG *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6564. KABIR *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 51 F. 4th 820.

No. 22–6567. BENITEZ *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–6568. HUSSEIN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6569. HEARD *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6571. COVINGTON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6572. WOMACK *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–6573. MARSHALL *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6581. KRASLEY *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–6586. TATE *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6591. TRAPPS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6592. HARBER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6596. HENDERSON *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6597. FARMER *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 38 F. 4th 591.

No. 22–6601. BENAVIDES *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

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No. 22–6602. EISENMANN *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6603. VALENCIA-SANDOVAL *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6606. ZABALA-ZORILLA *v.* TERRA, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT PHOENIX, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6607. WOLFE *v.* PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION. C. A. 8th Cir. Certiorari denied.

No. 22–6609. THOMAS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6611. COUNTS *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–6614. TAYLOR *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 44 F. 4th 779.

No. 22–6615. JIM *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6616. COTA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6617. DUHANEY *v.* UNITED STATES. Ct. App. D. C. Certiorari denied. Reported below: 285 A. 3d 842.

No. 22–6623. MAYWEATHER *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6624. LOYD *v.* MCDOWELL, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6625. HAMMONDS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6626. FERRIS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 52 F. 4th 235.

No. 22–6627. MOBLEY *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6628. BRITTON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

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No. 22–6632. BENANTI *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6634. ESPINO *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–6636. MOSTAFA *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–6637. FRANCISCO-FRANCISCO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6654. CUMMINGS *v.* MAINE. Sup. Jud. Ct. Me. Certiorari denied.

No. 22–250. BRACH ET AL. *v.* NEWSOM, GOVERNOR OF CALIFORNIA, ET AL. C. A. 9th Cir. Motion of California Constitutional Rights Foundation for leave to file brief as *amicus curiae* out of time denied. Certiorari denied. Reported below: 38 F. 4th 6.

No. 22–447. JOHNSON & JOHNSON ET AL. *v.* CALIFORNIA. Ct. App. Cal., 4th App. Dist., Div. 1. Certiorari denied. JUSTICE

ALITO took no part in the consideration or decision of this petition. Reported below: 77 Cal. App. 5th 295, 292 Cal. Rptr. 3d 424.

No. 22–520. TEMPLE UNIVERSITY HOSPITAL, INC. *v.* NATIONAL LABOR RELATIONS BOARD. C. A. D. C. Cir. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition. Reported below: 39 F. 4th 743.

No. 22–5364. DAVIS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR joins, dissenting.

Our criminal justice system today is "for the most part a system of pleas, not a system of trials." *Lafler* v. *Cooper*, 566 U. S. 156, 170 (2012). Against this backdrop, this Court has recognized that the loss of an opportunity for a favorable plea offer due to an attorney's deficient performance can violate the Sixth Amendment right to effective counsel. *Id.*, at 169–170; see also *Missouri* v. *Frye*, 566 U. S. 134 (2012). Petitioner Quartavious Davis alleged, and the Eleventh Circuit did not dispute, that he satisfied the first prong of the *Strickland* ineffective-assistance-of-counsel standard because his attorney failed to initiate plea negotiations with the Government. The question presented, then, is how can a defendant like Davis show "prejudice" as a result of this failure? See *Strickland* v. *Washington*, 466 U. S. 668, 687 (1984) (ineffective assistance of counsel requires a showing of both deficient performance and prejudice).

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The Circuits appear to be at odds with respect to this important question. Under our case law, in order to demonstrate prejudice when defense counsel's deficient performance causes the defendant to forgo an advantageous plea deal, the defendant must show there was "a reasonable probability" that the relevant parties—the prosecution, defendant, and the court—would have accepted the plea. *Frye*, 566 U. S., at 147. But some Circuits have held that this showing can be made without proof that the Government had put a plea offer on the table, see *Byrd* v. *Skipper*, 940 F. 3d 248, 252, 255–256 (CA6 2019); *United States* v. *Pender*, 514 Fed. Appx. 359, 360–361 (CA4 2013) (*per curiam*), while others seem to impose a threshold requirement that a defendant cannot show prejudice if "the government never extended . . . a formal plea offer" to the defendant, *Ramirez* v. *United States*, 751 F. 3d 604,

608 (CA8 2014); see also *Byrd*, 940 F. 3d, at 264 (Griffin, J., dissenting) (collecting cases to support the proposition that ineffective assistance of counsel in this context "require[s] proof of a plea offer").

In this case, the Eleventh Circuit joined the debate. The District Court concluded that Davis's allegations in his 28 U. S. C. § 2255 motion were insufficient, even if true, because he had not alleged "that a plea offer was made but not communicated to [him]." App. to Pet. for Cert. 45. The Eleventh Circuit affirmed, concluding that Davis was not entitled to an evidentiary hearing to prove his allegations because "Davis did not allege in his § 2255 motion that the government even offered a plea deal," which, in the Eleventh Circuit's view, meant that Davis had insufficiently pleaded prejudice. *Id.*, at 5–6.

The instant case not only implicates a divergence of circuit opinions, but also is an ideal vehicle to evaluate the Eleventh Circuit's bright-line rule that an adequate showing of prejudice requires an actual plea offer. That important legal question is isolated here; since the Eleventh Circuit assumed deficient performance, so can we. See *Lafler*, 566 U. S., at 163. And because the lower courts denied Davis's motion without an evidentiary hearing based solely on the pleading deficiency, the sole question before us is whether a defendant must allege (and then ultimately show) that an actual plea offer was made.

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Moreover, under the circumstances presented here, it was exceedingly likely that Davis would have prevailed with respect to the prejudice prong if the Eleventh Circuit had not applied that threshold requirement. Davis's allegations established that a favorable plea agreement was a strong possibility, even though no offer actually materialized, because each of Davis's five codefendants had lawyers who negotiated favorable plea agreements with respect to the same series of armed robberies. And while Davis (who was 18 or 19 years old at the time the crimes were committed) received a sentence of approximately 160 years of imprisonment after his attorney took him to trial, all of Davis's codefendants received sentences of less than 40 years of imprisonment due to plea agreements that enabled the District Court to impose a sentence below the mandatory minimum. The District Court's statements at sentencing were also noteworthy: The judge specifically asserted that, while he thought the appro-

priate sentence for Davis was 40 years, he was bound by the consecutive mandatory minimums.*

The Eleventh Circuit gave short shrift to these alleged facts, and others, which suggest that Davis was harmed by his counsel's failure to initiate plea negotiations because it applied a bright-line rule that prejudice cannot be shown in the absence of a plea offer. This petition presents the Court with a clear opportunity to resolve a Circuit split regarding whether having an actual plea offer is an indispensable prerequisite to making the necessary showing of prejudice. I would grant certiorari to resolve that issue.

No. 22–6283. TURNER *v.* FEDERAL AVIATION ADMINISTRATION ET AL. C. A. 2d Cir. Certiorari denied. JUSTICE SOTOMAYOR took no part in the consideration or decision of this petition.

No. 22–6468. PERKINS *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

No. 22–6610. SCARFO *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

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No. 22–6631. WELENC *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. D. C. Cir. Certiorari before judgment denied.

Rehearing Denied

No. 21–7999. ARUTYUNYAN *v.* FIELDS ET AL., 598 U. S. 929;
No. 21–8077. YATES *v.* IOWA, 598 U. S. 933;
No. 22–276. VASHISHT-ROTA *v.* HOWELL MANAGEMENT SERVICES ET AL., 598 U. S. 1095;
No. 22–314. COX *v.* LAW OFFICES OF LES ZIEVE ET AL., 598 U. S. 1096;
No. 22–380. BRUNSON *v.* ADAMS ET AL., 598 U. S. 1121;
No. 22–385. TOWERS *v.* HAMASAKI, 598 U. S. 1107;
No. 22–5046. BUTLER *v.* FLORIDA, 598 U. S. 952;

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*The mandatory minimums that applied to Davis were subsequently revisited—and revised—by Congress. See 18 U. S. C. § 924(c)(1)(A). Davis asserts that, if sentenced today, he would face a mandatory minimum of 35 years of imprisonment.

No. 22–5608. TURNER *v.* COVELLO, WARDEN, 598 U. S. 1081;
No. 22–5672. NGUYEN *v.* UNITED STATES, 598 U. S. 1012;
No. 22–5725. BANGHART *v.* SULLIVAN, WARDEN, ET AL., 598 U. S. 1098;
No. 22–5786. FOLADPOUR *v.* CITY OF UPLAND, CALIFORNIA, 598 U. S. 1108;
No. 22–5814. ALLRED *v.* WASHINGTON, 598 U. S. 1126;
No. 22–5855. HAMILTON *v.* NORTHERN VIRGINIA DISTRICT OFFICE ET AL., 598 U. S. 1127; and
No. 22–5948. CORMIER *v.* FLORIDA, 598 U. S. 1100. Petitions for rehearing denied.

No. 22–351. SIMON *v.* DEPARTMENT OF JUSTICE ET AL., 598 U. S. 1110. Petition for rehearing denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

FEBRUARY 22, 2023

Certiorari Denied

No. 22–6819 (22A757). DILLBECK *v.* FLORIDA ET AL. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied.

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Certiorari Dismissed

No. 22–431. JORDAN *v.* LAMANNA, SUPERINTENDENT, BEDFORD HILLS CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari dismissed as moot. Reported below: 33 F. 4th 144.

No. 22–6364. EARLS *v.* FEDERAL BUREAU OF PRISONS. C. A. 7th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. JUSTICE BARRETT took no part in the consideration or decision of this motion and this petition.

Miscellaneous Orders

No. D–3083. IN RE DISBARMENT OF SANTORIELLA. Disbarment entered. [For earlier order herein, see 597 U. S. 956.]

No. D–3087. IN RE DISBARMENT OF TALCOTT. Disbarment entered. [For earlier order herein, see 598 U. S. 972.]

No. D–3088. In re Disbarment of Leatherman. Disbarment entered. [For earlier order herein, see 598 U. S. 972.]

No. D–3090. In re Disbarment of Lindon. Disbarment entered. [For earlier order herein, see 598 U. S. 972.]

No. D–3091. In re Disbarment of Dibble. Disbarment entered. [For earlier order herein, see 598 U. S. 972.]

No. D–3092. In re Disbarment of Moawad. Disbarment entered. [For earlier order herein, see 598 U. S. 972.]

No. 21–1043. Abitron Austria GmbH et al. *v.* Hetronic International, Inc. C. A. 10th Cir. [Certiorari granted, 598 U. S. 1015.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted.

No. 22–196. Samia, aka Samic *v.* United States. C. A. 2d Cir. Certiorari granted, 598 U. S. 1111.] Motion of Law Professors for leave to file brief as *amici curiae* out of time granted.

No. 22–6724. In re Cobb. Petition for writ of habeas corpus denied.

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No. 22–6447. In re Avery. Petition for writ of mandamus denied.

No. 22–6589. In re Jackson. Petition for writ of mandamus and/or prohibition denied.

Certiorari Granted

No. 22–340. Pulsifer *v.* United States. C. A. 8th Cir. Certiorari granted. Reported below: 39 F. 4th 1018.

No. 22–448. Consumer Financial Protection Bureau et al. *v.* Community Financial Services Association of America, Ltd., et al. C. A. 5th Cir. Certiorari granted. Reported below: 51 F. 4th 616.

Certiorari Denied

No. 22–63. Marshal *v.* Texas. Ct. Crim. App. Tex. Certiorari denied.

No. 22–338. R. J. Reynolds Tobacco Co. et al. *v.* County of Los Angeles, California, et al. C. A. 9th Cir. Certiorari denied. Reported below: 29 F. 4th 542.

No. 22–353. MORGAN *v.* ARIZONA ET AL. Sup. Ct. Ariz. Certiorari denied. Reported below: 253 Ariz. 207, 511 P. 3d 202.

No. 22–384. RANDEL *v.* RABUN COUNTY SCHOOL DISTRICT. C. A. 11th Cir. Certiorari denied.

No. 22–410. CHAMA TROUTSTALKERS, LLC, ET AL. *v.* ADOBE WHITEWATER CLUB OF NEW MEXICO ET AL. Sup. Ct. N. M. Certiorari denied.

No. 22–586. BEEMER ET AL. *v.* WHITMER, GOVERNOR OF MICHIGAN, ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–587. ANDREWS *v.* DISTRICT ATTORNEY OF MONTGOMERY COUNTY, PENNSYLVANIA, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–591. WATKINS ET AL. *v.* MATRIX, LLC, ET AL. Sup. Ct. Ala. Certiorari denied.

No. 22–613. SCHWARTZBERG *v.* FLORIDA. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 346 So. 3d 1190.

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No. 22–621. MATARESE, PERSONAL REPRESENTATIVE OF THE ESTATE OF BAUMAN, DECEASED *v.* VIRGINIA HOSPITAL CENTER ARLINGTON HEALTH SYSTEM, DBA VIRGINIA HOSPITAL CENTER, ET AL. Sup. Ct. Va. Certiorari denied.

No. 22–645. BLANCA TELEPHONE CO. *v.* FEDERAL COMMUNICATIONS COMMISSION ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–650. ORLANDO BAR GROUP, LLC, ET AL. *v.* DESANTIS, GOVERNOR OF FLORIDA, ET AL. Dist. Ct. App. Fla., 5th Dist. Certiorari denied. Reported below: 339 So. 3d 487.

No. 22–658. GATES *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–663. COMMUNITY FINANCIAL SERVICES ASSOCIATION OF AMERICA, LTD., ET AL. *v.* CONSUMER FINANCIAL PROTECTION BUREAU ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 51 F. 4th 616.

No. 22–684. JORDAN *v.* KANSAS DISCIPLINARY ADMINISTRATOR. Sup. Ct. Kan. Certiorari denied. Reported below: 316 Kan. 501, 518 P. 3d 1203.

No. 22–686. GREEN *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 28 F. 4th 1089.

No. 22–694. WHITAKER *v.* WARD, COMMISSIONER, GEORGIA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–706. SPRIGGS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–707. CADDEN *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 51 F. 4th 32.

No. 22–709. MOODY *v.* PARRIS, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–727. WEISTER *v.* WEST VIRGINIA. Sup. Ct. App. W. Va. Certiorari denied. Reported below: 247 W. Va. 355, 880 S. E. 2d 77.

No. 22–6338. MCNULTY-SNODGRASS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

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No. 22–6373. HERRIOTT *v.* HERRIOTT. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 22–6375. MAALI *v.* HARRINGTON, UNITED STATES TRUSTEE. C. A. 1st Cir. Certiorari denied.

No. 22–6396. SANSING *v.* THORNELL, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 41 F. 4th 1039.

No. 22–6398. DUKE *v.* MICROSOFT CORP. ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–6401. CULBERSON *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–6403. MARTIN *v.* ARTIS, ACTING WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6406. TRUESDALE *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–6407. HADEN *v.* CALIFORNIA. Ct. App. Cal., 1st App. Dist., Div. 4. Certiorari denied. Reported below: 49 Cal. App. 5th 1091, 263 Cal. Rptr. 3d 570.

No. 22–6430. BUGNO *v.* OHIO. Ct. App. Ohio, 7th App. Dist., Mahoning County. Certiorari denied. Reported below: 2022-Ohio-2008.

No. 22–6436. ROBERTSON *v.* ILLINOIS. App. Ct. Ill., 2d Dist. Certiorari denied. Reported below: 2022 IL App (2d) 200132–U.

No. 22–6450. WILLIAMS *v.* FLORIDA. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 345 So. 3d 1282.

No. 22–6452. ZILIAK *v.* KEY, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6464. CHASE *v.* OLIVER, SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT ALBION, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6465. SMITH *v.* WASHINGTON. Ct. App. Wash. Certiorari denied.

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No. 22–6470. ELLIS *v.* DEPARTMENT OF LABOR, ADMINISTRATIVE REVIEW BOARD. C. A. 5th Cir. Certiorari denied.

No. 22–6478. SHIHEIBER *v.* JPMORGAN CHASE BANK, N. A. Ct. App. Cal., 1st App. Dist., Div. 2. Certiorari denied.

No. 22–6483. SLOAN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6528. JORDAN *v.* DAVIDSON-BROOKS, ASSISTANT DISTRICT ATTORNEY, 16TH JUDICIAL DISTRICT, MISSISSIPPI, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–6553. FERDINAND *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6554. GORDON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6558. WHITE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6560. GOMEZ-SANTACRUZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6585. TENNESSEE EX REL. TULIS *v.* LEE, GOVERNOR OF TENNESSEE, ET AL. Ct. App. Tenn. Certiorari denied.

No. 22–6612. JOHNSON *v.* REWERTS, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6619. DUNAHUE *v.* PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION, ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–6645. SZEWCZYK *v.* FLORIDA. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 349 So. 3d 936.

No. 22–6647. YOUNG *v.* HILL, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6649. MITCHELL *v.* PFEIFFER, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6651. VANOUS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6656. STAPLETON *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

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No. 22–6658. BONK *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–6668. LYONS *v.* LADNER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–6671. MAZZULLA *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6678. WATTS *v.* MISSISSIPPI. Sup. Ct. Miss. Certiorari denied. Reported below: 350 So. 3d 613.

No. 22–6681. CHAMBERS *v.* ARTIS, ACTING WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–298. JUMP ROPE SYSTEMS, LLC *v.* COULTER VENTURES, LLC, DBA ROGUE FITNESS. C. A. Fed. Cir. Motion of Joshua J. Malone et al. for leave to file brief as *amici curiae* granted. Certiorari denied.

No. 22–715. CHEVRON USA, INC., ET AL. *v.* PLAQUEMINES PARISH, LOUISIANA, ET AL. C. A. 5th Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

Rehearing Denied

No. 22–341. NEBRASKA ex rel. TIMOTHY L. ASHFORD, P. C. L. L. O., ET AL. *v.* KLEINE ET AL., 598 U. S. 1121;

No. 22–387. WHITE *v.* MICHIGAN STATE UNIVERSITY UNEMPLOYMENT COMPENSATION DIVISION (two judgments), 598 U. S. 1121;

No. 22–5443. DAVIS *v.* MOODY, ATTORNEY GENERAL OF FLORIDA, ET AL., 598 U. S. 1002;

No. 22–5595. L. B. *v.* WASHINGTON STATE DEPARTMENT OF CHILDREN, YOUTH, AND FAMILIES, 598 U. S. 1081;

No. 22–5601. SERRANO *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, 598 U. S. 1081;

No. 22–5629. WILLIAMS *v.* SOUTH CAROLINA, 598 U. S. 1020;

No. 22–5698. DAVIS *v.* HOLT ET AL., 598 U. S. 1097;

No. 22–5717. WEBSTER *v.* TRAIL ET AL. (three judgments), 598 U. S. 1098;

No. 22–5794. WARD *v.* RAMIREZ, WARDEN, 598 U. S. 1084;

No. 22–5957. WILSON *v.* TAMPA POLICE DEPARTMENT, 598 U. S. 1129;

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No. 22–6040. WYTTENBACH *v.* COOPER, GOVERNOR OF NORTH CAROLINA, 598 U. S. 1131;

No. 22–6116. FIELDS *v.* CHEEKS, 598 U. S. 1134;

No. 22–6123. HILL *v.* UNITED STATES, 598 U. S. 1134; and

No. 22–6144. IN RE DANIELS, 598 U. S. 1118. Petitions for rehearing denied.

No. 22–406. FRIEDRICHSEN *v.* RAMON RODRIGUEZ ET AL., 598 U. S. 1139. Petition for rehearing denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

MARCH 2, 2023

Miscellaneous Order

No. 21–1271. MOORE, SPEAKER OF THE NORTH CAROLINA HOUSE OF REPRESENTATIVES, ET AL. *v.* HARPER ET AL. Sup. Ct. N. C. [Certiorari granted, 597 U. S. 918.] The parties and the Solicitor General are directed to file supplemental letter briefs addressing the following question: "What is the effect on this Court's jurisdiction under 28 U. S. C. § 1257(a) and *Cox Broadcasting Corp.* v. *Cohn*, 420 U. S. 469 (1975), of the North Carolina Supreme Court's February 3, 2023, order granting rehearing, and

any subsequent state-court proceedings?" Briefs, not exceed 10 pages, are to be filed simultaneously with the Clerk and served upon opposing counsel on or before 2 p.m., Monday, March 20, 2023.

MARCH 6, 2023

Certiorari Granted—Vacated and Remanded

No. 21–847. BURNS *v.* ARIZONA; BOGGS *v.* ARIZONA; GARZA *v.* ARIZONA; GOMEZ *v.* ARIZONA; NEWELL *v.* ARIZONA; and REEVES *v.* ARIZONA. Super. Ct. Ariz., Maricopa County. Certiorari granted, judgments vacated, and case remanded for further consideration in light of *Cruz* v. *Arizona*, 598 U. S. 17 (2023).

Certiorari Dismissed

No. 22–6517. KAETZ *v.* WOLFSON, JUDGE, UNITED STATES DISTRICT COURT FOR THE DISTRICT OF NEW JERSEY, ET AL. C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. JUSTICE ALITO took no part in the consideration or decision of this motion and this petition.

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Miscellaneous Orders

No. 22A718. VINKOV *v.* BROTHERHOOD MUTUAL INSURANCE CO. C. A. 9th Cir. Application for stay, addressed to JUSTICE ALITO and referred to the Court, denied.

No. D–3098. IN RE DISBARMENT OF BERNSTEIN. Disbarment entered. [For earlier order herein, see 598 U. S. 1105.]

No. 22M73. NATIONAL RIFLE ASSOCIATION OF AMERICA *v.* VULLO; and

No. 22M75. SMALLEY *v.* UNITED STATES. Motions for leave to file petitions for writs of certiorari with supplemental appendixes under seal granted.

No. 22M74. WADHAMS *v.* AMERICAN FEDERATION OF TEACHERS ET AL. Motion to direct the Clerk to file petition for writ of certiorari out of time denied.

No. 22M76. FOSTER *v.* FOSTER. Motion for leave to proceed as a veteran denied.

No. 21–1326. UNITED STATES ET AL. EX REL. SCHUTTE ET AL. *v.* SUPERVALU INC. ET AL.; and

No. 22–111. UNITED STATES ET AL. EX REL. PROCTOR *v.* SAFEWAY, INC. C. A. 7th Cir. [Certiorari granted, 598 U. S. 1143.] Motion of respondents for leave to file supplemental volume of the joint appendix under seal granted.

No. 22–23. PUGIN *v.* GARLAND, ATTORNEY GENERAL. C. A. 4th Cir.; and

No. 22–331. GARLAND, ATTORNEY GENERAL *v.* CORDERO-GARCIA, AKA CORDERO. C. A. 9th Cir. [Certiorari granted, 598 U. S. 1143.] Motion of the Solicitor General to dispense with printing joint appendix granted.

No. 22–105. COINBASE, INC. *v.* BIELSKI; and COINBASE, INC. *v.* SUSKI ET AL. C. A. 9th Cir. [Certiorari granted, 598 U. S. 1104.] Motion of respondents for divided argument denied.

No. 22–148. JACK DANIEL'S PROPERTIES, INC. *v.* VIP PRODUCTS LLC. C. A. 9th Cir. [Certiorari granted, 598 U. S. 1078.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted. Motion of Motion Picture Association, Inc., for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument, denied.

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No. 22–227. LAC DU FLAMBEAU BAND OF LAKE SUPERIOR CHIPPEWA INDIANS ET AL. *v.* COUGHLIN. C. A. 1st Cir. [Certiorari granted, 598 U. S. 1143.] Motion of petitioners to dispense with printing joint appendix granted.

No. 22–465. GEORGIA-PACIFIC CONSUMER PRODUCTS LP ET AL. *v.* INTERNATIONAL PAPER CO. ET AL. C. A. 6th Cir.; and

No. 22–601. LAKE, CHAIRMAN, PUBLIC UTILITY COMMISSION OF TEXAS, ET AL. *v.* NEXTERA ENERGY CAPITAL HOLDINGS, INC., ET AL. C. A. 5th Cir. The Solicitor General is invited to file briefs in these cases expressing the views of the United States.

No. 22–6482. THISTLE *v.* BIDEN, PRESIDENT OF THE UNITED STATES, ET AL. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until March 27, 2023, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 22–6733. IN RE MYLES;

No. 22–6754. IN RE DRUMMOND; and

No. 22–6759. IN RE JORDAN. Petitions for writs of habeas corpus denied.

No. 22–6758. IN RE MARVIN; and

No. 22–6770. IN RE THOMAS BEY. Motions of petitioners for leave to proceed *in forma pauperis* denied, and petitions for writs of habeas corpus dismissed. See this Court's Rule 39.8.

No. 22–637. IN RE KLAYMAN. Petition for writ of mandamus denied. JUSTICE KAVANAUGH and JUSTICE JACKSON took no part in the consideration or decision of this petition.

Certiorari Granted

No. 22–500. GREAT LAKES INSURANCE SE *v.* RAIDERS RETREAT REALTY CO., LLC. C. A. 3d Cir. Certiorari granted limited to Question 2 presented by the petition. Reported below: 47 F. 4th 225.

Certiorari Denied

No. 22–270. RANCHERS CATTLEMEN ACTION LEGAL FUND UNITED STOCKGROWERS OF AMERICA ET AL. *v.* DEPARTMENT OF AGRICULTURE ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 35 F. 4th 1225.

Not Subject to Pending Publication

No. 22–396. FISCHER ET AL. *v.* FEDERAL EXPRESS CORP. ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 42 F. 4th 366.

No. 22–401. ALASKA *v.* HAALAND, SECRETARY OF THE INTERIOR, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 31 F. 4th 1157.

No. 22–417. METZGAR ET AL. *v.* U. A. PLUMBERS AND STEAMFITTERS LOCAL NO. 22 PENSION FUND ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–450. SHIELDS *v.* KENTUCKY. Sup. Ct. Ky. Certiorari denied. Reported below: 647 S. W. 3d 144.

No. 22–602. MCDONALD *v.* MCDONALD. Sup. Ct. Ill. Certiorari denied. Reported below: 2022 IL 126956, 201 N. E. 3d 1125.

No. 22–610. TAYLOR *v.* AUGUSTA-RICHMOND COUNTY CONSOLIDATED COMMISSIONERS ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 786 Fed. Appx. 993.

No. 22–612. SPIEGEL *v.* 1618 SHERIDAN ROAD CONDOMINIUM ASSN., INC., ET AL. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2022 IL App (1st) 201142–U.

No. 22–623. HALL *v.* G. M. S. MANAGEMENT CO., INC., ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–626. HAMDAN ET AL. *v.* WALZ, GOVERNOR OF MINNESOTA, ET AL. Ct. App. Minn. Certiorari denied.

No. 22–632. HAWORTH *v.* CITY OF WALLA WALLA, WASHINGTON, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–638. RICCIA ET VIR *v.* CLEVELAND CLINIC FOUNDATION ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–682. TIANGE HUANG ET AL. *v.* NGOC BACH PHAN ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–697. HEATHER B., PARENT AND NEXT FRIEND OF S. S., ET AL. *v.* HOUSTON INDEPENDENT SCHOOL DISTRICT ET AL. C. A. 5th Cir. Certiorari denied.

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No. 22–717. PERKINS, MAYOR OF THE CITY OF SHREVEPORT, LOUISIANA *v.* CELCOG, LLC, DBA STRAWN'S EAT SHOP TOO, ET AL. Ct. App. La., 2d Cir. Certiorari denied. Reported below: 54,254 (La. App. 2 Cir. 5/18/22), 340 So. 3d 1259.

No. 22–728. WILKEY ET AL. *v.* KLAVER. C. A. 6th Cir. Certiorari denied.

No. 22–6411. RITCHIE *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 344 So. 3d 369.

No. 22–6438. CLAIBORNE *v.* MISSISSIPPI. Sup. Ct. Miss. Certiorari denied.

No. 22–6446. BURKE *v.* WASHINGTON ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6449. WILSON *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–6455. DEMARCO *v.* BYNUM. C. A. 5th Cir. Certiorari denied. Reported below: 50 F. 4th 479.

No. 22–6458. MELSON *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 22–6474. RILEY *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6484. SAUNDERS *v.* THIES ET AL. C. A. 8th Cir. Certiorari denied. Reported below: 38 F. 4th 701.

No. 22–6514. PINEDA *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 13 Cal. 5th 186, 511 P. 3d 492.

No. 22–6531. EDWARDS *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–6565. SANTA *v.* MASSACHUSETTS. App. Ct. Mass. Certiorari denied. Reported below: 101 Mass. App. 1118, 195 N. E. 3d 950.

No. 22–6566. ELLIS *v.* FLORIDA. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 350 So. 3d 740.

No. 22–6659. LOPEZ-RIVERA *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied.

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No. 22–6666. RUIZ-LOPEZ *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 53 F. 4th 400.

No. 22–6672. J. M. *v.* OREGON DEPARTMENT OF HUMAN SERVICES. Ct. App. Ore. Certiorari denied. Reported below: 320 Ore. App. 486, 512 P. 3d 456.

No. 22–6674. COLLINS *v.* SEARLS, SUPERINTENDENT, HUTTONSVILLE CORRECTIONAL CENTER. C. A. 4th Cir. Certiorari denied.

No. 22–6682. HAYNES *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6694. HAJI-HASSAN *v.* MAINE. Sup. Jud. Ct. Me. Certiorari denied.

No. 22–6697. HARRIS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6698. GROSS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6699. MEREDITH *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6702. BOYET *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6704. VAZQUEZ-FIGUEROA *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied.

No. 22–6705. CLEARWATER *v.* BENNETT, WARDEN. C. A. 8th Cir. Certiorari denied.

No. 22–6706. OGDEN *v.* IDAHO. Sup. Ct. Idaho. Certiorari denied. Reported below: 171 Idaho 258, 519 P. 3d 1198.

No. 22–6708. VILLALOBOS-FRANCO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6716. OLIVO-DURON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6717. SCALES *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–6718. STABLER *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

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No. 22–6738. SIMMS *v.* AMES, SUPERINTENDENT, MOUNT OLIVE CORRECTIONAL COMPLEX. C. A. 4th Cir. Certiorari denied.

No. 22–6752. NUNES LOPEZ *v.* GASTELO, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6755. HARRIS *v.* FLORIDA. Dist. Ct. App. Fla., 4th Dist. Certiorari denied. Reported below: 348 So. 3d 1.

No. 22–278. CITY OF OCALA, FLORIDA *v.* ROJAS ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 40 F. 4th 1347.

Statement of JUSTICE GORSUCH respecting the denial of certiorari.

Faced with tragedy, the city of Ocala, Florida, searched for ways to bring the community together. After a shooting spree left several children injured, police appealed to community leaders for help. A local NAACP official suggested to the chief of police that he contact religious leaders to facilitate conversations between residents and law enforcement. A local minister, in turn,

proposed holding a prayer vigil for the victims. The chief agreed to organize the event and police chaplains participated in it.

But instead of unity, litigation followed. Several atheists who chose to attend the event sued the city, alleging that the event's religious themes violated the First Amendment's Establishment Clause. Eventually, the District Court granted summary judgment in their favor. 315 F. Supp. 3d 1256, 1290 (MD Fla. 2018). The court reasoned that individuals enjoy Article III standing to contest religious speech they find offensive and that the vigil violated the Establishment Clause under the terms of *Lemon* v. *Kurtzman*, 403 U. S. 602 (1971). 315 F. Supp. 3d, at 1274–1290.

On appeal, the Eleventh Circuit agreed that at least one of the plaintiffs had standing to sue, noting that she had "'direct contact'" with prayer she found "offensive." 40 F. 4th 1347, 1350–1351 (2022). It didn't matter that the plaintiff went to the vigil *knowing* that she would be offended. *Ibid.* What mattered was that prayers reached her ears. *Ibid.* Still, the Eleventh Circuit vacated the District Court's decision on the merits, remanding the case for reconsideration in light of this Court's intervening decision in *Kennedy* v. *Bremerton School Dist.*, 597 U. S. 507 (2022). 40 F. 4th, at 1351–1352.

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I do not doubt that the District Court must reconsider the merits. As this Court explained in *Kennedy*, the *Lemon* test on which the District Court relied is no longer good law. 597 U. S., at 534. But the question of standing must be reconsidered too. This Court has never endorsed the notion that an "offended observer" may bring an Establishment Clause claim. *American Legion* v. *American Humanist Assn.*, 588 U. S. 29, 83–84 (2019) (GORSUCH, J., concurring in judgment). Elsewhere in the law, we routinely say that Article III demands a more "'concrete and particularized'" injury. *Id.*, at 80. And the same rule, we have said, applies in the Establishment Clause context too. *Id.*, at 82 (discussing *Valley Forge Christian College* v. *Americans United for Separation of Church and State, Inc.*, 454 U. S. 464 (1982)).

Why, despite these teachings, have some lower courts indulged the fiction of "offended observer" standing? At least some of the fault "lies here." *American Legion*, 588 U. S., at 84 (opinion of GORSUCH, J.). In *Lemon*, this Court suggested that "the Establishment Clause forbids anything a reasonable observer would view as an endorsement of religion." *American Legion*, 588

U. S., at 84 (opinion of GORSUCH, J.). For this to be so, lower courts deduced, "such an observer must be able to sue." *Id.*, at 84–85 (citing lower court cases).

But if that logic ever made sense, it no longer does. In *Kennedy*, this Court put to rest any question about *Lemon*'s vitality. We held that claims alleging an establishment of religion must be measured against the Constitution's original and historical meaning, not the sensitivities of a hypothetical reasonable observer. 597 U. S., at 534. And with the demise of *Lemon*'s reasonable observer test, "little excuse" now remains "for the anomaly of offended observer standing." *American Legion*, 588 U. S., at 87 (opinion of GORSUCH, J.). "[T]he gaping hole it tore in standing doctrine in [the lower courts] should now begin to close." *Ibid.*

The city asks us to take this case to make just this point. It is an understandable request. But I see no need for the Court's intervention at this juncture. This case remains in an interlocutory posture—the Eleventh Circuit has remanded the case to the District Court to permit it to consider *Kennedy*'s implications in the first instance. I would allow that process to unfold. Moving forward, I expect lower courts will recognize that offended observer standing has no more foundation in the law than the *Lemon* test that inspired it. If I am wrong, the city is free to seek relief here after final judgment. For by now it should be clear that, "[i]n a large and diverse country, offense can be easily found. Really, most every governmental action probably offends *somebody.* No doubt, too, that offense can be sincere, sometimes well taken, even wise. But recourse for disagreement and offense does not lie in federal litigation. Instead, in a society that holds among its most cherished ambitions mutual respect, tolerance, self-rule, and democratic responsibility, an 'offended viewer' may 'avert his eyes' or pursue a political solution." *American Legion*, 588 U. S., at 88 (opinion of GORSUCH, J.) (citation omitted).

JUSTICE THOMAS, dissenting.

In 2014, a shooting spree in Ocala, Florida, left several children injured. In response, the city of Ocala's police department worked with community leaders to identify suspects and witnesses. Leaders of the religious community suggested holding a prayer vigil in the town square to bring the community together and encourage potential witnesses to cooperate. The chief of police agreed and posted a letter on the department's public Face-

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book page asking citizens to attend a prayer vigil for the victims. At the vigil, uniformed police chaplains appeared onstage alongside community religious leaders, all singing and praying for the injured children.

Respondents, several atheists who voluntarily attended the vigil with full knowledge of its religious content, sued the city and several officials under Rev. Stat. § 1979, 42 U. S. C. § 1983. They alleged that they felt uncomfortable and unable to participate at the vigil because of its Christian themes, and that the city had violated the Establishment Clause. The District Court granted summary judgment to respondents, holding that they had Article III standing and that the vigil violated the Establishment Clause under the *Lemon* test. See *Lemon* v. *Kurtzman*, 403 U. S. 602 (1971). Applying Circuit precedent, the Eleventh Circuit agreed that at least one respondent had standing because she came into "'direct contact'" with the vigil, 40 F. 4th 1347, 1350 (2022), but it remanded on the merits in light of our express abandonment of *Lemon* last Term in *Kennedy* v. *Bremerton School Dist.*, 597 U. S. 507, 534–535 (2022).

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Although the Eleventh Circuit was correct that *Lemon* is no longer good law, we should have granted certiorari to review whether respondents had standing to bring their claims. Standing is an antecedent jurisdictional requirement that must be established before a court reaches the merits. *Steel Co.* v. *Citizens for Better Environment*, 523 U. S. 83, 94–95 (1998). It thus makes no difference that the court below remanded based on *Kennedy*, and it may make no difference if the District Court holds for petitioner on the merits. Courts have no constitutional authority to pass on the merits of a case beyond their jurisdiction—"to do so is, by very definition, for a court to act ultra vires." 523 U. S., at 102. "Much more than legal niceties are at stake here. The statutory and (especially) constitutional elements of jurisdiction are an essential ingredient of separation and equilibration of powers, restraining the courts from acting at certain times, and even restraining them from acting permanently regarding certain subjects." *Id.*, at 101. "This tenet is as solid as bedrock and almost as old." *Cross-Sound Ferry Servs., Inc.* v. *ICC*, 934 F. 2d 327, 339 (CADC 1991) (Thomas, J., concurring in part and concurring in denial of petition for review). Because standing based on mere offense is in significant tension with Article III and our precedents, I would have granted certiorari to determine whether the courts below lacked jurisdiction.

I have serious doubts about the legitimacy of the "offended observer" theory of standing applied below. See *American Legion* v. *American Humanist Assn.*, 588 U. S. 29, 80, 83, (2019) (GORSUCH, J., concurring in judgment) (noting that the doctrine "has no basis in law," is "deeply inconsistent . . . with many . . . longstanding principles and precedents," and "cannot be squared with this Court's longstanding teachings about the limits of Article III"). For decades, members of the Judiciary have noted that offended observer standing appears to be flatly inconsistent with our opinion in *Valley Forge Christian College* v. *Americans United for Separation of Church and State, Inc.*, 454 U. S. 464 (1982). In that case, we held "that 'the psychological consequence presumably produced by observation of religious conduct with which one disagrees' is 'not an injury sufficient to confer standing under Article III, even though the disagreement is phrased in constitutional terms.'" *Kondrat'yev* v. *Pensacola*, 949 F. 3d 1319, 1335 (CA11 2020) (Newsom, J., concurring) (quoting 454 U. S., at 485–486; alterations omitted); see also *American Legion*, 588 U. S., at 82 (opinion of GORSUCH, J.); *Freedom From Religion Foundation, Inc.* v. *Mack*, 49 F. 4th 941, 949 (CA5 2022) (Smith, J.) ("[T]he law of Establishment Clause standing is hard to reconcile with the general principle that standing is absent where a plaintiff has only a generalized grievance shared in substantially equal measure by all or most citizens" (internal quotation marks omitted)); *Freedom From Religion Foundation, Inc.* v. *Obama*, 641 F. 3d 803, 807 (CA7 2011) (Easterbrook, C. J.) ("[H]urt feelings differ from legal injury"); *Barnes-Wallace* v. *San Diego*, 530 F. 3d 776, 795 (CA9 2008) (Kleinfeld, J., dissenting) ("[B]eing there and seeing the offending conduct does not confer standing"); *Doe* v. *Tangipahoa Parish School Bd.*, 494 F. 3d 494, 500 (CA5 2007) (DeMoss, J., specially concurring) (explaining that offended observer standing "opens the courts' doors to a group of plaintiffs who have no complaint other than they dislike any government reference to God"); *American Civil Liberties Union of Ohio Foundation, Inc.* v. *Ashbrook*, 375 F. 3d 484, 497 (CA6 2004) (Batchelder, J., dissenting) (explaining that standing based on "unwelcome contact" with governmental religious displays is "inconsistent with . . . *Valley Forge*"); *Washegesic* v. *Bloomingdale Public Schools*, 33 F. 3d 679, 684–685 (CA6 1994) (Guy, J., concurring) (explaining that offended observer standing "establishe[s] . . . a class of 'eggshell' plaintiffs of a delicacy never before

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known to the law"); *Penkoski* v. *Bowser*, 486 F. Supp. 3d 219, 231 (DC 2020) (McFadden, J.) (explaining that offended observer standing "cannot be squared with" *Valley Forge*).

Offended observer standing appears to warp the very essence of the judicial power vested by the Constitution. Under Article III, federal courts are authorized "to adjudge the legal rights of litigants in actual controversies," not hurt feelings. *Valley Forge*, 454 U. S., at 471 (internal quotation marks omitted); see also *In re Navy Chaplaincy*, 534 F. 3d 756, 763 (CADC 2008) ("[M]ere personal offense to government action does not give rise to standing to sue" (citing *Allen* v. *Wright*, 468 U. S. 737, 752–754 (1984))); J. Davis & N. Reaves, Fruit of the Poisonous *Lemon* Tree: How the Supreme Court Created Offended-Observer Standing, and Why It's Time for It To Go, 96 Notre Dame L. Rev. Reflection 25, 35–36 (2020) ("Under a historical understanding of Article III," "psychological offense resulting merely from seeing [challenged government] action does not qualify" as "concrete harm"). In every other area, we have been clear that "offense alone [is] insufficient to convey standing." *American Legion*, 588 U. S., at 81 (opinion of GORSUCH, J.); see also *Kondrat'yev*, 949 F. 3d, at 1337 (Newsom, J., concurring) ("[T]he Supreme Court has long rejected allegations of offense, fear, and stigma as sufficient to establish standing"). And, we admonished in *Valley Forge* that there is "no principled basis on which to create a hierarchy of constitutional values or a complementary 'sliding scale' of standing." 454 U. S., at 484. Yet offended observer standing seems to do just that by "carv[ing] out [a] special exceptio[n] to the rules governing standing for Establishment Clause claims." *Ashbrook*, 375 F. 3d, at 496 (Batchelder, J., dissenting); see also *Penkoski*, 486 F. Supp. 3d, at 233–234.

Valley Forge could not have been clearer that a relaxed standing doctrine "does not become more palatable when the underlying merits concern the Establishment Clause." 454 U. S., at 489. Nonetheless, we have muddied the waters by repeatedly reaching the merits of Establishment Clause cases premised upon offended observer standing in the courts below. *American Legion*, 588 U. S., at 83 (opinion of GORSUCH, J.). Fortunately, "'drive-by jurisdictional rulings of this sort' carry 'no precedential effect.'" *Ibid.* (quoting *Steel Co.*, 523 U. S., at 91; alteration omitted). But we should not "continue to hold expressly that the injury in fact requirement is no different for Establishment Clause cases, while

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. . . implicitly assum[ing] standing in" those cases based on an injury that, "in a non-Establishment Clause case, would not get the plaintiff into the courthouse." *Doe*, 494 F. 3d, at 500 (DeMoss, J., specially concurring). Nor should we continue to countenance the undermining of our well-reasoned *Valley Forge* precedent by the Courts of Appeals.

This Court's intervention has become increasingly necessary, as time has demonstrated that this problem is not going away by itself. Even those Courts of Appeals that recognize the apparent illegitimacy of offended observer standing now find themselves bound by Circuit precedent to apply it. See *Kondrat'yev*, 949 F. 3d, at 1337 (Newsom, J., concurring) ("[W]e should . . . convene en banc in order to bring our own Establishment Clause standing precedent into line with the Supreme Court's"); *Mack*, 49 F. 4th, at 949 ("[C]orrect or not, our [offended observer] precedents bind us"); *Freedom From Religion Foundation, Inc.* v. *County of Lehigh*, 933 F. 3d 275, 280 (CA3 2019) (Hardiman, J.) ("We . . . leave it to the Supreme Court—or this Court sitting en banc—to determine whether to discard" offended observer standing). And, anomalous exceptions that expand an institution's power have a tendency to swallow rules that limit it. The same is true here: Far from naturally receding, offended observer standing threatens to dilute Article III requirements in other areas. See, *e. g.*, *Gerber* v. *Herskovitz*, 14 F. 4th 500, 506 (CA6 2021) (employing a direct analogy to offended observer cases to hold that individuals had standing to bring various federal statutory, due process, and free exercise claims solely because they suffered psychological harm from alleged legal violations). We should reconsider this seeming aberration before it further erodes bedrock Article III restrictions on the judicial power.

Decades ago, I joined Chief Justice Rehnquist in a dissent from denial of certiorari that recognized the tension between standing based on religious offense and *Valley Forge*. *City of Edmond* v. *Robinson*, 517 U. S. 1201, 1202–1203 (1996). At the time, Chief Justice Rehnquist lamented the Court's failure to confront this undeniably important question that "determines the reach of federal courts' power of judicial review of state actions." *Id.*, at 1203. Time has vindicated this exhortation, and I continue to urge the Court to review the legitimacy of this form of standing. If the Courts of Appeals are unwilling to reconsider their offended observer precedents en banc, we should intervene to vindicate our holding in *Valley Forge*.

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No. 22–625. GRIFFIN *v.* BLUE CROSS BLUE SHIELD HEALTHCARE PLAN OF GEORGIA, INC., ET AL. C. A. 11th Cir. Certiorari before judgment denied.

No. 22–649. DOWNING *v.* ABBOTT LABORATORIES ET AL. C. A. 7th Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 48 F. 4th 793.

No. 22–6689. JOHNSTON *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. JUSTICE BARRETT took no part in the consideration or decision of this petition.

Rehearing Denied

No. 22–345. SILADI *v.* DEUTSCHE BANK NATIONAL TRUST CO., 598 U. S. 1121;

No. 22–377. HINDS *v.* TEXAS, 598 U. S. 1121;

No. 22–378. HINDS *v.* TEXAS, 598 U. S. 1121;

No. 22–449. LARSON ET UX. *v.* SNOHOMISH COUNTY, WASHINGTON, ET AL., 598 U. S. 1123;

No. 22–5519. STANSBURY *v.* COURLEY, ACTING SUPERINTENDENT, STATE CORRECTIONAL INSTITUTION AT CAMP HILL, ET AL., 598 U. S. 984;

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No. 22–5699. IN RE CRAAYBEEK, 598 U. S. 1094;

No. 22–5820. MENDEL *v.* RANDOLPH, INDIVIDUALLY AND IN HER OFFICIAL CAPACITY AS COMMISSIONER, CALIFORNIA PUBLIC UTILITIES COMMISSION, ET AL., 598 U. S. 1126;

No. 22–5963. SPAIN *v.* JONES, 598 U. S. 1129;

No. 22–6131. MORET *v.* RANGANATHAN ET AL., 598 U. S. 1134; and

No. 22–6140. WRIGHT *v.* UNITED STATES, 598 U. S. 1135. Petitions for rehearing denied.

MARCH 9, 2023

Certiorari Denied

No. 22–6964 (22A788). BROWN *v.* TEXAS. Ct. Crim. App. Tex. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Certiorari denied.

MARCH 17, 2023

Miscellaneous Order

No. 21–1484. ARIZONA ET AL. *v.* NAVAJO NATION ET AL.; and

No. 22–51. DEPARTMENT OF THE INTERIOR ET AL. *v.* NAVAJO NATION ET AL. C. A. 9th Cir. [Certiorari granted, 598 U. S. 1015.] Motion of the Solicitor General for divided argument granted.

MARCH 20, 2023

Certiorari Granted—Vacated and Remanded

No. 22–312. CHAPMAN, CLERK, CIRCUIT COURT OF MISSOURI, RANDOLPH COUNTY *v.* DOE, BY NEXT FRIEND ROTHERT. C. A. 8th Cir. Certiorari granted, judgment vacated, and case remanded with instructions to dismiss the case as moot. See *United States* v. *Munsingwear, Inc.*, 340 U. S. 36 (1950). Reported below: 30 F. 4th 766.

JUSTICE JACKSON, dissenting.

I am concerned that contemporary practice related to so-called "*Munsingwear* vacaturs" has drifted away from the doctrine's foundational moorings.

* * *

When a case becomes moot, the losing party is generally deprived of the right to appeal the merits of an adverse decision. *U. S. Bancorp Mortgage Co.* v. *Bonner Mall Partnership*, 513 U. S. 18, 21–22 (1994). In *United States* v. *Munsingwear, Inc.*, 340 U. S. 36, 38–39 (1950), this Court observed that, sometimes, that result might be especially unfair, and thus a request for vacatur of the lower court's judgment may be entertained, and granted, to address the inequity. But the Court declined to do so in *Munsingwear* itself because the equities did not favor the party requesting that relief, as the party had "slept on its rights." *Id.*, at 41. Later, this Court clarified that this "*Munsingwear* vacatur" remedy is available only in "extraordinary" or "exceptional" cases where a party meets the burden of demonstrating equitable entitlement to vacatur in an otherwise moot case. *Bancorp*, 513 U. S., at 26, 29.

Here, the majority has acquiesced to the parties' joint request for a *Munsingwear* vacatur. This case involves a lawsuit that respondent Doe filed in the U. S. District Court for the Eastern District of Missouri, invoking Rev. Stat. § 1979, 42 U. S. C. § 1983, and alleging that petitioner Chapman violated the Fourteenth Amendment when she denied Doe access to a judicial bypass for an abortion without parental notification. The Eighth Circuit rejected Chapman's plea for quasi-judicial and qualified immunity,

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see 30 F. 4th 766 (2022), after which this Court issued *Dobbs* v. *Jackson Women's Health Organization*, 597 U. S. 215 (2022). That decision led the parties to jointly stipulate to dismiss Doe's civil action under Federal Rule of Civil Procedure 41(a)(1)(A)(ii), thereby mooting the case. Doe could only have effectuated a dismissal of her case without a court order if Chapman agreed to the dismissal, see *ibid.*, and, apparently, Chapman agreed on the condition that Doe did not object to a request for *Munsingwear* vacatur from this Court.

Whatever the parties might have seen fit to agree to, we have long recognized that the equities generally do not favor *Munsingwear* vacatur when the party requesting such relief played a role in rendering the case moot. See, *e. g.*, *Bancorp*, 513 U. S., at 25; *United States* v. *Hamburg-Amerikanische Packetfahrt-Actien Gesellschaft*, 239 U. S. 466, 478 (1916). Chapman contributed to the mootness of this case insofar as she stipulated to its dismissal. And it is not unfair for us to now deprive her of the benefit of this bargain, since this form of relief is discretionary, and Chapman had other viable options including relying on her original request that the Court grant a petition for certiorari, vacate the Eighth Circuit's judgment, and remand in light of *Dobbs*—our ordinary process for addressing intervening developments in the law.

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Even more fundamentally, this case presents absolutely no "extraordinary" circumstances justifying *Munsingwear* relief. *Bancorp*, 513 U. S., at 26, 29. The underlying matter was voluntarily dismissed, and Chapman does not contend that she is somehow bound to the judgment below; thus, no unfairness inures from Chapman's loss of the right to appeal. Indeed, Chapman's only argument in support of vacatur is that the Eighth Circuit's opinion was wrongly decided. But mere disagreement with the decision that one seeks to have vacated cannot suffice to warrant equitable relief under *Munsingwear*. See *Bancorp*, 513 U. S., at 27 (finding it "inappropriate . . . to vacate mooted cases, in which we have no constitutional power to decide the merits, on the basis of assumptions about the merits," and emphasizing that issuance of vacatur should turn on the equities of the individual case).

In my view, it is crucial that we hold the line and limit the availability of *Munsingwear* vacatur to truly exceptional cases. To do otherwise risks considerable damage to first principles of appellate review, since at least three background precepts counsel against indiscriminate vacatur of a lower court's judgment:

(1) an appellate court generally does not have jurisdiction to review a moot case, much less issue an order awarding relief in the matter;

(2) *Munsingwear* vacatur is an exception to the statutorily prescribed path for obtaining relief from adverse judgments (namely, appeals as of right and certiorari); and

(3) our common-law system assumes that judicial decisions are valuable and should not be cast aside lightly, especially because judicial precedents "'are not merely the property of private litigants,'" but also belong to the public and "'legal community as a whole.'" *Bancorp*, 513 U. S., at 21, 26–27. Injudicious awards of *Munsingwear* vacatur can also incentivize gamesmanship, as it, for example, enables parties to disclaim potential mootness before the lower court, and, if unsuccessful on the merits at that stage, argue mootness on appeal to eliminate the adverse decision through vacatur.*

* * *

While these core principles warrant an exceedingly cautious approach to *Munsingwear* vacatur requests, our recent practices reflect a sharp uptick in the number of vacaturs awarded. I would not add this far-from-exceptional case to that growing list.

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Certiorari Dismissed

No. 22–6496. WELSH *v.* COLLIER ET AL. C. A. 5th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

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*See, *e. g.*, *Mayorkas* v. *Innovation Law Lab*, 594 U. S. 911 (2021) (issuing *Munsingwear* vacatur in a case where, after a preliminary injunction against the Government was imposed and the appellate court affirmed, the Government ceased the challenged policy and then asked this Court to vacate the lower court opinion as moot); *Maryland* v. *United States Dept. of Ed.*, 2020 WL 7773390, *1 (D DC, Dec. 29, 2020) (party argued to District Court that an issue was not moot but reversed course and argued to the appellate court that the issue *was* moot, so as to obtain vacatur of the adverse decision).

No. 22–6516. AUGUSTIN *v.* TENNESSEE DEPARTMENT OF SAFETY AND HOMELAND SECURITY. Ct. App. Tenn. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–6532. CARAFFA *v.* BIDEN, PRESIDENT OF THE UNITED STATES, ET AL. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–6544. MILLER *v.* PLUMLEE, JUDGE, DISTRICT COURT OF TEXAS, DALLAS COUNTY. Ct. App. Tex., 5th Dist. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

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No. 22–6642. SULLIVAN *v.* FEDERAL BUREAU OF PRISONS ET AL. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–6650. ROOKS-BYRD, AKA MUHAMMAD *v.* COURT OF APPEALS OF NEBRASKA. Sup. Ct. Neb. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

Miscellaneous Orders

No. D–3101. IN RE DISBARMENT OF O'BRIEN. Disbarment entered. [For earlier order herein, see 598 U. S. 1105.]

No. 22M77. DAVIS *v.* ADAMS, MAYOR OF THE CITY OF NEW YORK, ET AL.;

No. 22M79. MCWHERTER *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION; and

No. 22M80. A. H. *v.* S. W. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 22M78. IN RE MARTIN; and

No. 22M81. GOSSAGE *v.* OFFICE OF PERSONNEL MANAGEMENT ET AL. Motions for leave to proceed as veterans denied.

No. 22M82. BROOKS *v.* AGATE RESOURCES, INC., ET AL. Motion of respondents for leave to file petition for writ of certiorari under seal with redacted copies for the public record granted.

No. 22M83. GORDON *v.* DOE, DESIGNATION SENTENCE COMPUTATION CENTER OFFICIAL ET AL. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 22M84. LAROCHE-ST. FLEUR *v.* BOARD OF BAR OVERSEERS OF THE SUPREME JUDICIAL COURT OF MASSACHUSETTS. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal denied.

No. 21–1326. UNITED STATES ET AL. EX REL. SCHUTTE ET AL. *v.* SUPERVALU INC. ET AL.; and

No. 22–111. UNITED STATES ET AL. EX REL. PROCTOR *v.* SAFEWAY, INC. C. A. 7th Cir. [Certiorari granted, 598 U. S. 1143.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae*, for divided argument, and for enlargement of time for oral argument granted in part, and the time is divided as follows: 20 minutes for petitioners, 10 minutes for the Solicitor General, and 30 minutes for respondents.

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No. 22–459. OHIO *v.* CSX TRANSPORTATION, INC. Sup. Ct. Ohio. The Solicitor General is invited to file a brief in this case expressing the views of the United States.

No. 22–5971. LADEAIROUS *v.* GARLAND, ATTORNEY GENERAL, ET AL. C. A. D. C. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 1115] denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this motion.

No. 22–6785. GAGE *v.* MIDWESTERN UNIVERSITY. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until April 10, 2023, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 22–6252. IN RE HITCHCOCK;

No. 22–6858. IN RE DUBOSE;

No. 22–6864. IN RE DUBOSE; and
No. 22–6892. IN RE THOMAS. Petitions for writs of habeas corpus denied.

No. 22–619. IN RE KLAYMAN;
No. 22–657. IN RE TOWERS ET UX.;
No. 22–6518. IN RE JENKINS; and
No. 22–6604. IN RE SHEEHAN. Petitions for writs of mandamus denied.

No. 22–6505. IN RE HOLMES. Petition for writ of mandamus and/or prohibition denied.

Certiorari Denied

No. 22–332. TERRAFORM LABS PTE LTD. ET AL. *v.* SECURITIES AND EXCHANGE COMMISSION. C. A. 2d Cir. Certiorari denied.

No. 22–388. KEISTER *v.* BELL ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 29 F. 4th 1239.

No. 22–404. GOE, ON BEHALF OF HERSELF AND HER MINOR CHILD, ET AL. *v.* MCDONALD ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 43 F. 4th 19.

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No. 22–418. DEVERAUX *v.* MONTANA. Sup. Ct. Mont. Certiorari denied. Reported below: 409 Mont. 177, 512 P. 3d 1198.

No. 22–443. ZUMMER *v.* SALLET ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 37 F. 4th 996.

No. 22–562. DOUGLASS, INDIVIDUALLY AND AS PERSONAL REPRESENTATIVE OF THE ESTATE OF DOUGLASS, ET AL. *v.* NIPPON YUSEN KABUSHKI KAISHA. C. A. 5th Cir. Certiorari denied. Reported below: 46 F. 4th 226.

No. 22–618. MORNINGSTAR FELLOWSHIP CHURCH *v.* YORK COUNTY, SOUTH CAROLINA, ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–635. D. B. *v.* COLORADO ET AL. Ct. App. Colo. Certiorari denied.

No. 22–647. SCOTT *v.* TEXAS. Ct. App. Tex., 5th Dist. Certiorari denied.

No. 22–648. LUKASHIN *v.* UNITED STATES COURT OF APPEALS FOR THE NINTH CIRCUIT. C. A. 9th Cir. Certiorari denied.

No. 22–651. KELLOGG ET AL. *v.* WATTS GUERRA LLP ET AL. (two judgments). C. A. 10th Cir. Reported below: 41 F. 4th 1246 (first judgment). Certiorari denied.

No. 22–655. SULGROVE ET AL. *v.* SPOKANE INDIAN TRIBE ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–667. CHEN BING *v.* BIDEN, PRESIDENT OF THE UNITED STATES, ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–668. KAMA *v.* MEMORIAL HERMANN HEALTH SYSTEMS ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–689. DRIESSEN *v.* BARCLAYS BANK, PLC. C. A. 11th Cir. Certiorari denied.

No. 22–691. AKRAWI *v.* GARLAND, ATTORNEY GENERAL. C. A. 6th Cir. Certiorari denied.

No. 22–722. CALAPRISTI *v.* UNITED STATES. C. A. Fed. Cir. Certiorari denied.

No. 22–736. BAXTER *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

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No. 22–742. UNITED MINE WORKERS OF AMERICA 1974 PENSION PLAN ET AL. *v.* ENERGY WEST MINING CO. C. A. D. C. Cir. Certiorari denied. Reported below: 39 F. 4th 730.

No. 22–746. WHITE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–765. CYRUS CAPITAL PARTNERS, L. P. *v.* SEARS HOLDINGS CORP. C. A. 2d Cir. Certiorari denied. Reported below: 51 F. 4th 53.

No. 22–777. HENRY *v.* MARSHALL, ATTORNEY GENERAL OF ALABAMA. C. A. 11th Cir. Certiorari denied. Reported below: 45 F. 4th 1272.

No. 22–781. OCHOA *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 45 F. 4th 1293.

No. 22–783. ORENA *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 48 F. 4th 61.

No. 22–784. FILLER *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. 9th Cir. Certiorari denied.

No. 22–796. SMITH *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–797. SHEPPARD *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–798. CROTHERS *v.* WYOMING. Sup. Ct. Wyo. Certiorari denied.

No. 22–801. SALAAM *v.* ILLINOIS EX. REL. FOXX. Sup. Ct. Ill. Certiorari denied. Reported below: 2022 IL 126927, 201 N. E. 3d 1100.

No. 22–5546. CARRIZALES PRETELL *v.* FLORIDA. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 339 So. 3d 506.

No. 22–5866. MILTON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–5982. JACKSON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 32 F. 4th 278.

No. 22–6191. LOTTER *v.* NEBRASKA. Sup. Ct. Neb. Certiorari denied. Reported below: 311 Neb. 878, 976 N. W. 2d 721.

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No. 22–6224. SHAHROKHI *v.* BURROW. Sup. Ct. Nev. Certiorari denied. Reported below: 138 Nev. ——, 509 P. 3d 602.

No. 22–6264. MELLON *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6445. VILLA RAMIREZ *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied. Reported below: 13 Cal. 5th 997, 515 P. 3d 1085.

No. 22–6480. ROHLF *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6485. RIETHMILLER *v.* UNNAMED DEFENDANTS. C. A. 4th Cir. Certiorari denied.

No. 22–6488. MOSLEY *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 349 So. 3d 861.

No. 22–6490. JOHNSON *v.* COURT OF APPEAL OF CALIFORNIA, FIRST APPELLATE DISTRICT, ET AL. Sup. Ct. Cal. Certiorari denied.

No. 22–6492. AJJAHNON *v.* SANDLER HOLDINGS, LLC. Dist. Ct. App. Fla., 5th Dist. Certiorari denied.

No. 22–6494. WELCH *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied.

No. 22–6495. ZUNIGA *v.* COLORADO. Ct. App. Colo. Certiorari denied.

No. 22–6504. HERRINGTON *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Certiorari denied.

No. 22–6506. SIMPSON *v.* DAVIS, DBA DAVIS CONSTRUCTION CO., ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–6508. EVANS *v.* ZUBRENSKY. C. A. D. C. Cir. Certiorari denied.

No. 22–6525. ARLINE *v.* CALIFORNIA. Sup. Ct. Cal. Certiorari denied.

No. 22–6526. KUBICA *v.* CALIFORNIA. Ct. App. Cal., 4th App. Dist., Div. 2. Certiorari denied.

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No. 22–6529. HAVENS *v.* LEONG ET AL. Sup. Ct. Del. Certiorari denied. Reported below: 272 A. 3d 781.

No. 22–6530. HAVENS *v.* LEONG ET AL. Ct. App. Cal., 1st App. Dist., Div. 5. Certiorari denied.

No. 22–6534. KING *v.* MAYS, WARDEN. C. A. 6th Cir. Certiorari denied. Reported below: 847 F. 3d 788.

No. 22–6539. ROMERO *v.* ALLWELL FROM ABSOLUTE TOTAL CARE ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–6546. MARCEL *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–6548. UNITED STATES EX REL. SHU *v.* HUTT ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6549. JORDAN *v.* HISTORIC LOG CABINS, INC., ET AL. Sup. Ct. S. D. Certiorari denied. Reported below: 980 N. W. 2d 58.

No. 22–6550. ZORIKOVA *v.* PYLE ET AL. Ct. App. Nev. Certiorari denied. Reported below: 138 Nev. ——, 516 P. 3d 167.

No. 22–6555. HILL *v.* TEXAS. Ct. App. Tex., 12th Dist. Certiorari denied.

No. 22–6559. MINKOVITCH *v.* TICOR TITLE COMPANY OF CALIFORNIA ET AL. Ct. App. Cal., 2d App. Dist., Div. 5. Certiorari denied.

No. 22–6605. KOMATSU *v.* CITY OF NEW YORK, NEW YORK, ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–6655. WASHINGTON *v.* THORNELL, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY. C. A. 9th Cir. Certiorari denied. Reported below: 46 F. 4th 915.

No. 22–6663. JANAKIEVSKI *v.* GRIFFIN, EXECUTIVE DIRECTOR, ROCHESTER PSYCHIATRIC CENTER. C. A. 2d Cir. Certiorari denied.

No. 22–6670. LACY *v.* CHEEKS. C. A. 6th Cir. Certiorari denied.

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No. 22–6673. MASON *v.* HARRY, ACTING SECRETARY, PENNSYLVANIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6686. ROSS *v.* VIRGINIA ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–6711. WALTON *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 51 F. 4th 705.

No. 22–6723. RAFI *v.* YALE SCHOOL OF MEDICINE ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–6726. HYMAN *v.* BUFFALOE, SECRETARY, NORTH CAROLINA DEPARTMENT OF PUBLIC SAFETY. C. A. 4th Cir. Certiorari denied. Reported below: 41 F. 4th 272.

No. 22–6732. ALVARADO-RIOS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6741. MBANEFO *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6742. GAWLIK *v.* LAMONT, GOVERNOR OF CONNECTICUT, ET AL. App. Ct. Conn. Certiorari denied. Reported below: 203 Conn. App. 904, 248 A. 3d 90.

No. 22–6744. GORDON *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6745. HILL *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 31 F. 4th 1076.

No. 22–6750. AGUSTIN-BASILIO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6756. HAMMOUD *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6762. VAN DYCK *v.* ARIZONA. Ct. App. Ariz. Certiorari denied.

No. 22–6763. WILLIAMSON *v.* HEINRICY, WARDEN. C. A. 8th Cir. Certiorari denied.

No. 22–6764. DAVIS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

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No. 22–6769. FAST *v.* FLORIDA. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 346 So. 3d 610.

No. 22–6771. CONDON *v.* UNITED STATES. C. A. Armed Forces. Certiorari denied.

No. 22–6775. MARQUEZ-OSEGUERA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6779. JONG SUNG KIM *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6784. SOUTH *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6786. COAXUM *v.* SNODDY, WARDEN. C. A. 4th Cir. Certiorari denied.

No. 22–6790. JAIMEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 45 F. 4th 1118.

No. 22–6791. SIMMONS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6792. SWIERSKI *v.* KOENIG, ACTING WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6793. LOYA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6794. SUGGS *v.* MCCONAHAY, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6795. POSSO *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6802. SIERRA-AYALA *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 39 F. 4th 1.

No. 22–6804. WILLIAMS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6808. RIKER *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

No. 22–6809. AHMED *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6810. JARVIS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

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No. 22–6812. TAYLOR *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6813. GLOWACKI *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6816. CATO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6824. DIETZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6828. ESPINOZA *v.* FOSS, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6833. FLOYD *v.* TEXAS. Ct. App. Tex., 2d Dist. Certiorari denied.

No. 22–6834. LAURY *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–6835. REED *v.* UNITED STATES (Reported below: 48 F. 4th 1082); SPENTZ *v.* UNITED STATES; and GOLDEN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6837. SHERMAN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6843. BARRERA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6845. LOPEZ *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–6847. CLOSE *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–6849. PELULLO *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. Reported below: 41 F. 4th 136.

No. 22–6854. SIMS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6855. JOHNSON *v.* MISSISSIPPI. Sup. Ct. Miss. Certiorari denied.

No. 22–6866. ROSELLO *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

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No. 22–6885. MARTINEZ PEDRAZA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–679. NYC C. L. A. S. H., INC., ET AL. *v.* FUDGE, SECRETARY OF HOUSING AND URBAN DEVELOPMENT, ET AL. C. A. D. C. Cir. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition. Reported below: 47 F. 4th 757.

No. 22–713. GLADDEN *v.* PROCTER & GAMBLE DISTRIBUTING, LLC. C. A. 11th Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 22–6595. HARRINGTON *v.* MEDSTAR WASHINGTON HOSPITAL CENTER ET AL. Ct. App. D. C. Certiorari denied. JUSTICE JACKSON took no part in the consideration or decision of this petition. Reported below: 283 A. 3d 714.

No. 22–6712. WRIGHT *v.* UNITED STATES. C. A. 6th Cir. Certiorari before judgment denied.

No. 22–6836. SPEED *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. JUSTICE SOTOMAYOR and JUSTICE KAGAN took no part in the consideration or decision of this petition.

No. 22–6848. DANIELS *v.* UNITED STATES. C. A. 11th Cir. Certiorari before judgment denied.

Rehearing Denied

No. 22–263. WANTOU *v.* WAL-MART STORES TEXAS, L. L. C., 598 U. S. 1150;

No. 22–444. KHAN *v.* PRESENCE CHICAGO HOSPITALS NETWORK ET AL., 598 U. S. 1145;

No. 22–505. PLEDGER *v.* GEITHER, WARDEN, 598 U. S. 1124;

No. 22–550. JACKSON *v.* MISSISSIPPI, 598 U. S. 1151;

No. 22–5184. STOUTAMIRE *v.* SHOOP, WARDEN, 598 U. S. 1146;

No. 22–5412. TRIBBLE *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, 598 U. S. 1009;

No. 22–5618. BROOKING *v.* PRINCE GEORGE'S COUNTY, MARYLAND, 598 U. S. 1125;

No. 22–5852. WEBSTER *v.* SELECT PORTFOLIO SERVICING, INC. (two judgments), 598 U. S. 1127;

No. 22–5907. BROOKING *v.* MOLONEY, 598 U. S. 1128;

No. 22–5932. CASAVELLI ET UX. *v.* JOHANSON, INDIVIDUALLY AND AS PERSONAL REPRESENTATIVE OF THE ESTATE OF JOHANSON, DECEASED, 598 U. S. 1128;

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No. 22–6008. TYSON *v.* FEDERAL BUREAU OF INVESTIGATION ET AL., 598 U. S. 1130;

No. 22–6093. LONDON *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS, 598 U. S. 1133;

No. 22–6193. ASSA'AD-FALTAS *v.* SOUTH CAROLINA, 598 U. S. 1136; and

No. 22–6227. CORINES *v.* NEW YORK, 598 U. S. 1148. Petitions for rehearing denied.

MARCH 27, 2023

Miscellaneous Orders

No. 22M85. COLE *v.* MCMINIMEE, AS TRUSTEE OF THE DEREK WINDELL COLE TRUST. Motion for leave to proceed as a veteran denied.

No. 22M86. KLINE *v.* AHUJA, DIRECTOR, OFFICE OF PERSONNEL MANAGEMENT. Motion to direct the Clerk to file petition for writ of certiorari out of time denied. JUSTICE KAVANAUGH took no part in the consideration or decision of this motion.

No. 22M87. RYAN *v.* UNITED STATES. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 22–349. FLAGSTAR BANK, N. A. *v.* KIVETT ET AL. C. A. 9th Cir.; and

No. 22–529. CANTERO ET AL., INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED *v.* BANK OF AMERICA, N. A. C. A. 2d Cir. The Solicitor General is invited to file briefs in these cases expressing the views of the United States.

No. 22–6557. HOUCK *v.* LIFESTORE BANK ET AL. C. A. 4th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until April 17, 2023, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 22–6913. IN RE READ; and

No. 22–6923. IN RE BROWN. Petitions for writs of habeas corpus denied.

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No. 22–6582. IN RE MICKMAN; and

No. 22–6588. IN RE JENKINS. Petitions for writs of mandamus denied.

No. 22–6590. IN RE JAMES; and

No. 22–6641. IN RE SUDBERRY. Motions of petitioners for leave to proceed *in forma pauperis* denied, and petitions for writs of mandamus dismissed. See this Court's Rule 39.8.

Certiorari Granted

No. 22–429. ACHESON HOTELS, LLC *v.* LAUFER. C. A. 1st Cir. Certiorari granted. Reported below: 50 F. 4th 259.

Certiorari Denied

No. 21–8191. TINLIN ET AL. *v.* UNITED STATES (Reported below: 20 F. 4th 426); WHEAT *v.* UNITED STATES; and HUTCHINSON *v.* UNITED STATES (27 F. 4th 1323). C. A. 8th Cir. Certiorari denied.

No. 21–8230. MATTHEWS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–18. CUKER INTERACTIVE, LLC *v.* PILLSBURY WINTHROP SHAW PITTMAN, LLP. C. A. 9th Cir. Certiorari denied.

No. 22–456. WILSON *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS, ET AL. C. A. 1st Cir. Certiorari denied.

No. 22–483. LEE ET AL. *v.* ANTHONY LAWRENCE COLLECTION, L. L. C., ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 47 F. 4th 262.

No. 22–501. ALONZO ET AL. *v.* SCHWAB, KANSAS SECRETARY OF STATE, ET AL. Sup. Ct. Kan. Certiorari denied. Reported below: 315 Kan. 877, 512 P. 3d 168.

No. 22–565. USP HOLDINGS, INC., ET AL. *v.* UNITED STATES ET AL. C. A. Fed. Cir. Certiorari denied. Reported below: 36 F. 4th 1359.

No. 22–659. RAO *v.* RAO ET AL. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2022 IL App (1st) 210316–U.

No. 22–661. CAMPEAU ET UX. *v.* SANDERCOCK, PROTHONOTARY OF THE COURT OF COMMON PLEAS OF PENNSYLVANIA, WAYNE COUNTY, ET AL. C. A. 3d Cir. Certiorari denied.

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No. 22–662. JUSINO *v.* FEDERATION OF CATHOLIC TEACHERS, INC. C. A. 2d Cir. Certiorari denied. Reported below: 54 F. 4th 95.

No. 22–675. LEWIS ET VIR, INDIVIDUALLY AND AS CO-PERSONAL REPRESENTATIVES OF THE ESTATE OF LEWIS, DECEASED *v.* CITY OF EDMOND, OKLAHOMA, ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 48 F. 4th 1193.

No. 22–676. CARTER *v.* FLORIDA DEPARTMENT OF CHILDREN AND FAMILIES ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–677. MILLER *v.* CITY OF ALBUQUERQUE PERSONNEL BOARD. Dist. Ct. N. M., Bernalillo County. Certiorari denied.

No. 22–680. LI ET AL. *v.* COLORADO REGIONAL CENTER I, LLC, ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–688. FLOWERS, AS PERSONAL REPRESENTATIVE OF PAYNE *v.* SUTTERFIELD, MENTAL HEALTH MANAGER, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–690. HARRIS-PATTERSON *v.* ARMCO STEEL, AKA AK STEEL CORP., ET AL. Ct. App. Mo., Western Dist. Certiorari denied.

No. 22–692. WILLIAMS *v.* FEDERAL NATIONAL MORTGAGE ASSOCIATION ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–705. CULBERTSON ET UX. *v.* WELLS FARGO USA HOLDINGS, INC., ET AL. Ct. App. La., 2d Cir. Certiorari denied. Reported below: 54,545 (La. App. 2 Cir. 6/29/22), 342 So. 3d 451.

No. 22–716. DOCKERY *v.* LEE, SUPERINTENDENT, EASTERN CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 22–729. SELGAS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 47 F. 4th 279.

No. 22–768. WALLER ET AL. *v.* HOEPPNER ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–776. DRAKE *v.* GEORGIA. Ct. App. Ga. Certiorari denied.

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No. 22–794. CALIFORRNIAA *v.* VIDAL, UNDER SECRETARY OF COMMERCE FOR INTELLECTUAL PROPERTY AND DIRECTOR, UNITED STATES PATENT AND TRADEMARK OFFICE. C. A. Fed. Cir. Certiorari denied.

No. 22–799. PFAU *v.* YELLEN, SECRETARY OF THE TREASURY. C. A. 5th Cir. Certiorari denied.

No. 22–803. VIRENTEM VENTURES, LLC *v.* GOOGLE LLC (three judgments). C. A. Fed. Cir. Certiorari denied.

No. 22–806. DOE *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 49 F. 4th 589.

No. 22–820. MCLAUGHLIN *v.* GARLAND, ATTORNEY GENERAL. C. A. 4th Cir. Certiorari denied.

No. 22–825. COLLINS *v.* D. R. HORTON-TEXAS LTD. C. A. 5th Cir. Certiorari denied.

No. 22–826. BUTT *v.* ZIMMERMAN, INDIVIDUALLY AND IN HIS OFFICIAL CAPACITY AS EXECUTIVE DIRECTOR, GEORGIA COMPOSITE BOARD FOR PROFESSIONAL COUNSELORS, SOCIAL WORKERS,

AND MARRIAGE AND FAMILY THERAPISTS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–834. SHAH *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–839. GREER *v.* CONNECTICUT. App. Ct. Conn. Certiorari denied. Reported below: 213 Conn. App. 757, 279 A. 3d 268.

No. 22–5159. LIPSCOMB *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–5572. KHAYTEKOV *v.* GARLAND, ATTORNEY GENERAL. C. A. 6th Cir. Certiorari denied.

No. 22–5706. SMITH *v.* DOBIN ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 852 Fed. Appx. 49.

No. 22–6109. RANDALL *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 34 F. 4th 867.

No. 22–6130. BRAGG *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 44 F. 4th 1067.

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No. 22–6574. TURNER *v.* ALLISON, SECRETARY, CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6576. TARVER *v.* FISHER, ADMINISTRATOR, SOUTH WOODS STATE PRISON, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6577. FIELDS *v.* NEWSOM, GOVERNOR OF CALIFORNIA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6583. MELILLO *v.* CITY AND COUNTY OF RICE, MINNESOTA, ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–6584. KELLY *v.* UNITED STATES COURT OF APPEALS FOR THE THIRD CIRCUIT. C. A. 3d Cir. Certiorari denied.

No. 22–6598. JIANG *v.* XU. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 22–6599. HARRIS *v.* OHIO ET AL. Sup. Ct. Ohio. Certiorari denied. Reported below: 168 Ohio St. 3d 1401, 2022-Ohio-3412, 195 N. E. 3d 1037.

No. 22–6608. TORLUCCI *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist., Div. 2. Certiorari denied.

No. 22–6613. BROWN *v.* FLORIDA. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 337 So. 3d 454.

No. 22–6618. JOSIAH E. *v.* ARIZONA DEPARTMENT OF CHILD SAFETY ET AL. Ct. App. Ariz. Certiorari denied.

No. 22–6620. ADAMS *v.* BEUSCH ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–6621. SEWELL *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6622. LUNA GOMEZ *v.* NINETEENTH JUDICIAL CIRCUIT OF VIRGINIA ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–6630. BUTLER *v.* SISSEM ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6633. BROWN *v.* FLORIDA. Dist. Ct. App. Fla., 3d Dist. Certiorari denied. Reported below: 317 So. 3d 165.

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No. 22–6635. WEATHERSPOON *v.* AMAZON. Sup. Ct. Tenn. Certiorari denied.

No. 22–6639. ROSS *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–6643. HARPER *v.* ILLINOIS. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2022 IL App (1st) 200287–U.

No. 22–6644. GHOSE *v.* TEXAS. Ct. App. Tex., 14th Dist. Certiorari denied.

No. 22–6646. THOMAS *v.* JOHNSON, ADMINISTRATOR, NEW JERSEY STATE PRISON, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6676. TABB, AS ADMINISTRATOR OF THE ESTATE OF FADELEY *v.* KIJAKAZI, ACTING COMMISSIONER OF SOCIAL SECURITY. C. A. 4th Cir. Certiorari denied.

No. 22–6691. AKASSY *v.* KIRKPATRICK, SUPERINTENDENT, CLINTON CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 22–6729. BENNETT *v.* RAIMONDO, SECRETARY OF COMMERCE. C. A. 4th Cir. Certiorari denied.

No. 22–6740. ANTOINE *v.* DELANCY LLC, DBA VITAL MEDICAL STAFFING. C. A. 4th Cir. Certiorari denied.

No. 22–6780. LARKINS *v.* HOOPER, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–6820. OCHOA *v.* WISCONSIN. Ct. App. Wis. Certiorari denied. Reported below: 2022 WI App 35, 404 Wis. 2d 261, 978 N. W. 2d 501.

No. 22–6856. TRUMAN *v.* WHITE, WARDEN. C. A. 4th Cir. Certiorari denied.

No. 22–6863. GONZALES *v.* WASHBURN, SUPERINTENDENT, EASTERN WASHINGTON CORRECTIONAL FACILITY. C. A. 9th Cir. Certiorari denied.

No. 22–6867. ATKINSON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

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No. 22–6870. KESSEL *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6874. SAINFIL *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 44 F. 4th 99.

No. 22–6878. LUNSFORD *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6880. WASHINGTON *v.* MISSISSIPPI. Sup. Ct. Miss. Certiorari denied.

No. 22–6886. RHODES *v.* PFEIFFER, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–6889. ANNAMALAI *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6893. CHANEY *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6901. JOHNSON *v.* ILLINOIS. App. Ct. Ill., 5th Dist. Certiorari denied. Reported below: 2022 IL App (5th) 180201–U.

No. 22–6912. WRIGHT *v.* PICKETT, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–274. DONZIGER *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 38 F. 4th 290.

JUSTICE GORSUCH, with whom JUSTICE KAVANAUGH joins, dissenting.

For decades, Texaco, a corporate predecessor to Chevron, allegedly polluted rain forests and rivers in South America. See *Aguinda* v. *Texaco, Inc.*, 303 F. 3d 470, 473 (CA2 2002). In 1993, residents of Ecuador came to court seeking relief for personal and environmental injuries they said the company had caused. Represented by Steven Donziger, the plaintiffs filed a class-action suit in the Southern District of New York. *Id.*, at 473–474. At the company's insistence, the court transferred the litigation to Ecuador. See *Republic of Ecuador* v. *Chevron Corp.*, 638 F. 3d 384, 389–390 (CA2 2011). Later, Chevron came to regret that move. After trial, it found itself on the wrong end of an $8.6 billion judgment. *Id.*, at 391.

Returning to the Southern District of New York, the company launched a counteroffensive. Ultimately, it won not only an injunction against the enforcement of the Ecuadorian judgment in any court in the United States. See *Chevron Corp.* v. *Donziger*, 833 F. 3d 74, 80 (CA2 2016). It also won a constructive trust on all assets Mr. Donziger received in this or any country as a result of the Ecuadorian judgment. *Ibid.* To enforce that trust, the district court granted Chevron discovery into Mr. Donziger's holdings and ordered him to surrender all of his electronic devices for forensic imaging. See 2021 WL 1845104, *1 (SDNY, May 7, 2021). When Mr. Donziger failed to comply fully with the court's orders, it held him in criminal contempt and referred the matter to the U. S. Attorney's Office for prosecution. See 38 F. 4th 290, 295 (CA2 2022). After some deliberation, however, the U. S. Attorney "'respectfully declined'" to take up the case. *Ibid.* (alteration omitted).

Apparently displeased with this decision, the district court responded by setting up and staffing its own prosecutor's office. *Ibid.* In the bench trial that followed, that office secured a conviction and the court sentenced Mr. Donziger to six months in prison. *Ibid.* Throughout these proceedings and on appeal,

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Mr. Donziger objected. He argued that the district court had no lawful authority to override the Executive Branch's nonprosecution decision and that our Constitution's separation of powers exists in no small measure to keep courts from becoming partisans in the cases before them. Despite his arguments, the Second Circuit affirmed Mr. Donziger's conviction. *Id.*, at 306. Judge Menashi dissented. *Id.*, at 306–315.

Today, the Court denies Mr. Donziger's petition seeking review of the Second Circuit's decision. I would grant it. In *Young* v. *United States ex rel. Vuitton et Fils S. A.*, 481 U. S. 787 (1987), this Court approved the use of court-appointed prosecutors as a "last resort" in certain criminal contempt cases. *Id.*, at 801. But that decision has met with considerable criticism. As Members of this Court have put it, the Constitution gives courts the power to "serve as a neutral adjudicator in a criminal case," not "the power to prosecute crimes." *Id.*, at 816 (Scalia, J., concurring in judgment). The Second Circuit acknowledged, too, that *Young* stands in considerable "tension" with this Court's subsequent separation-of-powers decisions. 38 F. 4th, at 303; see, *e. g.*, *Collins* v. *Yellen*, 594 U. S. 220 (2021); *United States* v. *Arthrex, Inc.*, 594 U. S. 1 (2021); *Seila Law LLC* v. *Consumer Financial Protection Bureau*, 591 U. S. 197 (2020); *Lucia* v. *SEC*, 585 U. S. 237 (2018).

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Even taking *Young* on its own terms, it is hard to see how that decision could justify what happened here. *Young* rested on the premise that the court-appointed prosecutors in that case wielded *judicial power*, meaning they were subject to judicial, not executive, supervision. See 481 U. S., at 795–796. By contrast, "[e]very court and every party" has acknowledged that the court-appointed prosecutors in this case did *not* exercise judicial power. 38 F. 4th, at 306 (Menashi, J., dissenting). Instead, all agree, the court-appointed prosecutors here exercised "*executive* power" and were accountable through the Executive Branch's chain of command running ultimately to the President. *Id.*, at 306–307 (emphasis added). By its own terms, then, *Young* simply does not speak to Mr. Donziger's situation.

Nor without *Young* is it clear what legal principle could sustain Mr. Donziger's conviction. Highlighting the confused (but surely executive) nature of the prosecution in this case, the "United States" supplied the Second Circuit with two different briefs of-

fering different theories. One brief came from the court-appointed prosecutors, another from lawyers within the Department of Justice.

Adopting one of the court-appointed prosecutors' theories, the Second Circuit reasoned that those who prosecuted Mr. Donziger served as properly appointed "inferior officers" of the United States within the Executive Branch. 38 F. 4th, at 296–299. But under the Constitution's Appointments Clause, "Courts of Law" may appoint inferior officers *only* when "Congress . . . by Law vest[s]" them with that authority. Art. II, § 2, cl. 2. All of which raises the question: Exactly what law gives federal district courts the extraordinary power to appoint inferior executive officers to serve as prosecutors in proceedings before them?

The Second Circuit pointed to Federal Rule of Criminal Procedure 42. That submission, however, faces at least two challenges. First, in *Young* this Court *rejected* the notion that the then-existing version of Rule 42 could serve as an independent font of appointment authority. 481 U. S., at 794; see *id.*, at 815, n. 1 (opinion of Scalia, J.). After all, "it is a Rule of court rather than an enactment of Congress," and therefore it cannot "confer Article II appointment authority" on anybody. *Id.*, at 816, n. 1. Second, courts have adopted Rule 42 under the Rules Enabling Act. That statute provides that any rules of court promulgated under its terms "shall not abridge . . . or modify any substantive right." 28 U. S. C. § 2072(b). Yet, the manner in which the Second Circuit applied Rule 42 had just that impermissible effect. The "decision of a prosecutor . . . *not* to indict" is one that belongs squarely within "the special province of the Executive Branch." *Heckler* v. *Chaney*, 470 U. S. 821, 832 (1985) (emphasis added). This "structural princip[e]" serves to "protect the individual" just as much as the Executive Branch. *Bond* v. *United States*, 564 U. S. 211, 222 (2011). By interpreting Rule 42 as authorizing courts to make their own decision to initiate a prosecution—and even to override a contrary decision by the Executive Branch—the Second Circuit's opinion not only arrogated a power to the Judiciary that belongs elsewhere. It allowed the district court to assume the "dual position as accuser and decisionmaker"—a combination that "violat[es the] due process" rights of the accused. *Williams* v. *Pennsylvania*, 579 U. S. 1, 9 (2016).

Seeking to avoid these problems, lawyers from the Department of Justice advanced other theories in their own brief before the

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Second Circuit. Most pertinently, they suggested that the court-appointed prosecutors did not serve as inferior officers for purposes of the Appointments Clause; instead, they served only as nonofficer employees in the Executive Branch. But not only is this position inconsistent with how the Second Circuit viewed the matter. See 38 F. 4th, at 299. It is hard to square with our own precedent. See *Morrison* v. *Olson*, 487 U. S. 654, 670–671 (1988) (holding an independent counsel to be an inferior officer). And even overlooking all that, the notion that the Constitution allows one branch to install nonofficer employees in another branch would come as a surprise to many. Who really thinks that the President may choose law clerks for my colleagues, that we can pick White House staff for him, or that either he or we are entitled to select aides for the Speaker of the House?

However much the district court may have thought Mr. Donziger warranted punishment, the prosecution in this case broke a basic constitutional promise essential to our liberty. In this country, judges have no more power to initiate a prosecution of those who come before them than prosecutors have to sit in judgment of those they charge. In the name of the "United States," two different groups of prosecutors have asked us to turn a blind eye to this promise. Respectfully, I would not. With this Court's failure to intervene today, I can only hope that future courts weighing whether to appoint their own prosecutors will consider carefully Judge Menashi's dissenting opinion in this case, the continuing vitality of *Young*, and the limits of its reasoning. Our Constitution does not tolerate what happened here.

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No. 22–484. PIERLUISI, GOVERNOR OF PUERTO RICO, ET AL. *v.* FINANCIAL OVERSIGHT AND MANAGEMENT BOARD FOR PUERTO RICO. C. A. 1st Cir. Motion of Hon. Jose Luis Dalmau for leave to file brief as *amicus curiae* out of time denied. Certiorari denied. Reported below: 37 F. 4th 746.

No. 22–6206. HOLLAND *v.* FLORIDA. C. A. 11th Cir. Certiorari denied. JUSTICE KAGAN took no part in the consideration or decision of this petition.

No. 22–6638. DAWSON *v.* ARCHAMBEAU ET AL. C. A. 10th Cir. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition.

No. 22–6877. WRIGHT *v.* UNITED STATES. C. A. 6th Cir. Certiorari before judgment denied.

Rehearing Denied

No. 22–460. PLUMB ET AL. *v.* U. S. BANK N. A. ET AL., 598 U. S. 1150;

No. 22–5682. RAMOS *v.* VALMONT INDUSTRIES, INC., ET AL., 598 U. S. 1083;

No. 22–5805. CRAWFORD ET AL. *v.* SOUTH CAROLINA, 598 U. S. 1126;

No. 22–5835. KERR *v.* GOMEZ, WARDEN, 598 U. S. 1021;

No. 22–5896. JACKSON *v.* INCH ET AL., 598 U. S. 1128;

No. 22–6142. COLLIER *v.* FLORIDA DEPARTMENT OF CORRECTIONS, 598 U. S. 1135;

No. 22–6200. IN RE LOPEZ, 598 U. S. 1150; and

No. 22–6511. MASKEVICH *v.* ILLINOIS DEPARTMENT OF EMPLOYMENT SECURITY ET AL., 598 U. S. 1179. Petitions for rehearing denied.

No. 22–5913. BERMAN *v.* DRAPER, 598 U. S. 1140. Petition for rehearing denied. JUSTICE JACKSON took no part in the consideration or decision of this petition.

No. 22–5906. THOMPSON *v.* FLORIDA, 598 U. S. 1128. Motion of petitioner for leave to file petition for rehearing denied.

Page Proof Pending Publication

MARCH 29, 2023

Dismissal Under Rule 46

No. 22–474. HUFFMAN ET AL. *v.* HARRIS. C. A. 5th Cir. Certiorari dismissed under this Court's Rule 46. Reported below: 47 F. 4th 271.

APRIL 3, 2023

Certiorari Granted—Vacated and Remanded

No. 21–1373. D. D., A MINOR, BY AND THROUGH HIS GUARDIAN AD LITEM, INGRAM *v.* LOS ANGELES UNIFIED SCHOOL DISTRICT. C. A. 9th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Luna Perez* v. *Sturgis Public Schools*, 598 U. S. 142 (2023). Reported below: 18 F. 4th 1043.

Certiorari Dismissed

No. 22–6648. PLOURDE *v.* REDINGTON-FAIRVIEW GENERAL HOSPITAL ET AL. C. A. 1st Cir. Motion of petitioner for leave

to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

No. 22–6707. CARAFFA *v.* UNITED STATES ET AL. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

Miscellaneous Orders

No. 22M88. SEALED APPELLANT *v.* UNITED STATES. Motion for leave to file petition for writ of certiorari under seal denied.

No. 22M89. MALLORY *v.* ROCKY MOUNTAIN HUMAN SERVICE SSVF; and

No. 22M90. CANEY *v.* DEPARTMENT OF THE TREASURY. Motions for leave to proceed as veterans denied.

Page Proof Pending Publication

No. 22M91. LMPC0402457 *v.* BP EXPLORATION & PRODUCTION, INC., ET AL.; and

No. 22M92. GALAN *v.* PETIT. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 22–23. PUGIN *v.* GARLAND, ATTORNEY GENERAL. C. A. 4th Cir.; and

No. 22–331. GARLAND, ATTORNEY GENERAL *v.* CORDERO-GARCIA, AKA CORDERO. C. A. 9th Cir. [Certiorari granted, 598 U. S. 1143.] Motion of petitioner in No. 22–23 and respondent in No. 22–331 for divided argument granted.

No. 22–6219. WOOD *v.* MAY, WARDEN, ET AL. C. A. 3d Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 1158] denied.

No. 22–6342. KARUPAIYAN *v.* NAGANDA ET AL. C. A. 3d Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 1158] denied.

No. 22–6703. DAVIS *v.* GOVERNMENT EMPLOYEES INSURANCE CO. ET AL. Ct. App. Cal., 4th App. Dist., Div. 2. Motion of petitioner for leave to proceed *in forma pauperis* denied. Peti-

tioner is allowed until April 24, 2023, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 22–6994. IN RE BANKS-BEY; and
No. 22–7017. IN RE WILLIAMS-EL. Petitions for writs of habeas corpus denied.

No. 22–6921. IN RE MARQUEZ; and
No. 22–6932. IN RE GREGORY. Petitions for writs of mandamus denied.

No. 22–6701. IN RE DAVIS. Petition for writ of mandamus and/or prohibition denied.

Certiorari Denied

No. 22–488. HEMPHILL *v.* NEW YORK. Ct. App. N. Y. Certiorari denied. Reported below: 38 N. Y. 3d 1182, 196 N. E. 3d 365.

No. 22–527. RIDDLE *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

Page Proof Pending Publication

No. 22–531. WOFSY ET AL. *v.* SICRE DE FONTBRUNE, AS PERSONAL REPRESENTATIVE OF THE ESTATE OF SICRE DE FONTBRUNE, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 39 F. 4th 1214.

No. 22–589. HOLLOWAY *v.* CITY OF MILWAUKEE, WISCONSIN, ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 43 F. 4th 760.

No. 22–700. HOWERTON *v.* TEXAS. Ct. App. Tex., 4th Dist. Certiorari denied.

No. 22–701. HERTERICH *v.* WISS ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–702. RUED *v.* RUED. Ct. App. Minn. Certiorari denied.

No. 22–711. LOPEZ *v.* OUR LADY QUEEN OF ANGELS CATHOLIC CHURCH ET AL. Sup. Ct. Cal. Certiorari denied.

No. 22–712. SHALABY *v.* UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF ILLINOIS. C. A. 7th Cir. Certiorari denied.

No. 22–719. MACKEY *v.* AMERICAN MULTI-CINEMA, INC. C. A. 5th Cir. Certiorari denied.

No. 22–745. ROMAN *v.* FIRE LIFE SAFETY AMERICA, INC. C. A. 11th Cir. Certiorari denied.

No. 22–748. GOLDEN GLOW TANNING SALON, INC. *v.* CITY OF COLUMBUS, MISSISSIPPI. C. A. 5th Cir. Certiorari denied. Reported below: 52 F. 4th 974.

No. 22–774. DELGADO *v.* DEPARTMENT OF JUSTICE. C. A. Fed. Cir. Certiorari denied.

No. 22–779. LUSK, INDIVIDUALLY AND AS EXECUTOR OF THE ESTATE OF LUSK, DECEASED *v.* LAMIN ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–786. FARIS *v.* DEPARTMENT OF THE AIR FORCE. C. A. Fed. Cir. Certiorari denied.

No. 22–795. RICHMOND *v.* LIFE INSURANCE COMPANY OF NORTH AMERICA. C. A. 8th Cir. Certiorari denied. Reported below: 51 F. 4th 802.

Page Proof Pending Publication

No. 22–802. MURCO WALL PRODUCTS, INC. *v.* GALIER. Sup. Ct. Okla. Certiorari denied. Reported below: 2022 OK 85, 528 P. 3d 293.

No. 22–813. TRAPP *v.* GUNN ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–817. PARKER *v.* UNITED AIRLINES, INC. C. A. 10th Cir. Certiorari denied. Reported below: 49 F. 4th 1331.

No. 22–829. CRAWFORD *v.* RICHMOND CITY SCHOOL BOARD. Sup. Ct. Va. Certiorari denied.

No. 22–830. FOREST *v.* TENNESSEE. Sup. Ct. Tenn. Certiorari denied.

No. 22–6031. EDWARDS *v.* LOUISIANA. Ct. App. La., 4th Cir. Certiorari denied. Reported below: 2021–0494 (La. App. 4 Cir. 2/16/22), 336 So. 3d 479.

No. 22–6121. CONN *v.* WEST VIRGINIA. Sup. Ct. App. W. Va. Certiorari denied. Reported below: 247 W. Va. 256, 879 S. E. 2d 74.

No. 22–6190. MALLORY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 40 F. 4th 166.

No. 22–6657. ANDERSON *v.* TRUMP. C. A. 11th Cir. Certiorari denied.

No. 22–6660. DIGGS *v.* SCHMIDT ET AL. Sup. Ct. Colo. Certiorari denied.

No. 22–6664. TEHUTI *v.* COLLIE ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–6667. STEELE *v.* REDINGTON. C. A. 8th Cir. Certiorari denied.

No. 22–6669. NEWKIRK *v.* CLARKE, DIRECTOR, VIRGINIA DEPARTMENT OF CORRECTIONS. C. A. 4th Cir. Certiorari denied.

No. 22–6675. TUNSIL *v.* SHAPIRO, GOVERNOR OF PENNSYLVANIA, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6677. VONVILLE *v.* PENNSYLVANIA. Super. Ct. Pa. Certiorari denied. Reported below: 276 A. 3d 234.

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No. 22–6679. SAUER *v.* CITY OF CHICAGO, ILLINOIS, ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–6685. HAVENS *v.* LEONG ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6687. CARTER *v.* CLAYTON, WARDEN. C. A. 10th Cir. Certiorari denied.

No. 22–6688. RIVERS *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6692. COLEMAN *v.* MARYLAND. Sup. Ct. Md. Certiorari denied. Reported below: 482 Md. 18, 284 A. 3d 405.

No. 22–6695. KUPSKY *v.* HEPP, WARDEN. C. A. 7th Cir. Certiorari denied.

No. 22–6696. GARCIA *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–6700. PINNEY *v.* COLORADO. Ct. App. Colo. Certiorari denied.

No. 22–6725. GORDON *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied. Reported below: 350 So. 3d 25.

No. 22–6743. GRANT *v.* KIJAKAZI, ACTING COMMISSIONER OF SOCIAL SECURITY. C. A. 9th Cir. Certiorari denied.

No. 22–6760. LASSEGUE *v.* UNITED STATES ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6801. BRUCE *v.* ARIZONA. Ct. App. Ariz. Certiorari denied.

No. 22–6817. CURRY *v.* CITY OF MANSFIELD, OHIO, ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–6839. BROWN *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6844. LOYA-PALMA *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6846. CORN *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 47 F. 4th 892.

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No. 22–6869. GENSON *v.* KANSAS. Sup. Ct. Kan. Certiorari denied. Reported below: 316 Kan. 130, 513 P. 3d 1192.

No. 22–6872. GUZMAN *v.* CALIFORNIA. Ct. App. Cal., 2d App. Dist., Div. 8. Certiorari denied.

No. 22–6879. WILLIAMS *v.* APPELLATE COURT OF ILLINOIS, FIFTH DISTRICT. Sup. Ct. Ill. Certiorari denied.

No. 22–6894. DUPRE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6908. MELENDREZ-SOBERANES *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6914. MORGAN *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied.

No. 22–6915. MCCORMICK *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. Certiorari denied.

No. 22–6916. MEJIA-QUINTANILLA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6925. COOK *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6926. DAVENPORT, AKA FLAMA *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6927. COLLINS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6934. SMALLEY *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

No. 22–6935. INGRAM *v.* ILLINOIS. App. Ct. Ill., 2d Dist. Certiorari denied. Reported below: 2022 IL App (2d) 191093–U.

No. 22–6936. GELIN *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–6947. SMITH *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 54 F. 4th 755.

No. 22–6956. DEFRANCE *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6961. MURPHY *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. 10th Cir. Certiorari denied.

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No. 22–6972. EARP *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6973. WOLOSZYN *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6978. TOLIVER *v.* FORSHEY, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6981. ALT *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 58 F. 4th 910.

No. 22–6982. DE JESUS SIERRA *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–6984. REDMOND *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–77. BROWN *v.* LOUISIANA. Sup. Ct. La. Motion of Current and Former Prosecutors et al. for leave to file brief as *amici curiae* granted. Certiorari denied. Reported below: 2016–0998 (La. 1/28/22), 347 So. 3d 745.

JUSTICE JACKSON, with whom JUSTICE SOTOMAYOR and JUSTICE KAGAN join, dissenting.

Petitioner David Brown and four codefendants were convicted of first-degree murder in Louisiana following an attempted prison escape. Brown acknowledged that he was involved in his codefendants' initial assault on the victim (one of the prison guards). But during and throughout the trial, Brown insisted that he was not present when the victim was killed, and that he did not intend for the victim to die. Had the jury found Brown less culpable than his codefendants, that finding could have served as a mitigating factor that spared him a sentence of death. Yet the only evidence supporting Brown's account was his own self-serving statement given to police shortly after the event. The jury voted to sentence Brown to death.

As it turned out, one of Brown's codefendants, Barry Edge, had confessed to a fellow inmate. The prosecution obtained a statement from the inmate prior to Brown's trial, but did not disclose it to Brown's counsel until after his sentencing. In the confession, Edge explained that he and another codefendant, Jeffrey Clark, were "'the only ones that were thinking rationally during th[e] highly charged situation,'" and that he "'and Jeff[rey Clark] made the decision'" to kill the victim in order to help themselves. 2016–0998, pp. 131–132 (La. 1/28/22), 347 So. 3d 745, 835. At no point in the confession did Edge suggest Brown was involved in the fatal attack; his description of the events leading up to the murder did not mention Brown at all.

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The central question before this Court is whether the prosecution violated Brown's due process rights by failing to disclose this confession. *Brady* v. *Maryland*, 373 U. S. 83 (1963). Because the evidence was plainly "favorable" and "material" to Brown's penalty phase, *id.*, at 87, I would have granted certiorari and summarily reversed.

This Court established decades ago that evidence is favorable in the *Brady* context if it has "some value" in helping the defendant's case. *Kyles* v. *Whitley*, 514 U. S. 419, 450 (1995). We have further explained that there is value where, for example, the evidence tends to exculpate the defendant or impeach a witness, *ibid.*, or might reduce the potential penalty, *Brady*, 373 U. S., at 88. Favorable evidence also qualifies as material if there is "any reasonable likelihood" it could have "affected the judgment of the

jury." *Wearry* v. *Cain*, 577 U. S. 385, 392 (2016) (*per curiam*) (internal quotation marks omitted).

Here, Edge's confession satisfies the favorability test: By inculpating Edge and Clark in the victim's death—without any mention of Brown—the confession supports an inference that Brown was *not* one of the individuals who killed or decided to kill the victim. It thus provides "some value" in supporting Brown's argument that he was less culpable than his codefendants and did not deserve to be sentenced to death. *Kyles*, 514 U. S., at 450; see also *id.*, at 450–451 (finding evidence with "some" tendency to exculpate the defendant favorable, even though it did not preclude the defendant's participation in the offense).

Edge's confession was also material to the penalty phase of Brown's trial. The fact that Edge confessed without naming Brown or suggesting that he had participated in the murder supplied independent evidence corroborating Brown's argument that he was not present during the murder and did not intend to kill the victim. Because Louisiana law requires the jury to consider whether the defendant was a "relatively minor" participant in the offense, as well as "[a]ny other relevant mitigating circumstance," La. Code Crim. Proc. Ann., Arts. 905.3 and 905.5, Brown could have used Edge's confession to bolster his mitigation case. And had Brown's jury been presented with the confession, there is a reasonable probability that at least one juror might have viewed Brown's culpability in a different light. See *Cone* v. *Bell*, 556 U. S. 449, 475 (2009) (penalty phase materiality turns on whether, had the evidence not been suppressed, there was a reasonable probability that at least one juror might have voted to "imprison [the defendant] for life rather than sentence him to death"); see also *Wearry*, 577 U. S., at 392 (to be material, the suppressed evidence need only be "sufficient to undermine confidence in the verdict" (internal quotation marks omitted)).

The Louisiana Supreme Court nevertheless held that Edge's confession was not favorable to Brown because it did not specify who actually killed the victim, nor did it expressly state that Brown was "not present or not involved." 347 So. 3d, at 836. The requirement that the withheld evidence must speak to or rule out the defendant's participation in order for it to be favorable is wholly foreign to our case law. See, *e. g.*, *Kyles*, 514 U. S., at 450–451. And it appears that that erroneous requirement tainted the Louisiana Supreme Court's materiality analysis as well. At

the materiality stage, the court again emphasized that the confession did not "preclude" or "speak to" Brown's intent or participation, 347 So. 3d, at 837, thereby substantially discounting reasonable inferences about the degree or extent of Brown's participation that a jury might otherwise have drawn. The court then recounted various other reasons why a jury might disregard Edge's statement, while completely "ignoring reasons [it] might not." *Wearry*, 577 U. S., at 394; cf. *Smith* v. *Cain*, 565 U. S. 73, 76 (2012) ("[T]he State's argument offers a reason that the jury *could* have disbelieved [the] undisclosed statements, but gives us no confidence that it *would* have done so").

We have repeatedly reversed lower courts—and Louisiana courts, in particular—for similar refusals to enforce the Fourteenth Amendment's mandate that favorable and material evidence in the government's possession be disclosed to the defense before trial. See, *e. g.*, *Kyles*, 514 U. S., at 422, 450–453; *Smith*, 565 U. S., at 76–77; *Wearry*, 577 U. S., at 392–394, 396. This Court has decided not to grant Brown's petition for certiorari, but that determination should in no way be construed as an endorsement of the lower court's legal reasoning. In my view, the Louisiana Supreme Court misinterpreted and misapplied our *Brady* jurisprudence in a manner that contravenes settled law.

Page Proof Pending Publication

No. 22–718. LOUISIANA *v.* EDWARDS. Sup. Ct. La. Motion of Louisiana District Attorneys Association for leave to file brief as *amicus curiae* granted. Certiorari denied. Reported below: 2022–00983 (La. 11/1/22), 348 So. 3d 1269.

No. 22–6538. WOOD *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied. JUSTICE GORSUCH took no part in the consideration or decision of this petition.

Rehearing Denied

No. 22–503. STENSTROM ET AL. *v.* DELAWARE COUNTY BOARD OF ELECTIONS, 598 U. S. 1150;

No. 22–5122. HOBSON *v.* MERIT SYSTEMS PROTECTION BOARD, 598 U. S. 956;

No. 22–5141. BYRNE *v.* MARYLAND ET AL., 598 U. S. 957;

No. 22–5617. FARROW *v.* TULUPIA ET AL., 598 U. S. 1081;

No. 22–5860. WEBSTER *v.* UNITED STATES DISTRICT COURT FOR THE DISTRICT OF OREGON; and WEBSTER *v.* UNITED STATES BANKRUPTCY COURT FOR THE DISTRICT OF OREGON, 598 U. S. 1127;

No. 22–5885. SURLES *v.* WARDEN, LIMESTONE CORRECTIONAL FACILITY, ET AL., 598 U. S. 1128;

No. 22–6122. ALCOSER *v.* FORD ET AL., 598 U. S. 1152;

No. 22–6163. BROWN *v.* NEW YORK, 598 U. S. 1166; and

No. 22–6410. EL, AKA SWAHILI *v.* WELLS FARGO BANK, N. A., ET AL., 598 U. S. 1175. Petitions for rehearing denied.

No. 22–5709. JACOBS *v.* OKLAHOMA TAX COMMISSION, 598 U. S. 1083. Motion of petitioner for leave to file petition for rehearing denied.

APRIL 6, 2023

Miscellaneous Order

No. 22A800. WEST VIRGINIA ET AL. *v.* B. P. J., BY HER NEXT FRIEND AND MOTHER, JACKSON. C. A. 4th Cir. Application to vacate injunction, presented to THE CHIEF JUSTICE, and by him referred to the Court, denied.

JUSTICE ALITO, with whom JUSTICE THOMAS joins, dissenting.

This application concerns an important issue that this Court is likely to be required to address in the near future, namely, whether either Title IX of the Education Amendments of 1972, 86 Stat. 373, 20 U. S. C. § 1681 *et seq.*, or the Fourteenth Amendment's Equal Protection Clause prohibits a State from restricting participation in women's or girls' sports based on genes or physiological or anatomical characteristics. The West Virginia Legislature enacted such a law. The District Court here preliminarily enjoined the law's enforcement in July 2021, and the State did not appeal that injunction for the almost-18 months during which it was in effect. Ultimately, however, the District Court granted summary judgment for the State and dissolved the preliminary injunction. Respondent B. P. J. appealed, and a divided panel of the Fourth Circuit issued an order enjoining enforcement of the law against B. P. J. for the duration of the appeal. In doing so, the panel provided no explanation whatsoever for its decision.

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West Virginia has asked this Court to stay or vacate that order, but this Court now denies that request. And like the Fourth Circuit, this Court has not explained its reasons for that decision.

I would grant the State's application. Among other things, enforcement of the law at issue should not be forbidden by the

federal courts without any explanation. It is true that West Virginia allowed the District Court's injunction to go unchallenged for nearly 18 months before seeking emergency relief from a second, identical injunction. And it is a wise rule in general that a litigant whose claim of urgency is belied by its own conduct should not expect discretionary emergency relief from a court. But in the circumstances present here—where a divided panel of a lower court has enjoined a duly enacted state law on an important subject without a word of explanation, notwithstanding that the District Court granted summary judgment to the State based on a fact-intensive record—the State is entitled to relief. If we put aside the issue of the State's delay in seeking emergency relief and if the District Court's analysis of the merits of this case is correct, the generally applicable stay factors plainly justify granting West Virginia's application.

For these reasons, I respectfully dissent.

April 11, 2023

Certiorari Denied

No. 22–7236 (22A881). Gaskin *v.* Florida. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to Justice Thomas, and by him referred to the Court, denied. Certiorari denied.

Pages Removed During Publication

April 13, 2023

Miscellaneous Order

No. 22A867. Everglades College, Inc., et al. *v.* Cardona, Secretary of Education, et al. D. C. N. D. Cal. Application for stay, presented to Justice Kagan, and by her referred to the Court, denied.

April 14, 2023

Miscellaneous Orders

No. 22–138. Counterman *v.* Colorado. Ct. App. Colo. [Certiorari granted, 598 U. S. 1143.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

No. 22–166. Tyler *v.* Hennepin County, Minnesota, et al. C. A. 8th Cir. [Certiorari granted, 598 U. S. 1143.] Motion of

the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted in part, a total of 65 minutes is allotted, and the time is divided as follows: 25 minutes for petitioner, 10 minutes for the Solicitor General, and 30 minutes for respondents.

No. 22–227. LAC DU FLAMBEAU BAND OF LAKE SUPERIOR CHIPPEWA INDIANS ET AL. *v.* COUGHLIN. C. A. 1st Cir. [Certiorari granted, 598 U. S. 1143.] Motion of the Solicitor General for leave to participate in oral argument as *amicus curiae* and for divided argument granted.

APRIL 17, 2023

Dismissal Under Rule 46

No. 22–6783. KELLY *v.* SWARTZ ET AL. C. A. 3d Cir. Certiorari dismissed under this Court's Rule 46.

Certiorari Dismissed

No. 22–6551. KARUPAIYAN *v.* TOWNSHIP OF WOODBRIDGE, NEW JERSEY, ET AL. C. A. 3d Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari before judgment dismissed. See this Court's Rule 39.8.

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No. 22–6715. BLEDSOE *v.* ZUCKERBERG ET AL. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

No. 22–6767. THOMPSON *v.* PFEIFFER, WARDEN. C. A. 9th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

Miscellaneous Orders

No. 22A818. VINKOV *v.* BROTHERHOOD MUTUAL INSURANCE CO. Application to file petition for writ of certiorari in excess of the word limits, addressed to JUSTICE JACKSON and referred to the Court, denied.

No. 22M93. CORNUTT *v.* DRS. LAWACZECK, MCKINNON, FEAGIN, CARTER, GEE & DAHL, P. C.; and

No. 22M95. BRALICH *v.* GAYNER ET AL. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 22M96. SKELLCHOCK *v.* VOLZ. Motion for leave to proceed as a veteran denied.

No. 22–6517. KAETZ *v.* WOLFSON, JUDGE, UNITED STATES DISTRICT COURT FOR THE DISTRICT OF NEW JERSEY, ET AL. C. A. 3d Cir. Motion of petitioner for reconsideration of order denying leave to proceed *in forma pauperis* [598 U. S. 1193] denied. JUSTICE ALITO took no part in the consideration or decision of this motion.

No. 22–6787. WEBB *v.* CITY OF FALLS CHURCH, VIRGINIA, ET AL. C. A. 4th Cir.; and

No. 22–6865. REINOEHL *v.* CENTERS FOR DISEASE CONTROL AND PREVENTION ET AL. C. A. 7th Cir. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until May 8, 2023, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

Preliminary Printing Publication

No. 22–569. IN RE DUNN; and

No. 22–7024. IN RE OGDEN. Petitions for writs of habeas corpus denied.

No. 22–7019. IN RE WINDING. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of habeas corpus dismissed. See this Court's Rule 39.8.

No. 22–754. IN RE POON-ATKINS;

No. 22–6734. IN RE HEMPFLING ET UX.; and

No. 22–6757. IN RE CLEMENTS. Petitions for writs of mandamus denied.

Certiorari Granted

No. 22–585. CULLEY ET AL. *v.* MARSHALL, ATTORNEY GENERAL OF ALABAMA, ET AL. C. A. 11th Cir. Certiorari granted.

Certiorari Denied

No. 21–1065. HOPE *v.* HARRIS ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 861 Fed. Appx. 571.

No. 22–389. JOHNSON *v.* DICKENSON; and
No. 22–517. DICKENSON *v.* JOHNSON ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 975 F. 4th 1244.

No. 22–536. ALBERTO JIMENEZ *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–542. BETTS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–566. YEATMAN *v.* HYLAND ET AL.; and
No. 22–634. CARSON *v.* HYLAND ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 48 F. 4th 110.

No. 22–615. ESTATE OF LOGAN *v.* CITY OF SOUTH BEND, INDIANA, ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 50 F. 4th 614.

No. 22–616. TURLOCK IRRIGATION DISTRICT ET AL. *v.* FEDERAL ENERGY REGULATORY COMMISSION ET AL. C. A. D. C. Cir. Certiorari denied. Reported below: 36 F. 4th 1179.

No. 22–628. SANOFI-AVENTIS U. S., LLC *v.* MYLAN, INC., ET AL. C. A. 10th Cir. Certiorari denied. Reported below: 44 F. 4th 959.

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No. 22–642. GENERAL MOTORS, LLC, ET AL. *v.* FCA US, LLC, ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 44 F. 4th 548.

No. 22–671. NOVARTIS PHARMACEUTICALS CORP. *v.* HEC PHARM CO., LTD., ET AL. C. A. Fed. Cir. Certiorari denied. Reported below: 38 F. 4th 1013.

No. 22–699. COUNCIL FOR EDUCATION AND RESEARCH ON TOXICS *v.* CALIFORNIA CHAMBER OF COMMERCE. C. A. 9th Cir. Certiorari denied. Reported below: 29 F. 4th 468.

No. 22–723. VANLOAN *v.* NATION OF ISLAM ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–724. SAN JUAN COUNTY, UTAH *v.* CHILCOAT. C. A. 10th Cir. Certiorari denied. Reported below: 41 F. 4th 1196.

No. 22–725. KLEIDMAN *v.* WILLHITE, ASSOCIATE JUSTICE, COURT OF APPEAL OF CALIFORNIA, SECOND APPELLATE DISTRICT, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–726. PEREZ *v.* LINKEDIN CORP. C. A. 9th Cir. Certiorari denied.

No. 22–732. KIM *v.* SACCENTO ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–740. SINGH *v.* RXR 620 MASTER LEASE, LLC, ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–744. SHEEHAN *v.* BRECCIA UNLIMITED CO. ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 48 F. 4th 513.

No. 22–749. DOW *v.* NEVADA. Ct. App. Nev. Certiorari denied. Reported below: 138 Nev. ——, 510 P. 3d 1258.

No. 22–750. CRISP *v.* GEORGIA ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–753. FYK *v.* FACEBOOK, INC. C. A. 9th Cir. Certiorari denied.

No. 22–755. JAIYEOLA *v.* DORWIN. C. A. 6th Cir. Certiorari denied.

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No. 22–758. VASHISHT-ROTA *v.* HOWELL MANAGEMENT SERVICES, LLC. Ct. App. Utah. Certiorari denied.

No. 22–760. WILKINSON ET AL. *v.* BOARD OF UNIVERSITY AND SCHOOL LANDS OF NORTH DAKOTA ET AL. Sup. Ct. N. D. Certiorari denied. Reported below: 2022 ND 183, 981 N. W. 2d 853.

No. 22–761. BOWERS *v.* INTERNATIONAL BROTHERHOOD OF BOILERMAKERS, IRON SHIP BUILDERS, BLACKSMITHS, FORGERS AND HELPERS, AFL–CIO. C. A. 4th Cir. Certiorari denied.

No. 22–762. KREB *v.* DEPARTMENT OF LABOR. C. A. 9th Cir. Certiorari denied.

No. 22–763. JAIYEOLA *v.* TOYOTA MOTOR CORP. ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–764. KALADJIAN *v.* BIDEN, PRESIDENT OF THE UNITED STATES, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–766. PINKNEY *v.* BERRIEN COUNTY, MICHIGAN, ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–767. HARP *v.* KIJAKAZI, ACTING COMMISSIONER OF SOCIAL SECURITY. C. A. 7th Cir. Certiorari denied.

No. 22–770. JACKSON *v.* COWAN ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–782. PULLIAM *v.* UNIVERSITY OF SOUTHERN CALIFORNIA. Ct. App. Cal., 2d App. Dist., Div. 2. Certiorari denied.

No. 22–789. TOWN OF SOUTHOLD, NEW YORK *v.* ROSADO, NEW YORK STATE SECRETARY OF STATE, ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 48 F. 4th 67.

No. 22–791. ELSHARKAWI *v.* UNITED STATES ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–843. BRYAN ET AL. *v.* CANO, COUNTY JUDGE. C. A. 5th Cir. Certiorari denied.

No. 22–850. GRAHAM *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 51 F. 4th 67.

No. 22–852. WATKINS *v.* UNITED STATES; and

No. 22–853. WATKINS *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 42 F. 4th 1278.

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No. 22–855. RANIERE *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–860. MANLEY *v.* THORNELL, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–875. MEYERS *v.* GOMEZ, WARDEN. C. A. 7th Cir. Certiorari denied. Reported below: 50 F. 4th 628.

No. 22–905. GREGORY *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 54 F. 4th 1183.

No. 22–920. VISALUS, INC. *v.* WAKEFIELD, INDIVIDUALLY AND ON BEHALF OF ALL OTHERS SIMILARLY SITUATED. C. A. 9th Cir. Certiorari denied. Reported below: 51 F. 4th 1109.

No. 22–5889. JESSUP *v.* THORNELL, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 31 F. 4th 1262.

No. 22–5961. ROJAS *v.* THORNELL, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY. C. A. 9th Cir. Certiorari denied.

No. 22–6012. DAVIS *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 44 F. 4th 685.

No. 22–6023. AGUILAR *v.* THORNELL, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6027. RUE *v.* THORNELL, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY. C. A. 9th Cir. Certiorari denied.

No. 22–6112. DALAL *v.* NEW JERSEY. Super. Ct. N. J., App. Div. Certiorari denied. Reported below: 467 N. J. Super. 261, 252 A. 3d 204.

No. 22–6268. MILLER *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

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No. 22–6693. RANKIN *v.* BRIAN LAVAN & ASSOCIATES, P. C., ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–60709. VICE *v.* LEE COUNTY CORRECTIONAL MEDICAL PROVIDER ET AL. Sup. Ct. Iowa. Certiorari denied.

No. 22–6714. LABORIEL *v.* LEE, SUPERINTENDENT, EASTERN NEW YORK CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

No. 22–6720. BAKOS *v.* UNUM LIFE INSURANCE COMPANY OF AMERICA. C. A. 11th Cir. Certiorari denied.

No. 22–6721. CRYSTAL *v.* FLORIDA. Dist. Ct. App. Fla., 1st Dist. Certiorari denied. Reported below: 346 So. 3d 1262.

No. 22–6722. CURRY *v.* VANCOUVER HOUSING AUTHORITY ET AL. Ct. App. Wash. Certiorari denied. Reported below: 22 Wash. App. 2d 1027.

No. 22–6727. BALDWIN *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–6735. DIXON *v.* NEW YORK. Ct. App. N. Y. Certiorari denied. Reported below: 39 N. Y. 3d 962, 200 N. E. 3d 112.

No. 22–6737. BUTLER *v.* NORTH CAROLINA. Sup. Ct. N. C. Certiorari denied. Reported below: 382 N. C. 732, 878 S. E. 2d 821.

No. 22–6746. HUNTER *v.* DISTRICT OF ASIA ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–6747. GUINARD *v.* MAYES, ATTORNEY GENERAL OF ARIZONA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6748. HOLLAND *v.* KANSAS. Sup. Ct. Kan. Certiorari denied.

No. 22–6749. HARRINGTON *v.* CORRIGAN, WARDEN. Ct. App. Mich. Certiorari denied.

No. 22–6753. LAMAR *v.* COLORADO. Ct. App. Colo. Certiorari denied.

No. 22–6761. LAMBERT *v.* WASHINGTON. Ct. App. Wash. Certiorari denied. Reported below: 20 Wash. App. 2d 1054.

No. 22–6765. REAL *v.* PERRY. C. A. 11th Cir. Certiorari denied.

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No. 22–6766. WEIS *v.* ILLINOIS. App. Ct. Ill., 5th Dist. Certiorari denied. Reported below: 2022 IL App (5th) 210076–U.

No. 22–6768. BAKER *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–6773. ADIMORA-NWEKE *v.* MCCRAW, DIRECTOR OF THE TEXAS DEPARTMENT OF PUBLIC SAFETY, ET AL. C. A. 5th Cir. Certiorari denied.

No. 22–6776. DOE *v.* DESIGN REVIEW BOARD OF THE TOWN OF SULLIVAN'S ISLAND ET AL. Ct. App. S. C. Certiorari denied.

No. 22–6781. ADKINS *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–6789. TURCIOS *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–6796. OWENS *v.* WHITTEN, WARDEN. C. A. 10th Cir. Certiorari denied.

No. 22–6797. GALLUZZO *v.* INTERNAL REVENUE SERVICE. C. A. 3d Cir. Certiorari denied.

No. 22–6799. OKONGWU *v.* COUNTY OF ERIE, NEW YORK. C. A. 2d Cir. Certiorari denied.

No. 22–6800. SORENSON *v.* WASHINGTON. Ct. App. Wash. Certiorari denied.

No. 22–6805. JONES *v.* ILLINOIS. App. Ct. Ill., 4th Dist. Certiorari denied.

No. 22–6806. WALKER *v.* NEAL, WARDEN. C. A. 11th Cir. Certiorari denied.

No. 22–6807. MCGHEE *v.* MARYLAND. Sup. Ct. Md. Certiorari denied. Reported below: 482 Md. 48, 284 A. 3d 777.

No. 22–6814. VAZQUEZ-PEDROSA *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 22–6818. WEBER *v.* CIGNA ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–6827. RUMANEK *v.* FALLON ET AL.; and RUMANEK *v.* INDEPENDENT SCHOOL MANAGEMENT INC. C. A. 3d Cir. Certiorari denied.

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No. 22–6829. BIRDINGROUND *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6841. PADMANABHAN *v.* MASSACHUSETTS BOARD OF REGISTRATION IN MEDICINE. App. Ct. Mass. Certiorari denied. Reported below: 101 Mass. App. 1109, 190 N. E. 3d 1114.

No. 22–6842. PADMANABHAN *v.* MASSACHUSETTS BOARD OF REGISTRATION IN MEDICINE. App. Ct. Mass. Certiorari denied. Reported below: 101 Mass. App. 1109, 190 N. E. 3d 1113.

No. 22–6860. CHAVEZ-NELSON *v.* WALZ, GOVERNOR OF MINNESOTA, ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–6883. EARLS *v.* BUSKE ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–6900. DENG *v.* THORNELL, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6905. NUNEZ CARRILLO *v.* THORNELL, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–6924. DRUMMOND *v.* PENNSYLVANIA. Sup. Ct. Pa. Certiorari denied. Reported below: —— Pa. ——, 285 A. 3d 625.

No. 22–6944. SULLIVAN, NKA AUER *v.* CULWELL. Dist. Ct. App. Fla., 5th Dist. Certiorari denied.

No. 22–6945. OWENS *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 56 F. 4th 455.

No. 22–6946. MOSSERI *v.* 7 WEST 21 LI LLC. C. A. 2d Cir. Certiorari denied.

No. 22–6953. BRADLEY *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–6962. ROSAS-RAMIREZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–6965. HUNTINGTON *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 44 F. 4th 812.

No. 22–6970. KESTEN *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

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No. 22–6990. BISHOP *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied.

No. 22–6993. CARLYLE *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6995. LANGENBERG *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 52 F. 4th 755.

No. 22–6999. MAKI *v.* TEXAS. Ct. App. Tex., 2d Dist. Certiorari denied.

No. 22–7000. WHITSON *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–7005. CHAVEZ *v.* MAYES, ATTORNEY GENERAL OF ARIZONA, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 42 F. 4th 1091.

No. 22–7006. JOHNSON, AKA PORTER *v.* PETTIGREW, WARDEN, ET AL. C. A. 10th Cir. Certiorari denied.

No. 22–7010. YORK *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 48 F. 4th 494.

No. 22–7014. HUCKS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–7022. WINSTON *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF VIRGINIA. C. A. 4th Cir. Certiorari denied.

No. 22–7026. GRAHAM *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 47 F. 4th 561.

No. 22–7029. KEELING *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–7030. TREVINO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–7032. FISHBEIN *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–7033. FORREST *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–7034. GIBSON *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

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No. 22–7035. PERSON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–7037. VILLEGAS *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–7041. KING *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied. Reported below: 41 F. 4th 1363.

No. 22–7045. OSKAM *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–7048. ROEDER *v.* SCHNURR, WARDEN. C. A. 10th Cir. Certiorari denied.

No. 22–7052. DUBOSE *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–7053. RAMIREZ-DORANTES *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–7055. BRYANT *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–7061. MENDEZ *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied.

No. 22–7069. SCOTT *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–7074. WHITE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–7079. STEVENS *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–7091. HERING *v.* IOWA. Ct. App. Iowa. Certiorari denied.

No. 22–790. WEREKO *v.* ROSEN ET AL. C. A. 7th Cir. Certiorari before judgment denied.

No. 22–6968. MARMOLEJOS *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. JUSTICE SOTOMAYOR took no part in the consideration or decision of this petition.

No. 22–7062. NOBLE *v.* WETZEL, SECRETARY, PENNSYLVANIA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

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Rehearing Denied

No. 22–621. MATARESE, PERSONAL REPRESENTATIVE OF THE ESTATE OF BAUMAN, DECEASED *v.* VIRGINIA HOSPITAL CENTER ARLINGTON HEALTH SYSTEM, DBA VIRGINIA HOSPITAL CENTER, ET AL., 598 U. S. 1188;

No. 22–624. IQBAL *v.* BUREAU OF PROFESSIONAL AND OCCUPATIONAL AFFAIRS, STATE BOARD OF MEDICINE, 598 U. S. 1165;

No. 22–678. LU *v.* NORTHERN UTAH HEALTHCARE CORP., DBA ST. MARK'S HOSPITAL, 598 U. S. 1165;

No. 22–5844. NICOLAS *v.* FLORIDA, 598 U. S. 1127;

No. 22–5861. WEBSTER *v.* OREGON DIVISION OF CHILD SUPPORT (three judgments), 598 U. S. 1128;

No. 22–5933. HOLMES-SMITH *v.* MERIT SYSTEMS PROTECTION BOARD, 598 U. S. 1129;

No. 22–6186. JACE *v.* DAVIS, WARDEN, 598 U. S. 1167;

No. 22–6366. BEVERLY *v.* ORANGE COUNTY SHERIFF ET AL., 598 U. S. 1173; and

No. 22–6478. SHIHEIBER *v.* JPMORGAN CHASE BANK, N. A., 598 U. S. 1190. Petitions for rehearing denied.

APRIL 18, 2023

Dismissal Under Rule 46

No. 22–775. DACOSTAGOMEZ-AGUILAR *v.* GARLAND, ATTORNEY GENERAL. C. A. 11th Cir. Certiorari dismissed under this Court's Rule 46. Reported below: 40 F. 4th 1312.

APRIL 21, 2023

Miscellaneous Order

No. 22A901. DANCO LABORATORIES, LLC *v.* ALLIANCE FOR HIPPOCRATIC MEDICINE ET AL. C. A. 5th Cir.; and

No. 22A902. FOOD AND DRUG ADMINISTRATION ET AL. *v.* ALLIANCE FOR HIPPOCRATIC MEDICINE ET AL. C. A. 5th Cir. Applications for stays, presented to JUSTICE ALITO, and by him referred to the Court, granted. The April 7, 2023, order of the United States District Court for the Northern District of Texas, case No. 2:22–cv–223, is stayed pending disposition of the appeal in the United States Court of Appeals for the Fifth Circuit and disposition of a petition for writ of certiorari, if such writ is timely sought. Should certiorari be denied, this stay shall terminate automatically. In the event certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. JUSTICE THOMAS would deny the applications for stays.

Preliminary Print

JUSTICE ALITO, dissenting.

In recent cases, this Court has been lambasted for staying a District Court order "based on the scanty review this Court gives matters on its shadow docket," *Merrill* v. *Milligan*, 595 U. S. 1195, 1202 (2022) (KAGAN, J., dissenting). In another, we were criticized for ruling on a stay application while "barely bother[ing] to explain [our] conclusion," a disposition that was labeled as "emblematic of too much of this Court's shadow-docket decision-making—which every day becomes more unreasoned." *Whole Woman's Health* v. *Jackson*, 594 U. S. 985, 902 (2021) (KAGAN, J., dissenting from denial of application for injunctive relief). And in a third case in which a stay was granted, we were condemned for not exhibiting the "restraint" that was supposedly exercised in the past and for not "resist[ing]" the Government's effort to "shortcut" normal process. *Barr* v. *East Bay Sanctuary*

Covenant, 588 U. S. 943, 946 (2019) (SOTOMAYOR, J., dissenting). Cf. *Doe* v. *Mills*, 595 U. S. 1029 (2021) (BARRETT, J., concurring in denial of application for injunctive relief) (warning that the Court should not act "on a short fuse without benefit of full briefing and oral argument" in a case that is "first to address the questions presented").

I did not agree with these criticisms at the time, but if they were warranted in the cases in which they were made, they are emphatically true here. As narrowed by the Court of Appeals, the stay that would apply if we failed to broaden it would not remove mifepristone from the market. It would simply restore the circumstances that existed (and that the Government defended) from 2000 to 2016 under three Presidential administrations. In addition, because the applicants' Fifth Circuit appeal has been put on a fast track, with oral argument scheduled to take place in 26 days, there is reason to believe that they would get the relief they now seek—from either the Court of Appeals or this Court—in the near future if their arguments on the merits are persuasive.

At present, the applicants are not entitled to a stay because they have not shown that they are likely to suffer irreparable harm in the interim. The applicants claim that regulatory "chaos" would occur due to an alleged conflict between the relief awarded in these cases and the relief provided by a decision of the United States District Court for the Eastern District of Washington. It is not clear that there actually is a conflict because the relief in these cases is a stay, not an injunction, but even if there is a conflict, that should not be given any weight. Our granting of a stay of a lower-court decision is an equitable remedy. It should not be given if the moving party has not acted equitably, and that is the situation here. The Food and Drug Administration (FDA) has engaged in what has become the practice of "leverag[ing]" district court injunctions "as a basis" for implementing a desired policy while evading both necessary agency procedures and judicial review. *Arizona* v. *City and County of San Francisco*, 596 U. S. 763, 765 (2022) (ROBERTS, C. J., concurring).

The Washington District Court enjoined the FDA from altering its current practice regarding mifepristone—something that the FDA had never hinted it was contemplating. The FDA did not appeal that appealable order, and when seven States that might

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take such an appeal asked to intervene, the FDA opposed their request. This series of events laid the foundation for the Government's regulatory "chaos" argument.

Once this argument is put aside, the applicants' argument on irreparable harm is largely reduced to the claim that Danco could not continue to market mifepristone because the drug would be mislabeled and that distribution could not resume until Danco jumped through a series of regulatory steps that would be largely perfunctory under present circumstances. That would not take place, however, unless the FDA elected to use its enforcement discretion to stop Danco, and the applicants' papers do not provide any reason to believe the FDA would make that choice. The FDA has previously invoked enforcement discretion to permit the distribution of mifepristone in a way that the regulations then in force prohibited, and here, the Government has not dispelled legitimate doubts that it would even obey an unfavorable order in these cases, much less that it would choose to take enforcement actions to which it has strong objections.

For these reasons, I would deny the stay applications. Contrary to the impression that may be held by many, that disposition would not express any view on the merits of the question whether the FDA acted lawfully in any of its actions regarding mifepristone. Rather, it would simply refuse to take a step that has not been shown as necessary to avoid the threat of any real harm during the presumably short period at issue.

Media Matters for America

April 24, 2023

Dismissal Under Rule 46

No. 22–831. Bye *v.* MGM Resorts International, Inc., dba Beau Rivage Resort and Casino. C. A. 5th Cir. Certiorari dismissed under this Court's Rule 46. Reported below: 49 F. 4th 918.

Certiorari Granted—Vacated and Remanded

No. 22–256. Bohon et al. *v.* Federal Energy Regulatory Commission et al. C. A. D. C. Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Axon Enterprise, Inc.* v. *FTC*, 598 U. S. 175 (2023). Reported below: 37 F. 4th 663.

*Miscellaneous Orders**

No. D–3108. IN RE DISCIPLINE OF ANDERSON. Peter Crane Anderson, of Miami, Fla., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3109. IN RE DISCIPLINE OF JORDAN. Jack Revels Tucker Jordan, of North Kansas City, Mo., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3110. IN RE DISCIPLINE OF MOATS. Judy Raye Moats, of Fairfax, Va., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring her to show cause why she should not be disbarred from the practice of law in this Court.

No. D–3111. IN RE DISCIPLINE OF SALDANA TIER. Lanhi Huynh Saldana Tier, of Newtown, Pa., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring her to show cause why she should not be disbarred from the practice of law in this Court.

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No. D–3112. IN RE DISCIPLINE OF BOYER. Christopher Allen Boyer, of Palestine, Tex., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3113. IN RE DISCIPLINE OF INFURNA. Justin Infurna, of Orlando, Fla., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

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*For the Court's orders prescribing amendments to the Federal Rules of Appellate Procedure, see 598 U. S. ——; amendments and an addition to the Federal Rules of Bankruptcy Procedure, see 598 U. S. ——; amendments and an addition to the Federal Rules of Civil Procedure, see 598 U. S. ——; amendments and an addition to the Federal Rules of Criminal Procedure, see 598 U. S. ——; and amendments to the Federal Rules of Evidence, see 598 U. S. ——.

No. D–3114. IN RE DISCIPLINE OF NELSON. Patrick J. Nelson, of Kearney, Neb., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3115. IN RE DISCIPLINE OF GILLIAM. Harriet A. Gilliam, of Riverhead, N. Y., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring her to show cause why she should not be disbarred from the practice of law in this Court.

No. D–3116. IN RE DISCIPLINE OF FLECHAS. Eduardo A. Flechas, of Pearl, Miss., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. D–3117. IN RE DISCIPLINE OF LOVE. Brian Matthew Love, of Apex, N. C., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

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No. D–3118. IN RE DISCIPLINE OF SILBIGER. Clifford Baer Silbiger, of Westminster, Md., is suspended from the practice of law in this Court, and a rule will issue, returnable within 40 days, requiring him to show cause why he should not be disbarred from the practice of law in this Court.

No. 22M97. BRADLEY *v.* SHAW, WARDEN; and
No. 22M98. MANUEL *v.* OFFICE OF PERSONNEL MANAGEMENT. Motions to direct the Clerk to file petitions for writs of certiorari out of time denied.

No. 22M99. NEREE *v.* AMBASSADE D'HAITI. Motion for leave to file bill of complaint denied.

No. 22–6975. KIMBRELL *v.* BANK OF AMERICA, N. A. C. A. 7th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied. Petitioner is allowed until May 15, 2023, within which to pay the docketing fee required by Rule 38(a) and to submit a petition in compliance with Rule 33.1 of the Rules of this Court.

No. 22–7089. IN RE HOPMEIER;
No. 22–7162. IN RE TURNER; and
No. 22–7163. IN RE BACHMAYER. Petitions for writs of habeas corpus denied.

No. 22–7144. IN RE PRIESTER. Petition for writ of habeas corpus denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 22–7109. IN RE LAND; and
No. 22–7154. IN RE WINDING. Motions of petitioners for leave to proceed *in forma pauperis* denied, and petitions for writs of habeas corpus dismissed. See this Court's Rule 39.8.

No. 22–6788. IN RE WILLIAMS. Petition for writ of mandamus denied.

Certiorari Granted

No. 22–324. O'CONNOR-RATCLIFF ET AL. *v.* GARNIER ET AL. C. A. 9th Cir. Certiorari granted. Reported below: 41 F. 4th 1158.

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No. 22–611. LINDKE *v.* FREED. C. A. 6th Cir. Certiorari granted. Reported below: 37 F. 4th 1199.

Certiorari Denied

No. 22–539. ANILAO ET AL. *v.* SPOTA, INDIVIDUALLY AND AS DISTRICT ATTORNEY OF SUFFOLK COUNTY, NEW YORK, ET AL. C. A. 2d Cir. Certiorari denied. Reported below: 27 F. 4th 855.

No. 22–564. CARLOS SALAZAR *v.* RENE MOLINA. C. A. 5th Cir. Certiorari denied. Reported below: 37 F. 4th 278.

No. 22–594. RODRIGUEZ *v.* BURNSIDE ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 38 F. 4th 1324.

No. 22–641. DAIMLER TRUCKS NORTH AMERICA LLC *v.* SUPERIOR COURT OF CALIFORNIA, LOS ANGELES COUNTY, ET AL. Ct. App. Cal., 2d App. Dist., Div. 5. Certiorari denied. Reported below: 80 Cal. App. 5th 946, 296 Cal. Rptr. 3d 564.

No. 22–769. WANG *v.* BRANDYWYNE COMMON CONDOMINIUM. Sup. Ct. N. H. Certiorari denied.

No. 22–771. FOLEY BEY ET AL. *v.* PRATOR, SHERIFF, CADDO PARISH, LOUISIANA, ET AL. C. A. 5th Cir. Certiorari denied. Reported below: 53 F. 4th 854.

No. 22–778. MARTINEZ ET AL. *v.* NEWSOM, GOVERNOR OF CALIFORNIA, ET AL. C. A. 9th Cir. Certiorari denied. Reported below: 46 F. 4th 965.

No. 22–808. IZEN *v.* COMMISSIONER OF INTERNAL REVENUE. C. A. 5th Cir. Certiorari denied. Reported below: 38 F. 4th 459.

No. 22–814. TINNERMAN *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–841. WEST *v.* MAY, WARDEN, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–845. THORNTON *v.* MCDONOUGH, SECRETARY OF VETERANS AFFAIRS. C. A. Fed. Cir. Certiorari denied.

No. 22–903. GOODLEY *v.* GREENE. C. A. 11th Cir. Certiorari denied.

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No. 22–919. THALER *v.* VIDAL, UNDER SECRETARY OF COMMERCE FOR INTELLECTUAL PROPERTY AND DIRECTOR, UNITED STATES PATENT AND TRADEMARK OFFICE, ET AL. C. A. Fed. Cir. Certiorari denied. Reported below: 43 F. 4th 1207.

No. 22–930. ESET, LLC, ET AL. *v.* FINJAN LLC. C. A. Fed. Cir. Certiorari denied. Reported below: 51 F. 4th 1377.

No. 22–947. WILLIAMS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 39 F. 4th 342.

No. 22–953. CALDERON *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–5859. FRACTION *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–5878. KING *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 40 F. 4th 594.

No. 22–5958. TOVAR *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6096. EYE *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6570. MONTIEL *v.* CHAPPELL, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 43 F. 4th 942.

No. 22–6575. MALAGERIO *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 49 F. 4th 911.

No. 22–6578. MOORE *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–6579. HOYOS *v.* DAVIS, WARDEN. C. A. 9th Cir. Certiorari denied. Reported below: 51 F. 4th 297.

No. 22–6830. LOUKAS *v.* SCHROEDER, WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–6851. FREEMAN *v.* HAMM, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied. Reported below: 46 F. 4th 1193.

No. 22–6862. YOUNG *v.* ALABAMA. Ct. Crim. App. Ala. Certiorari denied.

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No. 22–6942. BURRELL *v.* CHAPMAN, ACTING WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–7001. WATSON *v.* VIRGINIA DEPARTMENT OF AGRICULTURE AND CONSUMER SERVICES. C. A. 4th Cir. Certiorari denied.

No. 22–7002. J. T. *v.* MARYLAND. App. Ct. Md. Certiorari denied.

No. 22–7007. DOMINGO DIEGO *v.* INDIANA. Ct. App. Ind. Certiorari denied. Reported below: 194 N. E. 3d 660.

No. 22–7008. BARKER *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–7009. SMITH *v.* CALIFORNIA. Ct. App. Cal., 6th App. Dist. Certiorari denied.

No. 22–7023. OROSCO *v.* UNITED STATES DISTRICT COURT FOR THE EASTERN DISTRICT OF TEXAS. C. A. 5th Cir. Certiorari denied.

No. 22–7028. DICKERSON, ADMINISTRATOR OF THE ESTATE OF MATLOCK, DECEASED *v.* CRUZ TANCINCO ET AL. Ct. App. Ark. Certiorari denied. Reported below: 2022 Ark. App. 295.

No. 22–7043. MONTGOMERY *v.* SCIALLA ASSOCIATES INC. ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–7057. PNIEWSKI *v.* ARTIS, ACTING WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–7076. PINEDA-VALDEZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–7090. GALLARDO *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–7094. GORDON *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied.

No. 22–7096. APPELLANT ET AL. *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 56 F. 4th 385.

No. 22–7097. JORDAN *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

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No. 22–7100. NEVAREZ *v.* UNITED STATES. C. A. 10th Cir. Certiorari denied. Reported below: 55 F. 4th 1261.

No. 22–7101. NOLDEN *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–7103. STANLEY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–7106. WELLS *v.* UNITED STATES. C. A. 6th Cir. Certiorari denied. Reported below: 55 F. 4th 1086.

No. 22–7108. RYAN *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 52 F. 4th 719.

No. 22–7112. FUHAI LI *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied.

No. 22–7117. MACAPAGAL *v.* UNITED STATES. C. A. 9th Cir. Certiorari denied. Reported below: 56 F. 4th 742.

No. 22–7121. BARRET *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied.

No. 22–7122. WEST *v.* ARTIS, ACTING WARDEN. C. A. 6th Cir. Certiorari denied.

No. 22–7126. CHANDLER *v.* UNITED STATES. C. A. 2d Cir. Certiorari denied. Reported below: 56 F. 4th 27.

No. 22–7129. THAYER *v.* UNITED STATES. C. A. 7th Cir. Certiorari denied. Reported below: 40 F. 4th 797.

No. 22–7130. FLETCHER *v.* UNITED STATES. C. A. 1st Cir. Certiorari denied. Reported below: 56 F. 4th 179.

No. 22–7137. GRIGGS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 54 F. 4th 531.

No. 22–7138. ALI *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied. Reported below: 47 F. 4th 691.

No. 22–7139. RICHARDSON *v.* LUNA, WARDEN. C. A. 1st Cir. Certiorari denied.

No. 22–7142. PLUMP *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

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No. 22–7145. YUSUF *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied. Reported below: 57 F. 4th 440.

No. 22–7146. RAZZ *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–7155. OCEAN-AVENT *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–7156. ROGERS *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–7171. CARDENA-SOSA, AKA GARCIA, AKA CARDENAS-SOSA, AKA SOSA, AKA CARDENAS *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 21–1550. SUNCOR ENERGY (U. S. A.) INC. ET AL. *v.* BOARD OF COUNTY COMMISSIONERS OF BOULDER COUNTY ET AL. C. A. 10th Cir. Certiorari denied. JUSTICE KAVANAUGH would grant the petition for writ of certiorari. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 25 F. 4th 1238.

No. 22–361. BP P. L. C. ET AL. *v.* MAYOR AND CITY COUNCIL OF BALTIMORE. C. A. 4th Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 31 F. 4th 178.

No. 22–495. CHEVRON CORP. ET AL. *v.* SAN MATEO COUNTY, CALIFORNIA, ET AL. C. A. 9th Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 32 F. 4th 733.

No. 22–523. SUNOCO LP ET AL. *v.* CITY AND COUNTY OF HONOLULU, HAWAII, ET AL. C. A. 9th Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 39 F. 4th 1101.

No. 22–524. SHELL OIL PRODUCTS CO., L. L. C., ET AL. *v.* RHODE ISLAND. C. A. 1st Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition. Reported below: 35 F. 4th 44.

No. 22–581. STEWARD, ACTING DIRECTOR, OREGON DEPARTMENT OF CORRECTIONS *v.* GABLE. C. A. 9th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. JUSTICE KAVANAUGH would grant the petition for writ of certiorari. Reported below: 49 F. 4th 1315.

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No. 22–622. GAZZOLA ET AL. *v.* HOCHUL, GOVERNOR OF NEW YORK, ET AL. C. A. 2d Cir. Certiorari before judgment denied.

No. 22–5891. BURNS *v.* MAYS, WARDEN. C. A. 6th Cir. Certiorari denied. Reported below: 31 F. 4th 497.

JUSTICE SOTOMAYOR, with whom JUSTICE KAGAN and JUSTICE JACKSON join, dissenting.

Petitioner Kevin Burns, a defendant sentenced to death for felony murder, brought a 28 U. S. C. § 2254 petition claiming inadequate assistance of counsel at the penalty phase of his trial. Burns asserts that counsel failed to present mitigating evidence tending to show that he did not shoot either of the two victims killed during a robbery in which he participated. Such evidence does not bear on Burns' guilt, since his participation in the underlying robbery suffices to render him guilty of felony murder. Evidence that Burns did not pull the trigger, however, was plainly

relevant to the jury's determination whether to sentence him to death. The Sixth Circuit avoided this obvious conclusion only by mischaracterizing Burns' claim as being about counsel's failure to introduce residual doubt evidence (*i. e.*, evidence that Burns was not, in fact, guilty of felony murder). From there, the Sixth Circuit concluded that the claim must fail because this Court has never established a right to introduce residual doubt evidence at sentencing.

Burns argues, and the State does not contest, that the Sixth Circuit's analysis turned on two erroneous legal assumptions and clearly conflicts with several decisions of this Court. Burns asks this Court to take summary action to correct these fundamental legal errors so that his claim may be fairly considered before the State executes him. The Court, however, declines to intervene. I would summarily vacate the error-laden (and precedential) decision below and remand for further consideration of Burns' claim. I respectfully dissent from the Court's failure to do so.

When Burns was 22 years old, he was part of a group of six young men that confronted and robbed another group of four young men sitting in a car. During the conflict, shots were fired into the car, killing two and severely injuring a third. No definitive narrative emerged regarding who had shot the victims. Prosecutors eventually charged three of the six men, including Burns, with premeditated murder and felony murder. In separate trials, juries convicted Burns' codefendants of felony murder only and sentenced both to life in prison. Burns' trial followed.

The jury acquitted Burns of premeditated murder but convicted him of two counts of felony murder, one for each of the men killed. To convict Burns of felony murder, the jury had to find only that he participated in the robbery; the jury did not need to decide who shot the victims. See Tenn. Code Ann. §§39–11–402(2), 39–13–202(a)(2) (1991). Because his felony-murder convictions made him eligible for a death sentence, §39–13–202(b), however, the jury had to decide at the penalty phase of trial whether to sentence Burns to death or life in prison.

At the penalty phase, capital defendants have a right to present any relevant mitigating evidence, including evidence regarding the "'circumstances of the offense.'" *Eddings* v. *Oklahoma*, 455 U. S. 104, 110 (1982) (quoting *Lockett* v. *Ohio*, 438 U. S. 586, 604 (1978) (plurality opinion)). Such evidence may be particularly important for a defendant facing death for felony murder, because

a jury's penalty-phase assessment of culpability will often turn on the defendant's particular role and mental state during the offense. See *Tison* v. *Arizona*, 481 U. S. 137, 156–158 (1987).

Here, the State argued, based on testimony from two eyewitnesses, that Burns had shot Damond Dawson, one of the two men killed. While the jury did not convict Burns of premeditated murder, this evidence was doubtless salient at the penalty phase. For it is self-evident that concerns that Burns killed someone would weigh heavily on the jurors' evaluation of what punishment was warranted. This is especially obvious here, as the only evidence in aggravation that the State introduced was related to the two deaths.

Yet penalty-phase counsel did nothing to challenge the State's narrative on this life-or-death question. This failure was particularly egregious, as Burns, in state postconviction proceedings, demonstrated that counsel could have done so by offering powerful impeachment evidence of the two eyewitnesses and introducing evidence that Burns did not shoot Dawson. One of the eyewitnesses was the person who was shot, but survived. He had earlier testified at the trial of one of the codefendants that it was the codefendant who shot both him and Dawson, saying nothing about Burns. When he instead identified Burns as the shooter at Burns' trial, counsel did not impeach him with his prior testimony, despite being aware of it. The other eyewitness, a neighbor, was prompted by defense counsel's cross-examination to make a courtroom identification of Burns based on his appearance and the Jheri curl hairstyle he had at the time of trial. Defense counsel could have, but did not, call witnesses to testify to a critical fact: While some of the six men had Jheri curls at the time of the crime, Burns, who had very short hair then, did not. Nor did counsel present testimony that Burns looked similar to (and had the same first name as) another member of the group of six, who was actually the one to instigate the conflict, with a key difference being that, unlike Burns, the instigator had a Jheri curl at the time of the crime. In fact, counsel failed to observe that police statements taken from members of the six indicated that it was this other man, and not Burns, who had initially approached the vehicle.

In case there was any doubt about the role the eyewitness testimony played, the jury's decision should put it to rest. The jury sentenced Burns to death on the count connected to Dawson.

It sentenced him to life in prison for the other count related to the victim he was not alleged to have shot. The Tennessee Court of Criminal Appeals (TCCA) affirmed the convictions and death sentence on appeal.

In his state postconviction petition, Burns asserted that his penalty-phase counsel was ineffective for the reasons above. In just one paragraph, the TCCA rejected the claim for lack of prejudice, concluding that Burns "cannot establish that his sentence would have been different." App. to Pet. for Cert. 197. The court reasoned there could be no prejudice because, even if Burns did not shoot Dawson, the record supported an alternative basis for the State's alleged *aggravating* factor "of creating a great risk of death to two or more persons." *Ibid.* That reasoning completely overlooks, however, that Burns had a right to introduce *mitigating* factors. Evidence that he did not shoot Dawson would have been vital in this regard.

Burns then raised his claim in a federal § 2254 petition. Applying the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA), the District Court denied the claim after determining that the TCCA's prejudice determination was entitled to deference. *Id.*, at 114. The District Court, recognizing that reasonable jurists could disagree on this point, granted a certificate of appealability. *Id.*, at 154.

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The Sixth Circuit affirmed. 31 F. 4th 497 (2022). Unlike the District Court, the Sixth Circuit did not rely on the TCCA's prejudice decision. Instead, the Sixth Circuit held that Burns' claim failed because he could not show that penalty-phase counsel acted deficiently in the first place.

The Sixth Circuit's deficiency analysis rested on two fundamental errors of law. The first occurred when the Sixth Circuit *sua sponte* recharacterized Burns' claim as being about nothing more than "'residual doubt'" evidence. *Id.*, at 503 (quoting *Oregon* v. *Guzek*, 546 U. S. 517, 525 (2006)). That term refers to evidence that is "introduce[d] at sentencing" with the purpose of "cast[ing] 'residual doubt' on [the defendant's] guilt of the basic crime of conviction." *Id.*, at 525. The second occurred when the Sixth Circuit concluded that Burns' claim, so understood, "necessarily fails" because this Court has not established a "right to present residual doubt evidence at sentencing." 31 F. 4th, at 503.

The error in the Sixth Circuit's decision leaps off the page. Evidence that Burns did not shoot the victim is not, of course,

mere residual doubt evidence. Because Burns was convicted of felony murder, the jury did not have to find that he shot anyone in order to convict him. Thus, evidence that he was not the shooter goes to the circumstances of the felony murder and his level of culpability, rather than guilt. In other words, such evidence concerns "*how*, not *whether*, [Burns] committed the crime," a typical focus of sentencing. *Guzek*, 546 U. S., at 524. This glaring mistake, confusing evidence about the circumstances of the offense with residual doubt evidence, deprived Burns of his last chance to defend his constitutional right to introduce mitigation evidence that could have spared his life. See *Eddings*, 455 U. S., at 110.

Further, even holding fixed the Sixth Circuit's erroneous "residual doubt" characterization, the decision below rests on yet another fundamental error. The Sixth Circuit reasoned that because this Court has not recognized a right to introduce residual doubt evidence at the penalty phase, the failure to do so could not be deficient performance under *Strickland* v. *Washington*, 466 U. S. 668 (1984). This reasoning assumes, incorrectly, that only failures to advance or protect federally recognized rights can be deficient. Because deficiency for purposes of *Strickland* is measured by "an objective standard of reasonableness," *id.*, at 688, federal ineffective-assistance-of-counsel claims can also be based on failures under state law. See, *e. g.*, *Hinton* v. *Alabama*, 571 U. S. 263, 275 (2014) (*per curiam*) (counsel's failure to "understand the resources that state law made available to him" was deficient); *Kimmelman* v. *Morrison*, 477 U. S. 365, 385 (1986) (counsel was deficient for failing to request discovery permitted under state law).

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Because the Sixth Circuit overlooked this fact, it never considered whether Tennessee law might guarantee a right to introduce residual doubt evidence at the penalty phase. This is a critical omission because, as Burns made the Sixth Circuit aware, Tennessee allows for introduction of residual doubt evidence at sentencing and such a right was recognized at the time of his trial. See, *e. g.*, *State* v. *Teague*, 897 S. W. 2d 248, 256 (1995) ("Evidence otherwise admissible under the pleadings and applicable rules of evidence, is not rendered inadmissible because it may show that the defendant did not kill the victim, so long as it is probative on the issue of the defendant's punishment").

In his petition for certiorari, Burns asks this Court for summary action to correct the serious legal errors below. The State,

tellingly, does not defend the indefensible. Instead, essentially conceding that the Sixth Circuit erred, the State tries to shift attention away from the actual ruling on review by arguing that any action would be "futile" because, on remand, Burns "would not be able to overcome the heavy deference that must be paid to the state court's prejudice findings." Brief in Opposition 2.

Burns argued before the Sixth Circuit, however, that the TCCA itself committed two clear errors of law in its prejudice analysis, such that no AEDPA deference is owed under § 2254(d)(1). First, Burns argued that because the TCCA considered only whether evidence that he did not shoot Dawson would have impacted the jury's finding of the statutory aggravating factor, without considering how it would have impacted the jury's assessment of mitigation, its decision is contrary to clearly established law, which also requires asking whether "the available *mitigating evidence*, taken as a whole, 'might well have influenced the jury's appraisal' of [his] moral culpability." *Wiggins* v. *Smith*, 539 U. S. 510, 538 (2003) (emphasis added). Second, Burns argued that the TCCA applied an overly demanding prejudice standard, ignoring that prejudice requires only "'a reasonable probability that, but for counsel's unprofessional errors, the result of the proceeding would have been different.'" *Rompilla* v. *Beard*, 545 U. S. 374, 390 (2005); Cf. *Vasquez* v. *Bradshaw*, 345 Fed. Appx. 104, 112 (CA6 2009) (no AEDPA deference owed because the state court "actually describe[d] and appl[ied] a different [prejudice] standard"). The Sixth Circuit never considered these arguments because of its erroneous deficiency analysis.

The Court's decision to deny certiorari means that Burns now faces execution despite a very robust possibility that he did not shoot Dawson but that the jurors, acting on incomplete information, sentenced him to death because they thought he had. The Court's failure to act is disheartening because this case reflects the kind of situation where the Court has previously found summary action appropriate: The relevant facts are not in dispute, and the decision below clearly conflicts with settled law of this Court on an important matter. The need for action is great because Burns faces the ultimate and irrevocable penalty of death. With so much at stake, I would vacate the decision below and remand. Because the Court refuses to do so, the indefensible decision below will be the last for Burns. I respectfully dissent.

No. 22–5894. GIBBS *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 22–7092. HARDWICK *v.* UNITED STATES. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

Rehearing Denied

No. 21–8096. FRANTZ *v.* FRANTZ, 598 U. S. 934;

No. 22–627. WILBORN *v.* MAYORKAS, SECRETARY OF HOMELAND SECURITY, 598 U. S. 1165;

No. 22–694. WHITAKER *v.* WARD, COMMISSIONER, GEORGIA DEPARTMENT OF CORRECTIONS, 598 U. S. 1189;

No. 22–5121. FRANTZ *v.* KANSAS ET AL., 598 U. S. 956;

No. 22–5284. FAGANS *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, 598 U. S. 978;

No. 22–5588. WAKEFIELD *v.* NEW YORK, 598 U. S. 1081;

No. 22–5646. FREEMAN *v.* STIRLING, DIRECTOR, SOUTH CAROLINA DEPARTMENT OF CORRECTIONS, ET AL., 598 U. S. 1082;

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No. 22–5834. TORRES *v.* MITCHELL, SUPERINTENDENT, OLD COLONY CORRECTIONAL CENTER, ET AL., 598 U. S. 1108;

No. 22–6021. GUO *v.* TEXAS, 598 U. S. 1131;

No. 22–6499. THORNTON-BEY *v.* WARDEN, UNITED STATES PENITENTIARY, ALLENWOOD, 598 U. S. 1178; and

No. 22–6512. PERRY *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, 598 U. S. 1179. Petitions for rehearing denied.

No. 22–637. IN RE KLAYMAN, 598 U. S. 1195. Petition for rehearing denied. JUSTICE KAVANAUGH and JUSTICE JACKSON took no part in the consideration or decision of this petition.

MAY 1, 2023

Certiorari Dismissed

No. 22–6937. DAVIS *v.* UNITED STATES. C. A. 11th Cir. Motion of petitioner for leave to proceed *in forma pauperis* denied, and certiorari dismissed. See this Court's Rule 39.8.

Miscellaneous Orders

No. 22M100. JORDAN *v.* UNITED STATES. Motion for leave to file petition for writ of certiorari under seal denied.

No. 22M101. HERMANN *v.* MCFARLAND ET AL. Motion for leave to file petition for writ of certiorari with supplemental appendix under seal granted.

No. 22–6910. FIELDS *v.* CONRAD ET AL. C. A. 11th Cir.; and
No. 22–7181. BARRETT *v.* PAE, INC. Motions of petitioners for leave to proceed *in forma pauperis* denied. Petitioners are allowed until May 22, 2023, within which to pay the docketing fees required by Rule 38(a) and to submit petitions in compliance with Rule 33.1 of the Rules of this Court.

No. 22–6911. IN RE CUNNINGHAM; and
No. 22–6919. IN RE GRAHAM. Petitions for writs of mandamus denied.

No. 22–6966. IN RE SPENCER. Motion of petitioner for leave to proceed *in forma pauperis* denied, and petition for writ of mandamus dismissed. See this Court's Rule 39.8. As petitioner has repeatedly abused this Court's process, the Clerk is directed not to accept any further petitions in noncriminal matters from petitioner unless the docketing fee required by Rule 38(a) is paid and the petition is submitted in compliance with Rule 33.1. See *Martin* v. *District of Columbia Court of Appeals*, 506 U. S. 1 (1992) (*per curiam*).

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Certiorari Granted

No. 22–660. MURRAY *v.* UBS SECURITIES, LLC, ET AL. C. A. 2d Cir. Certiorari granted. Reported below: 43 F. 4th 254.

No. 22–451. LOPER BRIGHT ENTERPRISES ET AL. *v.* RAIMONDO, SECRETARY OF COMMERCE, ET AL. C. A. D. C. Cir. Motions of Center for Constitutional Jurisprudence, Christian Employers Alliance, Relentless, Inc., et al., David Goethel et al., Advancing American Freedom, and Pacific Legal Foundation for leave to file briefs as *amici curiae* granted. Certiorari granted limited to Question 2 presented by the petition. JUSTICE JACKSON took no part in the consideration or decision of these motions and this petition. Reported below: 45 F. 4th 359.

Certiorari Denied

No. 21–1543. DOE, AKA BEEISM *v.* STERLING. C. A. 11th Cir. Certiorari denied.

No. 22–212. SAVAS ET AL. *v.* CALIFORNIA STATEWIDE LAW ENFORCEMENT ASSN. ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–219. O'CALLAGHAN ET AL. *v.* DRAKE, PRESIDENT OF THE UNIVERSITY OF CALIFORNIA, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–498. KURK *v.* LOS RIOS CLASSIFIED EMPLOYEES ASSN. ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–519. MALLOY *v.* PENNSYLVANIA. Super. Ct. Pa. Certiorari denied. Reported below: 266 A. 3d 658.

No. 22–578. BEHAR *v.* DEPARTMENT OF HOMELAND SECURITY. C. A. 2d Cir. Certiorari denied. Reported below: 39 F. 4th 81.

No. 22–595. BARRADAS-JACOME *v.* GARLAND, ATTORNEY GENERAL. C. A. 3d Cir. Certiorari denied. Reported below: 39 F. 4th 111.

No. 22–665. PRICE *v.* GARLAND, ATTORNEY GENERAL, ET AL. C. A. D. C. Cir. Certiorari denied. Reported below: 45 F. 4th 1059.

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No. 22–670. PACESETTER CONSULTING, LLC *v.* KAPREILIAN ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–752. BI RITE AUTO TRANSPORT, INC., ET AL. *v.* DILDAY ET AL. Ct. App. Cal., 5th App. Dist. Certiorari denied.

No. 22–780. MEIDE ET AL. *v.* CENTINEO ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–788. EDWARDS *v.* MCMILLEN CAPITAL, LLC. C. A. 2d Cir. Certiorari denied.

No. 22–792. VINKOV *v.* SUPERIOR COURT OF CALIFORNIA, COUNTY OF RIVERSIDE, ET AL. Ct. App. Cal., 4th App. Dist., Div. 2. Certiorari denied.

No. 22–793. DAVIS ET AL. *v.* WALLER ET AL. C. A. 11th Cir. Certiorari denied. Reported below: 44 F. 4th 1305.

No. 22–810. LIEBMAN *v.* OCWEN LOAN SERVICING, LLC, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–812. KOCH *v.* NEBRASKA. Ct. App. Neb. Certiorari denied. Reported below: 31 Neb. App. ——.

No. 22–819. WAKEFIELD, DBA COOLTVNETWORK.COM *v.* BLACKBOARD, INC., ET AL. C. A. Fed. Cir. Certiorari denied.

No. 22–832. CALDWELL ET AL. *v.* GASPER, INDIVIDUALLY AND IN HIS OFFICIAL CAPACITY AS DIRECTOR, MICHIGAN STATE POLICE, ET AL. C. A. 6th Cir. Certiorari denied.

No. 22–837. CLARK ET AL. *v.* MURPHY, GOVERNOR OF NEW JERSEY, ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 53 F. 4th 769.

No. 22–847. SILVA-NAVARRO *v.* ROOSEVELT REO PR CORP. C. A. 1st Cir. Certiorari denied.

No. 22–862. JOHNSON *v.* WEST VIRGINIA. Sup. Ct. App. W. Va. Certiorari denied.

No. 22–878. BROWN *v.* HARRINGTON, UNITED STATES TRUSTEE FOR REGION 1. C. A. 1st Cir. Certiorari denied. Reported below: 55 F. 4th 945.

No. 22–883. EVENS *v.* GILBERTSON ET AL. C. A. 8th Cir. Certiorari denied.

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No. 22–895. MURPHY CREEK, LLC, ET AL. *v.* MURPHY CREEK METROPOLITAN DISTRICT NO. 3. Ct. App. Colo. Certiorari denied.

No. 22–900. JAIYEOLA *v.* BRUNDAGE. C. A. 6th Cir. Certiorari denied.

No. 22–907. MONTE SILVER, LTD. *v.* INTERNAL REVENUE SERVICE ET AL. C. A. D. C. Cir. Certiorari denied.

No. 22–940. SCHWARTZ *v.* MASSACHUSETTS BOARD OF REGISTRATION IN MEDICINE. Sup. Jud. Ct. Mass. Certiorari denied. Reported below: 490 Mass. 1025, 196 N. E. 3d 325.

No. 22–946. MANLEY *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied. Reported below: 52 F. 4th 143.

No. 22–951. DOE ET AL. *v.* ROKITA, ATTORNEY GENERAL OF INDIANA, ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 54 F. 4th 518.

No. 22–5877. ALTMAN *v.* UNITED STATES; BAILEY *v.* UNITED STATES (Reported below: 37 F. 4th 467); BRANDT *v.* UNITED

STATES; MASON *v.* UNITED STATES; MONGAN *v.* UNITED STATES; RIVERS *v.* UNITED STATES; and ROCKWOOD *v.* UNITED STATES. C. A. 8th Cir. Certiorari denied.

No. 22–6001. SAMUEL *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied.

No. 22–6629. GAVIN *v.* HAMM, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied. Reported below: 40 F. 4th 1247.

No. 22–6785. GAGE *v.* MIDWESTERN UNIVERSITY. C. A. 9th Cir. Certiorari denied.

No. 22–6831. CARTER *v.* VIRGINIA. Sup. Ct. Va. Certiorari denied.

No. 22–6832. MAHAFFEY *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 22–6840. CARABALLO *v.* FLORIDA. Dist. Ct. App. Fla., 2d Dist. Certiorari denied. Reported below: 350 So. 3d 1254.

No. 22–6850. MENDEZ *v.* COMMUNITY HEALTH CLINICS, INC., DBA TERRY REILLY HEALTH SERVICES. C. A. 9th Cir. Certiorari denied.

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No. 22–6857. ROWE *v.* ROBERTS ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6859. TURNER *v.* U. S. BANK N. A. ET AL. Sup. Ct. Cal. Certiorari denied.

No. 22–6861. SOLANO *v.* TEXAS. Ct. App. Tex., 12th Dist. Certiorari denied.

No. 22–6868. KEARSE *v.* DIXON, SECRETARY, FLORIDA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

No. 22–6871. KHALIL *v.* NEW YORK. App. Div., Sup. Ct. N. Y., 3d Jud. Dept. Certiorari denied. Reported below: 206 App. Div. 3d 1300, 170 N. Y. S. 3d 658.

No. 22–6875. JIANG *v.* XU ET AL. Ct. App. Cal., 2d App. Dist. Certiorari denied.

No. 22–6876. BACCHUS *v.* THOMSON ET AL. Sup. Ct. Cal. Certiorari denied.

No. 22–6882. RUSS *v.* FLORIDA. Sup. Ct. Fla. Certiorari denied.

No. 22–6884. CHHALLIYIL *v.* FOODCHAIN ID GROUP, INC., ET AL. C. A. 8th Cir. Certiorari denied.

No. 22–6887. AUDETTE *v.* UNITED STATES ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–6888. RAJAPAKSE *v.* SHAW ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–6890. RAJAPAKSE *v.* EQUIFAX INFORMATION, LLC. C. A. 11th Cir. Certiorari denied.

No. 22–6891. DINGLER *v.* TEXAS. Ct. Crim. App. Tex. Certiorari denied.

No. 22–6896. MASON *v.* FARRIS, WARDEN. Ct. Crim. App. Okla. Certiorari denied.

No. 22–6898. LOVE *v.* MARTUSCELLO, SUPERINTENDENT, COXSACKIE CORRECTIONAL FACILITY. C. A. 2d Cir. Certiorari denied.

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No. 22–6899. MCDONALD-HENRY *v.* BRINK ET AL. App. Ct. Ill., 1st Dist. Certiorari denied. Reported below: 2021 IL App (1st) 200152–U.

No. 22–6903. LANDRY *v.* OKLAHOMA. Ct. Crim. App. Okla. Certiorari denied.

No. 22–6904. STUBBLEFIELD *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6906. JOHNSON *v.* CAMPBELL, WARDEN, ET AL. C. A. 4th Cir. Certiorari denied.

No. 22–6907. CUMBIE *v.* TEXAS. Ct. App. Tex., 12th Dist. Certiorari denied.

No. 22–6917. ROBERSON *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION. C. A. 5th Cir. Certiorari denied.

No. 22–6918. HALL *v.* LECLAIRE ET AL. C. A. 2d Cir. Certiorari denied.

No. 22–6920. HARTWEIN *v.* MISSOURI. Ct. App. Mo., Eastern Dist. Certiorari denied. Reported below: 648 S. W. 3d 834.

No. 22–6922. ROSS *v.* CLERK OF COURTS OF THE COURT OF COMMON PLEAS OF PHILADELPHIA, PENNSYLVANIA, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–6928. DYJAK *v.* LYNN ET AL. C. A. 7th Cir. Certiorari denied.

No. 22–6929. THOMAS *v.* SMITH, WARDEN. C. A. 5th Cir. Certiorari denied.

No. 22–6954. BURCH *v.* RUSHMORE LOAN MANAGEMENT SERVICES, L. L. C. C. A. 5th Cir. Certiorari denied.

No. 22–6957. DAVIS *v.* BIDEN, PRESIDENT OF THE UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–6974. SMITH *v.* LOUISIANA. Sup. Ct. La. Certiorari denied. Reported below: 2022–00595 (La. 10/18/22), 348 So. 3d 725.

No. 22–6985. BERGMAN *v.* HOWARD, WARDEN. C. A. 6th Cir. Certiorari denied. Reported below: 54 F. 4th 950.

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No. 22–6987. BROOKSHIRE *v.* WISCONSIN. Ct. App. Wis. Certiorari denied. Reported below: 2022 WI App 52, 980 N. W. 2d 485.

No. 22–7012. MCCOY *v.* CALIFORNIA. Ct. App. Cal., 1st App. Dist., Div. 4. Certiorari denied.

No. 22–7085. GODINEZ *v.* JOHNSON, ADMINISTRATOR, NEW JERSEY STATE PRISON, ET AL. C. A. 3d Cir. Certiorari denied.

No. 22–7111. KHONG *v.* FRAUENHEIM, WARDEN. C. A. 9th Cir. Certiorari denied.

No. 22–7124. SCOTT *v.* PAYNE, DIRECTOR, ARKANSAS DIVISION OF CORRECTION. Sup. Ct. Ark. Certiorari denied. Reported below: 2022 Ark. 178, 652 S. W. 3d 562.

No. 22–7133. STANCU *v.* SOUTHERN METHODIST UNIVERSITY. Ct. App. Tex., 5th Dist. Certiorari denied.

No. 22–7143. XUNXIAN LIU *v.* BECERRA, SECRETARY OF HEALTH AND HUMAN SERVICES, ET AL.; and XUNXIAN LIU *v.* ADMINISTRATIVE OFFICE OF THE UNITED STATES COURTS ET AL. C. A. D. C. Cir. Certiorari denied.

No. 22–7167. TRULEY *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–7190. VOSS *v.* CARR, SECRETARY, WISCONSIN DEPARTMENT OF CORRECTIONS. C. A. 7th Cir. Certiorari denied.

No. 22–7211. AGUILAR-MEDINA *v.* THORNELL, DIRECTOR, ARIZONA DEPARTMENT OF CORRECTIONS, REHABILITATION AND REENTRY, ET AL. C. A. 9th Cir. Certiorari denied.

No. 22–7216. ANDERSON *v.* UNITED STATES. C. A. 4th Cir. Certiorari denied.

No. 22–7217. BRYANT *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 22–7223. LEE *v.* UNITED STATES. C. A. 11th Cir. Certiorari denied.

No. 22–7231. ALANIZ *v.* UNITED STATES. C. A. 5th Cir. Certiorari denied.

No. 21–1448. WELLS *v.* MCCALLISTER. C. A. 9th Cir. Motion of Central District Consumer Bankruptcy Attorneys Association for leave to file brief as *amicus curiae* granted. Certiorari denied.

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No. 22–811. REARDON *v.* NEW JERSEY ET AL. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

No. 22–833. REARDON *v.* MURPHY, GOVERNOR OF NEW JERSEY, ET AL. C. A. 3d Cir. Certiorari denied. JUSTICE ALITO took no part in the consideration or decision of this petition.

Rehearing Denied

No. 22–626. HAMDAN ET AL. *v.* WALZ, GOVERNOR OF MINNESOTA, ET AL., 598 U. S. 1196;

No. 22–6182. CONNER *v.* LUMPKIN, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION, 598 U. S. 1167;

No. 22–6215. DAVIS *v.* MALLARDS LANDING ASSOCIATES LTD, DBA MISSION POINTE APARTMENTS, 598 U. S. 1167;

No. 22–6287. KIM *v.* PUBLIC SCHOOLS OF BROOKLINE ET AL., 598 U. S. 1169;

No. 22–6483. SLOAN *v.* UNITED STATES, 598 U. S. 1190;

No. 22–6498. SHINE-JOHNSON *v.* GRAY, WARDEN, 598 U. S. 1178; and

No. 22–6668. LYONS *v.* LADNER, WARDEN, 598 U. S. 1191. Petitions for rehearing denied.

MAY 3, 2023

Certiorari Denied

No. 22–7412 (22A949). BARWICK *v.* DESANTIS, GOVERNOR OF FLORIDA, ET AL. C. A. 11th Cir. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied.

No. 22–7424 (22A952). BARWICK *v.* FLORIDA. Sup. Ct. Fla. Application for stay of execution of sentence of death, presented to JUSTICE THOMAS, and by him referred to the Court, denied. Certiorari denied.

MAY 4, 2023

Miscellaneous Order

No. 21–1271. MOORE, SPEAKER OF THE NORTH CAROLINA HOUSE OF REPRESENTATIVES, ET AL. *v.* HARPER ET AL. Sup. Ct. N. C. [Certiorari granted, 597 U. S. 918]. The parties and the Solicitor General are invited to file supplemental letter briefs addressing the following question: "What is the effect on this Court's jurisdiction of the April 28, 2023, order of the North Carolina Supreme Court?" Briefs, not to exceed 10 pages, are to be filed simultaneously with the Clerk and served upon opposing counsel on or before 2 p.m., Thursday, May 11, 2023.

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MAY 5, 2023

Miscellaneous Order

No. 22A941. GLOSSIP *v.* OKLAHOMA. Ct. Crim. App. Okla. Application for stay of execution of sentence of death, presented to JUSTICE KAVANAUGH, and by him referred to the Court, granted pending disposition of the petitions for writs of certiorari, Nos. 22–6500 and 22–7466. Should both petitions for writs of certiorari be denied, this stay shall terminate automatically. In the event either petition for writ of certiorari is granted, the stay shall terminate upon the issuance of the mandate of this Court. JUSTICE GORSUCH took no part in the consideration or decision of this application.